

THE
EARLY HISTORY
OF
ENGLISH
POOR RELIEF
BY

E. M. LEONARD,

FORMER STUDENT OF GIRTON COLLEGE.

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*** START OF THE PROJECT GUTENBERG EBOOK THE EARLY
HISTORY OF ENGLISH POOR RELIEF ***

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AT THE UNIVERSITY PRESS.
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TO THE
REV. WILLIAM CUNNINGHAM, D.D., LL.D.
FELLOW AND LECTURER IN TRINITY COLLEGE,
CAMBRIDGE,
IN ACKNOWLEDGMENT OF MANY KINDNESSES
I DEDICATE THIS BOOK.

PREFACE.

THE present account of the early history of English poor relief is chiefly derived from the municipal records of London and Norwich and from the reports of the justices of the peace which are included amongst the state papers. Information on the subject is also contained in the Privy Council Register, while some of the orders of both Privy Council and justices and a few of the overseers' accounts are to be found in the collections of the British Museum.

A fairly effectual system of relieving the destitute by public authority has had in England a continuous existence since the seventeenth century. Attempts to found such a system of poor relief in the sixteenth century were common to most of the countries of Western Europe, but the continued existence of any organisation of the kind is peculiar to England.

Possibly this fact has an important influence on our national history. We are apt to consider the facts that we are a law-abiding people and that we have not suffered from violent revolutions to be entirely due to the virtues of the national character and the excellence of the British Constitution. But before the introduction of our system of relieving the poor we were by no means so free from disorder. The poor laws themselves were at least partly police measures, and, until they were successfully administered, the country was repeatedly disturbed by rebellions and constantly plagued by vagrants. The connection between the relief of the poor and orderly government in England appears fully during the course of the sixteenth and seventeenth centuries, and it may be that our legal system of poor relief has ever since contributed to the absence of violent catastrophes in our national history.

But although the continuous existence of a system of public poor relief for nearly three centuries is peculiar to England, the English organisation was at first only one of a series of similar systems which began to arise during the sixteenth century in most of the countries of Europe. Both in England and on the continent, however, poor laws were difficult to administer. On the continent they fell gradually into abeyance, and the English system of poor relief was by no means enforced simply because a poor law was passed in the reign of Queen Elizabeth. It survived almost alone among the

similar organisations of the time chiefly in consequence of the policy adopted by the Privy Council in the reign of Charles I. and of the efforts made by English justices of the peace as a result of that policy.

For nearly a century before the time of Charles I., however, experiments had been made in the organisation of public poor relief. Efforts in this direction were first undertaken by the towns, and the provisions of the earlier English poor laws appear to have been modelled on pre-existing municipal regulations. The City of London was apparently the first English secular authority to organise the public relief of the poor. Collections by the aldermen at the church doors were decreed by the Court of Aldermen in 1532: compulsory taxation was levied by the Common Council as early as 1547, while the Bishop and citizens persuaded Edward VI. to grant the royal palace of Bridewell for the creation of the first House of Correction. Before 1569 legislation also had been fashioned upon these pre-existing orders and bye-laws of the towns, but neither statutes nor municipal orders were successful.

Statute succeeded statute throughout the sixteenth century; during the years 1594 to 1597, however, there was great scarcity of corn and provisions; the poor died from starvation or rose in insurrection. The whole question of poor relief was in consequence thoroughly thrashed out in Parliament. Bacon and Burleigh, Whitgift and Raleigh took part in the debates. A great committee appointed in 1597 held its meetings in the Middle Temple Hall, and there Bacon, Coke, and the most distinguished men in the House discussed at least thirteen bills on the subject. This committee finally rejected all the bills referred to them in favour of a new bill drafted by themselves which finally passed into law. This was practically re-enacted in 1601 and has remained in force until our own time as the basis of our organisation for the relief of the poor.

But the question of poor relief was not settled by statutory enactment any more than by municipal regulations. Administration and not legislation has always been the difficulty in laws concerning the poor. Until the end of the sixteenth century the history of relief in England is parallel to that of France and Scotland; there were in all three countries many poor laws but none were well administered. But in the time of Charles I. the machinery for the execution of the law is developed, and henceforward the history of poor relief in England differs from that of the neighbouring countries.

The machinery for the execution of the law is created by means of the pressure of the Privy Council on the justices of the peace. Even in the reign of Elizabeth the Privy Council had occasionally issued orders with the object of enforcing the poor law. But from 1629 to 1640 the Privy Council under the personal government of Charles I. interfered constantly and regularly in the matter. The Council attempted to provide work for the unemployed, to procure cheap corn in years of scarcity, and to regulate wages in the supposed interests of the workmen. It also established a new organisation for the ordinary relief of the poor. In 1631 the justices still neglected to execute the laws for the poor, but the Book of Orders issued in that year ordered special meetings to be held and reports to be sent to the Privy Council. Nearly a thousand of these reports remain, and in these we are told that in many districts of the kingdom the execution of the law so improved that it became part of the practice as well as of the law of the land.

Moreover the whole of the Elizabethan Poor Law was administered: work was provided for the unemployed, as well as pensions for the impotent. In most places in south-eastern England, and in some districts of almost every county, sums were levied in order that materials and tools might be furnished to the unemployed.

Thus during the personal government of Charles I. we have not only the first thorough execution of the poor law, but a more complete organisation for the help of the weaker classes than at any other period of our history.

The system thus established was successful in meeting the temporary difficulties of the time. Some Shropshire justices worked "such effect" by the execution of the Book of Orders that "there have not any rogues or vagabonds appeared amongst us or walked abroad as wee heare of since our first meetings." There were also no complaints from the impotent poor, and the unemployed were set to work. There are similar accounts from many different parts of the country which show that the administration of the Poor Law had then much to do with making England a law-abiding and orderly community.

But the outbreak of the Civil War rendered the finding of work for the unemployed less necessary, and broke up the organisation established by the Book of Orders. There are no reports after 1640, and probably the

special meetings of the justices were discontinued. The whole of the poor law was laxly administered and only in a few places did this provision for the unemployed outlast the Commonwealth. Still a part of the poor law survived and has a continuous history from the time of Henry VIII. In Scotland and France either the central government was not so vigilant, or there were no efficient local officials, and in both these countries therefore regulations for the relief of the poor were issued but were not effectually executed. The English organisation alone survived, and this probably in consequence of the enforcement of the Book of Orders under the personal government of Charles I.

During my investigations I have received valuable assistance. To the Rev. Dr Cunningham of Trinity College, Cambridge, I am especially grateful for much kindly advice and criticism. I began my researches into this subject while I was a student of the London School of Economics and desire to express my obligations to Mr Hewins, the Director of the School, who first suggested the subject to me, and also pointed out to me some of the printed sources of information. I also thank Mr Hubert Hall of the Public Record Office for the ready kindness with which he has always helped me. Mr Tigny of the Norwich muniment room, Dr Sharpe of the Guildhall Record Office, and the officials of the British Museum and Public Record Office have also courteously assisted me while I was investigating the manuscripts under their care. My thanks are also due to Mr S. H. Leonard of Lincoln's Inn, Mr J. L. Burbey of Exeter College, and Miss Maud Syson of Girton College. I desire also to express my gratitude to Mr Loch, Sec. of the C. O. S., who, on behalf of the Syndics of the University Press, made several suggestions of which I have been glad to avail myself.

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P. [50](#), n. [106](#). *For* Amysbury *read* Amesbury, *for* Boscum *read* Boscombe, *for* Alyngton *read* Allington and *for* Fiddelldene *read* Figheldean.

P. [102](#), n. [224](#), p. [106](#), n. [234](#), p. [142](#), n. [316](#) *for* Maiores Booke *for* the Poore *read* Maioris Bocke *for* the Pore.

P. [118](#), l. [18](#). *For* Twiford *read* Twyford.

P. [168](#), l. [10](#). *For* Arkesey *read* Arksey.

P. [169](#), n. [384](#). *For* Dewisburie *read* Dewsbury, *for* Shelfe *read* Shelf, and *for* Northowrom *read* Northowram.

P. [170](#), n. [387](#). *For* Thirske *read* Thirsk.

P. [173](#), l. [22](#). *For* Fropfield *read* Froxfield.

P. [214](#), n. [510](#). *For* Easbie *read* Easby.

NOTE. P. [141](#), n. [312](#). The decision of Lord Romer was reversed by the Court of Appeal on March 7th, 1900; it was decided that the Guardians were not entitled to relieve the colliers during a strike.

THE EARLY HISTORY OF ENGLISH POOR RELIEF.

CHAPTER I.

THE BEGINNING OF THE SECULAR CONTROL OF POOR RELIEF.

1. Anglo-Saxon times.
2. The Labour Statutes.
3. The regulation of charitable funds by the state.
4. The control of charitable funds by the towns.
5. Summary of the main features of public control of poor relief before the sixteenth century.

Introduction.

The English system of Poor Relief presents a striking contrast to the rest of our national institutions. In most departments of our social organisation, public control is less extensive in England than in the other countries of Western Europe. But, in regard to the relief of the poor, we have adopted an opposite policy. Since the reign of Charles I., Englishmen have made themselves responsible for the maintenance of those who are destitute. All, who cannot obtain food or shelter for themselves or from their nearest relatives, have a right to relief from compulsory rates levied upon the rest of the community.

It will be our object, in the following pages, to trace the growth of this system. We will examine the causes which led the public authorities of state and town to control the relief of the poor, and the steps which they took to render its administration effective and successful. There can be no doubt, that an organisation of this kind was not suddenly imposed by a single Act of Parliament. Under Henry VIII., the first enactment was passed ordering the regular collection and distribution of alms for the relief of the poor^[1], but it was not until forty years later that the amount to be paid by each individual was assessed and its payment compulsorily enforced^[2], while even after ninety years had elapsed, the English organisation of poor relief

was still irregularly carried out and of little practical effect[3]. Like other and more famous English institutions, the making and administration of the English Poor Law was a growth, not a creation. It was during the sixteenth and early part of the seventeenth centuries that the chief experiments were made in methods of relieving the poor by secular public authorities. But, even before that time, the beginnings of the later organisation may be traced both in the provisions of the statutes and in the regulations of the towns.

1. Anglo-Saxon times.

We will now briefly consider the chief ways in which public secular authorities interfered in the relief of the poor before the sixteenth century. In Anglo-Saxon times, the administration of poor relief was almost entirely under the control of the Church. Almsgiving and hospitality were however inculcated as religious duties of considerable importance, and there is much to make us think that they were extensively practised by Anglo-Saxon kings and noblemen. Bede tells the following story of King Oswald. He was about to dine sumptuously from a silver dish of dainties one Easter day, when the servant who distributed relief to the poor came before him, and told him that there were many needy persons outside the gate, who were begging some alms of the king. The king left the dish untasted and ordered the contents to be carried to the beggars[4]. This story incidentally lets us see that a distribution of alms and a special servant for the purpose were part of the regular organisation of the household. King Alfred also, we are told, "bestowed alms and largesses on both natives and foreigners of all countries[5]," and it was the custom of the Anglo-Saxon kings to keep open house for several days and to entertain all comers three times a year, at Christmas, Easter and Whitsuntide.

But the greater part of the relief of the time was administered by ecclesiastics. Some help was given to the poor in famous abbeys like those of Ely, Croyland and Glastonbury[6], and there were the offerings distributed by the priests. The nearest approach we have to state interference with the relief of the poor is found in the law of Ethelred, which probably enforced the existing custom with regard to tithe. One third part "of the tithe which belonged to the Church" was to be given to "Gods poor and needy men in thraldom[7]."

But, from the beginning of the thirteenth century, we find greater activity in the matter. Two causes seem to have influenced the secular public authorities of the time to interfere; first, the desire to repress vagrants, and

secondly, the wish of state and town to control some of the charitable endowments.

2. Labour statutes.

Many of the regulations, made with the object of repressing vagrants and able-bodied beggars, were closely connected with the statutes concerning labour, enacted from the middle of the fourteenth century onwards.

After the Black Death of 1348-9, labourers were scarce and wages rose rapidly; a series of enactments was therefore passed, designed to force every able-bodied man to work, and to keep wages at the old level.

In the first regulation of this kind, the Ordinance of Labourers of 1349, the first step is taken towards the national control of poor relief. The proclamation restrains the liberty of the giver; the private individual may no longer give to whom he chooses. It is provided that no one is to give relief to able-bodied beggars, and the ground of the prohibition is expressly stated to be "that they may be compelled to labour for their necessary living."

The first provision of funds for the relief of the poor made by law, is embodied in one of the same series of labour statutes. The wages of priests were regulated and it was ordered that the fines of those parishioners who paid more than the statutory rate, should be given to the poor^[8].

Almost as soon as these labour statutes were passed, we hear that labourers fled from county to county in order to elude the operation of the law^[9]. The workmen adopted many devices, in order to escape from any part of the country where these regulations were enforced. Some seem to have pretended to be crippled and diseased, and so, when undetected, could wander and beg with impunity. Others, apparently, joined bands of pilgrims, like the famous travellers from the Tabard to Canterbury, and, journeying with them, would reach a district, where they could obtain good wages and be undisturbed by the execution of the labour laws. In 1388, therefore, regulations were made, restricting the movements, not only of able-bodied beggars, but of all beggars and of all labourers and, at the same time, admitting the right to relief of those who were unable to work for themselves^[10]. Servants who wished to depart from the hundred in which they lived, under colour of going a pilgrimage, or in order to serve or dwell elsewhere, were to have a letter, stating the cause of their journey and the time when they were to return, duly signed by the "good man of the

hundred" appointed for the purpose. If they were found away from their district, without a letter of this kind, they were to be placed in the stocks and kept there, until they found surety to return to their own neighbourhood. However, a servant who had a certain engagement with a master in another part of the country, was always to be allowed to have a letter, allowing him freely to depart. Thus the statute prevented a man from wandering about in search of work, but did not prevent him from migrating, when an engagement was already concluded. All these regulations affected beggars: an able-bodied beggar who begged without a letter was to be put in the stocks in the same manner as a labourer without a letter. He could not escape by pretending that he was a labourer, because both were liable to punishment. Neither could he elude the vigilance of the law, by pretending to be disabled, because the impotent poor also were forbidden to wander; they were to stay where they were at the passing of the Act, or, if the people there were unable to support them, were to go, within forty days, to other towns in the same hundred or to the place where they were born.

This statute is often regarded as the first English poor law, because it recognises that the impotent poor had a right to relief, and because it carefully distinguishes between them and the able-bodied beggars. The provisions also imply the responsibility of every neighbourhood for the support of its own poor. Moreover, this enactment may be regarded as a law of settlement. Not only were the impotent poor confined to their own district, but all unlicensed labourers were likewise forbidden to migrate. Probably the Act had little effect because it was too stringent to have been enforced.

Not only Parliament, but the municipal rulers also, made regulations for the restraint of vagabonds. The authorities of the City of London, in 1359 and in 1375, forbade any able-bodied person to beg, and at the end of the fifteenth century the constables were ordered to search, not only for the vagabonds themselves, but also for the people who harboured them^[11].

Two statutes relating to beggars and vagabonds were passed in the reign of Henry VII.^[12] but in both the severity of the punishment was decreased, because the king wished by "softer meanes" to reduce them to obedience. The decrease in the severity of this punishment seems to show that there was as yet little sign of the crowds of vagrants, who were a terror to the country under Henry VIII. So far the wanderers were men who had no

difficulty in obtaining work, but who wanted better terms. Under Henry VIII. they include also unemployed labourers, and the legislation dealing with them concerns the provision of work for the able-bodied as well as assistance for the impotent poor; still the regulations concerning vagrants were already connected with the relief of the poor because the efforts made to keep at work the valiant beggars had made it necessary to distinguish between them and the old and disabled, and had led to some provision being made for those really unable to help themselves.

3. Control of
charitable
endowments by the
State.

But there was another cause for the public regulation of the relief of the necessitous. From the thirteenth century onwards there are signs that men had ceased to leave charitable endowments entirely in the hands of ecclesiastics. A growing desire was felt, that Parliament and Town Governments should share in the administration of some of the funds for the relief of the poor.

We find indications of this both in the statutes and in the action of the burgesses. Almost at the same time that the statute of 1388 ordered beggars to remain in their own neighbourhood, another statute of Richard II. was passed which regulated the revenues of the Church in the interests of the poor. A portion of the tithe had been commonly distributed by the resident rector to the poor^[13], but, when a living became part of the possessions of a monastery, the poor parishioners were often forgotten. In order therefore that the parishioners might not be injured, this enactment provided that when the revenues of a living were appropriated by a monastery, a portion of the revenue should be assigned to the poor, so that they might not lose the alms formerly distributed by the rectors^[14]. Under Henry IV. this statute was re-enacted, and it was ordered that appropriations made since the 15 Rich. II. should be reformed^[15]. The earlier statute had thus probably not been well observed: the second was apparently more successful, for in *The Complaynt of Roderyck Mors*, written in 1542, it is stated that "if the personage were improperd, the monkes were bound to deale almesse to the poore and to kepe hospitalyte as the writings of the gyftes of such personages and landes do playnly declare^[16]." In any case this legislation indicates a desire on the part of the state to interfere, in order to reform the administration of ecclesiastical revenues in the interest of the poor.

4. Control of charitable endowments by the town.

In the towns also, the civic governors and the guilds began to control some of the endowments for the relief of the poor. Even in Anglo-Saxon times, the distribution of alms formed part of the functions of the guilds, and it is not unlikely that it was partly owing to customs formed by the municipal rulers through their association in guilds that the towns began to take an active part in the administration of poor relief. Thus at Lynn, one of the ordinances of the town guild provided that relief should be given to any brother in poverty, either from the common fund or from the private purses of the guild brothers. A piece of land was bequeathed to the guild, partly for the purpose of relieving the poor, and, we are told, £30 a year was distributed to the poor brethren, to blind, lame and sick persons, and for other charitable purposes. The whole charity distributed by this association must have been considerable, for though only four great meetings of the guild were held during the year, one of these was especially concerned with the management of its charities[17]. At Sandwich also[18], the burgesses or the town rulers controlled the two hospitals dedicated respectively to St Bartholomew and St John. Both were virtually almshouses providing for a certain number of old people. The Mayor and Jurats of Sandwich, not only appointed the governors of St Bartholomew's, but audited the accounts, controlled the management and appointed new recipients of the charity. The whole was connected with an annual festal procession to the hospital in which many of the townsfolk took part[19].

At other times, the municipalities, not only exercised control over institutions founded by private people, but also themselves contributed to the endowments. At Scarborough, Henry de Bulmer gave a site for St Thomas hospital which was finished and endowed by the burgesses[20]. At Chester the town gave land, on condition that certain almshouses were built[21]; and Ipswich in 1469 granted the profits of St James' fair to the lazars[22]. At Lydd, sums were given for "Goderynges dowghetyr, pour mayde, for hosyne, shoys and other thyngses" and payments were made for her clothes and keep on several occasions[23]. In this town also gifts of corn were regularly distributed at Easter and Christmas from 1439 onwards[24]. In most of the great towns the Chamberlain was the especial guardian of orphans[25], and sometimes there was a Court of Orphans in which matters affecting the property of orphans were managed. The arrangement rather concerned orphans with property, than the poor, but still it shows that the

municipality recognised a responsibility with regard to a helpless class of the community.

The municipal authorities at Southampton, however, undertook much more extensive measures for preventing want, and it is interesting to notice that this action was very probably undertaken in consequence of the customs of the ruling guild. In ordinances at least as early as the fourteenth century forfeits and alms were awarded to the poor, and members were to be assisted when in poverty. In the fifteenth century "the townys almys were settled on a plan," and lists were kept of the weekly payments. The Steward's book of 1441 states that the town gave weekly to the poor £4. 2s. 1d. which, according to the value of money at the time, might have furnished relief for about one hundred and fifty people^[26].

5. Summary.

Thus, before the sixteenth century, state and town had begun to make regulations for the relief of the poor. Some of these regulations were dictated by a desire to repress vagrants. They were closely connected with the enforcement of the labour legislation of the time, and were embodied in the same statutes, and administered by the same officials. But other provisions were due to the fact that there was a growing tendency for the state to interfere to prevent the maladministration of ecclesiastical revenues, and for non-ecclesiastical bodies to undertake the administration of charity. Still, before the sixteenth century, most of these measures were negative rather than positive. The orders concerning the repression of sturdy beggars were more prominent than those concerning the relief of the poor. The latter were as yet infrequent and had little practical effect. The main part of the charity of the time was still administered by ecclesiastics and was obtained from endowed charities and from voluntary gifts.

But, in the sixteenth century, the older methods of relief failed to cope with the new social difficulties, and the older feeling in favour of the ecclesiastical control of charity was considerably lessened. At the same time, the tendencies that already led to the management of relief by public secular authorities were accentuated. During the sixteenth and seventeenth centuries, therefore, the organisation of poor relief was more and more undertaken by municipality and state, and the English system of poor relief was created and first administered.

CHAPTER II.

THE CAUSES OF THE REORGANISATION OF POOR RELIEF.

1. Increase of vagrants. (1) Harman's description of vagrants in England. (2) Bands of vagrants on the Continent.
2. Reasons why men became beggars. (1) The destruction of the feudal system destroyed employments furnished by war and service. (2) Manufactures on a large scale less stable than old occupations. (3) Rise of prices affected food earlier than wages. (4) In England enclosures were made because sheep were more profitable than corn.
3. Old methods of charity. (1) Private individuals. (2) Monasteries. (3) Hospitals.
4. Attempts at reorganisation on the Continent.
5. Three factors in making of English poor relief: (1) the orders of the towns; (2) the regulations of the statutes; (3) the efforts of the Privy Council to secure the administration of adequate relief. Three periods in the history of the first making of the English system: (1) 1514-1569; (2) 1569-1597; (3) 1597-1644.

The earlier years of the sixteenth century began a period of great changes in the position of the poorer classes, and these changes soon resulted in a series of attempts to reform and reorganise the whole system of poor relief.

1. Increase of
vagrants.

(1) Harman's
description of the

The desire to repress vagrants had already led state and town to make regulations concerning the relief of the poor, but whereas, before the sixteenth century, beggars

bands of vagrants in
England.

were only an occasional nuisance, they now became a chronic plague. The great increase in the numbers of these vagabonds appears to have begun early in the reign of Henry VIII. Thomas Harman, a gentleman of Kent, in about 1566, wrote an elaborate description of twenty-three varieties whom he had found to be in existence[27]. One of his anecdotes shows that they were already numerous soon after the execution of the Duke of Buckingham in 1521[28]. A man of some importance, he states, died about this time, and crowds of beggars attended the funeral. Some of them were poor householders and these returned to their homes at night. But the others were sheltered in a large barn which, on being searched, was found to contain seven-score men and at least as many women. The bands of these wanderers continued to increase, for Harrison, in his *Description of England*, tells us, "it is not yet full threescore yeares since this trade began: but how it has prospered since that time it is easie to judge, for they are now supposed, of one sex and another, to amount to above 10,000 persons[29]."

Harman's description of this "rowsey ragged rabblement of rakehelles" shows that some sort of organisation existed amongst them. He prints a slang dictionary of thieves' language, and states that this had been in existence for thirty years: he also gives an account of their order of precedence, thus showing that many degrees of roguery were recognised by the rogues themselves.

We can see from his account of their pranks, that they were both cunning and daring, and were often a great hardship to the honest citizens of the poorer classes.

Not only did they break into houses by night and pilfer the pigs and the poultry, but they were daring enough to pass a hook through the windows and draw the clothes off sleeping men; to rob men on the highway who were travelling home from fairs, and to come by night to lonely houses and force the owners to deliver up what money they had on the premises. Harman's tale on this point may illustrate the dangers of the situation.

One night two rogues went to an inn, and sat down and drank merrily, offering the pot to those of the company they fancied. Amongst others, a priest was there, and when he had gone they began to make inquiries of the hostess concerning him, saying they were nephews of a priest in this

neighbourhood and had not seen him since they were six years old. She, suspecting no harm, gave them all the information they wanted; told them the parson kept little company and had but one woman and a boy in the house. The thieves departed with the intention of robbing so defenceless a prey, but they found that his house was built of stone and his windows and doors well fastened. They thought force would avail little, and therefore tried fraud. One of the rogues, with piteous moans, asked for relief, and the parson, being moved by his distress, put his arm out of window to give him twopence. The rascal seized, not the twopence, but the priest's hand, and his companion secured his wrist also, so that their victim could not liberate himself at all. The rogues demanded three pounds and succeeded in obtaining four marks which was all the poor man had in the house. They bound him, therefore, also to drink twelve pence next day at the inn and to thank the good wife for the cheer they had had. The unfortunate parson could only use "contentacion for his remedy," but he kept his promise, and the hostess persuaded him to say no more of it "lest when they shal understand of it in the parish they wyll but laugh you to skorne[30]."

(2) Vagrants on the Continent.

This plague of vagrants was not, however, peculiar to England, but arose about the same time in all the countries of Western Europe. A book that somewhat resembled Harman's appeared in Germany as early as 1514[31]; this contained both an account of the different orders of vagabonds and also a "Canting Dictionary." Martin Luther often discussed the subject of beggars, and in 1528, wrote a preface to this very book[32]. In Germany, therefore, the increase in the number of beggars seems to be even earlier than in England. In Scotland and the towns of the Netherlands the statutes and town ordinances show us that the same trouble assailed them about the same time, and France in 1516 was already troubled by large numbers of discharged or wandering soldiers[33].

2. Causes for the existence of these bands of beggars.

(1) The break-up of the feudal system and consequent lessening of employment in war and service.

As these bands of vagrants were found in so many countries at once, the principal causes for their existence cannot be peculiar to England, or to any one country, but must be common to all the countries affected. It was closely connected with lack of employment: the difficulty had been for the masters to find workmen, the problem was now for the men to find

work, and this in spite of the fact that at the beginning of the sixteenth century commerce and manufactures were rapidly extending. The age was a time of transition, and old occupations were becoming unnecessary. The feudal society of the Middle Ages was giving place to the modern industrial and commercial community. War, public and private, and service with great nobles had formerly occupied large numbers of the male population. But the fifteenth century had witnessed the growth of central authorities strong enough to preserve order and to control the power of the great lords. In Germany, the towns were growing in importance and had often become independent of feudal superiors; in France, Louis XI. had overcome the last serious opposition of the French barons to the growth of the royal authority, while in England, the Wars of the Roses and the policy of Henry VII. had combined to break the power of the English nobility. Order had given place to disorder, lawsuits had succeeded private wars. The power of the nobles was no longer maintained by force; they had no longer the need of many followers to fight their battles. The oft-quoted saying of the chieftain with reference to the Highlands in the last century might be applied with little variation to the position of the nobles under Henry VIII. "When I was a young man the point upon which every Highland gentleman rested his importance, was the number of men whom his estate could support, the question next rested on the amount of his stock of black cattle, it is now come to respect the number of sheep and I suppose our posterity will inquire how many rats and mice an estate will produce^[34]." Power in the Highlands then, and in England at the beginning of the sixteenth century, passed from the leaders of men to the holders of wealth. This revolution in the basis of power had a considerable effect upon the labour market. The chief occupation of the Middle Ages had become unnecessary; men whom the nobles had formerly been glad to enlist had now to seek other means of earning a livelihood. Moreover, the employment which had now disappeared was one which especially afforded an outlet for men of restless character, the kind of people who under adverse conditions became the sturdy vagabonds of the sixteenth century. Sir Thomas More expressly states that the English thieves of the time were often discharged retainers^[35], and many of the later idlers would doubtless be men who would have followed this occupation, if it had been open to them before they took to their wandering life.

(2) Manufactures on a large scale less stable than old occupations.

No doubt the growing commerce and manufactures afforded employment in course of time to many more than those now displaced by the decrease of private and public war, but this very increase of manufacturing industry had effects of its own in increasing the numbers of the unemployed. In the first place, the peaceful life of the craftsman was favourable to the growth of population, and in the second place, the new occupations were less stable than the old industries had been. The simple manufactures necessary for the home market varied little; in bad times the craftsman might get a little less work, but he was not thrown utterly out of employment. But after great manufacturing centres came into existence and their produce began to be exported to other lands, the inhabitants of whole districts would have little or no work through no fault of their own. The great English manufacture of the time was cloth, and crises in this trade occurred both when Wolsey wanted to make war on the Netherlands and when the merchants wished to prevent the exactions of Charles I. We shall see that the misery of the inhabitants in the English cloth-making districts had much to do with stimulating the growth of an administrative system for poor relief.

(3) Rise of prices affecting food earlier than wages.

Later on in the sixteenth century, another cause tended to increase the hardships of the poor, and so necessitated new methods of poor relief. The influx of silver from the New World caused a general rise of prices. Food and clothing and rents rose more quickly than wages, so that the poor could obtain fewer of the necessities of life^[36]. The debasements of the English coinage, by Henry VIII. in 1527, 1543, 1545 and 1546, and by Edward VI. in 1551, still further increased this evil in England, and during the transition the poorer classes must have been the chief sufferers.

The effects following the break-up of the feudal system, the increase of manufactures, and the rise of prices owing to the influx of silver were in no way peculiar to England: they account quite as much for the bands of vagrants on the Continent as for those of this country.

(4) In England sheep were more profitable than corn.

But one cause of distress affected England more than the other countries of Europe. It had become more profitable to breed sheep than to plough the land, and England was the great wool-producing country of the world. Men, who had cultivated the soil, were evicted in order that sheep-runs might be formed,

and thus agricultural labourers and small yeomen helped to swell the crowds of the unemployed.

3. Old methods of charity:

The existence therefore of the crowd of vagrants can be accounted for by the social and economic changes of the time, but it was none the less dangerous on that account. The public authorities of state and town began, early in the century, to make more frequent orders for their repression, but it was soon clear that these orders could not be effectual unless the relief of the poor were better organised.

(1) Private individuals.

For the most part charity was administered still either by private individuals or ecclesiastical officials. We can form some idea of the methods of private donors from Harman's description of Elizabeth, Countess of Shrewsbury, to whom he dedicates his book. In his address to her he says, he knows well her "tender, pytyfull, gentle and noble nature; not onelye havinge a vygelant and mercifull eye to your poore, indygent and feable parishnores; yea, not onely in the parishe where your honour moste happely doth dwell, but also in others invyroninge or nighe adioyning to the same; as also abundantly powringe out dayely your ardent and bountifull charytie upon all such as commeth for reliefe unto your luckily gates." No wonder the writer thought it was his "good necessary" and "bounden duty" to acquaint her with the "abominable wycked and detestable behavior" of some of those rogues who "wyly wander, to the utter deludinge of the good gevers, decevinge and impoverishinge of all such poore householders, both sicke and sore, as neither can or maye walke abroad for reliefe and comfort, where, in dede, most mercy is to be shewed[37]."

Stow tells us, that he had himself seen two hundred people fed at Cromwell's gate, twice every day, with bread, meat, and drink, "for he observed that ancient and charitable custom, as all prelates, noblemen or men of honour and worship, his predecessors had done before him[38]." This open-handed hospitality thus seems to have been the custom of the time, and if exercised, without discrimination and supervision, would tend to foster the increase of idle beggars and do little to lessen the hardships of the industrious poor.

(2) Monasteries.

The methods of distributing charity employed in the monasteries were little better. It is true that the services rendered by the monks and nuns to education were considerable, and that a number of old people and children were maintained in some of the religious houses. Lodging also was given to wayfarers, and thus a very useful function was fulfilled in countries where there were few inns and no casual wards. But much of the relief given to the poor by the monks seems to have been distributed in a similar manner to that of the Countess of Shrewsbury. Alms were given to the poor at the gates: many testators had left money to be distributed in small doles at certain stated periods. Moreover the relief given at different monasteries was not coordinated in any way. The members of each institution gave their alms in their own way without any reference to the gifts of their neighbours. Besides, monks were not primarily intended to be relieving officers, and were not placed where they would be most useful for that purpose; there might be many in one neighbourhood and few or none in another. The charity distributed by the monks therefore was to a great extent unorganised and indiscriminate and did nearly as much to increase beggars as to relieve them[39].

(3) Hospitals.

But besides the monasteries there were hospitals. The term hospital was by no means confined to institutions for relieving the sick, but almshouses, orphanages and training homes were often called by this name. St Thomas's Hospital may be taken as a typical institution of the kind[40]. The date of its foundation is uncertain, but, early in the thirteenth century, it was destroyed by fire, and in 1228 was rebuilt on much the same site as that occupied by the St Thomas's Hospital of our own time. In 1323 the brethren were ordered to follow the rule of St Augustine, that is they were to take the vows of obedience and chastity, and to renounce individual property. The hospital consisted of Master, brethren, and sisters, and in the poet Gower's time there were also nurses, for he left bequests to the Master, brethren, sisters, and nurses, and asked for each their prayers. But, although the rule of St Augustine and the prayers for the benefactors belonged to the old order of things, the relief given to the poor was essentially the same from the time of Henry III. to that of Queen Victoria. It was founded for the relief and cure of poor people, and in 1535 there were forty beds for the poor, and food and firing were provided for them. Three years later it was surrendered into the hands of Henry VIII.,

and under his successor was reconstituted mainly on the old lines, but on a very much larger scale.

There were however several drawbacks to the hospitals as institutions for the relief of the poor. There was little security that the funds were well administered or that the appointments were impartially made. The king himself seems to have tried to exercise undue influence even in the case of St Thomas's Hospital: in 1528 he pressed Wolsey to give the Mastership to his chaplain, who, he said, was not learned enough for the king. There were however worse abuses than this, and even as early as the time of Henry V. it was necessary to pass a statute to prevent the maladministration of hospital funds[41]. Moreover at best the hospitals were only isolated centres of charity; they were not numerous enough to deal with poverty as a whole, and they were not connected with each other. The officials of each hospital acted on their own responsibility and afforded much or little relief to the poor of their immediate neighbourhood, but were almost as powerless as a private individual to check the general evil.

4. Attempts at Reorganisation.

The charitable endowments of the Continent were as inefficient as those of England, and both in England and abroad we find that attempts were made to organise a public system of poor relief in order that the honest poor might be relieved, and the bands of vagrants justly punished and repressed. Prof. Ashley has sketched the early history of poor relief on the Continent. He shows that, as early as 1522, the German towns of Augsburg and Nuremburg endeavoured to regulate the administration of charity in order to repress beggars, and that in 1525 the townsmen of Ypres reorganised their charitable institutions on a general plan and subjected the whole to public management with the approval of the ecclesiastical authorities. This organisation of Ypres was submitted to the judgment of the Sorbonne and, with some limitations, the principles involved were approved[42]. It is thus clear that the necessity of reforming the administration of charity was felt even in districts which were hostile to the Reformation, and in countries where the Reformers were in power the old charitable endowments were often seized by the public authorities, who by so doing placed themselves under greater obligations to provide for the poor.

In England we find that the course of events is similar. The citizens of London, before 1518, began to draw up orders with the object of repressing

vagrants and controlling charity, but after the dissolution of the monasteries they found it necessary to refound and reorganise the greater part of the existing system of relief. From that time until the reign of Charles I. constant efforts were made to create and to administer an efficient system of poor relief under public management. In the reign of Charles I., and not until then, were the efforts successful, and the English organisation is then seen to be almost^[43] the only successful survivor of the many schemes of the same kind which had been tried in Western Europe.

5. (a) Three factors in the making of English poor relief.

There were in England three principal factors in the development of the system; first the orders of the municipal governors, secondly the regulations of Parliament, and lastly the efforts made by the Privy Council to induce the justices of the peace to put the law in execution.

5. (b) Three periods.

These three factors help to create the English system of poor relief from the reign of Henry VIII. to that of Charles I. But they are not of the same relative importance throughout the whole period. Before 1569 the orders of the municipal governments are important, between 1569 and 1597 the history of legislation is more prominent, while after 1597 the orders directed by the Privy Council to the justices become the most powerful force in securing proper administration, and are therefore the predominant factor in the development of the whole system.

We will consider each of these periods in turn and we shall find that, while each contributed its share to the making of the English system of poor relief, it was only during the last that the success of the organisation was assured.

CHAPTER III.

1514-1569.

POOR RELIEF IN THE TOWNS.

1. Importance of municipal government in Tudor towns.
2. London Regulations for a constant supply of corn. 1391-1569.
3. Regulations for the repression of vagrants and the relief of the poor. 1514-1536.
4. Refoundation of St Bartholomew's and imposition of a compulsory poor rate. 1536-1547.
5. Completion of the Four Royal Hospitals and establishment of a municipal system of poor relief in London. 1547-1557.
6. Failure of the municipal system in London.
7. Provision of corn in Bristol and Canterbury.
8. Lincoln. Survey of poor and arrangements for finding work for the unemployed.
9. Ipswich. Survey of poor, imposition of compulsory poor rate and foundation of Christ's Hospital.
10. Cambridge. Survey of poor and assessment of parishioners.
11. Summary.

We have seen that the social changes of the beginning of the sixteenth century led to a great increase in the number of vagrants; and that men were then more ready to substitute secular for ecclesiastical control in matters concerning the poor. Town Council, Privy Council and Parliament all endeavour to organise and supervise new methods of charity; and, by the combined efforts of all three, a new system of poor relief was gradually

created. The earlier efforts in this direction were made between 1514 and 1569; and Town Councils were then more active than Parliament or Privy Council.

1. Importance of municipal government in Tudor times.

It is difficult now to realise the independent position of the town governors of Tudor times, and the authority possessed by them of regulating their own affairs. They imposed taxes without the authority of Parliament; uncontrolled, they could expel new comers from their borders; and they were fertile in the device of new punishments to drive the sturdy vagabond to honest labour. Each town was a law unto itself. Some municipal rulers made few experiments in this direction; others built hospitals for the old, and training homes for the young; invented punishments for the vagrants, and collected funds for the relief and discipline of all who were unable to support themselves. Many of the more successful orders, enforced in particular towns, were afterwards embodied by Parliament in statutes applying to the whole country. In the period from 1514 to 1569, the municipal regulations concerning these matters suggest the provisions of the statutes, more often than the provisions of the statutes suggest the regulations of the towns. Between 1514 and 1569 we will therefore examine, first, the action taken by the municipal authorities to improve and regulate the condition of sturdy vagabonds, unemployed workmen, poor householders, impotent beggars and neglected children: we will then consider the efforts made by the Privy Council for the same ends and the laws passed by Parliament with regard to the relief of the poor.

As London was, in these matters, more vigorous than other towns, we will examine first in detail the orders adopted there, and we will then see how far these regulations were typical of those enforced in other places.

London.
2. Regulations for a constant supply of corn in London, 1391-1569.

Some of the earliest of the London regulations for the help of the poorer classes concern the supply of corn. Even as early as the reign of Richard II., efforts had been made by particular Lord Mayors to bring corn to the City in years of famine. Adam Bamme, Lord Mayor in 1391, "in a great dearth procured corn from parts beyond the seas to be brought hither in such abundance as sufficed to serve the city and the counties near adjoining; to the furtherance of which good work he took out of the orphans' chest in the Guildhall two thousand marks to buy the said

corn, and each alderman laid out twenty pounds to the like purpose^[44]." But as London became more populous, the need of a constant supply of grain became much more urgent. In September 1520, therefore, an attempt was made to obtain the necessary funds in a more regular manner.

The Common Council then resolved that "Forasmoch as great derth and scarcity of whete hath nowe lately been and more lyke tensue, yf good and politique provision were not shortly made and hade Therfor in avoydyng therof, god grauntyng, yt is nowe by auctorite of the Common Counsell fully agreed and graunted that, in all goodly hast, oon thousand pound of money shalbe levyed and payed by the felishippes of sondry misteres and crafts of this citie, by way of a prest and loone^[45]." Each craft was to be assessed for an amount proportionate to its wealth, and the wardens of each were left free to levy the sum upon the craftsmen according to their discretion. The funds so obtained were to be used to purchase corn for the City; this was to be placed in a public granary and used as a public store.

If only a small quantity of grain was brought into London by the ordinary corn dealers, the buyers would bid against one another until the price of corn became very great. There were no rapid means of communication and, for a time therefore, grain might be sold at famine prices and then as suddenly fall in value. In future, whenever this seemed likely to happen, a precept was to be issued by the Lord Mayor, ordering a certain quantity of the public store to be brought into the market. This supply would help to satisfy the more importunate buyers, and so send down the price to something like the ordinary level.

The public store of the City of London did not however become a permanent institution until after 1520; on one occasion the authorities misjudged the market and much of the original loan was lost, after which there was some difficulty in persuading the Companies to again advance the necessary capital. However, from this time onwards, corn was generally bought for the Companies' granaries whenever especial scarcity was feared, and during the reign of Elizabeth the Companies' store became a regular institution.

So far as the arrangements made in 1520 are concerned, the poor do not appear to have obtained corn at a reduced price, but they were the greatest sufferers when the price of corn was high, and regulations which had the

effect of lessening the price benefited them more than the other inhabitants of London and were made chiefly in their interest.

3. Regulations adopted in London for the repression of vagrants and relief of the impotent poor, 1514-1518.

A series of regulations was adopted in London, between 1514 and 1524, which more directly concerns vagrants and beggars. These regulations are at first negative rather than positive; they forbid able-bodied vagrants to beg and they forbid the citizens to give to unlicensed beggars. Public disgrace formed part of the punishment of offending vagrants. Vagabonds were to have the letter V. fastened upon their breasts and were to be "dryven throughoute all Chepe with a basone rynging afore them[46]." Four surveyors were appointed to carry out these instructions. They were apparently dressed as grand City officials, for the Chamberlain paid the Lord Mayor for their sock hosen "embrodred[47]." Another special officer was admitted to the office of "Master and cheff avoyder and Keeper owte of this Citie and the liberties of the same of all the myghty vagabunds and beggars, and all other suspecte persons, excepte all such as were uppon thym the badge of this City[48]." In 1524, moreover, a great search was made, and it was ordered, that the vagabonds "myghty of body" should be "tayed at a cart's taylor" and "be beten by the Shireff's offycers with whippes in dyuers places of the Citie." The Chamberlain, also, "shall cause rownde colers of iron to be made for every of them, havynge the armes of this Citie uppon them and the same colers to be putt aboute theyr nekks[49]."

Meanwhile other orders of the Court of Aldermen concern the impotent and aged poor, and at first the City rulers did not become responsible for the collection of funds, but only for distinguishing between the really disabled beggars and impostors. Tokens of pure white tin were provided, which the Aldermen were to give to the impotent poor: all other beggars were strictly prohibited[50]. These efforts do not differ in principle from those of former times, but the orders are more frequent, and the appointment of surveyors and officers indicates that they were better enforced.

Collection of alms under authority of Aldermen of London.

Very soon it was seen that this was not enough, because, even if the disabled beggars were licensed, they were not always sufficiently relieved. In 1533, therefore, the Aldermen were ordered to depute persons to gather "the devotions of parishioners for the poor folk weekly and to distribute them to

the poor folk at the church doors[51]." Thus the municipality began to make itself responsible for the collection of funds but, at the same time, the system of licensed beggars was continued, and more brooches were made for the Aldermen to distribute to such impotent beggars as they allowed.

So far, therefore, the authorities of London had taken measures to limit relief to the deserving poor, but they had not attempted much organisation of funds, or attempted to forbid beggars altogether.

4. Refoundation of St Bartholomew's Hospital and imposition of compulsory poor rates in London, 1536-1547.

But the dissolution of the monasteries made the relief of the poor by public authority a much more urgent matter. Stow gives a list of 15 hospitals and four lazar houses which existed within the City walls in 1536[52]. Eight of these were in danger, including some of the richest and largest foundations. St Mary's Spittle provided 180 beds for the poor, while St Thomas's and St Bartholomew's each maintained places for 40 patients. In 1538, therefore, the City authorities made an effort to save these hospitals. The mayor, Sir Richard Gresham, the aldermen and the commonalty of the City of London, presented a petition to Henry VIII., and asked that these three foundations and the new Abbey on Tower Hill might be preserved, "so that all impotent persones, not hable to labor shalbe releved by reason of the sayd hospitalls & abbey, and all sturdy beggers not wylling to lab^r shalbe punisshed, so that w^t Godd's grace fewe or no persones shalbe seene abrode to begge or aske almesse."

In the same petition they also ask that the king will give to the mayor and commonalty the four great churches of the Grey, White, Black and Augustinian Friars because they state that the remaining churches "suffyce not to receyve all the people comyng to the sayd parysshe churches" and the sick crowd in with the healthy to the "great noysance" of the inhabitants[53]."

On the 23rd of June, 1544, the king, to some slight extent, acceded to their requests and refounded St Bartholomew's Hospital. He agreed to furnish an endowment of 500 marks a year if the Common Council would do the same[54]. In 1546 the Common Council therefore bound themselves to do so, and in December an indenture was drawn up between the City and the king. The king granted not only St Bartholomew's but also Bethlehem Hospital, besides the Church of the Grey Friars, which was henceforward

named Christ Church, and the parish church of St Nicholas. The City agreed to provide 100 beds in St Bartholomew's, which for a time was called the House of the Poor in Smithfield[55]. In 1547 the king confirmed his grant by Letters Patent[56].

But the citizens were at this time very little disposed to give to the poor. Latimer[57], Lever, and Brinklow all complain of their want of generosity, and the reasons given for the imposition of the first compulsory poor rate show that the complaints were well founded. Collections were made in the London parish churches every Sunday, but the sum raised was not sufficient to support the poor of even one hospital. In 1547 (1 Edward VI.), therefore, the Common Council resolved that the Sunday collections should cease and that instead "the citizens and inhabitants of the said Citie shall further contrybute & paye towards the sustentacon & maynteyning & fynding of the said poore personages the moitie or half deale of one whole fiftene[58]." This is probably the first time a compulsory tax was levied for the relief of the poor; the assessment is ordered by the London Common Council a quarter of a century before Parliament had given authority for the making of assessments for this object.

The half-fifteenth was to support the poor in the hospital for a year; after that time other methods of raising funds were employed. In 1548, certain profits belonging to the City were assigned to the fund for the relief of the poor, and, in addition, the sum of 500 marks, promised by the Common Council, was assessed upon the different City Companies according to their importance. The chief companies seemed to have paid willingly, but some of the smaller companies objected, and the wardens were ordered in consequence to appear before the Court of Aldermen and bring their money[59]. On this occasion the companies yielded and the money was paid, but the incident shows that, as yet, the citizens were by no means eager to undertake the duty of looking after the poor.

The provision for them had been altogether inadequate. "I thinke in my judgement," writes Brinklow in 1545, "under heaven is not so lytle provision made for the pore as in London, of so ryche a Citie[60]." The foundation of St Bartholomew's was not sufficient: in 1550, Lever, preaching before the king, reiterates the complaints of Brinklow. "Nowe speakynge in the behalfe of these vile beggars, ... I wyl tell the(e) that art a noble man, a worshipful man, an honest welthye man, especially if thou be

Maire, Sherif, Alderman, baily, constable or any such officer, it is to thy great shame afore the worlde, and to thy utter damnation afore God, to se these begging as thei use to do in the streates. For there is never a one of these, but he lacketh eyther thy charitable almes to relieve his neede, orels thy due correction to punysh his faute.... These sely sols have been neglected throughtout al England and especially in London and Westminster: But now I trust that a good overseer, a godly Byshop I meane, wyl see that they in these two cyties, shall have their neede releevd, and their faultes corrected, to the good ensample of al other tounes and cities^[61]."

Brinklow and Lever both throw the responsibility for the disorder upon the citizens and the municipal officers, as if they were then recognised to be the chief authorities for dealing with the poor.

5. Completion of the Four Royal Hospitals and establishment of a municipal system of poor relief in London.

Ridley was the "good overseer," who was to amend these faults. In April 1550 he was appointed Bishop of London and, during the next three years, he endeavoured to place the relief of the poor on a sound basis. The Lord Mayors of 1551 and 1552, Sir Richard Dobbs and Sir George Barnes, also took the matter up warmly and, in consequence, a municipal system was organised and the three royal hospitals of King Edward's foundation were established.

Negotiations were soon undertaken with regard to St Thomas's Hospital: the citizens wished to obtain the lands of the hospital for the relief of the poor. In February 1552 some of their number were appointed to "travaile" with the king for this purpose, and it was finally agreed that the citizens should pay £2461. 2s. 6d. for property worth about £160 a year, while the king should grant an endowment in addition of about an equal amount. Thus St Thomas's Hospital was refounded under municipal management^[62].

At the same time it was reported that St Bartholomew's Hospital had fallen into decay; the buildings were therefore repaired and the endowments increased. Christ's Hospital, the present Blue Coat School, was also founded for fatherless children, on the land of the Grey Friars formerly granted by Henry VIII. In order to raise the necessary funds the inhabitants of London were called to their parish churches and there were addressed in eloquent orations from the Lord Mayor, Sir Richard Dobbs, and the Aldermen and other "grave citizens." They were told how much better it

would be to take the beggars from the streets and provide for them in hospitals, and were asked how much they would contribute weekly towards their relief. Books were drawn up of the sums promised and delivered by the Mayor to the King's Commissioners, in order that the king might do his part, and the whole be placed upon a satisfactory basis^[63]. At the same time Ridley had endeavoured to help the citizens to obtain the royal palace of Bridewell, in order that a new kind of hospital might be founded, not for the impotent, but for the training, correction and relief of the able-bodied. He tried to interest Cecil in his object, and his letter to him is a curious specimen of the style of a charity letter of the time. "Good Mr Cecil," he writes, "I must be a suitor unto you in our good Master Christ's cause; I beseech you be good to him. The matter is, Sir, alas! he hath lain too long abroad (as you do know) without lodging, in the streets of London, both hungry, naked and cold. Now, thanks be to Almighty God! the citizens are willing to refresh him, and to give him both meat, drink, cloathing and firing: but alas! Sir, they lack lodging for him. For in some one house, I dare say, they are fain to lodge three families under one roof. Sir, there is a wide, large, empty house of the King's Majesty's, called Bridewell, that would wonderfully well serve to lodge Christ in, if he might find such good friends in the court to procure in his cause.... Sir, I have promised my brethren the citizens to move you, because I do take you for one that feareth God, and would that Christ should lie no more abroad in the streets^[64]."

In a sermon preached by him before Edward in 1552 Ridley spoke much of the duties and responsibilities of those in high places towards the weaker classes. After the sermon we are told that the king sent for the Bishop and asked him what were the measures that he wished undertaken for the help of the London poor. Ridley asked leave to confer with the Lord Mayor and citizens of London, and, by them in the same year, a petition was presented to the Privy Council, showing the manner in which they hoped to proceed.

This petition stated that amongst the poor of the City the citizens espied three sorts; the "succourless poor child," the "sick and impotent," and the "sturdy vagabond." Christ's Hospital was now ready for the first, and some provision had been made for the second. With regard to the third class, that of sturdy vagabonds or idle persons, they considered "that the greatest number of beggars, fallen into misery by lewd and evil service, by wars, by sickness or other adverse fortune, have so utterly lost their credit, that

though they would show themselves willing to labour, yet are they so suspected and feared of all men, that few or none dare or will receive them to work: wherefore we saw that there could be no means to amend this miserable sort, but by making some general provision of work, wherewith the willing poor may be exercised; and whereby the froward, strong and sturdy vagabond may be compelled to live profitably to the Commonwealth^[65]." The poor to whom the citizens here refer are beggars; the poor householders who remained at home are not considered. Moreover in describing the sturdy vagabonds the word beggars is used, thus showing that it was the mendicant class of whom the citizens were thinking, and that they so far had little conception of distinguishing between the beggars and other poor. The citizens go on to say, that the classes of sturdy beggars they have in their mind are "the child unapt to learning," "the sore and sick when they be cured," and "such prisoners as are quit at the sessions." The general provision of work was to be furnished by a hospital, and it is carefully stated that the occupations there were to be "profitable to all the King's Majesty's subjects and hurtful to none." It is interesting to notice how it is proposed to get over the difficulty of pauper-made goods so far as the merchants were concerned. Certain citizens in the trade were to give out the raw material to the unemployed in the hospital. When they were wrought up, they were to receive back the finished goods and pay the hospital for their labour, while the stock of raw material was to be renewed. The manufactured goods would thus be put upon the market by the merchants with the rest of their stock and not in competition with them. They propose to exercise such trades as the making of caps and of feather-bed ticks and the drawing of wire. The "weaker sort" were to be employed in carding, knitting, and the dyeing of silk; the "fouler sort" in the making of nails and iron work.

Apparently the king and the Privy Council were satisfied with the plans of the City authorities, for an indenture was drawn up between the king and the citizens which was afterwards confirmed by the Royal Letters Patent^[66]. Not only were the earlier grants concerning St Thomas's and Christ's confirmed, but the palace of Bridewell also was given to the City, in order that provision might be made for the relief, employment and discipline of sturdy beggars. Bridewell was not however immediately established but there is a report concerning St Bartholomew's in 1552, and Christ's and St Thomas's in 1553, which show that these three then were doing a

considerable work. The pamphlet concerning St Bartholomew's was drawn up because there had been complaints concerning the expenditure and the partial failure of the work there[67]. The authorities state that the place was in a very dilapidated condition when it was received from the king, but that now, in 1552, one hundred beds were fully maintained; during the last five years on an average eight hundred persons had been healed, while one hundred and seventy-two had died. The regular expenses amounted to nearly eight hundred pounds a year and the regular income contributed by City and king reached the sum of £666. 13s. 4d. The extra expenditure and the deficit were contributed "by the charitie of certeine merciful citizens." The "biddell" of the hospital was especially charged to see that there was no abuse of its charity. If any person, that had been there cured, should counterfeit any "griefe or disease" or beg within the City, the beadle was to "committ him to some cage." Thus in 1552 the work of St Bartholomew's had been settled on a satisfactory basis. In 1553 reports were also drawn up of Christ's Hospital and St Thomas's[68]. Christ's then contained two hundred and eighty children[69], while another hundred were boarded in the country. More extensive powers seem to have been exercised at St Thomas's Hospital than at the other Royal hospitals, possibly because all the other hospitals dealt more especially with the poor in the City and it was therefore more convenient to separate their functions. St Thomas's was situated apart in Southwark and its governors exercised more general powers. Not only did the hospital relieve two hundred and sixty "aged, sore and sick persons" but it also pensioned five hundred other poor who lived in their homes: moreover in 1562 "yt is Agred uppon that A place shalbe appoynted to ponysh the sturdy and transegressors[70]." The annual expenses of Christ's and St Thomas's in 1553 together amounted to £3240. 15s. 4d., and of this sum £2914 was given by "free alms of the Citizens of London." Considering the value of money in those days and the probable number of the inhabitants, this was a very large amount. The liberality of the citizens was not always however stimulated by such bishops as Bishop Ridley, or such Lord Mayors as Sir Richard Dobbs, Sir Martin Bowes, and Sir George Barnes. In the reign of Elizabeth St Thomas's was in debt and the number maintained there had to be considerably reduced. Before 1557 Bridewell also was established and thus the number of the four Royal hospitals was completed. The hospital of Bethlehem was included in the original grant of Henry VIII. and probably had a continuous existence. It was a

comparatively small institution, in which fifty or sixty lunatics were maintained, and in later times was always reckoned with Bridewell, so that it also formed part of the system of Royal hospitals under the management of the City although it was not counted as a separate hospital. In 1557 orders were drawn up for the government of the hospitals^[71], and we can see that their erection had already made it more possible to distinguish between the different classes in need of relief. The City rulers do not now as in 1552 consider the word "beggars" interchangeable with the word "poor" but explain that "there is as great a difference between a poor man and a beggar, as is between a true man and a thief." ... "The policy of the erection of hospitals ..." they say "hath had good success and taken effect; for there is no poor citizen at this day that beggeth his bread but by some mean his poverty is provided for." The objects of the organisation are also explained to include the yielding "alms to the poor and honest householder^[72]."

The hospitals are said to be linked together in their government, the objects of all are said to be the same; although to each hospital some governors were especially appointed, all had authority and responsibility with regard to the whole four^[73].

The London Bridewell was destined to be the forerunner of so many Bridewells or Houses of Correction that it is perhaps interesting to examine more closely the rules for its management. Any two of its governors had power to take into the house persons presented to them as "lewd and idle." They had also power to search all places in which masterless men were likely to be found, and to punish landlords or tenants who harboured them.

The governors of the whole establishment were subdivided so that some might overlook every department. The rules with regard to the cloth-making establishment will illustrate the kind of supervision they were to exercise. They were first to make an inventory of the raw material and of the looms and other necessary implements. They were then to see that the clothier knew his business, and to order him to return a monthly account of the number of cloths which had been wrought. They were, moreover, to overlook the wool house, yarn house and spinning house and "to comptroll and rebuke" as they "shall see cause." They were to pay the workpeople, the weavers for weaving, the fullers for thicking and the spinners for spinning. The steward was to be allowed to charge for the diet of those that were

employed. Every week they were to make a summary of their doings and every month a summary of their accounts.

Other crafts were supervised in the same manner; the nail house was in close connection with the Company of Ironmongers, probably in order to carry out the undertaking that the occupations "should be profitable to all the King's subjects and hurtful to none." The Ironmongers were to give "to this house, as the people of the same may reasonably live"; they were to have the preference with regard to the sale of the manufactured goods and to be allowed a month in which to make payment.

The worst vagrants were apparently sent to the mill and the bakehouse, but men who were fit for better employment were not to stay there. If the governors, we are told, shall "find any there above the ordinary, then shall ye cause the same to be known to the clerk of the work and see he bestow them in some other exercise."

Bridewell does not seem to have effectually reformed the vagrants, for the governors were to "see to the good order of the said mills, that neither the vagabonds do use shameless craving nor begging to the great grief of good men and slander of the house, neither that they obstinately and frowardly shall deny their aid and help towards the lifting up and taking down of such grain as shall be brought into the said mill^[74]."

Bridewell, we have seen, was founded for the unemployed, but it is obvious from the language used that the citizens had mainly in their minds beggars who were unemployed, and from the first it seems rather to have been used for confirmed vagrants and untrained children than for labourers out of work. The governors certainly held regular meetings, about once a fortnight, and discussed the various cases that came before them. These nearly all concern petty offenders, thieves or vagrants, but there are one or two cases in which a man is admitted because "the City is charged to find him^[75]." Other entries relate to young people who were apprenticed to the House and properly trained to work at some trade. In the later years of the century about two thousand persons passed through the hospital annually. Bridewell was the last of the Royal Hospitals to be established after 1557. Some provision was made for every class of the London poor. The municipal system of relief had begun with the punishment of vagrants; it proceeded to license all beggars entitled to ask for relief, and finally all the

poor were nominally provided for and the funds were raised by compulsory taxation.

There was no sudden break with the older system. St Thomas's, St Bartholomew's and Bedlam had all been hospitals for centuries. They had been saved from destruction, improved and enlarged, but essentially the same work was done in the same places. There were however important points of difference between the new system and the old even as regards these three hospitals. They were under public management. There were many abuses in this management, but these abuses were now more readily detected and punished and were found out and reformed several times in the course of the next century.

But a more important difference lay in the fact that the hospitals were not now isolated institutions, each dealing with their patients, but were now part of a larger whole and had a definite part to play in the government of the City. Vagrants, who were taken to Bridewell and found to be ill, were sent on to St Bartholomew's or St Thomas's, while, on the other hand, a whipping was administered to the idlers after cure at St Thomas's, and the beadle of St Bartholomew's had special orders to prevent discharged inmates from begging. All these regulations show that they had become, not merely agencies for the relief of the sick, but also part of a system which aimed at the repression of beggars.

Bridewell was the greatest innovation and the most characteristic institution of the new system. The organisation for the relief of the poor had been called into existence because the crowds of vagrants were a chronic nuisance and danger to society. Bridewell dealt with the most difficult class of these vagrants and gave some of them a chance of training and reform. Moreover, Bridewell as a place of punishment for idlers was the necessary counterpart of the new schemes for universal relief. You could not relieve and find work for every one unless you had some means for coercing and punishing the "sturdy vagabond." Christ's Hospital, like Bridewell, is a new institution, but, unlike Bridewell, it does not altogether strike out a new line. Still, as soon as the relief of the poor becomes a public duty, institutions for the training of the young become increasingly popular, and we shall find that, during the next century, there are other Christ's Hospitals as well as other Bridewells in most of the great towns of the kingdom.

6. Failure of the
municipal system in
London.

This municipal system however was not successful in London. So far as London was concerned the organisation seemed fairly complete. But even from the local point of view the system was weak in one point. Funds had to be provided. It was not easy suddenly to raise the money necessary for the new organisation; men were not accustomed to be taxed for the poor, and, as soon as the first enthusiasm had subsided, a sufficient sum could not be collected. During the succeeding period we shall find that the rulers of London found great difficulty in this matter, and that this was one of the causes of the want of success of the municipal system of London. But another difficulty was inherent in the system in the very fact that it was municipal, and not national. A few years ago the distribution of the Mansion House Relief Fund caused a considerable immigration from the country. Exactly the same result arose from the first organisation of the poor in the City of London. In March, 1568/9, we are told that "forasmuch as experience late hath shewed that the charitable relief given as well by the quenes ma^{ties} most noble progenitors as also the charitable almes from tyme to tyme collected within this citie and bestowed by the cittyzens, aswell upon the poore and nedy citizens, being sicke, impotent and lame as the poore orphans and fatherless children ... aswell in Chryste Church and Bridwell as in other hospitalles founded for the reliefe of the poore within the said citie, hath drawen into this citie great numbers of vagabondes, roges, masterless men and Idle persons as also poore, lame and sick persons dwellyng in the most partes of the realme[76]." The very measures which were taken to cope with poverty in London thus increased the crowd of beggars, not because they caused more people to become beggars, but because they attracted the poor from all parts. The City organisation broke down because it was confined to the City, but it had already done considerable service in helping the growth of the national organisation which was to follow.

Poor relief in towns
other than London.

7. Provision of corn in
Bristol and
Canterbury.

We have now to examine a few cases in which other towns before 1569 adopted measures similar to those of London. With regard to the provision of corn it is quite possible that the London plan was widely followed. In 1522 we read that in Bristol "this yere whete, corn, and other graynes rose at a dire price, by reason whereof the said Maire, of his gode disposition, inclyning his charitie towards the

comen wele and profite of this Towne," ordered grain to be bought in Worcester, "by reason wherof greate abundance of whete, corn, and other graynes was so provided, that the inhabitauntes of the said towne were greatly releved and comforted in mynysshing of the price of whete, corn and other graynys, sold in the open markett of this said Towne[77]." At Canterbury the funds for this purpose are accounted for in the year 1552. More than £70 was then spent in the purchase of wheat and barley. It was not however altogether raised by the Town Council, more than half was obtained from the sale of the plate of the parish of St Andrew and from contributions from the parishes of St George and St Michael. This corn was bought especially for the benefit of the poor, and about one-fifth part of it was directly sold to them; the rest was sold to large buyers, and could only have benefited the poor by easing the market and so lowering the price to everybody[78].

8. Survey and employment of poor at Lincoln.

The surveying and licensing of beggars appears to have been very usual. Thus, at Lincoln in 1543, the constables were ordered to bring all the poor people in the city before the justices and it was provided that those who were to be allowed to beg should have a sign given to them. A similar order was made in 1546, and it was also decided that no one was to give alms to any beggar without a sign[79]. These orders are exactly parallel to the earlier measures of the rulers of London. Next year, in 1547, the citizens of Lincoln took a farther step. Not only were the beggars to be surveyed, but they were to be set to work, and in 1551 all the young people, who lived idly, were placed with the clothiers for eight or nine years and were to have meat, drink and other necessities. All who refused this work were to be expelled from the town[80]. In 1560 a salary is paid to an officer who is to oversee and order all the poor and idle people in the town[81]. Special collections for the relief of the poor were also made in Lincoln before 1569, but apparently only in times of plague[82]. Grants were occasionally made to particular poor at other times and there was a more than usually definite amount of relief provided by the guild regulations for the poorer members of some of the Lincoln guilds[83].

9. Ipswich. Survey of poor, imposition of compulsory poor rate

But the measures of Ipswich resemble those of London more closely even than those of Lincoln. There the poor were not only surveyed and licensed, but before 1569

and foundation of
Christ's Hospital.

compulsory taxation was adopted and a municipal hospital was erected. As early as 1469 the burgesses had granted certain dues to lepers, but it was not until about 1551 that the municipal rulers began to make frequent and regular orders for the regulation of relief and beggary. In that year two persons were nominated by the bailiffs, "to enquire into the poore of every parish, and thereof to make certifficate to the Bayliffs[84]." Next year we find the burgesses anxious to increase the voluntary alms. The order of the guild festival was arranged, and it was agreed that the town officers should attend in their robes, and "they and all the Burgesses shall offer, and the offerings shall goe to the poore[85]."

In 1556 eight burgesses were appointed to frame measures "for the ordering of the maintenance of the poore and impotent people, ffor providing them work, ffor suppressing of vagrants and idle persons[86]."

We also find an attempt to decrease the number of beggars in an order worthy of an Irish town: "Noe children of this towne shall be p'mitted to begg, and suche as shall be admitted thereto shall have badges[87]."

A further step was then taken, and in Ipswich, as in London, compulsory payments were made for the poor. In 1557 it is ordered that "if any inhabitant shall refuse to pay suche money as shall be allotted him to pay for the use of the poore," he shall be punished at the discretion of the bailiffs[88].

Moreover, in 1569, we find the town hospital established. Christ's Hospital in Ipswich was built on the site of the House of the Black Friars and was a house of correction, as well as an asylum for the old and a training school for the young[89]. It was apparently no disgrace for the old to be admitted, for when it was provided that ships should pay certain dues to the hospital, it was also agreed that every mariner, who had lived in the town three years and should stand in need of assistance, should be allowed to go there[90]. At Ipswich therefore, in 1569, beggars were badged, the poor were organised, compulsory payments were exacted and a town hospital had been founded.

At Cambridge also similar measures were taken. Some of the profits arising from Stourbridge fair had been left to the poor of Cambridge and was connected with a provision for the maintenance of "obiits." The funds belonging to the poor were preserved to them by the statute of chantries, but

10. Survey of poor
and regular
assessment of
parishioners in
Cambridge.

before 1552 it had not been paid. Complaint was then made, and it was decreed that the sum should be paid to the mayor, bailiffs, and burgesses, and should be distributed by them as in ancient times: this order was confirmed by royal grant in 1557[\[91\]](#)."

It is possible that the passing of this money through their hands may have made the town authorities regard the care of the poor as especially their duty.

In any case, in 1556, there was great scarcity and, on Dec. 7th, "Dr Perne, Vice-chancellor, Doctors Segewycke, Harvy, Walker and Blythe met the Mayor, Bailiffs and two Aldermen in St Mary's Church[\[92\]](#)." They called before them the churchwardens of all the parishes, and these "browght in the bylls what any parryshoner was cessed towardes the relyeffe of the poore." Two days later the churchwardens presented "bylles of the number of poore people in the parishes," and they were told to make a report as to "three states of the poore sort" and to inquire who had come into the parish within three years. Later, four superintendents and four "watchers for straunge beggeres" were appointed, and collectors were chosen for the next Sunday. The Vice-chancellor moved the Heads of Houses to make provision for the poor, and the superintendents went about the different parishes and visited the poor and settled what each should receive. On December 24th the Mayor and Vice-chancellor met at St Mary's to again settle what each poor person should be given and to give greater sums to some of them than had been before appointed[\[93\]](#).

In 1560 a set of ordinances was made for the purpose of raising funds to pay these pensions. Dues were to be paid for admission into the liberties of the town, for beginning actions in the Cambridge Law Courts, for the admission of attorneys to plead, for the surrendering of every booth and the signing of every lease. All these were to augment the funds for the poor. The attorneys were also to pay 1d. for every fee[\[94\]](#).

Thus in Cambridge also we have, first, the surveying and numbering of the poor; then, regular contributions from the parishioners, and regular payments to the poor who could not support themselves. At Cambridge there was no town hospital before 1569, and it was not until 1578 that a proposal to establish one there was made.

But attempts were already being made to found municipal hospitals in Norwich and Gloucester, and these we shall examine when we consider the events of the period between 1569 and 1597. Moreover, three of the old hospitals of York were refounded and placed under municipal management^[95]. There the poor could be "set on worke" and the income derived from them was to be "ymployed to the maintenance of the powre." At Leicester also a municipal system for the poor had developed, and it seems that, in 1568, two collections were levied for this purpose, one of which provided the funds necessary for the relief distributed under the authority of the statutes, and the other met the expenditure incurred under the municipal regulations^[96].

Thus in Lincoln, Ipswich, Cambridge, and York the order of development in matters concerning beggars and the unemployed is similar to that of London. Beggars are surveyed; the truly helpless are licensed; the others are forbidden to ask for any relief. Compulsory rates for their relief were levied in Ipswich and probably in Cambridge. At the same time provision is made for finding the able-bodied work in Lincoln, and hospitals are built or refounded for them in Ipswich, in York, and in Gloucester.

In Ipswich as in London all this was done before 1569, but other towns were much more backward, and in some the beggars were still unrestrained. There was thus no national system of poor relief, but only isolated municipal attempts to deal with the matter, all following the same general lines and becoming the rule, and not the exception, as time went on. It will be more convenient to consider the advantages of this system when we have also examined the doings of Parliament and Privy Council, and can consider the organisation before 1569 as a whole. The municipal system alone was not successful, in London or elsewhere; it was increasingly difficult to deal with new-comers and to provide funds.

But already before 1569 there were the beginnings of the succeeding national system in the doings of Parliament and Privy Council.

CHAPTER IV.

THE PRIVY COUNCIL AND PARLIAMENT.

1514-1569.

1. Efforts made by the Government to secure the employment of the clothmakers during the crisis in the cloth trade of 1527-8.
2. Regulations for the supply of the markets with corn, 1527-8.
3. Similar action in regard to corn in 1548 and 1563.
4. Letters of the Privy Council to particular local officials in connection with the relief of the poor.
5. Legislation concerning the relief of the poor during the reign of Henry VIII.
6. The two earlier statutes of Edward VI.
7. Legislation between 1551 and 1569.
8. Summary.

1. Efforts made by the Government to secure the employment of the clothworkers during the crisis in the cloth trade of 1527-8.

The Privy Council interfered comparatively little on behalf of the poor in this earliest period of the development of the English system of poor relief. However, in 1528 and on several other occasions the Government issued orders similar to those afterwards issued by the authority of the Privy Council. In 1528, however, these orders are said to come from Wolsey or the king, and it only incidentally appears that the Council had also a part in the matter. Possibly the policy, thus initiated, was the creation of Wolsey or of the Duke of Norfolk, but it was precisely the same kind of policy as that afterwards carried out under the authority of the Privy Council during the reigns of Elizabeth, James, and Charles.

The latter part of the year 1527 and the spring of 1528 was a time of great discontent and disorder. At the beginning of the year 1528 England had allied herself with France against the Emperor, and thus the ordinary trade in cloth to the Flemish markets was interrupted, and the Staple was moved to Calais. The English cloth-making industry was already carried on for foreign markets on a fairly large scale. In certain districts the greater number of inhabitants were employed by clothiers, who sold the manufactured cloths to the merchants chiefly for Flemish markets. The declaration of war therefore prevented the usual sale of cloths; consequently when the manufacturers in accordance with the trade regulations then in force brought the cloths to Blackwell Hall, the merchants did not buy as usual and the clothiers ceased to find work for their men. The workers had few other resources and disturbances followed. The Duke of Norfolk was sent into Suffolk to restore order, and persuaded the clothiers to keep their men in employment. He called representative employers before him from every town and told them that the reports concerning the detention of English merchants in Flanders were untrue. "If I had not quenched that bruit," he writes to Wolsey, "I should have had two or three hundred women sueing to me to make the clothiers set their husbands and children to work[97]." The same course was followed in other districts; Lord Sandys writes to Wolsey that he has received letters from both Wolsey and the King, which order him to see that the workpeople are not dismissed. He says nothing of the kind shall occur in Hants., and he hopes that Berks. and Wilts. will be equally well managed[98]. In Kent Sir Henry Guildford obtained a promise that no men should be sent away before harvest[99]. Both Norfolk and Guildford state however that the clothiers cannot hold out much longer, and they ask Wolsey to remedy this by persuading the merchants to buy the unsold cloths in the clothiers' hands[100]. When the king's Council heard of the difficulty, we are told that the Cardinal sent for a great number of merchants, and thus addressed them. "Sirs, the King is informed that you use not yourselves like merchants, but like graziers and artificers; for when the clothiers do daily bring cloths to your market for your ease, to their great cost, and there be ready to sell them, you of your wilfulness will not buy them, as you have been accustomed to do. What manner of men be you?" said the Cardinal, "I tell you, that the King straitly commandeth you to buy their cloths, as before time you have been accustomed to do, upon pain of his high displeasure[101]." The Cardinal

further threatened to throw open the cloth trade to foreigners if the English merchants refused to buy as usual.

This remedy might be a clumsy one but it was not ineffectual. The cloth trade, in this instance, was restored to its usual course by the conclusion of a truce between England and the Netherlands. The time during which the contraction of the market occurred was short, and the clothiers could and did lessen the evils of this temporary fluctuation in their trade by continuing to find work and purchase cloths, as in more prosperous times, even though it was to their private disadvantage. A course of this kind was dangerous if the trade was permanently affected, but possible and useful under the actual circumstances, and probably saved the country from serious disturbance. The incident illustrates the fact that the difficulty of the relief of the poor was increased by the growth of manufactures on a large scale, because employment was more unstable, and because all the members of a family and most of the inhabitants of a neighbourhood were often out of work at the same time. Under these circumstances the distress of the poor was immediately followed by riots^[102], and the action of Wolsey and the Council was occasioned, not only by the sufferings of the poor, but also by danger to the public peace.

2. Regulations for the supply of the markets with corn, 1527-8.

The connection between the distress of the poor and public order is also evident in the corn measures of 1527-8. The harvest of 1527 failed, while in the same year the coinage was debased, so that the average price of wheat was nearly double that of preceding years^[103]. Part of this rise was thought to be due to the unfair buying of some of the corn-dealers. A commission was issued setting forth that owing to forestalling, regrating and engrossing "more scarcity of corn is pretended to be within this our said realm than, God be thanked, there is in very truth^[104]." The commissioners were therefore to punish all offenders in this respect, and were also to find out by inquiry how great the supply of corn really was and to see that it was brought to market when needed^[105]. Some of the reports drawn up in accordance with these instructions are in existence, and give for particular places the price and quantity of different kinds of grain and the number of inhabitants in the district^[106]. In Essex and Suffolk the commissioners also talked to the more wealthy people and urged them to buy a store of corn for the poor. It was only however in Colchester and Bergholt that they seemed at all willing to

do so^[107]. On the whole there were few efforts at direct relief of the poor; the object of the Council was to obtain information and to prevent any aggravation of the scarcity by unfair practices.

At the same time measures were undertaken to lessen the disorder from which the country was suffering. In December 1527 a great search was made for vagrants, and the commissioners report the punishment of valiant beggars^[108]. Notwithstanding all this there was a serious disturbance in Kent. The people asked for the return of the loan raised two years before, because they were so sore impoverished by the great dearth of corn^[109]. The harvest of 1528 however was fortunately fairly plentiful, and the country again became peaceful. These difficulties again illustrate the connection between poverty and disorder, and show that the Privy Council first came to interfere in these matters in order to maintain the peace.

3. Similar action with regard to corn in 1548 and 1563.

In 1549 and 1550 the price of provisions was again high, and the people were mutinous. A proclamation was therefore issued fixing the price of corn, butter, poultry, and other provisions. Letters were written to the justices and to the Lords-Lieutenant, and a commission was appointed to enforce its execution^[110]. But the whole series of orders was disobeyed and the misery caused by this year of scarcity partially accounts for the rebellions, which ended in the fall of Somerset, and nearly upset the Government altogether. Other instructions were sent out in 1561^[111]: the difficulty was a frequently recurring one. The years of high-priced corn were years of riot, and resulted in constantly increasing efforts of the Privy Council on behalf of the poor. We shall see that in future years of scarcity the same difficulties arise, and similar measures are taken. But, as more experience was gained, there was less attempt to regulate prices, and more to directly organise the relief of the poor, so that the efforts to improve the administration of the poor law were closely connected with the measures to provide corn for the poor in years of scarcity.

4. Letters of the Privy Council to particular local officials in connection with the relief of the poor.

These orders of 1528 and 1549 were general in their character, and referred, either to large districts, or to the whole country. But the Privy Council also began to interfere with the relief of the poor by urging particular local officials to do their duty. This kind of action is

illustrated by the letters addressed to the rulers of Kingston-upon-Hull in 1542 and of London in 1569.

In 1542 letters were sent by order of the Council to Kingston-upon-Hull, requiring the mayor to fix the price of provisions, "as the worckmen sent thither by the King's Ma^{tie} might live upon theyre wages[112]." Other letters were sent to the rulers of London in March[113] and June 1569 ordering them to be diligent in enforcing the laws against vagrants, and the letter of June 1569 also directly concerns the relief of the impotent poor.

"It will be necessarye," runs the letter, "to provide charitablie for suche as shalbe indede founde unfaynedlie impotent by age, syckness or otherwise to get their livinge by laboure and for those wee earnestlie, and in the name of God, as wee ar all commanded, requyre and chardge youe all and evry of youe to consider diligentlie howe suche of theme as dwell within youre jurisdiction may be releved in every parishe, by the good order that is devysed by a late acte of parliament and that thei be not suffred to wander or be abroad as commonley thei doe in the streites and highe waies for lack of sustentacon. And for the due and charitable execucon of that statute, wee thinke it good that the Bysshope or other ordinaries of the diocesse be moved by you in ow^r name to directe commandement to the Curates or ministers in all churches to exhort the parishioners to gyve there common almes at their churches and to provide remedy against suche as have welth and will not contribut at the churches upon exhortacon and admonicon, and thereunto, wee require you to gyve yor adyes and assistance in every parishe where yo^r dwellinge is, and by yo^r good example incorage others in this charitable good dede etc.[114]"

Thus before 1569 the Privy Council find it necessary to enforce measures for the relief of the poor, though not to any very great extent. Their interference occurs especially in years of scarcity, and forms part of a series of measures undertaken with the object of preserving order.

5. Legislation concerning the relief of the poor during the reign of Henry VIII.

We have now to see what was the course of legislation during this period, although legislation was not the factor which was most important in creating the system of poor relief before 1569. Not only did the regulations of the advanced towns suggest the provisions of the statutes, but even when the statutes were passed, there is not much evidence that they were

enforced, except when the town government was vigorous. They are important, not so much because of their immediate effect, as because they led to the later legislation of Elizabeth, and because they are authoritative expressions of the opinion of the time.

During the reign of Henry VIII. two statutes were passed. The 22 Henry VIII. cap. 12, was designed to prevent those who were not really impotent from begging, and to punish more effectively the able-bodied vagrant.

The preamble states, that the number of vagabonds was not "in any part diminished but rather daily augmented and increased." In the country, the justices of the peace and, in the towns, the mayors, bailiffs etc. were the officers responsible for the execution of the statute. They were ordered to search for the impotent poor of their districts and to give them letters authorising them to beg within certain limits. All beggars who begged outside the specified limits or without a license were to be put in the stocks. The impotent beggars were thus confined to a particular neighbourhood but were allowed under restrictions to beg for their subsistence. Poor scholars, shipwrecked mariners, and released prisoners might only beg if properly licensed. Otherwise they, or any other "valiant beggars," were to be taken to any justice or to the high constable, and by order of these authorities were to be whipped in the nearest market town. After punishment the vagrants had to swear to return to the place where they were born or last dwelt three years, and there to work for their living. A certificate was to be furnished to each of them stating the place and day of punishment, the place where the beggar was to go and the time he was allowed to get there. While on the way he was free from whipping, but if he exceeded his time or went elsewhere he was liable to be whipped whenever caught. Not only were able-bodied beggars punished, but those who gave alms to them were also to be fined, although the old practice of giving doles was allowed to continue, and the masters and governors of hospitals were excluded from the operation of the Act.

The main principles of the statute are identical with those enacted under Richard II., but the directions are much more detailed. Moreover provision was also made for the punishment of the inhabitants of any district where the statute was not executed. The regulations adopted are very similar to those already in force in London, where impotent beggars were already badged and sturdy ones whipped at the cart's tail.

The provisions are chiefly repressive; designed to limit the number of beggars rather than to provide relief. For this reason therefore they were not effectual, and a second statute (27 Hen. VIII. c. 25) was passed also in this reign. This Act was probably drawn up by Henry himself and is similar to measures passed at almost exactly the same time in France and Scotland. The preamble refers to the former statute and states that, "forasmuch as it was not provided what was to be done when the sturdy beggars and impoant poor arrived in their hundreds nor how the inhabitants were to be charged for their relief and for keeping at work the able-bodied, it is now ordered that the authorities of the Cities, Shires, etc." are to "charitably receive" the beggars and relieve them "by way of voluntary and charitable alms in such wise that none of them shall be compelled to wander idly and openly ask alms." The same officers are also to compel the valiant beggars to be kept at continual labour so that they may earn their own living.

Very few people were excepted from the operation of these provisions. Beggars with letters, travelling home at the rate of ten miles a day, are to be relieved; lepers and bedridden people may remain where they are; friars mendicant may beg and receive as they have been accustomed; and servants, leaving their service and having letters to that effect, may be free for a month from the operation of the statute. But with these exceptions, all who have not work or property were to be set to work or relieved. Authority was also given for the compulsory apprenticing of vagrant children, between the ages of five and fourteen, and thus for the first time this prominent feature of the later administration of poor relief appears in a statute. The execution of these provisions involved considerable expenditure, and the Act therefore proceeds to provide for the raising of funds. The Mayor or Governor of every city, borough and town corporate, and the churchwardens, with two others of every parish, were to collect alms every Sunday. This plan is similar to that already adopted in London where, in 1533, the aldermen were ordered to supervise the Sunday collections for the poor. There was no attempt at compulsion, but parsons, vicars and curates, when preaching, hearing confessions or making wills were to exhort people to be liberal. Certain games were forbidden by the same Act and the fines for breaking this or any part of the statutes were to go to the poor.

Alms were not to be given by the individual to any casual beggar but were to be placed in a common box, and doles were to be given only in the same fashion. As a rule each parish thus supported its own poor, but rich parishes were to help poor ones when necessary. Although a great deal of restriction was placed upon the casual almsgiver by these regulations there were many loopholes by which he might still evade the law. It remained lawful to relieve fellow parishioners, shipwrecked mariners and blind or lame people, lying by the wayside. Moreover certain poor people might be authorised to collect broken meat. Noblemen might give to anyone and abbots and friars were commanded to give as before.

This statute is the first in which the state not only enacts that the poor shall be provided for in their own neighbourhood, but also makes itself responsible for the administration of relief and the raising of funds. At the same time the clause, which provided that all alms were to be voluntary and that if they were insufficient the officers were not to be fined, made the Act only permissive in practice, for it could only be enforced when the inhabitants of a district chose voluntarily to provide the necessary money.

In this statute, as in the 22 Hen. VIII. c. 12, a double set of officials for the administration of the law is provided. The funds were to be raised in every parish, but the mayor, as well as the churchwardens, was responsible for the collection of the parochial alms in the towns, and the municipal officers were the people who were mainly responsible for receiving and relieving the vagabonds and poor within their jurisdictions. Thus, not only do these two statutes make general the practices which existed in London before the statutes were passed, but they also place their execution in the hands of the same authorities. So far, however, the orders of both Parliament and the towns were directed far more to the repression of beggars than to the collection and administration of funds for the relief of the poor. Legislators seem to have thought that sufficient funds already existed, or could be easily collected, and carefully avoided all approach to compulsory payments for this purpose.

6. The two earlier statutes of Edward VI.

After the dissolution of the monasteries this was no longer the case. No other statute was passed in Henry's reign, but between 1547 and 1569 there were many and, as a rule, these relate chiefly to expedients for raising money.

A statute of 1547, however, relates mainly to vagrants^[115]. It provided that a sturdy beggar might be made a slave for two years, and if he ran away a slave for life. The sons of vagrants also might be apprenticed until they were twenty-four, and the daughters until they were twenty, while the punishment of rebellion was slavery. This Act is often condemned as being the most severe Act of a savage series. It is, however, quite possible that it was not considered so savage in 1547. It must be remembered, that under the existing law an "incorrigible rogue" was punishable with death^[116], and that this very punishment of servitude is suggested in More's *Utopia* as a much milder and better punishment than death for both petty thieves and vagrants. The regulation certainly altogether failed, for this part of the statute was repealed two years later: so far as able-bodied beggars were concerned, the 22 Hen. VIII. c. 12 was reenacted and the whipping punishment there provided remained in force until 1572.

The statute of 1547 also made some additions to the provision for the impotent poor. Cottages were to be erected for their habitation, and they were to be relieved or cured. This clause was again reenacted by the second statute concerning the poor of Edward's reign^[117]. At the same time the apprenticeship regulations were made less severe, and justices were empowered to liberate children on any proof of the misconduct of master or mistress.

The next poor law of the reign^[118] chiefly concerns the collection of funds, and was passed in 1551-2.

7. Legislation
between 1551 and
1569.

The officers responsible for the execution of the statute were sometimes municipal and sometimes parochial. The mayor or head officer was to act in the towns; the parson and churchwardens in the country. These officers were ordered to call the householders together and to nominate two collectors who were to gather the alms of the parish, and it is provided that the collectors "shall gentellie aske" of every man what he will consent to give weekly for the relief of the poor. The various sums were to be entered in a book and collected every Sunday. If any man refused to give, he was to be exhorted by the parson, and, if the parson failed to persuade him, he was to be sent to the Bishop. The Bishop was to induce him to contribute and "according to his discretyon take order for the reformacon therof^[119]." The Bishop was also to see to the proper employment of sums granted to the poor by Henry

VIII., unless they had been taken away by an Act of Parliament. This same statute also enacted that none were "to goo or sitt openlie a begging," but in this respect was in advance of the time, for during Mary's reign licensed beggars were again allowed^[120], though the remaining provisions of this statute were continued or reenacted several times before 1563^[121]. Early in the reign of Elizabeth, however, a fresh step is taken towards the enforcement of compulsory poor rates. The 5 Eliz. c. 3 originated in the House of Lords, and may have been due to the fact that the Bishops found unavailing their exhortations to stingy parishioners^[122]. When a person obstinately refused to give to the poor after the Bishop had duly exhorted him, he might be bound by a recognisance of £10 to appear before the justices of the peace in the country or the mayor, bailiff, &c. in the towns. The justices or mayors were to "charitably and gentelly perswade and move the said obstinate persons" to extend his or their charity towards the relief of the poor of the parish where they dwelt. If any of them again refused, the justices of the peace or mayor and churchwardens might assess what sum he should pay weekly; if he still remained obdurate he might be imprisoned.

It was in this hesitating way that the law first resorted to compulsory payments for the poor. The utmost care is taken to make the contribution as voluntary as possible and only to resort to force when much persuasion had proved ineffectual. Even then compulsion might only be resorted to in the case of obstinate individuals; it was not legally permissible to assess the amount that everyone should give until 1572.

8. Summary.

This statute of 1563 was the last enactment dealing with poor relief passed before 1569. In principle, legislation has altered little since the second statute of Henry VIII. In 1569, as in 1535-6, a sharp distinction is drawn between the able-bodied beggars and the impotent. The former are to be whipped and sent to their parish to work; the latter are to be provided for by their fellow parishioners. In both periods also the state appointed municipal or parochial officials to collect funds and to relieve the poor. But there is a great difference in the details of the statutes. The laws of Edward VI. and the first statute of Elizabeth concerning the poor carefully state who are responsible for the execution of each part of the Act and provide penalties for neglect. The two statutes of Henry VIII. are more detailed than the statutes of Richard II. but they were not detailed enough; the enactments of Edward, Mary and Elizabeth add

still more precise provisions to secure the better execution of the law^[123]. But there is an even greater difference with regard to funds. The laws of Henry presuppose that the poor will obtain sufficient relief from voluntary alms; the statutes of Edward VI. and Mary prescribe the persuasion, and those of Elizabeth the compulsion of the contributors. Society had become too complicated for individual action to be effectual either in restraining idle beggars or in relieving the helpless poor: the duty was therefore undertaken by the state. It seemed at first as if the old voluntary character of the gift could be maintained, but this was soon found to be impossible. Throughout this period, so far as legislation is concerned, an approximation to compulsory poor rates accompanies the increase of the public administration of relief.

CHAPTER V.

REVIEW OF THE GENERAL CHARACTERISTICS OF PUBLIC POOR RELIEF, 1514-1569.

1. The action of municipal rulers precedes the action of Parliament.
2. Advantages of the municipal system of relief.
3. Connection between the municipal organisation of poor relief and the dissolution of the monasteries.
4. Relation of beggary to first schemes of relief.
5. Parental government.
6. Bridewell, the keystone of the system.

1. The action of the rulers of particular towns precedes the action of Parliament.

Before 1569 no effectual system of poor relief had been established, but many experiments had been made. At the beginning of the century a serious problem was before the Government. The social changes of the time had resulted in the formation of crowds of vagrants, and the greater complexity of economic conditions made the position of the workfolk more unstable. Even in ordinary times, therefore, the vagabonds were a constant plague to the peaceful citizen, and when corn was dear or work was slack the greater number of the inhabitants of particular districts, being without resources, joined in riots or rose in insurrections. There were then no Friendly Societies or workmen's clubs, and no casual wards or workhouses. Years of scarcity were therefore always times of disorder and the peace of the whole country was threatened. Assistance given by means of private charity, monasteries and hospitals failed to relieve the distress or to remedy the evil. Force was tried; thieves were hanged and vagabonds were whipped. But, even as early as 1515, Sir Thomas More saw that the root of the evil was much deeper, "Neither ther is any punishment so horrible, that

it can kepe them from stealyng, which have no other craft, whereby to get their living[124]."

Even before 1569 the statutes had appointed authorities both for the collection of funds and for the distribution of relief, and had made contributions to the poor compulsory. But, on the whole, the practice of London and certain other towns was in advance of the regulations of the statutes; the main feature of the period is the municipal organisation of poor relief. London in 1547 and Ipswich in 1557 had made regulations for levying compulsory payments for the poor, long before any statute had authorised the exaction of compulsory payments for this purpose. Nor is this the only matter in which the regulations of the towns seem to suggest the provisions of the statutes. Before the 22 Hen. VIII. had ordered vagabonds to be whipped at the cart's tail, London vagabonds had been so treated; before the 27 Hen. VIII. had ordered the collection of alms for the poor on Sunday by municipal and parochial authority, that method had been adopted in London. London, Cambridge, and Ipswich had, before 1569, built up an elaborate organisation for dealing with the poor, an organisation that seemed complete, but failed because it was municipal and not national.

The history of the legislation of the time thus shows that the Tudor Poor Laws did not, like modern Factory Acts, initiate regulations never before enforced. On the contrary, the provisions of these statutes reveal the beginnings of the national system, following the same line of development as that which had already been reached by many particular towns.

2. Advantages of the municipal system of relief.

There were some advantages connected with this independent municipal action, which is thus characteristic of the relief of the poor before 1569. It was possible for the central Government to estimate the practical effect of their measures before they became law, because they were already probably adopted in some towns.

Another advantage that belonged to the municipal organisation of the times was the close connection that existed between the authorities who administered poor relief and those who administered charities. Most of the London charities seem to have belonged either to the parishes or to the Companies. The parochial charities were administered by authorities closely connected with those responsible for the public system of poor relief

in the parishes, and the City charities were administered by authorities closely connected with the public system of poor relief in the City. Moreover the work of all the parishes was controlled by the same central authority.

3. Connection between the municipal organisation of poor relief and the dissolution of the monasteries.

The connection between the municipal organisation of poor relief and the dissolution of the monasteries is not altogether clear. Long before 1536 the difficulty of repressing beggars was serious, and the alms of the townsfolk were wasted upon unworthy recipients. Between 1514 and 1533 London had already taken measures both to restrain and license its beggars and to collect alms for the poor. It is probable, that had the monasteries continued to exist, these measures must have extended. But the existence of the doles of the monasteries was in itself an obstacle to the better government of beggars, because the relief given by them was in no way controlled by the same authorities. In London the hospital of Savoy preserved during the reign of Mary an independent existence, side by side with the hospitals under central management, and we find that the City authorities complained of even this one hospital, and said the beggars there relieved were a cause of disorder, and a hindrance to the good government of the City. Had all the old monasteries and hospitals maintained an independent existence it is difficult to see how the regulations of the town rulers could have had much effect, unless the religious endowments also had been subject to municipal control. Moreover the monasteries had relieved many poor at their gates, and among the monks and nuns themselves were probably many who were unfit for the battle of life. These people had to be provided for as well as the unrelieved poor of former days. The immediate need was therefore greater after 1536 than it had been before. At the same time responsibility in the matter fell more directly on the citizens. While the old religious foundations existed, it was supposed that they ought to provide for the poor; now they were destroyed, the responsibility must be fixed elsewhere. It was the citizens whom Latimer and Lever blamed for neglect. Moreover some of the spoils of the dissolution fell into the hands of the municipal rulers, and sometimes they were charged with administering them for the use of the poor. This would certainly facilitate their action and would perhaps lead them to consider the relief of the poor especially as a municipal duty. Something of the kind seems to have happened at York, and possibly also at Cambridge.

In any case it is certain that, after 1536, the citizens of London set themselves much more vigorously to work to deal with the poor; that the royal hospitals were founded partly from the dissolved monasteries, and that the foundation of these hospitals first led to the compulsory taxation of 1547 for the poor in London, and called into existence the governors for the poor. Municipal care for the poor therefore existed before the dissolution of the monasteries, but became much more extensive afterwards, both because the need was greater and because the rival authority was suppressed.

4. Relation of beggary to first schemes of relief.

The close relation between beggars and the new system of poor relief is also apparent. The first efforts of Town Councils and Parliament were occasioned by the great increase in the number of begging poor; the earliest orders concern the punishment of able-bodied beggars; the others were left to voluntary charity. But the able-bodied beggars were sometimes unable to obtain work and the impotent beggars were sometimes unrelieved. The system of the royal hospitals of the City of London was founded by the City rulers to meet these difficulties. They considered especially three kinds of beggars; children, sturdy beggars, and the impotent poor; they built or refounded all the hospitals in order to provide for one or other of these classes. Occasionally begging was forbidden altogether, but as a rule beggars were not altogether banished, but some of them were provided for in hospitals or by pensions, and the rest were licensed. As soon as the system was established, even as early as 1557, the distinction between beggars and other poor was clearly seen and recognised, but still, it is true, that the organisation first grew up in order to lessen the number of vagabonds, and chiefly concerned beggars.

5. Parental government.

Still the regulations of the town rulers were not entirely confined to beggars. The articles, drawn up "at the meting of the towneship of Burye the XIIIth daie of Januarye 1570" (1571), illustrate the sort of family duty recognised by the municipalities towards their members, and the corresponding right of interfering with individual freedom. After commanding everyone to go to church on Sunday, the next regulation orders every person "suspected of loytring" to declare to the constable every Sunday in the morning "where he wrought everie daie in the said weeke," and "if any labourer shall not be provided of worke on the Sondaie for the weeke following, then the curate

or cunstable to move the parishe for worke." The burgesses also order a certain Agnes Servall to go to service before Easter and in the meantime "to keep her church on the sabbath days. If she failed to do so both mother and daughter were to be whipped^[125]." The town discipline was severe however much the parental rulers might look after the welfare of all the inhabitants. The relief of the poor was very closely connected with parental government of this kind. But both the suppression of beggars and the exercise of this family responsibility on the part of municipality or state involved means of coercion.

6. Bridewell.

The institution of Bridewell was therefore the keystone of the whole system. Vagrants were not reformed by whipping or by the fear of hanging, because they preferred to run the chance of capture when starvation was the alternative. Unorganised almsgiving failed even more conspicuously. But organised relief accompanied by a House of Correction was a step towards the solution of the problem. It also was in full harmony with the parental idea of government and the practice of state regulation of economic matters which existed throughout the reigns of the Tudors and earlier Stuarts.

The creation of the first Bridewell and the organisation depending upon it was the work of the citizens of London. It needed great liberality: gifts were then for the most part voluntary, and the result shows considerable public spirit on the part of the richer classes and a great sense of the corporate unity of the City by the whole body of citizens. It is true that the liberality did not last; that the isolated action of single towns could not deal with a national difficulty, but the town rulers began to make experiments, to train officials and to create the custom of relieving the poor. They did not themselves succeed in solving the problem, but without their incomplete regulations the national organisation of the future would hardly have been possible.

CHAPTER VI.

1569-1597. PARLIAMENT AND THE PRIVY COUNCIL.

A. Parliamentary History.

1. Discussions, Bills and Statutes between 1566 and 1576.
2. Parliamentary history between 1576 and 1597.
3. The Bills and Statutes of 1597.
4. General features of the discussion in Parliament.

B. The action of the Privy Council.

5. The chief characteristics of the action of the Privy Council.
6. The whipping campaign.
7. The scarcity measures.
8. The influence of the Privy Council on
 - (1) the Mayor and Corporation of London,
 - (2) other local officials.

The action of municipal authorities in particular towns, which, before 1569, is the main feature in the development in the English system of poor relief, becomes of relatively less importance after that date.

Matters concerning the poor attract increased notice in Parliament and the statutes become more definite and more effective until 1597. An enactment was then passed, the provisions of which, as re-enacted in 1601, have remained almost unaltered until the present century. The leading feature therefore of the period from 1569 to 1597 is the improvement in legislation. But besides the improvement in legislation we must notice the pressure exercised by the Privy Council on the justices of the peace. This becomes more operative and frequent throughout the reign of Elizabeth, but before 1597 it had not attained anything like the same degree of success that it was destined to achieve under Charles I. At the same time local organisation

must not be altogether neglected, and now the measures of the justices in the country are important as well as the orders of the towns.

We will consider, therefore, so far as they affect the poor, first, the Parliamentary history from 1569 to 1597; secondly, the action of the Privy Council; lastly, some of the more important local measures and the events of the concluding years of the period 1594 to 1597.

A. Parliamentary history.

The history of the Bills, committees and debates in Parliament in the period from 1569 to 1597 shows very clearly that the English Poor Law did not come by chance, but was the result of the thought and experience of the greatest men of the time. Their discussions make us realise, that in those days, as in ours, opinion was much divided on the subject, and that in matters concerning the poor it is particularly true that there is very little new under the sun. The earlier part of the parliamentary history of the question circles round the statutes of 1572 and 1576, the later round the code of 1597. Between these two dates there were some slight alterations and additions to the law and a decided change in opinion and feeling.

1. Discussions, Bills and Statutes between 1566 and 1576.

In 1566, we find notes in Cecil's handwriting on a scheme for preventing a dearth of grain and on the definition of the word "vagabond." He jots down the words "bearwardes," "Tynkers" and "pedlars," as if he were the author of the definition^[126] of "vagabond" that was to cause so much difference of opinion in 1572.

These notes were possibly the basis of two Bills which were introduced into Parliament in the session of 1566. One concerned the punishment of vagabonds and loiterers and was introduced into the House of Commons; the other concerned the provision of grain and was considered by the Lords^[127]. In neither case did the Bills become law, but it is worth noticing that the question of the provision of grain had been discussed in Parliament as in 1572, and in 1586 the Privy Council again took action in the matter. In 1571 a new Bill, concerning the punishment of vagabonds and the relief of the poor was introduced, and there was an interesting debate on the first reading^[128]. One of the chief speakers, Mr Sands, subsequently took a considerable part in the discussion of 1597. He considered that this Bill of 1571 was "over-sharp and bloody" and thought that milder measures would

be more successful. If justices would take the trouble, he said, every man might be relieved at his own home: this was clearly feasible because it was actually done in the county of Worcester. Sir Francis Knollys also spoke and was on the sterner side. He would have had a Bridewell in every town, and have had it maintained by a fine of twelvecence from every "Tippler^[129]." This is a good illustration of the way in which Bridewell, an institution originally peculiar to London, influenced the discussions in Parliament and was there suggested as a type or model for similar institutions throughout the country.

Another speaker was Mr Thomas Wilson, to whom we owe the organisation of the Record office of his time. Like a modern secretary of the Charity Organisation Society he told his hearers that "it was no charity, to give to such a one, as we know not, being a stranger unto us."

No statute followed this discussion of 1571, but when Parliament again met in 1572 a Bill was brought into the House of Lords which finally became law. The main feature of the debate in 1572 was a dispute between the Lords and the Commons as to the definition of the word "vagabond." The definition in the Act includes^[130] (1) proctors or procurators; (2) persons "using subtyll craftye unlawful Games" and "fayninge themselves to have knowledge in Phisnomye, Palmestrye, and other abused Scyences"; (3) all able-bodied persons not having either "land or maister" who cannot give a satisfactory account of their means of livelihood; (4) all "fencers, Bearewardes, Comon Players in Enterludes and minstrels" not belonging to a Baron or other honourable person of greater degree and all "Juglers, Pedlars, Tynkers and Petye Chapmen" unless the bearwards, tinkers etc. were licensed by two justices of the peace; (5) common labourers, able to work, who refuse to work for the customary wages; (6) all counterfeiters of passes and all who use them knowing them to be counterfeit; (7) all scholars of Oxford and Cambridge who beg without being licensed by Chancellor or Vice-Chancellor; (8) all shipmen not properly licensed; (9) all liberated prisoners who beg without a license, and lastly (10) all persons declared vagabonds by the clauses of the Act which concern the impotent poor. A great many people were thus affected by the Act; the unauthorised beggar, the workman on strike, the poor scholar at the Universities, unless he were duly licensed, and the shipwrecked mariner, as well as the fortune-teller and the proctor or collector of subscriptions. All these were

abandoned to their fate, but the clause concerning the suppression of "minstrells, bearwards, pedlers etc." caused a dispute between the Lords and the Commons^[131]. These men took the place which shops, circuses and newspapers occupy in the life of to-day, and their total suppression would have meant a considerable loss in the country life of Merry England. After discussion the two houses agreed upon a compromise; it was arranged that these people should be allowed if licensed by two justices of the peace, and the Bill became law as the 14 Eliz. c. 5.

The regulations concerning vagrants are severe, more severe than in any other Act except the slavery statute of 1547. For a first offence, a vagabond was to be whipped and bored through the ear, unless someone would become surety for him and keep him in service for a year. For a second offence, he was to be adjudged a felon, unless he could find a surety who would take him into his service for two years; and for a third offence the vagrant was to be adjudged a felon without clergy and might be punished with death^[132].

Special regulations refer to some of the pauper immigrants of the time. In the days of Elizabeth these came chiefly, not from the Continent, but from Ireland and the Isle of Man. The unfortunate people were to be punished as sturdy vagrants and sent home again, while the people who brought them over were to be fined twenty shillings for each immigrant.

But "forasmuche as Charitye would that poore, aged and impotent persons should as necessarye be provided for, as the said Roges, Vacabondes and Sturdye beggars repressed" the clauses of the enactment deal with relief as well as with repression. The justices of the peace were to make a register of the names of the poor in every parish and habitations were to be found for them. Every month the mayor and high constable were to make search for the strange poor and were to send them back to their own neighbourhood.

When the poor had been thus settled the justices in the country and mayors in the towns were to estimate how much it would cost to maintain them. They were then "by their good discretions" to "taxe and asseesse all and every the Inhabitauntes," dwelling in their divisions, "to suche weekly charge as they and everye of them shall weekly contribute towards the Releef of the said poore People."

The mayors and justices were also to appoint collectors and overseers, and the "obstinate person" who refused to contribute was to be brought before two justices and sent to gaol unless he became obedient.

Thus the Act of 1572 does not enforce compulsory payments in the case of obstinate individuals only, like the statute of 1562-3; it also enforces the compulsory payment of an assessed sum upon all the parishioners. The admonition of the bishop is succeeded by the compulsion of the law. This clause of the Act, however, still expresses hesitation; if the parishioner failed to pay, the poor rate could not be immediately distrained; the offender must be brought before two justices and if he remained disobedient was to be sent to gaol. The old theory, that gifts for the poor were good for the giver and should be voluntary, thus still left its traces though henceforward the compulsory poor rate was a part of English law.

In this respect the statute merely adopts a principle which we have seen was already enforced in some of the towns, and its chief regulations do not in any way alter the control of relief exercised by the municipal authorities. On the contrary, the mayors or other head officers are expressly ordered to take the initiative in the towns and are made legally responsible for the execution of the law.

Although the clauses against vagabonds are so unusually severe in this statute the provision for the employment of the poor is very small. This deficiency was therefore supplied by an Act passed four years afterwards.

18 Eliz. c. 3.

By a statute passed in the Parliament of 1575-6 a stock of wool, flax, hemp, iron or other stuff was to be provided in every city and corporate town and in every market town when thought necessary by the justices "to the Intente Yowthe may be accustomed and brought up to Laboure and Worke, and then not lyke to growe to bee ydle Roges and to the Entente also that suche as bee alredye growen up in ydlenes and so Roges at this present maye not have any juste excuse in sayeng they cannot get any Service or Worcke ... and that other poore and needye persons being willinge to worcke maye bee set on worcke." Moreover Houses of Correction were to be built in every county and thither were to be sent all who refused to do the work provided for them^[133].

These two Acts of 1572 and 1576 were three times continued^[134] and remained the basis of the English Poor Law until the whole question was

reopened and thoroughly discussed in 1597. In 1593, however, the clauses relating to the death, imprisonment and boring through the ear of vagabonds were repealed and the whipping punishments of the 22 Hen. VIII. were again revived[\[135\]](#).

2. Legislation between 1576 and 1597.

Between 1576 and 1597 three other statutes were passed dealing with special aspects of the subject. The 31 Eliz. c. 7 was designed to prevent an increasing number of poor families from settling in the country. Only one family might live in one house and no house was to be built in the country unless it had four acres of land attached[\[136\]](#). The 35 Eliz. c. 6 was passed to prevent an increasing number of poor families from settling in London. In the cities of London and Westminster and for three miles round no new houses were to be built except for people who were assessed in the subsidy book at £5 in goods or £3 in lands. No existing houses were to be divided into tenements and no "inmates[\[137\]](#)" were to be received.

A third Act also passed in 1592-3 made special provision for soldiers and sailors. They were ordered to return to their own neighbourhoods, and the justices were empowered to levy an additional rate for their relief, which was to be distributed to them by Treasurers appointed in every county for the purpose[\[138\]](#).

But it was in 1597 that the many aspects of legislation affecting the poor were thoroughly discussed.

3. The Bills and Statutes of 1597.

During the years from 1594 to 1597 there was a great dearth of corn and the price rose in some cases to four or five times the average price of the preceding years. There were rebellions in many parts of the country and great distress in all. Parliament met on the 24th Oct. 1597 and the first measure read a first time by the House of Commons was one dealing with forestallers, regrators and engrossers of corn[\[139\]](#). Francis Bacon then spoke about enclosures. For "Inclosure of grounds," he said, "brings depopulation, which brings first Idleness; secondly decay of Tillage; thirdly subversion of Houses and decay of charity, and charges to the Poor; fourthly impoverishing the state of the realm." He therefore brought forward two Bills on the subject, "not drawn with a polished pen, but with a polished heart, free from affection and

affectation^[140]." A committee was appointed to consider the matter, which was to meet in the Exchequer Chamber in the afternoon of the same day.

Later, Mr Finch addressed the House, "shewing sundry great and horrible abuses of idle and vagrant persons greatly offensive both to God and the world; and further shewing the extream and miserable estate of the Godly and honest sort of the poor Subjects of this realm," and it was decided that these matters also should be referred to the committee already appointed for enclosures^[141].

A few days later Sir Francis Hastings complained that this committee had so far "spent all their travel only about the said Inclosures and Tillage, and nothing about the said rogues and poor^[142]." He therefore asked that Bills on these subjects should be considered by the House. At least seventeen Bills concerning this matter were brought forward during the Session of 1597-8, and on Nov. 19th a large and influential committee was appointed to which thirteen of these Bills were referred. To this committee belonged some of the most famous men in the House, for it included amongst its members Sir Francis Bacon, Sir Thomas Cecil and Sir Edward Coke. There were others also who seem to have had special knowledge in matters concerning the poor, such as Edward Hext, a justice of Somerset, who had already written a long letter to Cecil concerning vagabonds; and Sir Thomas Wroth, who seems to have been the special champion of the poor^[143]. Their meetings were held in the Middle Temple Hall and continued for the greater part of the Session^[144].

The titles of twelve of the Bills then considered give us some idea of the many sides of the question that were then discussed. The following drafts were submitted; the Bill for "erecting of Houses of Correction and punishment of rogues and sturdy beggars and for levying of certain sums due to the poor," for the "necessary habitation and relief of the poor, aged, lame, and blind in every parish," for "relief of Hospitals, poor prisoners and others impoverished by casual losses," for "supply of relief unto the poor," for "petite forfeitures," for "the better relief of souldiers and mariners," for "the better governing of Hospitals and lands given to the relief of the poor," for "extirpation of Beggery," "against Bastardy," "for setting the poor on work," and "for erecting of hospitals or abiding and working houses for the poor." These Bills concern both the relief of the poor and methods of dealing with vagrants; so far as the former was concerned the committee

rejected all these proposals and brought in a new Bill of their own. But the Bill for Houses of Correction was amended in the Commons and sent up to the Lords^[145].

In the Upper House also there was then much discussion. A bill "for the relief of the poor in time of extream dearth of corn" apparently originated there^[146]. Most interest, however, was excited by the Bill for Houses of Correction. The Lords appointed one committee to discuss both Bills and amongst its members were Lord Burghley and Archbishop Whitgift. Several amendments were proposed by the committee which were not at first approved by the whole House. The Lord Chief Justice was therefore consulted and some, if not all, of the additions were accepted^[147]. The Bill was sent down to the House of Commons with the amendments. The Commons referred the matter to a committee in which Sir Walter Raleigh took the chief part and which included Francis Bacon, Wroth and Hext. Raleigh proposed a conference with the Lords on the subject. The Lords assented to the conference with the proviso that whatsoever had been amended or added by their Lordships "could not now be altered by the orders of the House^[148]." Sir Walter Raleigh reported this reply to the Commons but complained of the manner in which the answer had been delivered, "not using any of their Lordships' former and wonted courteous manner of coming down towards the members of this House to the Bar, but all of them sitting still in their great Estates very solemnly and all covered^[149]." A somewhat heated discussion arose between the two Houses as to the way in which the Lords should answer the Commons, and perhaps the friction occasioned by this means contributed to the rejection of the Bill by the Commons by 106 Noes to 66 Ayes^[150]. A new Bill for rogues was hastily passed through the House and sent up to the Lords.

The final result of all these discussions, Bills, committees and disputes was a series of Acts dealing with the problems concerning vagrants and the poor from many different sides.

The most important Act of the series is the 39 Eliz. c. 3, formerly the Bill for the relief of the Poor which the great committee appointed on Nov. 19th in the Commons brought in after they had discussed twelve other Bills on the subject. By this Act the relief of the poor was placed mainly in the hands of the Churchwardens and four Overseers of the Poor who were to be appointed every year at Easter by the justices of the peace. These

churchwardens and overseers with the consent of two justices of the peace were to take such measures as were necessary for setting poor children to work or binding them apprentice, for providing the adult unemployed with work by means of a stock of hemp, flax, wool, thread, iron or other materials and for relieving the impotent, old and blind. For this last purpose they were empowered to build Hospitals on waste lands. The funds were to be raised by the taxation "of every inhabitant and every occupier of Landes" and the rates might be levied by distress. An appeal against the assessment might be taken to Quarter Sessions but the assessment itself was to be made by the parochial officers with the consent of two justices of the peace. Rich parishes might be rated in aid of poorer ones and the forfeitures for negligence, made under the Act, were to go to the use of the poor. All beggars were declared rogues except those who begged for meat and victuals in their own parish and soldiers or sailors regularly licensed who were passing to their settlement.

A county rate was also to be levied on the parishes for the relief of prisoners and for the support of almshouses and hospitals, and a Treasurer for the County was to be appointed to administer this relief. Within corporate towns, the head officers had the same authority as justices of the peace in the country.

Another Act passed in this year was entitled "An Acte for the punyshment of Rogues, Vagabonds and Sturdy Beggars[\[151\]](#)."

Justices of the peace in Sessions were empowered to take measures for the erection of Houses of Correction. The old statutes relating to rogues and Houses of Correction were repealed and vagabonds were now to be punished by whipping. They were then to be sent to the House of Correction or gaol belonging to their place of settlement and from thence were to be placed in service if able-bodied or in an almshouse if impotent. If the rogue were likely to be dangerous to anyone he was to be banished, and if he returned was to suffer death. It is a curious part of this Act that the minister of the parish and one other person were to assist by their advice with the punishment of these rogues.

The Bill for Hospitals probably resulted in a statute which re-enacted the old provision that during the next twenty years anyone might found a hospital or House of Correction etc. by simple enrolment in the Court of

Chancery and without Letters Patent^[152]. Another of the thirteen Bills considered by the committee seems to have become law under the title of an "Acte to reforme Deceipts and Breaches of Trust towching Lands given to charitable uses." It was there stated that the lands appropriated to charitable uses had been misapplied and consequently power was given to the Lord Chancellor etc. to issue writs to the Bishop of the Diocese to inquire into any abuses of the kind and "to set downe such Orders, Judgement and Decrees as the said good, godly and charitable uses may be truely observed in full ample and most liberall sort, according to the true intent and meaning of the founders or donoures thereof^[153]."

Two enactments of this series concern soldiers; one confirms the statute of 1592-3 and increases the amount of the rate that justices might impose for their relief^[154]; the other provided especially severe punishments against soldiers, mariners and idle persons who wandered "as soldyers or mariners." But on the other hand if a soldier or sailor could not obtain employment in his parish and applied to two justices of the peace, they were obliged to find him work and could if necessary tax the whole hundred for the purpose^[155].

The legislation of this year is therefore almost a complete code on the subject, but by far the most important part was the Act concerning the relief of the poor. It was only passed as a temporary measure but was re-enacted with a few alterations four years later. It was in 1597, therefore, and not in 1601 that the whole question was discussed and that the main features of our English system of poor relief were legally established.

This statute differs from earlier statutes, not in the creation of Overseers of the Poor but in making them primarily responsible for the administration of the law. The Act of 1572 first ordered the appointment of Overseers or Collectors. But the burden of initiating measures then rested primarily on the justices of the peace and the head officials of the town. On the other hand the Act of 1597 ordered the overseers to take the initiative, though the justices had still to assent to their proposals and had to see that they did their duty. With regard, however, to soldiers, vagrants and Houses of Correction the justices were still mainly responsible.

4. General features of the discussion in Parliament.

For seventy years Parliament had been making legislative experiments with regard to the public relief of the poor and before 1597 at least nine different plans

had been tried. At last a law was produced which as re-enacted four years later is unrepealed at the present day and for more than two centuries was almost unaltered.

Parliament grudged neither its own time nor that of its ablest men to solve the question. The personal side of the history of the discussion is interesting. We see Sir Francis Bacon, to use his own phrase, "not with polished pen but with polished heart," Raleigh neither as courtier nor sea rover but as a stickler for the privileges of Parliament and leader of a committee on the poor, Whitgift, not as ecclesiastical disciplinarian, but as practical philanthropist. Burleigh appears but seldom in the discussions but he too sat on the committee in the House of Lords in 1597.

The most important part of the work seems to have been done by the committee appointed by the Commons on November 19th. The law for the relief of the poor was a new Bill framed by the committee after many other Bills had been considered and seems to have been accepted at once by the House. This committee was an enormous committee and the number of bills considered by it was altogether exceptional, and it is to the meetings of its members in the Middle Temple Hall that we owe the making of a workable Poor Law and all its lasting effects on English social life.

Conclusions.

Even by looking at the provisions of the statutes, we can see that opinion on the subject had greatly changed since 1569. During the earlier years of the period Parliament tried to exterminate beggary by increasing the severity of the punishment of beggars. If we except the law of 1547, this policy culminates in the statute of 1572, though, even in 1572, increased provision for the impotent poor accompanied increased severity towards able-bodied vagrants. The Act of 1576 indicates the beginning of a great change of thought and policy. Legislators have given up the idea that the existence of masterless men is entirely owing to the idleness and wickedness of the men themselves; they provide materials for employment and Houses of Correction and so recognise that the evil was partly caused by a want of training and by a want of work. In 1597 there was a further change; the most severe punishments against vagrants had been repealed and the most important part of the legislation of this year was the statute for the relief of the poor.

5. The chief characteristics of the

action of the Privy Council.

We now turn to the second factor in the growth of the English system of Poor Relief; the pressure exercised by the Privy Council on the justices of the peace. The methods employed were twofold; sometimes general measures were enforced through the whole country or through large districts of the country, sometimes pressure was brought to bear only on particular local officials.

The general measures adopted between 1569 and 1597 consist chiefly of organised searches made for the discovery and punishment of rogues and special precautions undertaken in order to prevent sudden alterations in the price of corn. It is not until 1597 and afterwards that these general measures concern the relief of the poor in ordinary times.

6. The whipping campaign.

In 1569 there were disturbances in many parts of the country and a serious rebellion in the North. The vagabonds of the neighbourhood increased the disorder and the vagrants of the time were often rebels. It was probably therefore quite as much for political as for social reasons that the Privy Council undertook a whipping campaign against vagrants between 1569 and 1572. In consequence of the orders of the Council reports were sent both from the Council of the North and from many justices of the Southern and Midland Counties. The reports from the North indicate clearly that these measures for the repression of vagrants and the relief of the poor were closely connected with the maintenance of order. In May 1569 the President of the Council of the North writes thus to the Queen from York: "We conferred with the justices of the peace in the county for its good order, and finding great quiet and content by the good execution of the statute for vagabonds, we have taken order that once in every month there shall be a secret search for that purpose throughout the shire, and certificates sent to us until next November^[156]." Almost immediately afterwards the rebellion in the North broke out and was suppressed. In December 1572 Henry, Earl of Huntingdon, writes to Lord Burghley from York and sends a copy of letters and articles sent to the justices of the peace of every riding and all the towns named in his commission^[157]. One of these articles shows that the valiant rogues were often more than beggars. "To stay the spreading of false and seditious rumours and the sending of messages from the late rebels to trouble the quiet of the realm, order is to be given in market towns and other places that all suspected passengers, vagabonds, beggars, and rogues

be punished with severity and celerity, according to the late statute." But even here measures for relieving the necessitous accompany those for repressing vagrants, and the justices were ordered to send monthly accounts of the proceedings taken by them to provide for the poor and impotent.

In the reports from the North the political motives of the Government are obvious, but the character of the organisation is shown better in the replies sent by the justices of the Southern and Midland counties.

7. Nature of general measures.

To enforce these measures orders were decided upon by the Council and then sent with letters directing their enforcement to the sheriffs and justices of the peace of every county. These justices reported to the Council the methods adopted by them to carry out these orders and the condition of affairs within their jurisdictions.

Many of the reports are still to be found among the State Papers and afford us considerable information as to the state of the country and the extent to which the law was executed. The justices' reports concerning vagrants from 1569 to 1571 are preserved from nineteen different counties. These were made directly to the Privy Council. From some counties like Gloucester and Northampton there are many reports, but from others like Lincoln and Hereford only one was returned. Although the justices of Holland in Lincolnshire only report once they say they will keep watches every month in order that vagabonds may be punished and suppressed^[158].

The accounts from different parts of the country vary very much. The Oxfordshire answer is usually "All things be well^[159]," but in Northamptonshire there were many vagrants, and apparently they were mostly sturdy rogues for they were usually "stocked" and whipped^[160]. Gloucestershire is a fairly average county; in the country round Cirencester we are told there were no "persons disorderly found," but in the division of Thornbury there were ninety-two vagrant men and fifteen children. In Tewkesbury and Deerhurst there were fifteen sturdy vagrants, twenty impotent beggars, and four children^[161].

Sometimes great numbers were attracted by particular causes. Thus from Cambridgeshire some reports state, "No such kynde of persons there were found^[162]," but in four hundreds forty-seven were arrested, "the number

whereof were so greate at that present by reason of the confluence to and from Sturbridge fayer^[163]."

When we remember that all the vagrants were taken in two or three searches only and that it is probable that the more capable had ample notice, the results indicate a considerable amount of disorder. On the other hand, the fact that when the proportions are given so many are impotent, and the frequent presence of children lead us to believe that these wanderers were more often people in want than wicked plunderers of their fellow-countrymen.

These orders of the Privy Council were directed towards the decrease of vagrants, but in the replies of the justices we see the close connection between measures of this kind and the relief of the poor. Thus in Essex and Surrey advantage was sometimes taken of the clause permitting the justices to put vagrants to service. At Barking and Walthamstow masterless men were appointed to masters, and at Brixton and Wallingford three out of thirteen were put to service^[164]. But the report from Worcestershire is more interesting and confirms the information derived from the speech made by Mr Sands during the debate in Parliament on the Bill of 1571^[165]. The justices there said that they had already taken measures to repress beggars and so found very few in the searches now made; the few that remained there were licensed by them but the "greter parte of the poore ar provyded for where they dwell^[166]." We can thus see that, though this whipping campaign concerns vagrants, the question of vagrants was inseparably connected with the care of the poor, and that these measures, although undertaken with a view of preserving order, tended to lead to the better organisation of relief.

The next series of measures undertaken by the Privy Council concerns therefore the supply of the markets during years of high-priced corn.

Even in the reign of Henry VIII. London and Bristol had bought a public store of corn in order to prevent scarcity, and in 1528 and 1549 the Privy Council had regulated the buying and selling of grain in order to lower the price but had failed to obtain much result^[167]. Between 1569 and 1597 there were three seasons in which corn was exceptionally scarce, 1572, 1586, and 1594 to 1597. In each of these the Privy Council issued similar orders and their action became more vigorous and more successful as time went on.

The sudden rises in the price of corn were in a great measure caused by the narrowness of the area from which a supply could come. There were few means of rapid communication; the roads were bad and the supplies of grain available for a particular district might be in the hands of very few men. It was quite possible for the dealers of corn to prevent corn from coming to a market, to buy up the supplies already there and afterwards raise the price to an artificial height. This was considered unfair according to the commercial morality of the time, and when it was done in the case of a necessary of life it caused great hardship to the poor.

In 1572 enquiries were made as to the price of corn in the Western counties and in Norfolk and Suffolk. The replies received show that it varied considerably even in adjacent counties. In Somerset best wheat sold for twenty shillings a quarter, in Dorset it fetched sixteen, it cost eighteen shillings in Norfolk, while in Suffolk it would be purchased for only fourteen^[168]. The next year a commission was issued and the commissioners were empowered to order the farmers to bring corn to market in proportion to the amount they possessed^[169].

So far the measures adopted closely resembled those of 1527-8, but in 1586 the organisation had become more developed.

In April and May the Council issued letters to the justices of the maritime districts and to twenty-three other counties ordering them to see the markets supplied with corn and to prevent the abuses of corn-dealers^[170]. Notwithstanding there were symptoms of discontent. The workmen in the west of England were suffering not only because the price of corn was high but because there was a lack of employment in the cloth trade. At Romsey certain rioters "pretend that the present dearthe of corn and want of work hath mooved them to attempt that outrage." In Framloyde, Gloucestershire, there was "a mutinee by the common people, who rifled a bark laden with malt." The justices responsible for Romsey were told to have regard to "their Lordships' late letters for the serving of the markettes and to deale with the principall clothemen and traders therabouts for the setting of the people on worke^[171]." Letters of the same kind were also sent to Gloucestershire^[172] and Somerset. In the latter we are told that the spinners, carders and workers of wool lack "their comon and necessarie foode, a matter not onlie full of pittie in respect of the people but of dangerous consequence to the state." Her Majesty, therefore, "tendring the one and

careful of th' other" directs the justices to call the clothiers before them and "require and command such of them as have stockes and are of habillitie to employ the same as they have heretofore don so as by them the poore maie be set on worke[173]."

With regard to the scarcity of corn the Council also took further action. Burleigh carefully considered and amended a proclamation for dealing with the difficulty[174]. The three judges, Popham, Mildmay and Manwood, to whom the matter was referred for consideration, made a series of recommendations[175]. "These were embodied in a set of orders, the draft of which is amended in Burleigh's own hand[176]. After being signed by the Council[177] these orders were issued early in 1587 to the justices throughout the country[178]. They probably formed the nucleus of the Scarcity Book of Orders of the earlier Stuarts which in turn was the forerunner of the Orders and Directions of January 1630/1.

These directions of 1587 commanded the appointment of juries who were to make an elaborate survey of the amount of corn possessed by everyone, and to state the number of people belonging to the different households. The justices were then to allow each owner to retain as much corn as was necessary for the food of his household and for seed, but were to order the rest to be brought to market. They were moreover to use "all good meanes and perswasions ... that the pore may be served of corne at convyent and charitable prices." They were also to see to the execution of the laws for the relief of the poor, "that the maymed or hurt soldiers and all other impotent persons be carefullie seene unto to be relieved," and "that the justices doe their best to have convenient stocke to be provided in everye division or other place accordinge to the statut for settinge the pore a worke[179]."

Many reports from the justices were sent to the Council in answer both to their letters and to the more elaborate set of orders of 1587. The justices divided themselves so that some were responsible for each division of the county[180]. They were present on market-days and saw if there were a sufficient supply of corn, and tried to persuade the owners to sell it at a moderate price[181]. They also took measures to check the dealers in corn or badgers. A difference of opinion seems to have existed as to the usefulness of these dealers. The Privy Council thought them mischievous, but the justices of Gloucester find them "honestlie demeaning themselves to be profytable members of this our Commonwelth[182]." The justices often, as

in Norfolk^[183], made detailed enquiries as to the amount of corn held by each farmer and the number of his household, and in accordance with the information thus acquired they ordered, as in Wootton, Oxfordshire, every corn holder to bring a proportionate quantity of his grain to market^[184]. In Gloucestershire they went farther and also fixed the price at which it was to be sold^[185].

The Privy Council certainly trusted much to the justices, and both farmers and markets were thoroughly regulated. One cannot wonder that sometimes the corn owners were disobedient^[186], though on the whole the orders seem to have been loyally carried out. Even in our own time the poor of Italy and Spain have suffered much from an attempted "corner" in grain in spite of our rapid means of communication and worldwide source of supply. The circumstances of 1587 must have made organisation necessary, for the orders were successful, and when reissued in 1594 it was especially noted that in 1587 they had done "much good for the stay of y^e dearthe and for y^e relieving of y^e poore^[187]."

Already in 1586 additional measures were occasionally taken for the relief of the labourers and handicraftsmen. In Norfolk, "the poorer sorte are by persuasion sarved at meaner pryces^[188]"; while in the county of Nottingham a philanthropic Duke of Rutland adopted the following expedient, afterwards employed by public authority. When it was known that there was likely to be a scarcity of grain, the Duke caused his corn to be sold in small quantities to the poor two shillings and eight pence under the market price. The justices tell us that by these means "the greedines of a number was frustrated, the poore releved, and the expectancy of excessive dearthe stayed^[189]."

But, although the orders issued in 1587 especially command the provision as well of adequate support for the impotent as of work for the able-bodied, very few of the replies report any special action with reference to these matters. There are however one or two exceptions. Thus Arthur Hopton, a justice responsible for the hundred of Blithing, states that 500 poor in adjacent towns were relieved with "bred and other victuall," and that this should be continued for twenty-three weeks^[190]. Certain justices of Hemlingford also give an especial charge to the collectors to see that all "the poore aged and impotent persons w^tin everie township and hamlet be

sufficientlie releevd as they ought to be," and to "adde a weekelie supplie to the same former reliefe," if the relief they had previously ordered were "too slender for them by reason of the dearth." The justices also especially charge the overseers[191] to see "that all the poore and idle persons in everie towneship and hamlet w^{ch} are able to labour and want worke be daylie set on worke ... towards the getting of their living according also to the former orders made to that effect[192]." But generally the action taken by the justices both in 1586 and 1587 mainly concerns the supply of corn. Still the whole organisation was made chiefly in the interests of the poor, and both the reports and the orders themselves notice this fact[193].

In 1597, as well as in 1586, the Privy Council endeavoured to supply the poor with corn at reasonable rates, but it will be more convenient to consider that attempt with the rest of the events of those years of scarcity from 1594 to 1597[194].

As a rule in the reign of Elizabeth the object of these scarcity measures was not so much to sell to the poor under price, as to arrange by organisation that the supply of corn should be equally distributed over the whole year, and that consequently the price of corn should be more even for everybody. It was rather to prevent monopoly than to organise doles. It was undertaken chiefly in the interests of the poor because a lack in the supply of corn affected them most; it did not only mean hardship, it meant starvation. It was undertaken by the Privy Council partly with the desire of repressing disorder, because insurrections and scarcity usually occurred together, and it was the object of the Government to keep the people in their "obedience[195]." But already the changed feeling of Parliament is found also in the Privy Council: measures of organised relief were seen to be the most effectual method of repression, and the closer study of the subject resulted in greater care for the poor.

These general measures for the repression of vagrants and the supply of corn are not only important to our subject because they directly concern the relief of the poor; they are even more important on account of their indirect connection therewith. In the first place these measures brought the authorities both of the nation and of the country into contact with the poor, and they were thus led to devise more extensive measures for bettering the condition of their needy neighbours; it became more and more a habit with them to regard matters concerning the poor as a department of Government.

In the second place, by means of these measures dealing with corn and vagrants the organisation was prepared which was afterwards used for the administration of the relief of the poor. The letters of the Privy Council to the justices, the allotment of the justices to their different divisions, the supervision of the judges, and the reports to the Privy Council were all utilised by the system established under Charles I.

If this later system had been administered by a body of officials untrained in the same kind of work, and unused to these methods of administration, it would have had little chance of being well administered. Such degree of success as was attained must have been at least partially due to the fact that the measures for the punishment of vagabonds and for the provision of grain preceded the more detailed orders for the relief of the poor. The new orders were thus executed by county and municipal officials trained to similar duties and used to like methods of administration, and it was in this way that the Elizabethan measures of scarcity have an important influence on the growth of the English administration of the Poor Law.

8. The influence of the Privy Council upon the Corporation of London.

But sometimes the measures of the Privy Council were not general: pressure was placed only on particular local officials. We will first examine a few cases of this kind concerning the City of London. We have already seen that in 1569 there were two sharp letters of the Privy Council to the Lord Mayor censuring him for his neglect in matters concerning the vagrants and poor^[196]. In 1573 the Lord Mayor refers again to the displeasure of the Council and had apparently received a similar letter^[197]. In this way therefore the Privy Council censured neglect and commanded local officials to remedy the abuses of their administration.

Sometimes we see the authorities of London asking the advice of the Council with regard to the measures that they have themselves prepared. Orders for the poor were drawn up in 1579 and again in 1594, and in both cases the Lords of the Privy Council were consulted^[198]. The Lords of the Council also call attention to particular difficulties. In 1583 they recommend special measures to prevent the increase of Irish beggars^[199], and they repeatedly write to order increased vigilance in enforcing the regulations against small houses and tenements which have been newly erected^[200]. Special matters are sometimes arranged by them; in 1594 the City rulers are told to meet the justices of Middlesex in order that they may

take joint action to repress vagrants[201]. Even details come under the notice of the members of the Privy Council, and in 1596 they directed the Lord Mayor to see that the corn in a particular ship was sold to the poor and not bought up by dealers[202].

The Council thus was apparently very well informed as to the condition of affairs and had power to interfere with effect even in matters of detail whenever the rulers of London were inclined to be slothful.

9. The pressure exercised by the Privy Council on other local authorities.

We have not the same detailed information with regard to other towns, but we can see that this kind of action on the part of the Lords of the Council was by no means confined to London. We find them writing to Burghley himself and insisting on the appointment of Provost Marshals in Hertfordshire and Essex who were to take especial care to repress vagrants and idle persons[203]; they rebuke the Devonshire justices for not providing properly for old soldiers and sailors[204]. They write to Cambridge and order that care be taken to prevent the increase in the number of tenements in the town[205], and they especially commend the Norfolk justices for erecting a "fourme for the punishment of loyterers, stubborne servantes, and the settinge of vagabondes, roages and other idle people to work, after the manner of Bridewell[206]".

There is enough to show that the Privy Council was often active and that its interference had a considerable effect, but that before 1597 this interference was only occasionally exercised.

This pressure exerted by the Privy Council on justices and municipal authorities becomes the most important factor in the development of the English system of poor relief in the next century. Law was not yet enforced merely because it had been enacted, and in regard to the poor no force of continued habit as yet made public opinion compel negligent officials to do their duty. So far men objected to pay rates; they were not firmly convinced of the duty of the state to relieve the poor.

The pressure of the Privy Council was therefore necessary to enforce the law. But the habit of interference in these matters and the organisation that alone could make interference have much effect grew very slowly. Before 1597 we can see this habit of interference and this organisation growing, but as yet it is only utilised occasionally and to meet some special

emergency; it is not part of a general system which almost everywhere commanded obedience.



CHAPTER VII.

1569-1597.

LOCAL ORGANISATION OF POOR RELIEF AND THE EVENTS OF THE YEARS 1594-1597.

1. The organisation of London with regard to the poor.
2. The organisation of Norwich.
3. The action of other towns,
 - (1) Concerning the settlement of new-comers.
 - (2) Concerning the unemployed.
 - (3) Concerning the raising of funds.
4. The events of the years of scarcity 1594-1597.
5. Summary of the period 1569-1597.

Improvement in the organisation for the relief of the poor during the period from 1569 to 1597 is found in the local as well as in the central government. We will now look at the local side of the question. It is possible to obtain a fair idea of the kind of action adopted by the rulers of shire and borough by examining first the measures of London and Norwich in detail, and secondly some examples of the methods of other towns and counties.

1. The organisation of London with regard to the poor.

We have considered the action of the Privy Council with regard to questions affecting the poor in London, but we have not as yet looked at the measures themselves.

Some of these were designed to carry into effect the Act of 1572 which we have seen was the first law that gave statutory authority for compulsory assessment for the relief of the poor. In Sept. 1572 the Mayor issued a precept to the aldermen which commanded each in his ward to see that the

constables and other "sad and discrete personnes^[207]" made certain inquiries about the poor of every parish. They were to find out the names and surnames "of suche aged, decayed and impotent poore people" as "of necessitie be compelled to lyve by almes," and were to ascertain who had been born in the parish or had lived there three years before the beginning of the last Parliament.

The Lord Mayor in issuing this precept relied on the municipal and not on the parochial authorities. It was apparently unsuccessful, for later commands were sent to the aldermen on Sept. 5th ordering them to make these same inquiries through the churchwardens^[208]. Three days later more detailed instructions were given to the same effect. The churchwardens and other responsible men in every parish were "to examyne which poore are to be releved in everye of the said parishes and to be provided for according to the last statute made for that purpose." The aldermen were to set down the names of the poor and how long they had dwelt in the City and how much each of them ought to receive "that they nede not begg." They were then to make an assessment of "everye Inhabitant that nowe payeth nothings" to help his needy neighbours and, if there was any cause to increase the sum paid by any rich man, they were to note what increased amount they thought necessary^[209]. Thus the old voluntary payments seem to become the basis of the first assessment under the new statute, while a few wealthy and stingy givers were coerced.

Unfortunately the fund thus raised was not sufficient and efforts were made to reduce the expenditure and to collect the whole of the amount assessed. The aldermen were to summon the governors of the hospitals and were to interview the poor people themselves as well as the churchwardens. They had then the unpleasant task of lowering the pensions already granted because "the collecon all readie appoynted will not serve to advance suche ample pencons." They had also carefully to see that no one received anything who was not born in the parish or an inhabitant for the full time appointed by the statute^[210]. By these means it was hoped that it would not be necessary to spend more than the sum raised by this semi-voluntary poor-rate. In March, 1573, the contributions for the next year became due while some of the contributions for the previous year were still in arrear; the Lord Mayor found it necessary to complain of the negligent execution of the statute for the poor "by reason whearof this Cittie before this tyme

bearinge the name of a Lanterne to all other the Quene's maiestie's domynions in example of good order and due execucon of good Laws is accompted to some farre behynde other places in the due execucon of this statute to the greate greffe of well willers to the same^[211]." Henceforward every part of the precept concerning the poor was to be "dulye and carefullie put in execucon."

By next year it was evident that even if the assessments were properly paid the funds would be insufficient. The Mayor therefore fell back on the old plan of collections in the churches after the Sunday sermons^[212]. An ancient custom of the City was also utilised. The Companies in state attended by turns the sermons in Easter week at St Mary's Spittal. Special collections were then to be made for the poor and the money given to the Mayor that it might be distributed where there was most need "by the handes of good and godly citizens^[213]."

In these precepts of 1572, 1573, and 1574 the City rulers employ voluntary methods and avoid compulsory poor-rates as far as possible. It is however evident that the voluntary subscriptions were inadequate. The municipal basis of the organisation is strongly marked; the sums collected under the assessments were to be paid to the governors of Christ's Hospital and the chief part of the money seems to have been expended by the City and not by the parochial officials^[214].

The City rulers also attempted to deal with the poor all over London by an organisation founded upon a series of orders or articles for the poor. In 1576 a set of regulations was issued dealing with the duties of "the parish," of the "constables" and of "surveyors" with regard to vagrants. The parishioners were to choose a surveyor every Sunday who was to attend every night for a week and help the constable in the search for sturdy beggars. Every fortnight at least the constable, beadle and churchwardens were to visit the houses of all the poor people in their districts and were to order any of the new arrivals who were unable to support themselves without burdening the parish to be sent away^[215]. These commands only concerned vagrants and new comers and are of far less importance than the regulations of 1579.

In that year orders were issued which if carried out would have provided methods for dealing with all classes of the poor and, but for the Elizabethan phrases and Elizabethan whippings, we should be much more inclined to

think that they were passed by a London County Council in 1899, than by the Corporation of the City in 1579. In August of that year the Common Council resolved that "an Acte for the poore" should be drawn up and considered, and a few days later the book was read to the Council and "established as a lawe[216]."

There is a double basis for the administration of these regulations: the vagrants were dealt with by the municipal system working through the hospitals; the impotent by the parochial officials. Children and the able-bodied poor came under the jurisdiction of both. The vagrants were to be brought to Bridewell and there divided into three classes. Those who were not diseased and did not belong to the City were to be "dealt with according to the lawe," that is, they were to be whipped and sent to their settlement. Those who were ill were to go to St Thomas's or St Bartholomew's and when cured to return to Bridewell and be treated in the same manner. But the "sturdy beggars" whom "the Cittie by law is charged to provide for" were to be received into Bridewell: they were to be "there kept with thin diet onely sufficing to sustaine them in health" and were to be made to work at the occupation for which they were most fitted[217]. If any vagrant was skilful in any of these occupations and a citizen were willing to employ him, the governors were to try to make arrangements for him to be taken into service. Over the rest of the London poor also the parochial officials were commanded to keep a strict watch. In each parish the constable, churchwardens, collectors and six parishioners were to make a general survey of all their needy neighbours. The name, age and sex of each was to be noted and pensions were to be given to those who were disabled. Children were to go to Christ's Hospital if there was room, and if not were to be provided for by the parish. The able-bodied poor were told to make "their mone" to the churchwardens or collectors and were to obtain a "Bill" signed by two of them and then to be provided with work at Bridewell or elsewhere.

It is even suggested both that all the poor should be visited "daily if it may be ... to see how they apply theyr work" and that "Such youth, and other as are able to labour and may have worke and shal be found idle shall have some maner of correction by the parents, or otherwise as shalbe thought good in the parish. And if they wyll not amend they shalbe sent to Bridewell to be reasonably corrected there." Thus the two main features of these

orders were first, that the parochial officers were to exercise a very strict surveillance over all the poor of their district and were to provide the impotent poor with outdoor relief, and secondly, that the City officers were to punish vagrants and find work for the unemployed. No one was to be allowed to settle his own affairs; fellow citizens and fellow parishioners were to provide work and see it done, and were also to see that the youth of the City were well trained.

Some efforts were made to provide against some of the difficulties which were likely to hinder the execution of these commands. In order to lessen the charges as much as possible the governors were to try to persuade the masters of ships to engage their men from Bridewell; they also adopted the very modern expedient of registering the names of employers who were willing to give work to the poor who were sent to them^[218]. The old regulation was reaffirmed that the goods made by the poor should be sent to the Companies and paid for by them so as far as possible to prevent competition between the pauper-made goods and those of the free citizens.

The funds necessary for carrying out this organisation were to be provided by a tax of two-fifteenths and by revising "the bookes of taxations for the poore^[219]." Besides "for helpe of the Hospitals and Parishes in this charge all churchwardens and collectors for the poore be strayghtly charged to execute the lawe against such as come not to church, against al persons without exception, and specially against such as while they ought to be at divine service, doo spend their time and their money lewdly in haunting of plaies and other idle and wycked pastimes and exercises."

Some steps were taken to put these orders in execution and twenty-five occupations were practised in Bridewell. Amongst these were such trades as the making of gloves, silk lace, pins, bays, felts and tennis balls, so that some of the workers must have required considerable skill^[220]. But on the whole the new rules suggest the comment "Easier said than done," and so apparently the City authorities found. The Lord Mayor complains of the difficulty of keeping order in the City in consequence of the increase in the number of the poor owing to the erection of many small houses in Kentish Street just across the boundary of the City^[221]. Even in 1594 begging was not entirely abolished. In that year a new set of orders was drawn up with the object of repressing vagrants, and it is provided that "no suche poor people as by reason of age and other infirmitie have been allowed

heretofore to aske and take almes of well-disposed persons be henceforth so permitted to doe any more but that the wardes wher they inhabit be forced to maintain them in some convenient sort without begging or straying[222]."

The measures of London on the whole indicate a good deal of activity on the part of the City rulers, but until the close of the period there is little sign of success. In London as elsewhere it is a period rather of the growth of organisation than of successful administration. Still the kind of system adopted throws a great deal of light on the social ideals of the time. The daily visiting of the poor and the constant watch that was to be kept over them show that little respect was paid to individual freedom. On the other hand the orders of 1579 indicate that the municipality endeavoured to carry out the provisions of the Elizabethan Poor Laws for the employment of those who wanted work and the relief of all who were in need of maintenance.

2. The organisation of Norwich.

But the system adopted by Norwich is the most remarkable of the municipal organisations of the time.

As early as 1565 the Dean and Chapter granted St Paul's Hospital to the city. This hospital was also called the "Systers of Normans" and had been used partly as an alms-house and partly as a house of entertainment for poor strangers. It was one of the conditions of the grant that the provision for the poor should be maintained, and after 1565 part of the building was made into a House of Correction for the poor who would not work[223]. The establishment of the Bridewell by itself was of little good, and we hear that in 1570 the poor of the city were in a state of great disorder, and that the citizens contrived to effect an entirely new state of things. So well did they succeed that the fame of their system was known in all parts of the country, and the Archbishop of Canterbury asked for information as to their proceedings. The citizens consequently drew up an account of their doings and a "copi of the wrighting lefte with may L. of Cant. grace the 19 April 1572" is still preserved[224]. There the citizens state that in 1570 there were more than two thousand beggars in the city. That in consequence of this the beggars were demoralised. They were idle and would not work at all, they became wasteful and threw away the food given to them, and they also became drunkards and lived wicked lives, and so were a scandal to the whole town. Moreover, although beggars were fed, they were improperly clothed and housed, and consequently contracted

disease and were a centre of physical as well as moral pollution. Besides, there were no proper means taken to clear the city of strange beggars, and the number of poor in the city continually increased. We are told also that the statute (of 1563) was not successful in inducing people to contribute sufficient alms "upon which occasion was forced to followe compulsion," and a collection was therefore made both to restrain the loiterers and to relieve the poor.

The condition of affairs here depicted shows that the relief of the poor was an urgent practical necessity, and that when the existing law proved insufficient the citizens had no hesitation in imposing other regulations of their own.

They began by making an elaborate census of all the poor in the city. They give the name, age, occupation and dwelling of every man, woman and child of the poorer classes. They stated whether they received alms or not, and they sent a small number away from the city or to the House of Correction. The greater number they classified as "able to work," "not able to work," and "indifferent." Most of these poor people were able to work and very few altogether incapable^[225]. There were nearly four hundred men, more than eight hundred women, and almost a thousand children thus enumerated. The men belonged to every kind of trade, there were many weavers, tailors, carpenters and glaziers. The women more often than not spun white warp. With regard to the children it is astonishing how often the little boys of seven and eight go to school^[226] and sometimes also the little girls. Children of six are often reported to be "idle"^[227]. We shall have many other proofs of the fact that some attention to popular education was not a creation of the eighteenth and nineteenth centuries, but that it was fairly general during the days of good Queen Bess and the first half of the seventeenth century. Work was however begun sometimes by very young children, especially by the girls. For example, Gifferne Potterne a "cordiner and in worke and Anne his wife that botcheth" had three daughters, the eldest was nine years old and span, while the others went to school: two of the youngest workers were two daughters of Christobell Roll, "the eldiste of the age of seven yeres," these packed wool. There are many other entries of the same kind that show that the children began to work when they were nine or ten or younger still.

After the census had been made the Mayor, John Aldriche, issued a proclamation forbidding begging altogether in the streets of Norwich and ordering all strange beggars to depart. All the poor of the city who could not work were to be relieved and the others were to be "set on work." A new assessment was therefore made and the contributions were in many cases considerably increased[228].

The poor who were to receive relief were then specified, and the payments made to them though still small are greater than they had been before. Other arrangements were also made: some were sent away from the city; others were placed with the "select women"; masters were found for the youths, and inquiries were made to see that servants were hired for the whole year[229].

The Mayor was to be the Master of Bridewell, four aldermen were appointed commissioners of the poor and all officers were to be appointed by him. Regulations concerning Bridewell were made: a bailiff was appointed and twelve incorrigible idlers were to be kept at work there[230].

But besides Bridewell in every ward "select" women were to be appointed, and they were to receive women, maidens or children "whose parents are not hable to pay for theyr learninge." These were to be so taught "as labore and learninge shall be easier than idleness," and the work was to be done "trewelie and workmanlye" under pain of sharp correction[231]. The deacons were to see after the rest of the poor; to set those fit to service to serve, to place others with the select women, to relieve those that wanted help and to see that none begged or were brought up in idleness[232].

Besides all this an orphanage was refounded at St Giles' where twelve children were to be brought up until they could maintain themselves.

A little later certain aldermen and commoners were appointed who presented an elaborate series of orders to the assembly. These were adopted and a very thorough organisation was introduced.

Begging was entirely prohibited and every beggar was to receive six stripes with the whip; the people who gave to beggars were also to pay the fine ordered by statute and fourpence for every time besides.

These orders were put in force about May, 1571, and when they had been adopted about a year the citizens enumerate the great advantages they had

derived from them. "Theis orders have been attried," they write, and "put in practize in the seyde Citie and is founde to redowne to theis commodities thereafter ensuing."

They proceed to enumerate the sums earned by nine hundred children at sixpence a week; of sixty-four men "which dailie did begge and lived ydlie and now beinge forced to worke" earned on an average a shilling a week; and of one hundred and eighty women who earned twenty pence each a week "one with another." Strange beggars were sent out of the city, and the poor were better looked after and no longer had need of collections for the healing of their miserable diseases. Altogether the citizens reckoned they saved £2818. 1s. 4d. a year in money. Besides this the most disorderly kinds of people no longer resorted to the city "and the magistrates trobles for them be marvellouslye eased."

This organisation of 1570 was essentially a municipal organisation, but we can see that the statutes considerably influenced the town rulers of the time. They had tried the semi-voluntary system of collection authorised by the statute of 1563, and had found that funds could not be collected in this manner. They therefore employed more compulsion without any hesitation. They punished "according to the statute" people who gave to beggars, and they added a special fine of their own. The statutes themselves made the organisation for the collection of funds municipal as well as parochial and it is interesting to see this double system in working order. The deacons collected the rates of their particular parishes and paid the pensions granted to the poor. But it was the Mayor or his deputies who saw that everyone was assessed at the proper amount. The payments of a parish did not necessarily meet the expenses; the rich parishes paid for the poorer ones. The deacons accounted to the aldermen responsible for the ward; and some paid to them their surplus while others received the sums necessary to make up the deficiency[233].

Norwich seems to have been the first English town to prohibit begging altogether; the system of licensed beggars was still employed in most parts of the country.

The detailed accounts for the poor of Norwich were preserved down to 1580 and show that the organisation was in full working order for ten years. One of the compilations relating to this organisation was begun in 1576 and

the whole tone of this book shows that the citizens of Norwich were very proud of their doings in matters concerning the poor^[234]. It is perhaps the only place where the purely municipal organisation for the poor was successful for any length of time. There were difficulties again in the seventeenth century but as long as the first enthusiasm continued the system seems to have worked well.

The work was done thoroughly and placed on a sound basis. The House of Correction and the select women were maintained by the side of a sufficient collection for the relief and training of the poor, and, probably for these reasons, the system continued to be successful as long as the administrators continued to give it the necessary amount of supervision.

The citizens of Norwich seem to have partially overcome one of the principal difficulties of a purely municipal organisation by very rigorous settlement regulations, quite as severe as any that were ever enforced after the statute of 1662. For instance a Jane Thornton is to depart because she "in summer live in the cuntrie but in wint^r charge the citie," and "Richard Birch and his familie" were to go to Thorpe though he was not at this time (1570) in receipt of alms. There are many cases of the same kind and these continue throughout this period of ten years and occur again in the seventeenth century.

This kind of action with regard to new settlers was not confined to Norwich but probably extended to all parts of the country where there was much systematic relief of the poor.

3. The action of other towns.

We will now consider some of the various plans for the relief and organisation of the poor adopted in other towns.

We will first see how the municipal authorities dealt with settlement; we will then investigate various methods of dealing with the unemployed; and lastly we will examine the different ways in which funds were collected.

3. (1) With regard to the settlement of new comers.

With regard to questions concerning the expulsion of new comers the statute of Charles II. (13 and 14 Car. II. c. 12) does not appear to initiate a new custom. Municipal control in this matter begins before 1569. Whenever the town made a vigorous attempt to maintain its own poor, many efforts were made

to prevent new comers from settling within its borders. Sometimes the landlords were forbidden to subdivide tenements or build more houses of the poorer sort; sometimes the citizens were fined for entertaining poor inmates, and sometimes the inmates themselves were ordered to depart.

Thus in London the landlords first are restrained. In a resolution of the Common Council of 5 Edw. VI. it is stated that "capytell messuages and houses" had been turned into alleys and the class of vagabonds was greatly increased. It is therefore ordered that the inhabitants of these alleys should pay their rent to the House of the Poor in West Smithfield and not to their landlords[235].

In Aug. 1557 it is not only the landlords but the occupiers who are to blame, and they are ordered to put out of their houses "vagaboundes," "masterles men" and "evill disposed persons," and in future not to receive any one of the sort[236].

The municipal rulers of Ipswich also, in 1557, the year in which a compulsory Poor Rate was enforced, appointed "searchers for newcommers into the Towne[237]," and in 1578 provided that searches shall be made forthwith "for new commers and servants, retained for less than one yere," and that the constables are to warn new comers to depart the town[238].

In Cambridge in 1556 an inquiry had been made concerning new comers but apparently the town rulers were not very vigilant, for in 1584 the Privy Council ordered them to remove as many small tenements as might be consistent with the public convenience[239].

In St Albans as at Norwich we find that the regulations were very complete. In 1586 monthly searches were instituted: and the searchers were commanded "in the limits of their several Wards" to "make search for such new comers to the town as being poor may be likely to be chargeable to the same, and if they shall find any such within either of their several Divisions to give notice thereof to Mr Mayor, that order may be taken for their sending away[240]." We hear of orders made for the expulsion of particular poor people because they were likely to be in need of relief, and in some cases we can see that this practice caused great hardship to individuals. Thus John Tompson, a joiner, had taken a poor woman into his house and as she was likely to become chargeable she was ordered to quit the borough[241]. Moreover we have the later plan of finding sureties already in

operation. John Palmer was admitted a freeman, a Thomas Browne undertaking that Palmer's children should not become chargeable to the Borough[242].

We thus see that the statute of Charles II. did not impose hardships on the poor never before endured. It is a curious instance of the adoption by statute of a custom that had long existed. The custom had been enforced without statutory authority while the town government continued to possess semi-independent powers, but it could not be enforced without statutory authority in later times. The statute therefore stereotyped a custom that had long been in existence in the towns and would otherwise have become obsolete.

This practice of preventing settlement has a far closer connection with the social order of the reign of Elizabeth than with that of Charles II. It was a great hardship to the poor, but it was a hardship to which they had long been partially accustomed and which fitted in with the economic policy of the towns.

In most towns the right of exercising skilled trades and of opening shops was denied to any but freemen so that many difficulties were already imposed on the settlement of new comers. The organised relief of the poor increased these difficulties, it is true, but it did not altogether create them.

But it is more interesting to examine the experiments of the time with regard to the unemployed.

3. (2) The action of towns with regard to the unemployed.

In some districts a stock of materials was purchased either by private charity or by municipal funds. Portions of these materials were given to the poor that they might manufacture them. The finished article was then returned and afterwards sold, while the worker was paid according to the value of his labour. Sometimes a master was employed to teach the trade. Thus a Mr Watts left certain lands to the Mayor and Corporation of Rochester partly for this purpose. An old parchment roll contains the rules of the charity. The Mayor was to choose one honest citizen or several as "Providours of the Poore." The "Providours" were directed to buy flax and wool "to set the poor to work." This was to be worked into yarn and the spinners were to be paid for their labour. The yarn was to be sold in the open market, if possible, at a profit[243]. The same kind of plan was probably in operation at Canterbury and Colchester. Archbishop Grindal bequeathed a hundred

pounds to Canterbury^[244] for the purpose of providing the needy inhabitants with work, and Lady Judde left a like sum to Colchester "as a stock to buy and provide from time to time Wool, Yarn, Flax and such other merchandize and things as the season should require; for the setting on work such poor persons, inhabiting within the said Town, and Liberties of the same, as should be able to work and labour^[245]."

In St Albans we know more of the details of the experiment and find that there training was provided as well as employment and the funds were furnished by the town. In 1588 the town rulers engaged a Dutchman named Anthony Moner to teach the poor of the town to spin worsted and other yarns^[246]. Eight pounds were taken from the town chest in order to pay for the looms, combs and wheels which were to be used. Inquiries were made throughout the town for poor children who could be spared to learn the new trade; they were to be taught in six weeks and then paid for their labour^[247]. About the same time terms were arranged for four men to be taught by the Dutchman. When taught they were to be paid through "the Company^[248]," so that apparently the custom of St Albans was like that of London; the work of the poor was sold through the Company representing the citizen workers of the same occupation. The corporation paid £10 for the original stock of wool and every two tods were to be paid for when the next were fetched^[249]. The undertaking is therefore partly an example of the employment of the poor by municipal capital and partly an early instance of technical education provided by town rulers.

Something of the same kind was probably done at York. In 1578, £400 was raised for "settyng the poor of this citie on worke," half of which was contributed by the city and half from the money of Sir William Bowes. In the will of Thomas Brafferton money was also left for this purpose and more detailed directions were given as to its use. A stock of wool, flax or hemp was to be bought and "delivered within the parishe of Thornabie to be by them wrought and made into cloth and the poore people for the working thereof to be paid after such rate as nowe or hereafter shallbe used for such lyke work within the said parishe^[250]." In 1591 proposals were made for the same kind of undertaking at Lincoln, and a technical school was established at the expense of the corporation^[251]. At Leicester also the town contributed money on several occasions to set the poor people to work^[252]. In 1597 the Court of Quarter Sessions in Devonshire make an order that means for

setting the poor to work should be provided by the local justices as if this were quite a usual practice^[253]. There is no reason to suppose that the instances above quoted are exceptional. There is however more evidence on the subject during the next period.

But perhaps more often a workhouse or hospital was erected. At Reading one was built on the site of the house of the Grey Friars. This hospital contained twenty-one children and fourteen old persons. The funds were provided by the poor's box, by private contributions, by collections in the three parishes, and by the work of the poor. The accounts are in existence from 1578 to 1648, and the value of the work of the poor was very considerable. For the fourth quarter of the year 1578 it amounted to £12. 8s. 8d.^[254], and this at a time when the ordinary sum paid for the maintenance of an adult poor person was about a shilling a week. There were also Poor Houses at Colchester and at King's Lynn^[255].

But the most general arrangement made for the unemployed poor and for vagrants was the erection of a House of Correction. The House of Correction before the Civil War was not in all cases nearly so much like a gaol as it afterwards became. Often it was also a hospital for the old, and an industrial school for the young. Christ's Hospital at Ipswich is a good example of this kind of institution. This hospital was founded in 1569 and was controlled by the town. Governors were elected yearly who were to meet every week, and a paid official called a guider was appointed to look after the poor there. In 1594 and in 1597 such guiders were elected and the orders drawn up on these occasions tell us the nature of their duties. In 1597 for every person sent to the hospital who was to be forced to work and "corrected" the guider was to receive fourpence, after that he had nothing for their keep but their work. But for others who were sent to Christ's Hospital and were not to be "corrected," twelve pence a week was paid, and the value of their work also. In the orders of 1594 the guider is allowed eightpence a week for those unable to work, and special provisions were made about the clothing of the children^[256]. It is thus quite evident that at Ipswich the hospital was used, not only for vagrants, but also for children and for the impotent; not only for people who deserved punishment, but also for people who were simply in need of relief.

In the well-known example of the House of Correction at Bury the scale of diet and daily routine are specified. There were two principal meals, dinner

and supper, and on days when meat was eaten everyone was to have eight ounces of rye bread, a pint of porridge, a quarter of a pound of meat and a pint of beer; on the fast days instead of meat one-third of a pound of cheese or one or two herrings were provided. Those that behaved well were allowed a little bread and beer in addition, and those that would not work were limited to bread and beer only. On the whole the diet compares favourably with that of a modern workhouse. All were to rise at four in the summer and five in the winter, and had to work until seven, with intervals for morning and evening prayer. The amount of punishment was minutely regulated; the "sturdy rogues" were to receive twelve stripes, while those guilty a second time of "unchaste or unchristian speeches or behaviour" received three[\[257\]](#).

Many Houses of Correction were built in the later days of Queen Elizabeth. The "moste parte" of the hospital of Reading was to be converted into a House of Correction in 1590 "aswell for the settinge of the poore people to worke, being able to worke for their reliefes and for the settinge of idle persons to worke therein as also for the punishinge and correctinge of idle and vagrant persons[\[258\]](#)." At York also in 1584, arrangements were made at St Anthony's "for the punnyshment of such rooges as will not worke[\[259\]](#)."

Bristol, Winchester, Gloucester and Exeter also founded institutions of the kind, but at Exeter though one was founded there was some difficulty connected with it, and we are told that the citizens "afterwards repented[\[260\]](#)."

Thus before 1597 many Houses of Correction were in existence, and, though according to several authorities they were allowed to decay for a time, in the next reign they became general.

But these were not the only methods by which the poor were set to work. Pressure was put on employers both by public opinion and by official authority. The Gloucestershire justices report concerning a disturbance in 1586 and say the clothiers were not in fault, for "the clothiers here doe yet contynue to keepe their poore in worke as in former tymes they have donne althoughe it hath been to their greate losses; and soe they are contented to doe as longe as they maie occupie their trade without undooing of themselves[\[261\]](#)." The fact that this report was made shows that blame was attached to the employer who turned off his workmen in bad times; to some

extent the master and not the man was expected to take the risk of the fluctuations of the markets. In 1591 the Town Council of Ipswich went further and ordered the clothiers "to sett the poore on work" within the town, at the same time providing that, if any refuse the work or misuse their material, they were to be punished by the bailiffs[262].

Thus the provision of work for the unemployed was made in many different ways. Sometimes materials, teachers and implements were paid for by municipal capital, often workhouses were established, occasionally pressure was put on employers, and the most usual plan of all was to establish a House of Correction, which was used both to punish vagrants and to relieve the poor. But these attempts to provide work, though numerous, were not universal and there is some reason to believe that before 1597 many of these efforts had failed and needed to be revived in the succeeding years.

3. (3) Methods of raising funds.

The expenses of the organisation for the benefit of the poor were largely a new charge on the public purse, and difficulty was frequently experienced in finding the necessary money. Before 1572 there was no statutory right to make rates for this object, but we have seen that the borough authorities did enforce compulsory payments and levied local rates for this and other purposes. The old methods were continued and new ones tried during the period from 1569 to 1597. Sometimes the basis employed was that used for national taxation. The chief direct national taxes of the time were fifteenths and subsidies. A fifteenth was nominally a tax on moveables, but after 1334 the total amount never altered, and each town had to pay an invariable sum[263] which was apportioned from time to time among the local inhabitants; lists would thus be prepared of how much everyone had to pay, and these furnished a convenient basis of local taxation. Probably the earliest compulsory payment for the poor was the fifteenth levied in 1547 in London, and in 1579 two more fifteenths were imposed there in order to carry out the organisation of that year[264]. At other times fractions of a subsidy were exacted for local objects. In 1585 in order to meet "the charge of the poore" at Ipswich the fourth part of a subsidy was levied "uppon suche as are in the subsidy," while the rest were to be assessed by a Committee "according to their best discretion[265]." At Bury also the subsidy book was utilised for this purpose in 1589 when the House of Correction was founded. Every person whose land was rated "in the

subseyd booke" at twenty shillings was to pay sixpence in the pound, and every person "being sett in the subseyde book at 3 *li.* goods to paie IIII^d[\[266\]](#)."

Another method of collecting money for the poor was by means of local dues. At Ipswich tolls were exacted from ships entering the harbour, and payments were also made by all who were admitted freemen, by all who had "a writing acknowledged," and by all who had a witness examined before the bailiffs in writing[\[267\]](#). Sometimes fines and payments by individuals for particular privileges were devoted to this purpose. At Ipswich those who opened shops on Sunday paid their fines to Christ's Hospital. A parson who had incurred a penalty by suing for too much tithe was ordered to deliver to the hospital "60 combes of tanne[\[268\]](#)," and a man of St Albans obtained a license to keep an alehouse before anyone else on condition that he paid twopence weekly towards the support of a certain orphan[\[269\]](#). Akin to this method of raising money was the practice of persuading a man to take a town apprentice in return for the freedom of the town or some other privilege[\[270\]](#).

Soon after the accession of Elizabeth new methods began to be adopted, and a special scale of payments was fixed where the poor were concerned. In 1570 at Norwich the citizens neglected to give according to their ability and so compulsion had to follow. The basis of the first assessment was the old voluntary collection. If a new-comer arrived after 1576 he was taken to the mayor or his deputy and assessed by him at a suitable sum[\[271\]](#). In London also we have seen that the first assessment under the statute of 1572 was based on the payments formerly made, but the amounts were to be increased when there was any cause. In Ipswich also by 1579 there was apparently a special assessment for the poor, for it was then ordered that "all the persons in this Towne rated to pay to the poore, shall presently pay soe much mony as by computation his rate shall amount unto for one monthe and neverthelesse continue the paym^{ts} of their rates as they are rated[\[272\]](#)." It seems that in Ipswich the practice of levying poor rates according to the value of the house was already adopted.

Sometimes a large sum of money was raised at one time to form what was called a "stock." This fund was let out at interest to various people or invested in land and the sums arising from this interest or rent were used though the capital remained untouched. During the reign of Elizabeth the

various public bodies lent out a good deal of the money in their hands in this manner. In 1584 there was an inquiry into the management of funds so raised at Winchester and the bishop sent a declaration on the subject to the Council. Some of the money had been used for the poor in the parishes and some for the House of Correction. A hundred and twenty pounds had been given for the use of the poor in the parish of Twiford; this had been lent at the rate of ten per cent. and the £12 so obtained had been or was about to be distributed to the poor[273]. The large sum of £1009 had been spent on the House of Correction and no proper account was made. In future, however, the justices were to levy a rate on the parish so that no parish paid more than fourpence a week and so that the average amounted to twopence.

Thus we see that during this period all kinds of plans were tried. There was no attempt to enforce any theory that the required sum ought to be levied according to the value of lands occupied or according to the wealth of the payer. The authorities were sorely puzzled how to raise the money and adopted any plan that was likely to be successful.

4. The events of the years of scarcity 1594-1597.

We will now consider the events of the years of scarcity from 1594 to 1597, both so far as they concern the central Government and so far as they concern local officials. They are interesting both because of what the authorities did during these years and because of what they failed to do. The year from Sept. 1572 to Sept. 1573 was the last in which the average price of wheat was under 20/- a quarter. From 1594 onwards there was a succession of bad harvests owing to the excessive amount of rain. Wheat quadrupled in price, and barley and rye, which were the grains ordinarily used for the bread of the poor, rose nearly in the same proportion[274].

In 1594, the Privy Council ordered the reissue of the orders of 1587, and the justices were directed to meet together that they might devise means of putting them in execution[275]. In 1595 further efforts were made to enforce these instructions of the Government. The justices dwelling near London were called to the Star Chamber, and an oration was delivered to them by the Lord Keeper, which had been committed to him by the Queen herself without any direction from the Council[276]. He stated that the old custom of making an oration at the beginning of term had been discontinued heretofore, "but now, considering the presente scarsitye her Ma^{tie} of her own speciall care and regarde to her louinge subiectes hathe gyven in

charge to us^[277], to delyuer in this place her owne speciall direction for the redresse hereof." The justices were to overlook "the certificates in former times made accordinge to some former orders in that case provided" and were to punish the offences of "corne maisters and mongers" with great severity. They were to go to the markets and persuade the farmers to bring their corn, and if need be "to use there authoritie therein." They themselves, assisted by all those of the better sort, were "to make a somme of monie" and therewith to buy corn to be sold in every market without any profit. Moreover the justices were to repair to their country homes and maintain a hospitable house. The Lord Keeper also complained that there were too many justices, and Her Majesty "therefore like a good huswyfe looking unto all her houshold stuffe" had herself marked the names of some who were no longer to continue in the commission. Those that remained were to look to the execution of the statute of retainers, to the keeping of "waches for the punishing of rouges and idle persons," and "were to exercise Justice with a Herculean courage^[278]." At the same time the Council sent orders to some particular justices. In 1595 they apparently sent to the justices of Devonshire and advocated selling corn underprice to the poor: the justices reply there was no need for such a step for the markets are well furnished and the price falling^[279]. But as a bad harvest again followed the distress became worse. In 1597 the Lord-Lieutenant also wrote to the Devonshire magistrates commending the relief of the poor to their especial care, and this time the Court of Quarter Sessions immediately issue orders for their relief. The Constables were to "take a view" of all the poor and of all the wealthy people in the district and to report the result to the justices. One, two, three or more people were to have one or two meals given them every day by each householder. If the householder failed the justices might make an order for a payment, not exceeding eighteenpence a week "for every pole." In addition a special rate was to be imposed for setting the poor to work^[280]. Moreover the Lord Chief Justice admonished the justices of Wiltshire in 1597 probably under instructions from the Council. The justices are ordered to see that the farmers "allowe one bushell in every quarter to be solde by the pecke and halffe-pecke to the poore at eightepence the bushell under the ordinarie price of the market^[281]"; they are also to take care that the markets are well supplied with corn.

The Earl of Bath received letters concerning the high prices of corn at Barnstaple and "he with other justices came to town, viewed the market and

set the price upon corn there, to wit wheat 9s., rye 6s., barley 5s., oats 2s., threatening the seller with duress if he sold for above that price^[282]." Very little grain was to be had even at high prices, and a Mr Stanbury was deputed to go to London in order that he might help to purchase corn for the town. "God speed him well," writes Wyot, "that he may procure some corn for the inhabitants of this town in this time of scarcity, that there is but little cometh to the market and such snatching and catching for that little and such a cry that the like was never heard." Barnstaple was not, however, at the end of its troubles^[283]; in 1597 wheat was sold at 15s. and 20s. the bushel, and many of the inhabitants must have starved.

The Archbishops of York and Canterbury issued letters to the bishops of their provinces with directions designed to mitigate the sufferings of the poor. The usual collections for their relief were to be carefully made and were to be increased. The wealthy were "to use a greater moderation than heretofore in their diet" and were not to lessen the number of their households. Not only was everyone to fast on Fridays, but they were to do without their suppers on Wednesdays also, "to the intent that that which is by forbearance of that meal and at other meals, by abstinency from all superfluous fare, fruitfully spared, may presently, especially by the wealthier sort, be charitably converted to the relief and comfort of the poor and needy." The ministers and churchwardens were to send monthly certificates of the observance of these orders with the names of any who were negligent^[284]. We shall see that in Wakefield this Wednesday fast was observed and it is by no means improbable that these commands were actually enforced in other places.

The local authorities also endeavoured to remedy the evil. The proceedings of the Bristol Corporation illustrate the sudden rise in price and the great need there was for measures of relief. In 1594 the Mayor, Francis Knight, laid out money "to provide corn for the common sort of people," and by his means corn was brought from Danzig to Bristol. One of the aldermen also, a Mr Thomas Aldworth, spent £1200 in corn and brought a certain quantity into the market every day. Next year the scarcity continued, and in November a Mr Whitson was asked to buy corn for the Corporation. He did so and arranged that 3000 quarters of rye should arrive in May, 1596, and cost 28s. the quarter. But the Mayor alleged the corn was too dear and the Corporation would pay but half of Mr Whitson's charges to London and

would only agree to buy half the rye. "But so it fell out, that when the said rye was arrived in Bristol, it was well worth 44s. a quarter and more. And then the said Mayor and Aldermen intreated to have the whole bargain and would pay Mr Whitson 50*l*. for his charges and running the adventure of the bargain, whereupon after some persuasion he (being of a good nature) consented." The corn was badly needed and within twenty days was sold at 6s. a bushel, though even that sum was under the market price. The Corporation gained £774 on the bargain and many pecks and half-pecks were given to the poor.

Still this corn lasted but twenty days, and during 1596 and 1597 corn was sold in Bristol at 7s., 8s., 12s., 16s., and according to one authority even 20s. a bushel. Under these circumstances the poor could not live, and it was decided by Mayor and Council that every alderman or any burgess, that had any property, should every day give one meal of meat to the poor people who were out of work. Some were to feed eight persons, and some only two, according to their ability. "Whereby," says the chronicler, "the poor of our city were all relieved and kept from starving or rising." The justices seem to have been vigilant in other directions also; they would allow no grain to be exported and ordered that very little malt should be made^[285].

In London the difficulty was great: in 1594 Lord Howard sent up three ships laden with corn that the inhabitants might have bread, and in 1596 twenty ships carrying grain arrived from the Low Countries^[286].

This grain may have been used for the whole country. An old chronicler of Shrewsbury relates that in 1596 "there was provision made by the bailiffs and aldermen of Shrewsburie with the commons for corne at London which cam from Dansicke, Denmark and those foren places to ease all England, and especially London. There was provided about 3,200 bushels for this town: it came by way of Brestow, and was sold to the commons after the rate of 8s. the bushell of rie, which was in the market at 12s. and better: and wheate at 14s. and 15s. Also there was prepared to be baked of the said rye 40 bushells weekely by the towne bakers in peny bredd, two peny, three peny, and foure peny breed for the poore to have it who were not able to by any bigger portion. They were so unruly and gredie to have it, that the baylyffs, sixe men and other officers had mutche adoe to serve them. The God most mightie send plentie that his chosen flocke perrishe not, and dy

for want as many in all contreis in England die and goe in great numbers myserably a begginge[287]."

It would appear that this kind of provision was usually made in large towns, for one of the charges in a complaint brought against two Newcastle aldermen was that of making no provision of corn for the poor. The complaint was addressed to the Privy Council by the discontented burgesses of the town of Newcastle and could hardly have been made unless it were generally recognised that it was one of their duties[288] to provide a store of this kind.

How great the distress in Newcastle was at this time may be gathered from the bare statements of the town accounts.

"Sept. 1597. Paide for the charges of buringe 9 poore folkes who died for wante in the streets, for their graves making 3s.

"Oct. 1597. Paid for the charge of buringe 16 poore folkes who died for wante in the strettes 6s. 8d.[289]."

If a few people actually died of starvation many must have been nearly starved.

All this indicates that the existing organisation for the relief of the poor could not stand the strain of the continued distress of these years. There were disturbances and complaints in many counties and a disposition to lay the blame on the increase of enclosed land. The Dean of Durham writes that the poverty of the country arises from decay of tillage owing to the number of enclosures. The poor this year could neither pay their landlords nor sow their corn, while many had to travel sixty miles to buy bread[290].

There was trouble too in making men obey the orders for the help of the poor. Some were punished for ingrossing corn or for converting cottages into tenements[291], while one man seems to have been rebellious altogether: "They are knaves ... my goodes are my nowne," he said, "they nor the queene nor the Councelle have to doe with my goodes, I will doe what I liste wth them." The Court of Star Chamber sentenced him to be fined £100, to be imprisoned, to wear papers, confessing his fault and "to be bound for his good abearing[292]."

From Dorset and Wilts we hear rumours of discontent^[293], and in Oxfordshire and Norfolk there were actual insurrections. The Oxfordshire rebels themselves say that they rose because of the sufferings of the poor and the high price of corn. Although Sir William Spencer, one of the gentlemen who had enclosed land, reported that the rebellion was not begun by the poorer sort of people, Lord Norris wrote to the Council, "I want your commission and some order to be taken about enclosures on the western part of the shire where this stir began, that the poor may be able to live^[294]." It is thus evident that poverty had something to do with the insurrection. One of the Norfolk rioters said he had heard that the poor were up in the west country, and that four or five of his neighbours would go to a justice of the peace and desire to have corn cheap; if they could not get it reasonably they would arise and get it by force, and if they did arise they would knock down the best first; "they stayed onely butt for a drum^[295]."

A letter from a Somersetshire justice, Mr Edward Hext, to Cecil gives a vivid picture of the disturbed state of Somerset. One hundred and eighty-three persons were to be set at liberty from the Sessions in the year 1596, "And of these very few came to any good; for none will receive them into service. And, in truth, work they will not, neither can they without most extreme pains, by reason their sinews are so benumbed and stiff through idleness that as their limbs being put to any hard labour, will grieve them above measure: so as they will rather hazard their lives, than work. And this I know to be true: for at such time as our Houses of Correction were up (which are put down in most parts of England, the more pity) I sent divers wandering suspicious persons to the House of Correction: and all in general would beseech me to send them rather to the gaol. And denying it them some confessed felony unto me; by which they hazarded their lives; to the end they would not be sent to the House of Correction, where they should be forced to work." He estimates that only the fifth person that commits a felony was brought to trial, for "most commonly the most simple country man and woman ... are of opinion that they would not procure any man's death for all the goods in the world." He thought the Egyptians were not so dangerous for there were only thirty or forty in the shire while there were three or four hundred sturdy rogues^[296]. Mr Hext wrote in a time of famine when the poor were on the verge of starvation and when the west part of the neighbouring county of Oxfordshire was in insurrection.

This letter thus confirms the inference we should draw from the state of Oxfordshire, Norfolk, and Durham that on the whole the organisation for the relief of the poor was still insufficient. The public opinion of the time seems to recognise that there was a close connection between the bands of vagrants and the recent enclosures. Men like Lord Norris, the Dean of Durham, and Francis Bacon saw that if the agricultural changes were ultimately good for everyone, in the meantime they were bad for the poor; it was clear that many people had been without sufficient food, and the many insurrections of the time showed that this condition of things was dangerous to the peace of the country. The distress of these years thus brought vividly before men of the time the evils and the danger of the existing economic condition of the very poor, and the resulting awakening of public opinion was probably the chief factor in the creation of the better legislation and more efficient administration of later years.

A pamphlet written in 1597 by Henry Arth gives us considerable insight as to the contemporary ideas with regard to the relief of poverty, and also as to the extent to which the law was executed at the time^[297]. The writer makes a list of the various classes included under the term "poor"; he uses the word to include those who require either relief or coercion from the public. He mentions both "such as are yong and lustie yet unwilling to labour," and "such as bee overcharged with children having nothing to maintaine them but their hand labour." It is in this sense that the word is most frequently used at the time. Arth goes on to enumerate the causes of poverty, the sins of the poor and the actions of the "poore makers." The poor were accused of idleness, wasting their goods in "bibbing and belly cheare," discontent and "seldome repairing to their parish churches to heare and learne their duties better." The sins of the "poore makers" throw more light on the economic changes of the time. Amongst these are mentioned the "importable oppression of many landlords," the "unconscionable extortion of all usurers," the "unsatiabable covetousnesse in cornemongers," "the discharging of seruants and apprentices," and the "want of execution of good lawes and statutes." Magistrates fail to execute the laws, ministers fail to admonish them, and so "the most do live in disorder." But there are exceptions. The "strangers" in London "may be a patterne in these respects to all our English nation," for they keep all their fellow-countrymen from idleness and begging, and find work and wages for their unemployed. If any of them become poor "their state is imparted unto their company, and then

commonly they abstaine one meale on the next Lordes day and give the price thereof towards the parties maintenance." Moreover some well-disposed English people did their duty in the matter. In some districts a man "shall see not one begger asking any almes (except one or two that keepe the common box according to the order) to take the benevolence of trauellers and strangers so well are the statutes observed in those places."

Wakefield, where the writer lives, is one of these districts, "though the poore be many and needy yet thus much I may speak to my knowledge that if any be pinched with penurie the default especially resteth in themselves though some other persons can not be excused. For, (to the prayse of God bee it spoken) there is not onelie a house of correction according to the lawe, but withall, certain stockes of money put forth into honest clothiers' handes who are bounde with good sureties to set all the poore to worke, after five pence or sixe pence a pound of wooll spinning (as they shall deserve) if they will fetch it.

"For the impotent poore in every streete, they haue beene considered of (by the most able and forward men of that towne) and a generall ceasement voluntarie made for their supplie weekelie, which by confirmation of her Maiesties justices is still kept of euerie able householder, besides the Wednesdayes Suppers, for the which the Church-wardens take paynes accordingly, wherein if euerie one woulde discharge that dutie required of her Maiestie to let the poore haue the full benefite of their sayde suppers, there should not one person haue cause to begge there for all this deare yeare. As for the yonger sort, fitte to learne trades and occupations there is order taken to put them to apprentisshippe or otherwise to seruice."

From this pamphlet we see therefore that the law was sometimes well executed in particular places although as a rule it was negligently enforced. This view of the matter is confirmed by the rest of the evidence concerning the period from 1569 to 1597. It is the period of the growth of legislation and of the machinery of administration, but the working together of the whole system was also locally successful. At Reading, St Albans, Norwich, Leicester, York and Ipswich there is abundant evidence to show that many steps were taken to relieve the poor, while in Gloucester also we can see that increased action was taken in this direction, and that the statute of 1572 was more vigorously enforced than its predecessors. The City controlled the two hospitals of St Bartholomew and of St Margaret^[298] and the

corporation yearly elected a president, a treasurer, two surveyors, two almoners and two scrutineers to look after them. For certain years the accounts of Governor, Treasurer, Almoner and Scrutineer of St Bartholomew's still exist[299]. Before 1569 the house of the White Friars had been made into a House of Correction. For three parishes the accounts of the collectors of the poor exist for the years 1572-3 and for five other parishes for one or more of the succeeding ten years[300]. It would thus seem that the statute of 1572 was put regularly in execution in Gloucester and that this was the first statute that was thus regularly enforced.

There is comparatively little evidence during the period of the proceedings of justices of the peace in the country, but we have seen that Mr Sands in Parliament and the justices themselves in their report to the Privy Council tell us that in Worcestershire every man was relieved at his own home. We have also seen that several Houses of Correction had been established and that their value as part of the organisation was recognised. It is thus clear that in many places the local officials were being trained to their duties, and that the statutes were really put in execution, not completely or everywhere, but still to some extent and in many places[301].

In Parliament legislative experiments were still tried, and many of the men in Parliament, as justices of the peace or as members of the Privy Council, were obtaining experience of the practical working of the law. At the beginning of the period more stress was laid upon repression than upon relief. But the events of the years of scarcity brought home to the minds of most people the weakness occasioned by the partial execution of the existing system. In most places it could not stand the strain. The fact that the difficulties of the poor were partly due to enclosures and not only to the idleness of the sturdy vagrant was fully recognised. The danger of the distress of the poor was also apparent: some rose in insurrection, many others, like the Norfolk peasant, "stayed butt for a drum," all must have greatly suffered. Consequently the whole question was re-opened, a statute laying stress on relief was produced and a more efficient organisation was made possible. A system of public poor relief could not be suddenly established in a country like Elizabethan England. It had its basis in the recognised local custom of parochial collections, and the growing sense of municipal duty in the matter. Still, but for the development of the action of the Privy Council, but for the growing experience of members of

Parliament, and but for the training of local officials and of the general public during these years, probably the conception, and certainly the execution, of the act of 1597 would have been impossible.

CHAPTER VIII.

PARLIAMENT AND THE PRIVY COUNCIL.

1597-1644.

1. Characteristics of the period.
2. Legislation from 1597 to 1644.
Administrative machinery.
3. Action of the Privy Council before 1629.
4. Action of the Privy Council after 1629 with regard to the provision of corn.
5. Action of the Privy Council after 1629 with regard to the unemployed.
6. The Book of Orders as a whole and the royal commission of 1630/1.
7. Interference with wages as a method of helping the poor.
8. Summary.

1. Characteristics of the period.

The years between 1597 and 1644 are in many respects a unique period in the history of English poor relief. A great deal of evidence exists, which seems to indicate, that in many places during some of these years the whole of the Elizabethan poor law was put in execution: that is, work was provided for the unemployed as well as relief for the impotent.

After the Civil War a part only of the system survived. There are thus grounds for believing that never since the days of Charles I. have we had either so much provision of work for the able-bodied or so complete a system of looking after the more needy classes when they were suffering from the effects of fire, pestilence and famine. For this reason alone the history of the poor at this period is especially interesting, and it is also at this time that the history of the poor is more directly connected than usual with the history of the nation as a whole.

We will trace as in the preceding periods the history of legislation and of the action of the Privy Council. But the relief of the poor is a matter which can only be efficiently administered by men who have a great knowledge of detail. The action of the Privy Council would have had very little effect unless there had been an efficient system of local government.

We will therefore examine the local machinery of administration as well as the central and will see what kind of work was done by judges, justices and overseers in regard to the relief of the poor. We shall then know who did the duties with regard to relief now performed by the Local Government Board, Boards of Guardians, magistrates, and relieving officers.

We must then regard the system of poor relief from another point of view and see what kind of relief could be obtained both in the country and in the towns by the different classes of poor. This will include the help afforded to the whole of the poorer population in years of scarcity as well as the means that were taken in ordinary times to pension the old, to train and maintain children, and to find work for the unemployed.

Lastly we will endeavour to determine when and where the administrative machinery was really set in motion and how far the relief afforded to the different classes of poor was given all over the country. The answer to these questions will enable us to see why it is that in England poor laws were not only made but administered, while in some other countries they were not administered even after they had been made.

2. Legislation from 1597 to 1644.

The work accomplished with regard to the poor by Parliament was unimportant during the period from 1597 to 1644 but some slight changes were made in the law. It was in 1601 that the statute on which our system of poor relief has since rested was passed in its final form. This law, known as the 43 Eliz. c. 2, is often regarded as inaugurating new methods of dealing with the poor, but as a matter of fact few important legal enactments have initiated fewer innovations. It is simply a re-enactment with very slight alterations of the statute of 1597-8. The clause of the statute of 1597 which declared all beggars to be rogues if they asked for anything more than food was omitted in 1601, while the liability of parents to support their children, imposed in 1597, was in 1601 extended to grandparents also. Otherwise the slight differences between the two Acts consist chiefly of modifications of detail,

designed to render certain doubtful points of law^[302]. This statute of 1601 was itself only passed as a temporary measure but it was continued by the Parliaments both of James I. and of Charles I. It remained by far the most important regulation concerning the relief of the poor until the Poor Law Amendment Act of 1834^[303], and is in force as the basis of our system of Poor Relief at the present day.

In comparison with this statute all other legislation of the period on the subject is of small importance, but several additions were made to the law, and in four cases these contain provisions which supplement the system of relief ordered by the principal enactment of 1601. The first of these concerns maimed soldiers and was also passed in 1601^[304]. The two former statutes on the subject, 35 Eliz. c. 4, and 39 Eliz. c. 21, were repealed, but the provisions of both of them were practically re-enacted. A County Treasurer was to be elected who was to pay pensions to those who had been wounded or maimed in the wars. The money was to be raised by a county rate levied on the parishes as formerly provided, but the amount that might be so raised was now increased to an average of sixpence weekly from every parish with a maximum of tenpence from the most highly rated parishes. Another enactment relating to the relief of the poor was the 43 Eliz. c. 4. This was likewise passed in 1601 and substantially re-enacts a statute of 1597 (39 Eliz. c. 6). It provides for inquiries into breaches of trust by means of writs directed by the Lord Chancellor to the bishop of the diocese. The list given of the kinds of charity affected shows how great and varied was the endowed almsgiving of the time. Some funds had been assigned for "reliefe of aged impotent and poore people; some for maintenance of sicke and maymed souldiers and marriners schooles of learninge, free schooles and schollers in Universities; some for repaire of bridges, portes, havens, causwaies, churches, sea bankes and highwaies; some for educacon and prefermente of orphans; some for or towardes reliefe, stocke or maintenance for howses of correcon; some for mariages of poore maides; some for supportacon, ayde and helpe of younge tradesmen, handicraftesmen and persons decayed; and others for reliefe or redemption of prisoners or captives and for aide or ease of any poore inhabitants concerninge paymente of fifteenes, settinge out of souldiers and other taxes^[305]." In both years in which the great poor laws were passed, in 1597 and in 1601, a statute of this kind was authorised. The fact indicates that Parliament desired to maintain and strengthen the older voluntary

system of charity in order that it might work concurrently with the newer organisation now growing up. A third measure relating to the relief of the poor was passed in 1603 and provided that a special rate might be levied for the sustenance of those infected with plague; the rate in this case was to be levied, not only from the parish but from the whole of the surrounding district[\[306\]](#).

But the fourth regulation of this kind is the most important. It was passed in 1609-10 and concerned the building of Houses of Correction. The Bill introduced on this subject in 1597 had been rejected after much dispute and discussion and in its place the statute "on rogues" had been hastily passed; this had repealed all the old regulations concerning Houses of Correction and although it gave the justices the power of levying a rate for the establishment of such institutions it had not compelled them to use the power. The law therefore on this point was much less exacting in its requirements than that which had previously been in force. The new enactment of 1609-10 therefore provided that one or more Houses of Correction must be erected within every county. It is here laid down that these houses were to be used to set "rogues or such other idle persons on worke," and no mention is made of the deserving unemployed[\[307\]](#). This therefore probably marks the time when Houses of Correction ceased to be half workhouses and became very much more like gaols.

Thus while the law of 1601 is the basis on which relief was given during the period, additional provision was made during the next ten years for the assistance of maimed soldiers and of persons infected with plague, and for the building of Houses of Correction[\[308\]](#).

Before leaving the statutes it is perhaps worth while to notice the proviso that exists in so many of them in favour of John Dutton. The lord of Dutton claimed jurisdiction over the minstrels of Cheshire. In the reign of John, the Earl of Chester was imprisoned by the Welsh in Rhuddlan Castle. He sent for aid to Roger de Lacy then the Constable of Cheshire. It was the time of Chester fair. De Lacy collected a multitude of the shoemakers, fiddlers and loiterers who were in the town and with this force released the Earl. For this he obtained a grant for himself and his heirs of jurisdiction over minstrels and over disorderly characters in Cheshire. In 1216 this privilege was granted by John de Lacy to Hugh Dutton and remained in the hands of the lords of Dutton through the sixteenth and seventeenth centuries. It was the

custom for the lord of Dutton to hold a Court at Chester on Midsummer day and in 1498 he received from the whole body of minstrels four flagons of wine and a lance with fourpence halfpenny from each of them. A Court of this kind was held as late as 1756[309]. In nearly all the statutes concerning vagabonds until that of 1822, the rights of John Dutton's heirs were preserved, so that in the seventeenth century the minstrels of Cheshire, licensed by the lord of Dutton, might wander without fear of the penalty inflicted on wanderers elsewhere,—a curious but direct consequence of an incident of border warfare in the early part of the thirteenth century. Few facts illustrate better both the continuity of English history and the toleration of anomalies by English law than this perpetuation of the quaint jurisdiction of the house of Dutton for more than six centuries.

Some of the legal handbooks throw considerable light on the way in which these statutes were interpreted. In the seventeenth century "The Countrey Justice" was one of the most popular of these books. The writer, Michael Dalton, defines the meaning of the term "poor." Like Arth, he divides the poor into three kinds, "the poore by impotency and defect," the "poore by casualty," and the "thriftlesse poore." This classification was common at the time and dates back to the reign of Edward VI. The "poore by impotency and defect" included the aged and decrepit, the orphan child, lunatic, blind or lame people, or those who were diseased. The term "poore by casualty" meant maimed people, householders who had lost their property owing to loss from "fire, water, robbery or suretship, &c." and poor men "overcharged with children." Among the "thriftlesse poore" were included "the riotous and prodigall person that consumeth all with play or drinking," dissolute and slothful people, those who wilfully spoil their work, and vagabonds who will abide in no service or place. The "poore by impotency" were to be provided with enough to sustain them properly; the poor by casualty were to be "holden or set to work by the overseers," and further relieved according to their need, but the thriftless poor were to go to the House of Correction. None of these last, he says, are to have relief from the town for that "were a meanes to nourish them in their lewdnesse or idlenesse which take it, to rob others of releefe that want it, to wrong those of their money that pay it, and to condemn them of oversight which dispose it[310]."

So far the requirements of the law are similar to those of to-day, but some of Dalton's instructions remind us of the difference between the Elizabethan poor law and that of our own time. The poor law was originally part of a paternal system of government: gentlemen were ordered home to their estates, farmers were required to bring their corn to market, cloth manufacturers had to carry on their trade under well-defined regulations, and merchants were obliged to trade in the manner which was thought to conduce most to the good order and to the power of the nation. Workmen also were ordered to work whether they liked it or not, and, if the law were enforced, had to accept the wages fixed by the justices. Dalton therefore goes on to quote another clause of the poor law which has long fallen into disuse. The overseers were to set to work "all such persons (married or unmarried) as having no meanes to maintaine them, use no ordinary and daily trade of life to get their living by^[311]." If they refused the work appointed them they were to go to the House of Correction. Moreover those who refused to work for the wages commonly given and had not "lawfull meanes to live by" were not to be sent to the parish where they were legally settled but were to go to the House of Correction "upon consideration had of both the statutes of the poore and rogues^[312]." Already any man between twelve and sixty who had not property and was not a skilled workman might be compelled to serve in husbandry by anyone who wanted a workman^[313]. The poor law went a step farther. Not only might an employer require an unemployed workman to work for him but the overseers were obliged to see that he was employed. Occasionally something seems to have been done to put this clause of the statute into execution. Thus in a charge given to the overseers of a division in 1623, these officials were ordered to give the names of those refusing to work to the justices in order that the offenders might be sent to the House of Correction. Moreover they were also commanded "that uppon every Satturday at night or Sunday morninge they fayle not to enquire and take knowledge what labour and work they" (the workmen) "are provided of for the week followinge to the end that if any be unprovided of work they may [therewith] be supplied by the overseers who for that purpose are to enquire for worke for them and to provide materialls for the men that are olde and weake and for the women and children^[314]." In other cases we hear of men being punished for "living idly," and maintaining themselves "none knowes howe^[315]"; and one of the regular items in the reports returned to the Book

of Orders of 1631 concerned the number who lived out of service^[316]. The existence of this part of the law and its occasional enforcement reminds us that the poor law once formed part of an economic system entirely different from our own, in which not only paupers, but everyone had to do what the government commanded on conditions settled by authority.

3. The action of the
Privy Council before
1629.

We will now turn to the administration of the law and we will first see how this was influenced by the central government. This action of the central government is important. In London, in Worcester and in Norwich we have seen that the local administration was at one time successful, but it tended to become slack when its original founders in county or borough were followed by less vigorous successors. Without steady and continuous pressure from a central authority on the local officials it seems probable that in this period, as in the preceding century, the laws concerning the poor would never have been energetically executed in the greater part of England. It is this pressure that was supplied by the increased activity of the Privy Council.

We will first examine a few instances of the Council's action before 1629, and we will then trace its policy from 1629 to 1644.

Between 1597 and 1629 the orders in Council and royal proclamations do not differ greatly from those of the previous period; they still enforce indirect measures for the relief of the poor by means of an organisation for supplying the markets with corn and keeping the price more uniform. After 1597 however the orders which relate also to the ordinary relief of the poor by means of pensions for the old and work for the unemployed became of greater relative importance, and during the crisis of 1622-3 they were much better enforced.

Thus almost immediately after the passing of the poor law of 1597 efforts are made by the Council to secure its proper administration. On April 5th, 1598, a letter is sent by the Council to the High Sheriff and the justices of the peace in the several counties of England and Wales. The writers do not doubt that the Judges of the Assize have admonished the justices that special care must be taken to execute the laws for the relief of poorer people and maimed soldiers as well as the laws connected with vagabonds and tillage. "Nevertheless," they go on to say, "consideringe the remisseness that hath bin used generally by the justices of the peace in manie parts of the

realm" they send a letter themselves directly to the justices and order that care be taken to see the new poor law "generally put into execution[317]." The writers order the justices when they meet in Quarter Sessions after Easter to take "speciall order amongst" themselves "for one strict and uniform course to be houlden for the due observinge and puttinge in execucon of the same lawes and statutes." They were also to meet from time to time and make the under officers give an account of their proceedings. This letter shows the Privy Council enforcing the whole of the ordinary administration of relief by exactly the same means that had formerly been used to enforce the measures concerning corn and vagrants in 1572 and 1586. It is the first time in which this interference seems primarily dictated by motives of humanity and not mainly by a desire to maintain order.

Again in 1603 during a time of plague proclamations were issued ordering the punishment of rogues, and the return of gentlemen to their homes, in order that they might relieve the poor by their ordinary hospitality and might take action for preventing the infection of the plague[318].

In 1608 a series of measures concern the supply of grain to the poor. In 1607 there had been serious disturbances in Northampton and elsewhere on account of enclosures. The harvest in 1608 was bad and the Council appear to have feared further disorder. They were careful to issue a book of orders containing regulations similar to the orders of 1587 and 1594. Two proclamations followed. The first commanded the careful execution of the Book of Orders and the return of gentlemen to their households[319]; the second prohibited the making of more malt than was necessary "in order that the poor may have sufficient store of barley to make bread for their sustenance at reasonable prices in this time of scarcity of wheat and rye[320]." In 1608, however, the price of barley was not much affected and the action of the Council was discontinued.

In 1621 to 1623 the sufferings of the poor were much more serious, and the measures of the Council concerned both the supply of corn and the direct relief of the poor.

As early as January 1619/20 a commission was drawn up for the due execution of the laws for the relief of the poor in almost exactly the same terms as that of January 1630/1[321]. Apparently the distress was then due

chiefly to the beginning of a crisis in the cloth trade, for in May 1620 an inquiry was ordered into the decay of cloth-making in Wiltshire[322]. During the three following years the poverty of the poor increased.

The harvests of 1619 and 1620 had been exceptionally favourable, those of 1621 and 1622 were unusually bad[323]. In Somerset four or five hundred people assembled and took corn from those that carried it to market, and in many other parts of the country there were similar disturbances[324].

The Council adopted the usual methods; the Scarcity Book of Orders was amended and reissued, and two proclamations were drawn up ordering the restraint of maltsters and a reduction in the number of alehouses; the proclamation of October, 1622, expressly states that this was done because "barley is in time of scarcitie the bread-corne of the poore[325]."

Besides this the special commands addressed to the country gentlemen to return home were more emphatic than in former times, especially at Christmas in 1622. Their presence was necessary for two reasons. English gentlemen still kept great households and relieved many by their hospitality, and they also were expected to maintain order in their districts. They furnished information to the Government, arranged measures of relief for the poor and, if necessary, quelled and punished disorder. James I. had a great idea of their importance: he is credited with the remark to the effect that a country gentleman in town is like a ship at sea, which looks very small, while a country gentleman in the country is like a ship in a river, which looks very big. In 1622, therefore, two proclamations were issued ordering gentlemen to return to the country.

In the earlier of these one of the reasons for the regulation is stated to be because of "inconveniencies which of necessity must ensue by the absence of those out of their countries upon whose care a great and principall part of the subordinate government of this realme doth depend[326]." In the second the king expressed his pleasure that so many had obeyed, and his displeasure with those who remained in London because he was "perswaded that by this way of reviving the laudable and ancient housekeeping of this realme the poore and such as are most pinched in times of scarcity and want will be much releevd and comforted[327]."

From a letter written in 1622 we find that the country gentlemen were by no means pleased at leaving the pleasures of Court; and "divers lords and

personages of qualitie," we are told, "have made meanes to be dispensed wthall for going into the countrie this Christmas according to the proclamation but yt will not be graunted, so that they packe away on all sides for feare of the worst, yet the L. Burghley hath found favor in regard of his father's age and weakenes[328]." The king was, however, firm in most cases, and not only issued the second proclamation in Dec. 22nd, 1622, but by a third in March 1623[329], continued the regulations, so that it is clear this measure was considered important and was found successful.

But in 1622-3 the orders of the Council do not only provide for the supply of the markets with corn. The poor were as much distressed by want of work as by the high price of bread. For some years there had been depression in the cloth trade, partly owing to the outbreak of the Thirty Years' War, and partly to the small amount of coin which was in circulation in England. In 1622 the Spanish ports also were closed to English cloth. The merchants and manufacturers found that heavy stocks were on their hands and ceased to employ the workmen. As in 1527 and in 1586 the lords of the Council tried to remedy the evil by forcing the employers to find work for their men. In Feb. 1621/22 they sent to the justices of ten of the clothmaking counties. They say letters have been written to them setting forth the "decay of cloathing and the great distresse thereby fallen upon the weavers, spinners and ffullers in divers counties for want of worke." They recognise that so great a trade cannot always proceed with equal profit, but upon it the "livelihood of so many poore workmen and their families dependeth" that they let the justices know that they have taken a course with the merchants for the purchase of the cloths in the clothiers' hands, and "we hereby require yo^u," they write, "to call before yo^u such clothiers as yo^u shall thinke fitting and to deale effectually wth them for the employment of such weavers, spinners and other persons as are now out of worke. Where wee maye not omitt to let yo^u know that as wee have imployed o^r best endeavo^{rs} in favo^r of the clothiers both for the vent of their cloth and for moderation in the price of wooll (of w^{ch} wee hope they shall speedily find the effects). Soe may wee not indure that the cloathiers in that or any other countie should att their pleasure and wthout giving knowledge hereof unto this Board, dismisse their workefoelkes, who being many in nomber and most of them of the poorer sort are in such cases likely by their clamo^{rs} to disturbe the quiet and governement of those parts wherein they live. And if

there shalbe found greater numbers of poore people then the clothiers can reviuē and imploy, Wee thinke it fitt and accordingly require yo^u to take order for putting the statute in execution, whereby there is provisione made in that behalfe by raising of publicke stockes for the imployment of such in that trade as want worke. Wherein if any clothier shall after sufficient warning refuse or neglect to appeare before yo^u or otherwise shall obstinately denie to yeeld to such overtures in this case as shalbe reasonable and iust, yo^u shall take good bonds of them for refusing to appeare before us and immediately certifie their names unto this board."

The Council also say the woolgrowers must sell their wool at a moderate price, and finish up with the statement of the general principle on which they act. "This being the rule," they say, "by w^{ch} both the woolgrower, the cloathier and merchant must be governed. That whosoever had a part of the gaine in profitable times since his Ma^{ty} happie raigne must now in the decay of Trade ... beare a part of the publicke losses as may best conduce to the good of the publicke and the maintenance of the generall trade[330]."

This high-handed proceeding on the part of the Government might have been successful if the slackness in trade had been of very short duration. But in this case the crisis continued, and the employers were soon in as bad a plight as their men. The Suffolk justices state that in twelve towns out of two hundred the manufacturers have lost over £30,000 by bankruptcies, and in twenty towns only have cloth unsold worth £39,282. The employers cannot employ the men in clothmaking, but the justices will do all they can to relieve the industrious poor[331]. The reply of the Gloucestershire justices is to much the same effect: they add that the people begin to steal and many are starving. The Judges of Assize also say they have interviewed the clothiers of Gloucestershire, and have persuaded them to keep on their men for a fortnight: they were utterly unable to do so for a month[332]. The harvest of 1622 was again a failure and the distress increased. In December the Council write to the justices of Suffolk and of Essex concerning some "disquiet likely to happen ... amongst the poor sort of people who wanting their usuall employ^t by reason of the badd vent of new draperies w^{ch} gives them their onely meanes of maintenance doe beginne to threaten unlawfull and disorderly courses to gett reliefe." They request the justices to use their best endeavours to maintain order and say that with "extraordinarie care"

they have taken a course for the relief of those suffering from extreme need. Early in the year 1623 a series of relief measures were undertaken, possibly in accordance with the "course" settled upon by the Council. Special plans of selling corn to the poor under cost price were adopted, and efforts were made to find work for the unemployed. We shall examine the details of these reports later^[333], and will now only notice that they indicate a great improvement in the execution of the poor law; they also record a good harvest for the early crops of 1623 and an improvement in trade early in the year^[334].

This crisis of 1622 seems to mark a time of transition in the action of the Privy Council with regard to the poor. The Orders in Council were then more numerous and better enforced than those of any preceding period, though they were only continued for a short space of time, and seem to have ceased when the more pressing causes of disorder were removed.

4. The action of the Privy Council after 1629 with regard to the provision of corn.

Between 1629 and 1644 the interference of the Council is not confined to the years of scarcity but is continued for a long period of time. There are every year important entries concerning the poor in the Privy Council Register, and this fact seems to indicate that the attention of the Privy Council was thoroughly aroused, and that there was a determination to make the execution of the poor law a reality. The years 1629 to 1631 like those of 1621 to 1623 were years of high-priced corn and of a crisis in the cloth trade, and some of these Orders in Council in 1629-31 are of the same character as those of 1622-3. In 1631 however the interference of the Council is better organised than before and is continued until the outbreak of the Civil War. We will first enumerate a few of the measures relating to grain.

The first proceeding of the Government was to forbid the transportation of corn out of the country. In 1629 and 1631 proclamations were issued to this effect^[335]. In 1630 the export of beer also was forbidden^[336], so as to husband the barley as much as possible. The restrictions were extended to Ireland, a survey was ordered of the quantities of grain there, and it was found that there was a very good harvest. Exportation to foreign countries was prohibited, licenses already granted were revoked, and all corn not needed for Ireland was to be brought to England^[337].

At one time, moreover, an attempt was made to limit the export from county to county and to regulate the supply by means of licenses. Thus the bakers of London were to have the right of purchase for twenty miles round the City; Bristol had special license to buy in other markets and import by sea. Gloucester, Exeter, and London were allowed to buy in Cornwall, Tewkesbury in Pembroke, Carmarthen and Portsmouth in the Isle of Wight^[338]. But this system of licensing proved insufficient, and in April 1631 the justices of the home counties received general orders to remember that the transport of corn from one shire into another was not forbidden^[339]. The Government then recurred to the Books of Orders which were drawn up in 1587, and had been re-enforced in every season of scarcity since that time. In Sept. 1630 these orders were amended and reissued by Charles I. ^[340]; it is to this Book of Orders that the corn reports of the justices refer^[341]. These Orders we have seen work through the justices, and require justices' reports. In fact they establish the organisation for the provision of corn that was afterwards used for the relief of the poor.

One other method of the central Government is perhaps worth noting. Other laws connected with the poor were enforced, such as those relating to the suppression of beggars and the labour laws. But these times of famine were especially the times when inquiries were made about enclosures. The enclosing of land necessarily excited opposition when there was not corn enough. There were riots in Northampton and in other places in 1607-8, and in 1631 "a large number of rebels" pulled down fences in Braydon Forest^[342]. A great inquiry was made into the whole subject in 1609, and in 1631 also the justices return a few special reports upon enclosures, and sometimes make their answer a part of the report concerning the poor. In Appletree, Derby, very little land had been lately enclosed "for that the greatest parte of this hundred hath been enclosed long since^[343]," but in other cases a few new fences had been erected^[344]. There is enough to show that even in 1631 enclosures continued to be made and continued to excite the old opposition.

Thus the Council in 1629-30 endeavoured to minimise the amount of grain consumed, to secure a proper supply for the markets, and to see that all laws designed to benefit the poor were rigorously enforced. These measures are of much the same character as those of the sixteenth century, but the orders are much more detailed and much stronger in the parts designed to secure

efficient administration. They were better administered, and in the reports sent in by the justices we can see a marked improvement, and signs that the organisation which broke down in the sixteenth century was successful in the seventeenth.

5. Action of the Privy Council after 1629 with regard to the unemployed.

But after 1629 the Orders of Council relate to many other methods of relieving the poor. Some concern provision for the unemployed poor, others deal with the Royal commission and Book of Orders of 1631, and a few have reference to interference with wages undertaken by the Government with the object of relieving distress.

The want of employment in the cloth-making counties again became a serious difficulty at the beginning of the year 1629. It was partly connected with political troubles; the merchants refused to pass their goods through the Custom House in order to avoid paying exactions which they regarded as illegal. The clothiers therefore could not sell their cloths or continue to employ their workmen. Pressure on employers and merchants was a not infrequent way of helping the poor. The Council sent for the London merchants and thought they had persuaded them to buy the unsold cloths^[345], but apparently the merchants drew back; in any case "divers merchant strangers and denizens" were summoned, and on May 12th they are said to be "inclined" to buy the "bayes made at Braintree, Bocking, and Coxall^[346]." The privileges possessed by the Merchant Adventurers for the export of cloth enabled the Council to put especial pressure on the merchants when cloth was concerned. The threat had only to be made that the trade would be thrown open to foreign traders and the London merchants had to choose between competition from rivals or the loss involved in buying the stocks in the manufacturers' hands. In 1637 there was again depression in the cloth trade, and again the Merchant Adventurers were told that the trade would be thrown open if they did not buy the cloths^[347]. Moreover one of the last acts connected with the poor enforced by the personal government of Charles I. was of the same kind. At the outbreak of the Civil War the clothing trade was the first to suffer, clothmakers all over the country petitioned the king for help, and one of the few resolutions of the Privy Council entered between 1640 and 1645 was that the cloth trade should be thrown open to relieve the distress, and free

license to export be allowed at those seaport towns that remained faithful to the king[348].

Relief of the unemployed cloth-workers.

But this was only one of the methods in which the Council tried to aid the makers of cloth. Special orders were sent to the justices of Essex to cause adjoining parishes to help the districts where cloth was made, because these parishes were more charged with poor than the rest of the county[349]. Early in May, 1629, directions were given to the Deputy-Lieutenants as well as to the justices of Essex and Suffolk commanding them to see all possible measures were taken to restore order and relieve the poor. It was especially stated that the clothworkers were to be provided with work either in their own trade or in some other good and honest labour, and if that were impossible they were to be otherwise relieved[350].

Already the difficulty was not confined to the eastern counties, and on May 17th, 1629, a proclamation was issued entitled, "A Proclamation commanding the due execution of the Lawes made for setting the poore on work." The regulations for "the reliefe of the indigent and impotent poore, for binding out apprentices, for providing of stockes[351], and for setting the poore on worke," were to be "duely and carefully put in execution." The liability of the parish to provide funds, and afterwards of the hundred and of the county is recapitulated, and means are devised by which the duty may be performed. The "minister, churchwardens and overseers for the poore" were straightway to meet and take these matters into their consideration. They were then to report to the justices of the peace. These latter were to consult together in their several divisions, and at Quarter Sessions the necessary arrangements were to be settled. The judges on their circuits were to find out what had been done and were to make an exact report. Thus the Central Authority set in motion the whole local machinery for the execution of the poor law. The proclamation further ordered that great care should be taken in those places where there either was or should be any special occasion "to provide stockes to set the poor on work[352]."

Special commands again to Suffolk and Essex.

Some of the justices seem to have doubted whether they had legal power to themselves levy a rate for providing employment for the poor. A few days after the proclamation therefore a further letter is sent to the Deputy-Lieutenants and justices of Essex and Suffolk stating that in their part of the country there

was special need for care in matters concerning the poor, and therefore the writers again particularly remind them of their duty and let them know "that it is the resolucon of all the judges that by the lawe yo^u have sufficient power and ought to raise meanes out of the severall parishes if they be of abilitie, or otherwise in their defect in their severall hundrethes etc. to sett the poore on worke and to relieve the aged and impotent not able to worke[353]."

Another crisis of the same kind occurred in 1639 near the end of the personal government of Charles I. The same methods are employed; it is the western counties that are suffering most, and letters are written to the justices of Devon and of Exeter urging them to make special efforts to remove the more pressing necessities of the poor ordinarily employed in the cloth trade[354].

Summary.

Thus we see that during this period the Council put pressure on merchants in order that manufacturers might give their men work; a proclamation was drawn up by its advice giving strict orders for the relief and employment of the poor all over the country; and it insisted in several different ways that in the districts most affected work should be found and relief given. We can see by the circumstances of this crisis something of the nature of the difficulty which the Stuart statesmen had to meet. The social organisation was based on the assumption that the conditions were fairly stable; a poor man had the greatest difficulty, as we have seen[355], in going from one part of the country to another, and the apprenticeship laws were fitfully if not rigorously enforced, so that, if a man's own trade failed, there was little prospect of employment in another. In our own time a sudden falling off in trade causes great hardship to the workmen, and in the seventeenth century the hardship was thus far greater. The demand for manufactured goods was essentially unstable; the social organisation was based on an underlying assumption that work was stable. The introduction of manufactures would therefore cause peculiar hardship to the poor employed in them, if exceptional measures of this kind could not be enforced.

There are several other references in the succeeding years which refer chiefly or wholly to the action of the Council in enforcing provision of work for the unemployed[356]. But after January 1631, regulations of this kind formed part of the Book of Orders of that date, and the Register of the

Council, so far as it concerns the poor, relates chiefly to the Royal commission, then just appointed, or to the enforcement of the Book of Orders as a whole.

6. The Royal commission and Book of Orders as a whole.

As early as June, 1630, a special committee of the Council itself had been appointed commissioners for the poor^[357], but in January in the next year a further step was taken and a commission was issued to the chief people in the country. The minutes of a few of its meetings have been preserved, but these relate mainly to an inquiry into the administration of Mr Kendrick's charity at Reading^[358]. Its influence seems to have been very considerable, but to have been exerted not so much through the proceedings of the commission as a whole as through the appointment of local committees, and through the delegation of its powers for administrative purposes to various sub-committees. It had the power to ask for the appointment of local commissions, and it was in this way that it could most effectively deal with abuses in any particular district. Thus if there was a complaint of great distress or if charitable funds were not properly applied, a local commission was suggested. Such commissions were granted for Bury, Exeter, Colchester, for the parishes in and about London, and for Stamford in county Lincoln^[359], and would be a terror to evildoers in matters of charitable endowments.

But the commissioners not only delegated their powers by means of local commissions. For administrative purposes they divided themselves into groups, each consisting of six or seven commissioners. One of these sub-committees was attached to the counties of each circuit. Thus Wentworth was amongst those especially responsible for the Northern Circuit; Laud and Coke were assigned to that of Lincoln; Dorchester, Falkland and Bridgwater to the district round Shropshire; Abbot, the Archbishop of Canterbury, and Wimbledon to Kent; the Earl of Holland to Norfolk, and the Chancellor of the Exchequer to the west country^[360]. This division would immensely increase the administrative usefulness of the commissioners and was adopted immediately before the issue of the Book of Orders. It was therefore most probably connected with the system then established, and designed to enable the commissioners to bring their influence to bear on the judges, and through them on every justice in the county.

The Book of Orders was issued in January 1630/1. It is the most important of the measures connected with the poor enforced by the Privy Council. It was not the only document of the kind. We have seen that a Book of Orders for the prevention of scarcity was issued in the time of Queen Elizabeth, and was amended and re-issued in the reigns of James and Charles. This method of issuing a Book of Orders was now adopted for the relief of the poor at all times and not only in years of scarcity.

The Orders begin by stating that many excellent laws were in existence both for the relief of the poor and for the proper employment of charitable endowments; these for a short time after the making of the laws were duly executed, and that in some parts of the kingdom "where some justices of the peace and other magistrates doe duely and diligently execute the same, there evidently appeareth great reformation, benefit, and safety to redound to the Commonwealth." But they also inform us that in other parts of the realm there was now great neglect, and that these orders were therefore necessary. The orders and the directions were given separately; the directions order the enforcement of the regulations of the statutes such as those for the repression of beggary, the binding of apprentices, and the provision of both work and relief. They especially command energy in the matter within the jurisdictions of lords and at the Courts leet. Only two of them impose new regulations. One orders that the Correction houses in all counties should be made next to the gaol; the other has especial reference to the time of scarcity; rates were to be raised in every parish, and contributions were to be given by the richer parishes to help the poorer ones, "especially from those places where depopulations have beene, some good contribution to come for helpe of other parishes."

Eight Orders precede the directions; they prescribe the method of administration rather than what was to be administered, and it was this that was most important. The justices of every shire were to divide themselves so that certain of them were responsible for particular hundreds. They were to hold monthly meetings and to meet the constables, churchwardens, and overseers. From these they were to inquire what measures they had taken in every parish and to hear who were the offenders against the laws. The justices were to punish neglect, and were themselves to report every three months to the sheriff. The reports were to be sent on to the Judges of Assize, and from them to the Lords Commissioners, some of whom, as we

have seen, were especially responsible for every circuit. The Judges of Assize were particularly to inquire which justices were negligent^[361] and to make a report to the king.

It is not difficult to see that these Orders would greatly help the general administration of the law. Some trouble was found in executing them, but the Book of Orders formed the basis of the organisation for the relief of the poor for the years between 1631 and 1640. In April, 1632, we are told that much good has been done, but there are now signs of slackness. All the justices are to do their best and to make certificates to the judges^[362]. In October 1633 the returns had not been so well made, and the judges were asked to find out what justices were remiss^[363]. In May 1635 a letter was sent to the judges stating that many times they had received charge to see the Book of Orders put in execution. Still in most places the justices have been exceedingly negligent, and the judges are ordered to insist on their doing their work and returning their certificates^[364]. The effect of the Book of Orders we shall be more easily able to estimate later, but we can see from the entries made in these minutes of the Council itself how energetically its members tried to see that their directions were enforced.

Many regulations were made about particular places in time of plague, but to some extent this had been done in the reign of Elizabeth and it is not a new development in the policy of the Council. It will be sufficient to notice that frequent resolutions were passed on the subject, particularly in 1636, 1637, and 1638, and that many of these decisions take for granted a fairly efficient organisation for the relief of the poor in ordinary times^[365]. We shall have to consider these measures more in detail when we examine the provision made for the poor in time of sickness.^[366]

7. Interference of the Council with wages.

There are also several examples of the interference of the Council with wages with the object of relieving the poor. We have seen that in 1629 the cloth trade was depressed, and that the Lords of the Council endeavoured to insist that work and relief should be provided for the workmen out of employment. At the same time they also made efforts on behalf of those who were still employed. In July, 1629, they wrote to the Earl of Warwick and justices of Essex concerning the weavers of baize in the neighbourhood of Bocking and Braintree. Wages were already low, and the men hardly able to live by their labour, yet the employers were trying to force their workmen to make

a greater length of cloth for the same wages. "Wee thinke it very fit and just," write the members of the Council, "that they (the weavers) should receive such payment for their worke as in reason ought to be given according to the proportion thereof and also that the said Bayes which are woven in the saide countie are to be made of one length[367]."

In February, 1631, the weavers of Sudbury complained; a petition to the Council was presented on behalf of Sylva Harbert and others, saying the "poore spinsters, weavers and combers of wooll" were "much abridged of their former and usuall wages" by the clothiers, "who are now growne rich by the labours of the said poore people." The matter was referred to a committee with instructions to cause "orderly payment" to be made of the "due and accustomed wages.... And in case any particular person shalbe found either out of the hardnes of his harte towards the poore or out of private end or humo^r refractory to such courses as the said com^{rs} shall thinke reasonable and iust" he shall be ordered to appear before the board[368].

The employers stated that all of the trade had reduced wages, but that, if a general rule were made binding on all the employers, they would be willing to agree to give any wages which were thought reasonable[369]. A rate was fixed by an Order in Council, but the decision was not obeyed. Lawsuits were brought by clothier against clothier, until another attempt was made to settle the matter, and in 1636 Charles I. issued Letters Patent fixing the length of the reel and ordering that the wages of all the workpeople should be raised in proportion[370].

It is evident, then, that in 1629 the masters of Braintree and Booking were trying to take advantage of the competition of their workmen to force down wages, and that in this particular trade both then and afterwards the Council tried to prevent anything of the kind being done.

A bad harvest in 1629, followed by a worse in 1630, plunged not only the clothworkers but the whole labouring class into distress. Amongst many other measures calculated to relieve this scarcity the Council again interfered with wages in order to aid the whole body of workmen.

Wages had been legally fixed by law in various ways since the middle of the fourteenth century, and in 1563 it had been provided that the justices of the peace should every year fix the scale of wages according to the prices of

food, and other conditions of the workmen. It has been generally considered that these assessments were either ineffectual or were enforced in the interest of the employers and not that of the employed. But on September 29th, 1630, the Council ordered four letters to be written, directed to the justices of the peace of Cambridge, Norfolk, Suffolk, Essex, and to the mayor of Norwich, the contents of which clearly show that in this instance the Council interfered with the object of helping the poor. The people themselves had complained that the rates had not been properly made for them according to law; the Council thereupon write down to the justices and say that "these hard and necessitus tymes doe require some better care to be had in that behalfe; we have therefore thought good at this time to recommend the same to yo^r extraordinarie care. For the statutes of 5 Eliz. and 1 Jac. having so carefully provided against these inconveniences, it were a great shame if for want of due care in such as are speciallie trusted with the execution of these lawes, the poore should be pinched in theise times of scarcitie and dearth. And his Mat^{ie} and this Board cannot but be exceeding sensible of any neglect or omission which may occasion such evill effects, as are like to ensue thereupon. And therefore since neither you nor any other can pretend any want of legall power to have prevented all just cause of complainte in this kinde wee doe hereby in his Mat^{ies} name will and require you to use such care and diligence that his Mat^{ie} and this Board may not be troubled with any complaint for want of due execution of the aforesaid statute. And so etc.[\[371\]](#)"

The fact that the men complained and that the Council so promptly interfered in this matter is a strong argument that both the workmen and the members of the Council believed that the assessments were enforced, or at least that they had a great influence on the wages actually paid. The occurrence certainly shows us that in this instance the assessments were ordered to be made in the interests not of the masters but of the men, and that it was the intention of the Government to protect the men from oppression. It suggests that the justices were negligent, but it brings into prominence the fact that the justices were supervised by the Privy Council.

There is reason for believing that the determination here shown by the Council to help the poor had considerable weight in inducing the justices to make the wages assessments of the time. It was probably an immediate consequence of this letter that the Norwich justices drew up a new

assessment, and reported the fact to the Council in Dec. 1630^[372]. Moreover a very large proportion of the other assessments which have been preserved of the reigns of James and Charles belong to the years of scarcity, when the relief of the poor was the main object of the justices^[373]. As money wages were rising throughout the century, new assessments were always in favour of the workman and would become most necessary in times when the price of food was high; they would also most readily be made when the necessities of the poor were great.

It is perhaps worth while to notice one other instance of protection given to workmen by the Privy Council. During another time of trade depression, in the year 1637, Thomas Reignolds, manufacturer, made his workmen accept cloth instead of money for their wages. The men complained; the Council found it was a second offence and ordered Thomas Reignolds to be sent to the Fleet until he had paid his workmen double the amount they had lost, and their charges for bringing the complaint besides^[374]. The punishment for truck inflicted by the Privy Council during the personal government of Charles I. was certainly severe.

8. Summary.

Thus in the period from 1597 to 1644 the Privy Council are increasingly active on behalf of the poor, and during eleven of these years, from 1629 to 1640, they adopt a policy of constantly exerting influence to secure the proper administration of the poor laws. This continuous policy seems to be suggested by the exceptional measures which had formerly been adopted in years of scarcity. In every season of high-price corn since 1527 some action of this kind was taken, and every exceptionally bad time of distress increased the extent of governmental interference. The continuous policy adopted between 1629 and 1640 began with a failure of harvest and crisis in the cloth trade, and the earlier methods of the Government were like those of 1597 and 1622. But while the season of scarcity still continued the Privy Council issued the Book of Orders for the relief of the poor, and the organisation begun by these commands was continued throughout the period of personal government.

Abbot and Laud, Wentworth and Falkland, Dorchester and Wimbledon are the members of the Privy Council whose names are most closely connected with this policy. Its effects and success we shall be better able to estimate later, but we can already see that the system which the Privy Council tried to enforce was considerably more extensive than any organisation of poor

relief with which we are familiar. Already we know that the poor were not only looked after in times of bad harvests, as in the sixteenth century, but they were also sometimes employed when they were out of work, and that, not only when an individual was unfortunate, but when whole classes were suffering from a fluctuation in trade. This certainly could not always be carried out, but the Council insisted that it should be attempted. The personal government of Charles I. has been more associated with the exaction of Ship Money than with attempts to enforce a system which has much in common with the socialistic schemes with which we are familiar on paper, and yet these eleven years are remarkable for more continuous efforts to enforce socialistic measures than has been made by the central Government of any other great European country. Apart from its success or failure the attempt is interesting, because it shows us the ideal of government which was in the minds of Charles I. and his advisers, and reminds us that these infringers of individual liberties were also, in intention at least, the protectors of the poor.

CHAPTER IX.

1597-1644.

THE LOCAL MACHINERY FOR ADMINISTRATION.

1. Powers of the justices.
2. Work of the justices in first putting the law in execution.
 - (a) In West Riding in 1598.
 - (b) In North Riding from 1605 onwards.
3. Reports of the justices in response to the Book of Orders.
4. The work of the judges.
 - (a) Authoritative decisions on points of law.
 - (b) Administrative work as the link between the Privy Council and the justices.
5. The work of the overseers.
 - (a) In 1599.
 - (b) When stirred to greater activity by scarcity measures.
 - (c) After the issue of the Book of Orders.

The increased activity of the Privy Council, which made the poor law of the seventeenth century more effective than that of the sixteenth, depended for its success upon the activity of the local officials, particularly of the justices of the peace and the municipal authorities. We will now therefore examine the work done (1) by the justices and town rulers, (2) by the judges^[375], and (3) by the overseers.

1. Powers of the justices.

We have seen, in the Elizabethan organisation of Norwich, how much the justices and municipal officers could do when they were at their best, but preambles, proclamations, and letters of the Privy Council combine to tell us that continuous vigour and energy were exceptional. Still the important point is that this local government existed, and under pressure could become

effective. It was because the organisation was there that the letters of the Privy Council were so important; if the justices had been powerless officials, Privy Council letters would have been useless. It is because the justices had the power and could be effective, that it is necessary for us to see how far the Privy Council measures stirred them into action.

The Chancellor's charge in 1608 to the justices and judges throws some light on the social position and importance of the justices, and also shows that the Government thought it very necessary that their work should be well done. The Chancellor complained that the justices who did the work could have no place on the bench, and could hardly get into the court "for the number of newe and younge knightes, that come in there braueryes and stande there lyke an Idoll to be gazed vpon and doe nothinge, ys so greate and pressinge for place countenance and estimacyon." These young justices are reminded that "they are not Justices for their countenance onelye." They and the other justices are exhorted to "remember there oathes and dutyes that they are for the Justice, peace and gouernemente of the cuntrye." They were especially commanded to prevent vagrants from wandering; to see that the proclamation and letters "for corne busynes" were enforced, and that "y^e poore be prouyded for wthin there paryshes." They were also told that it was their duty to prevent all riotous assemblies at the beginning, and that if there were disturbances they would be held responsible^[376]. This speech shows us that the Government thought the peace of the country depended mainly upon the vigilance of the justices, and that the office of justice of the peace was much coveted because of the influence and respect it gave its possessor.

Powers of the justices
under the Statutes.

Under the provisions of the poor laws the justices had some duties for the performance of which they were directly responsible, and others in which they had to supervise the overseers and the constables. They were directly responsible for the relief of maimed soldiers, for the maintenance of Houses of Correction and for contributions to prisoners and to such county hospitals as were in existence. They were further the authorities who made the special assessments in time of plague and levied the rates in aid of poorer parishes. To them were also referred questions of settlement and other matters which concerned several parishes. Moreover, although the overseers were primarily responsible for setting the able-bodied poor to work, the justices

sometimes levied county rates for this purpose, and occasionally ordered that particular people should be relieved from county funds.

But the hardest part of their duty in this matter consisted in the proper supervision of the overseers. The names of the poor of each parish had to be presented to them, and the assessments sanctioned by them; it was their duty to examine the overseers' accounts and to see that the pauper children were bound apprentices. Moreover, they had to punish negligent officials, to coerce unwilling contributors, and to listen to the appeals of aggrieved persons, whether they were injured ratepayers or unrelieved poor.

2. Work of justices in first putting the law in execution.

(a) In the West Riding in 1598.

The orders of the West Riding Sessions Rolls during 1598^[377] give us some idea of the difficulties of the justices in putting the system into execution. The statute of 1597-8 was apparently the first regulation of the kind generally administered in the West Riding, but efforts were made to enforce this as soon as it came into operation^[378]. In June 1598 elaborate orders were drawn up for the division of Knaresborough, which show us that the new methods met with considerable opposition. The churchwardens and overseers presented the names of the poor, but they said that all the parishes objected to pay money. The inhabitants preferred to give "releefe" to beggars, and some, they said, could help in this way who could not afford to pay rates. The justices allowed the parishioners to have their own way to some extent. They stipulated, however, that the poor should ask relief of their fellow parishioners only, and that those who were able to work should be set to work. Moreover, the occupiers who lived out of the parish and the inhabitants who refused to give sufficiently were to be assessed^[379]. It was not only in Knaresborough that poor rates were unpopular. Seven inhabitants of Tickhill refused to give the sum assessed on them^[380], while in Bentley and Arkesey an assessment was duly made, but the money was not paid until the goods of many of the inhabitants had been distrained^[381].

This enforcement of local responsibility at first increased rather than lessened the hardships endured by many of the poor. We are told that "divers personnes are nowe sent forth of all partes of this realme to the places of their births; wherof some of those personnes so sent have bene inhabitinge and dwellinge in those places and townes from whence they are sent by the space of twentie yeares, some more, some lesse."

This was done by the parochial officials in order that their own parish might not be forced to support these poor people. They endeavoured to shift the burden to the parish where the people were born, or to get them sent as rogues to the House of Correction, where they would be supported by the county. The justices of the West Riding tried to prevent this unjust practice. No poor of the Knaresborough division were to be sent to the place of their birth without special order from some neighbouring justice of the peace. Moreover, the testimonials of the poor passing through the division were to be examined, and when the bearers were found to have lived more than three years in the parish from which they were sent they were to return again. "For," say the justices, "such kynde of personnes ... are not rooges nor wanderinge beggers within the meanyng of the statute, but ought to be releived as the poore of the parishe wher they so inhabited and wher they wrought when they were able to worke[382]."

The refusal of the inhabitants to pay rates and this illegal way in which the parochial authorities attempted to get rid of the poor they were now forced to maintain indicates that the first enforcement of the new poor law caused considerable dissatisfaction[383]. These difficulties bear out the conclusion that no earlier poor law had been adequately put in force in this district. Now, however, the justices insisted that more should be done, and occasionally they seem to have been successful[384].

2. (b) Work of the justices in first putting the poor law in execution in the North Riding.

The North Riding Records begin in 1605 and disclose a somewhat similar state of things. The system of compulsory poor relief is evidently more generally in operation. Vigilance in enforcing laws designed to prevent the growth of a poor population is one of the signs that the poor rates in a district are high, and in the North Riding much care was taken to prevent the building of cottages without four acres of land, and to punish landlords who took in lodgers[385]. Moreover, maimed soldiers received pensions, the county hospitals were supported and many orders were made for the relief of particular poor people[386]. A House of Correction was also built, though not until 1619, after many resolutions had been passed on the subject[387]. On the other hand, there is also evidence that the organisation did not yet work smoothly. Overseers are constantly presented for neglecting their duties, ratepayers for not paying their rates; sometimes even all the overseers of a parish are presented for not making

"cessments," or for not relieving the poor^[388], and in one case not only did the overseer neglect to obey the justices' order for the relief of a particular poor man, but the constable refused to obey the warrant for the apprehension of the overseer^[389]. If the justices' difficulties in Yorkshire are typical of their difficulties elsewhere, it is not surprising that some of them were negligent.

3. Reports of the justices in response to the Book of Orders.

Between 1629 and 1631 there was a new development in consequence of the frequent orders on behalf of the poor of those years. In each period of scarcity the justices had been told to allot themselves to particular divisions for the purpose of carrying out the special orders sent by the Privy Council. The Book of Orders of January 1630/1 made this a permanent arrangement so far as the relief of the poor was concerned^[390]. The justices of each particular division were to meet monthly and examine the overseers and constables so as to see that their duties with regard to the destitute were properly fulfilled.

Not only were these orders made but we have evidence that they were executed. The proclamation of 1629 and the Book of Orders of 1630/1 direct reports of the justices' proceedings to be sent to the Council. About a thousand reports dealing with the ordinary relief of the poor were received and are preserved among the State Papers. A few of them relate to the proclamation of 1629 or to other special letters or inquiries, but the majority are reports as to the execution of the Book of Orders of 1630/1. Moreover, three hundred other documents concern efforts to provide corn at reasonable prices for the poor. These latter begin to arrive in October, 1630, and are numerous in December. The series of reports on ordinary poor relief are exceptional in 1630, but were received frequently in April and May, 1631. Both series of reports were returned until 1633; after that date there are few corn reports, but those dealing with the poor continue until 1639, when both cease altogether^[391]. A proclamation is issued in 1640, and, like that of 1629, orders the execution of the poor laws and the provision of stocks for the employment of the poor; it also orders special inquiry by the judges as to how far these orders were executed, and as to how far they were successful^[392]. But there are no more reports, and it seems most probable that no more were sent. These documents thus relate to the years 1630 to 1639, that is to the greater part of the period of the personal government of

Charles I. They exist in consequence of the action of the Privy Council and form the chief evidence as to how far that action was effectual.

The details of these returns will have to be considered in every part of our subject, and especially when we come to discuss the relief given to the able-bodied poor. We will now only examine their general character, partly in order that we may see what sort of work was done by the justices acting under the special instructions of the Privy Council, and partly that we may understand the kind of evidence which is furnished by these documents. We have seen that the orders issued by the Privy Council to the justices concerning the poor were similar in form to those that had previously been issued concerning corn. The reports sent in answer to them are also similar to the corn reports of 1587. They are sometimes addressed to the Sheriff, often to the judges of Assize, and occasionally directly to the Lords Commissioners or Lords of the Privy Council[393]. The justices adopt many different methods in making their returns. Occasionally they enclose the reports of the overseers, or give a full abstract of them[394]. But more usually the justices only state the general nature of their doings, occasionally inserting details about particular assessments, workhouses, or fresh methods of employing their poor. Incidentally they frequently give us information as to the state of trade, the number of recusants, the population, weights and measures, and the difficulties in the way of administration[395].

There are one or two cases in which they give the minutes of their meetings. One of these is sent by the justices of the Alton division of Hampshire and will give us an idea of how these special meetings were conducted. The Sheriff sent a letter and the Orders to these justices on February 10th, 1631. They held their first meeting on March 12th, and three others before May 1st, so that they seem very anxious to set things in order[396].

On March 12th from Fropfield John Godden was presented for "being drunk on the Sabbath day," John Roake "for liveing idlye," and four others for "useinge unlawfull games in tyme of eveninge prayer." Five children were also placed apprentices. From Petersfield there were three cases of a man being accused of "liveinge idly and mainteyninge himself none knowes howe." Warrants were sent for some others for "teareinge of hedges." Six were fined a shilling each "for beinge absent from diuine service," and John Aylenge paid eighteenpence as he was suspected of being drunk. Richard Wolgatt was presented for keeping "a common alehouse wthout lycence but

noe process beinge made to convict him; yt was prohibited." The children fit for service of this place also were placed apprentices. Similar cases were settled for the other places at the other meetings. But the most important part of the proceedings for our purpose is the presentment of the constables and churchwardens. The constables and tithingmen stated what rogues had been punished in every tithing, "the churchwardens and overseers of the poore made presentm^t of the number of their impotent poore in their severall parishes, the number of their able poore and howe they are releived and the other sett to worke and of all other things concerninge their office." At the fourth meeting, held on April 30th at Petersfield, the accounts of the churchwardens and overseers were taken and new overseers appointed for the next year. Moreover, besides all this "articles in writing" were given to the constables, tithingmen and overseers of which they were to give an exact account at the next meeting.

The report for the town of Cambridge gives perhaps even a better idea of the work done by the justices but no details of cases. As we shall have to refer so often to these justices' reports, it is worth while to quote this one in full in order that we may have a clear idea of what these documents were like.

To the right Ho^{le}: the Lords and others of his Ma^{ties} most Ho^{le} privy Councill.

The certificate of the Maior, Aldermen and Justice of the peace wthin the Towne of Cambridge and the lib(er)ties thereof concerninge his Ma^{ties} orders and direcons sent unto us in printed bookes together wth letters from yo^r Hono^{rs} for the due puttinge in execucon such Lawes as tend to the releivinge of impotent poore people, settinge to worke those that be able, and punishinge those that be idle, and reformeing of divers abuses and disorders therein menconed.

Humbly sheweth,

1. That accordinge to the said orders and letters, we presentlie uppon receipt thereof did assemble o^rselues together and calld before us the High Constables, petty Constables, Churchwardens, and overseers of the poore of o^r said Towne and

gave them strictlie in charge for the performance of the service therein required accordinge to the said orders and direcons.

2. That we have ever since kept and continewed o^r weekly meetings and there caused the said Constables dylie to make their presentm^{ts} and from tyme to tyme have strictly called them to particular accompt concerninge the apprehendinge and punishinge of rogues and vagabonds for disorderly tiplinge, useinge unlawfull games and other misdemeanors in alehouses.

3. That we have caused the said Constables to see the watches and wardes duly kept accordinge to lawe and to restrayne wandringe and goeing aboute of beggers and alsoe for safety and good order.

4. That we have taken divers presentments of the said officers and inflicted punishment accordinge to lawe of the offenders both for drunknes for inordinate hauntinge of alehouses, for profanacon of the Saboth by Carriers travellinge with packhorses and carts, with butchers sellinge of meate, for profane swearinge and other misdemeanors and have caused the penalties to be duly taken and distributed accordinge to the lawe.

5. That we beinge exceedingly oppressed wth poore since o^r last heavy visitacon have taken order at o^r weekly meetings for the competent releife of the impotent, by raiseinge and increasinge the monthly rates in all o^r parishes to a treble and quadruple proportion through o^r towne for to keepe them from begginge and wandringe aboute.

6. That we have caused the churchwardens and overseers of o^r severall parishes to sett to worke all such poore as are able to worke beinge of seaven yeares of age and upwards or to bynde them forth apprentices. And for the better performance of their duties therein and whatt ells belongs to their office we doe take of them a iust and exact accompt the ffirst weeke in every month howe they dispose of there monthly collecon and other monies comeinge to there hands and alsoe howe the impotent poore are

provided for and releived and the rest imployed and sett to worke and for punishment of such as are idle or refuse to worke.

7. And as touchinge the Assize of bread and beare, as alsoe for punishinge of bakers, bruers, ingrosers, forestallers and the like (w^{ch} the governo^{rs} of the universitie clayme to belonge to them) we leave to the vicechancelor and governors thereof accordinge to there Charter of priviledge w^{ch} they challenge.

May 2^o 1631.

SAMUEL SPALDYNG,
Maior.
MARTIN PERSE.
RICHARD FOXTON.
EDWARD COPLEY.
JOHN WICKSTED.
ROBT. LUKYN.
THOMAS ATKINSON.
THO. PURCHAS.
JOHN SCHIREWOODE.
JOHN BADCOCKE [\[397\]](#).

As the main part of our evidence depends on the justices' reports we must determine whether the methods described in these returns are typical of those employed all over the country or whether we have reports only from the more energetic justices. Now we hear of some instances of finding work for the unemployed from other sources[\[398\]](#). If we possessed all the most favourable cases in our reports all or most of these instances would be found amongst them. But this is not the fact; some are reported and some are not. It is clear then energetic administration of the law existed which was not mentioned in the reports now preserved amongst the State Papers. We may therefore conclude that the reports do not come only from vigorous administrators but are fairly typical of the whole country.

The minutes of the meetings at Alton and the report of the justices of Cambridge give us a good idea of the effect of the Orders and Directions on the justices. In the first place they show us that a number of meetings were held in consequence of the Book of Orders. In some cases these meetings seem to have taken place every month throughout the period from 1631 to

1639^[399]; but from a report of Lord Fairfax it appears that special inquiries into the requirements of the Book of Orders were made only once a year in his part of Yorkshire^[400]. The meetings, even if they were only infrequent, must have had a considerable influence in improving the execution of the poor laws.

On these occasions a number of offences were punished. Some were connected with the relief of the poor because the fines exacted were used for that purpose. Among these were such faults as playing at unlawful games, getting drunk, swearing, the "profanacon of the Saboth," and not going to church^[401]. Other cases related to breaches of the vagrancy laws and of that part of the poor law which placed upon the overseers the duty of seeing that all who had not any means were set to work^[402].

But the presentment of offenders was only a part of the duties to the poor discharged at the meetings. Arrangements were made for binding children apprentice, and pressure was exercised on the subordinate poor law officials to properly perform their duties. The justices found out how many poor were relieved and what each received, and they inquired whether there was a stock for their employment^[403]. They also, when necessary, urged the increase of rates, the raising of a new fund, or the provision of stores of corn to be sold to the poor at lower prices. The whole system shows how much of the social side of government depended upon the justices, and may perhaps induce us to sympathise with the complaint of the gentlemen of Nottingham that they have "little rest either att home or abroad^[404]."

4 a. The work of the judges. Authoritative decisions on points of law.

The judges also were concerned in the administration of the system of poor relief partly in the ordinary course of their duties, and partly in consequence of the special action of the Privy Council. It was the custom of the time to obtain interpretations of law from the judges in reply to general questions and not only through the decision of particular cases. These interpretations were given not only in such cases as the imprisonment of Members of Parliament, but also in matters affecting the poor law. A long list of resolutions was arrived at on the statute of 1597-8 concerning the interpretation of that statute^[405]. Other questions arose later, and were decided in the same way. Thus in 1620 there was a dispute in the town of Lydd which led to the seizure of the bailiff's cattle and his retirement from the magisterial Bench of his ungrateful town^[406]. The query is submitted as

to the legality of a tax for the poor which was levied on the inhabitants of a parish for their lands and goods in gross, and on the farmers for their land per acre. Sir Robert Houghton and Sir Ranulph Carew decided in its favour, and the paper is endorsed "The question of taxing for the poor of Lydd decyded by the Judges of Assize[407]." We have already seen that the Council told the justices of Suffolk that it was the resolution of all the judges that they themselves might levy a tax to employ the poor[408], and in 1633 also many decisions on points of law were issued as the resolutions of the judges of assize[409].

4 b. Administrative work as the link between the Privy Council and the justices.

But the duties of the judges of assize under the orders of the Privy Council were much more important. They had to act as the link between the central government and the county and municipal officials. They were particularly ordered to let the Council know which justices did their duty[410], and many of the reports were sent in to them. In March 1630 we hear that in Suffolk malting was prohibited in the interest of the poor by the judges of assize in order to increase the supply of barley[411]; a little earlier the Norwich authorities had great difficulty in controlling the maltsters, but stated that with the approbation of the judges they had arranged that no alehouse should be licensed but such as entered into a recognisance by sureties to sell two "thurdendeles" of beer for a penny[412]. The work done by the judges is indicated by one or two references of this kind[413], and since some of the later orders of the Privy Council were especially directed to them it seems probable that they had a great deal of influence in enforcing the orders of the Council.

5 a. The work of the overseers in 1599.

The last authority who was responsible for the execution of the poor law was the overseer. He it was who had to do the work, the function of all the others was to make him do it. It was the duty of the overseers to know all about the poor in their parish; to fix the amount of the assessment and to levy it proportionately. They had also to provide pensions and habitations for the impotent poor, to find masters for apprentices and to procure work for the unemployed. The overseers' accounts for Staplegrove in the county of Somerset in the year 1599 will show us something of their ordinary work. Payments were made by twenty-two parishioners quarterly and by sixteen weekly, while two of the inhabitants took charge of two impotent people.

Ten poor people received payment of a small sum every week on what we should now call the outdoor relief system. Besides this money had been disbursed in order to provide for a pauper's burial, to recompense tithingmen for receiving the poor strangers that were brought to them, and to purchase clothes and wood for the older poor and also outfits for apprentices^[414]. In this account there is nothing about setting the poor to work, but the rest of the poor law seems to have been well executed in 1599.

5 b. When stirred to greater activity by scarcity measures.

The kind of instruction given to the overseers when the justices were stirred to greater activity than usual may be gathered from a paper in the Tanner Manuscripts. It is entitled "A true copy of the charge given to the overseers of every towne the 19 of December 1623," and must refer to some particular county or some particular division. During the early part of this year the price of corn was high and the justices took many measures to provide for the poor. The sufferings of the poor in the preceding winter may be the reason that the justices were more strict in their supervision at this time. There are altogether eight orders, one of which relates to alehouses; the constables and overseers are ordered to see that the labourers and other poor are well served with bread and beer, and that they do not linger longer than is necessary for the delivery of the bread and beer. Another order shows how very inquisitorial was the character of the Government of the time: there was certainly no notion that the Englishman's house was his castle. The overseers and one of the constables were twice every week to search the houses of the labourers at night to see that all were at home, and also to look out for any articles that the people might be suspected of stealing. Several of the orders concern the keeping of the poor at work^[415]. Others arrange that children, not yet old enough to be apprentices, should be taught to spin by some honest woman in the town, who was to have a penny a week for each child until it could earn something for itself. Beggars were to be punished, and provision of fuel was to be made for the poor^[416]. We can see how far removed this system was from our own notions of liberty, and we can also see that if the overseers performed these orders, they had even more reason than the justices to complain of hard work. There is a great deal about the provision of work and comparatively little about pensions, so that here it seems likely that the overseers were more likely to provide for the impotent without pressure than to find work for the unemployed. During

the years 1631 to 1640 we are often told that "articles" were delivered to the overseers, and this document is not improbably typical of some of them. For these are the kind of matters commented on by the justices whenever they enter into details at all[\[417\]](#).

5 c. After the issue of the Book of Orders.

We have seen that in a few of the justices' returns the reports of the overseers were enclosed. The justices of the Liberty of St Alban's sent their answers in this manner. They were responsible for the parishes of Chipping Barnet, East Barnet, Elstree and Northaw. In 1637 they still held monthly meetings, and the overseers' accounts returned at them will give us some idea of the work often done by overseers when they were supervised in the special manner ordered in 1631 and continued until 1640. At the January meeting of 1637 the justices gave "charge that the presentments should be better and more fully certified[\[418\]](#)"; at the February meeting, therefore, fairly detailed reports were returned from three of the four parishes[\[419\]](#). At Chipping Barnet we hear they have no Popish recusants or non-churchgoers. They have not put forth any apprentice during the month, but are about to bind a certain fatherless child. One of the magistrates undertook to see the boy was bound before the next meeting. One family had apparently been stricken with plague, and had been paid eight shillings before they were shut up; eight weekly pensions were paid to impotent people, one to a "Mad Tib," and two people receive payments for taking care of children. The report also states that "we have in towe and yarne and cloath xx^s and in money to buy more xx^s." From this account it is clear that the poor were actually set to work in Chipping Barnet and that not all the funds available for the purpose were utilised. From Northaw the constables only report, but their return concerns poor relief as well as vagrants. They say all the impotent poor are relieved while the poor that can work are "sett on work and doe not refuse the same." In this virtuous parish also none disorder themselves with drinking or frequent alehouses during divine service on the Lord's day and no idlers could be found though the constables had diligently searched for them. From Elstree we have an account of the pensions paid to certain poor people, and we have also the statements that "we have in stocke for the poore remayning forty shillings," and "we set such on worke as want uppon euery occasion." East Barnet makes no return, and a warrant is sent for the overseers to answer the contempt. On April 9th, 1639, they send a report,

and then relieve only one impotent person, but have eight pounds in hand for setting the poor to work^[420].

If therefore we may take these reports as specimens of rural parishes, we see that in each parish a stock existed for setting the poor to work, and that there does not seem to have been any great difficulty about the unemployed. The relief of the impotent and the apprenticing of children appear to have been carefully looked after, and the justices were prompt to notice any omission in the reports. We shall see later that there is reason to believe that these parishes were not exceptional, but that under the supervision of the justices the same kind of measures were taken in many parts of southern England.

We have already seen that the central government, the Privy Council, energetically tried to enforce the law, and that this increased energy makes the seventeenth century the important period in England for the poor law administration. We now see that in justices, judges and overseers the local government existed through which the action of the Privy Council could be made effectual. It is in this that England differed from other European countries, particularly from France and Scotland. We have drawn our information chiefly from the official records of Privy Council, justices or overseers. We have noted examples in the work of the justices and overseers in which the action of the Privy Council did have a considerable effect. We have also seen that a large body of evidence exists which will give us much information as to the methods of relief employed, and may enable us to tell how far the system was successful. We have now to see how this organisation affected the poor, and how far it was generally enforced in all parts of the country.

We will therefore cease to examine the system from the point of view of the administrative machinery, and instead consider, first, the relief which it afforded the various classes of poor, and secondly, the extent to which the organisation, whose nature we have described, was employed over the whole country.

CHAPTER X.

1597-1644.

METHODS OF RELIEF.

A. In Times of Emergency.

§ 1. The methods in which the Scarcity Orders of the Privy Council were executed in 1623 and 1630-1.

- a.* The suppression of alehouses and restrictions of malting.
- b.* The regulations for serving the markets with corn and supplying the poor in their homes.
- c.* Selling corn bought by the inhabitants to the labourers under the market price.
- d.* Other special methods of providing food for the poor.

§ 2. Evidence as to the success or failure of the corn regulations.

§ 3. Reasons for their adoption.

§ 4. Bearing of the scarcity measures on history of poor relief.

a. Growth of organisation.

b. The standard of life of the poorer classes.

§ 5. Provision of fuel for the poor in winter.

§ 6. Help afforded in times of sickness or plague.

§ 7. Contributions to sufferers from fire.

§ 8. Two characteristics of seventeenth century poor relief accentuated by this emergency relief.

- a. Little distinction between paupers and non-paupers.
- b. Little distinction between relief afforded by voluntary contributions and that provided by poor rates.

The special emergencies in which the poor most often obtained relief in the seventeenth century were those arising from bad harvests, sickness, and fire.

We will first examine the methods of supplying the poor with corn after bad harvests. We have already seen that in 1608, 1621-3, and 1629-31 the central government issued orders with this object, which closely resembled the commands which had been issued during the reign of Elizabeth. We have now to see how these orders were executed in the early part of the seventeenth century.

In 1608 there is little evidence in this direction. A report however was sent from Colchester. There, the constables took an account of the number of persons that had corn by them; of the bargains they had made and of the number of acres they had sown, and in accordance with that survey every person was ordered to bring weekly to market so many bushels of corn unless they had already sold them to poor artificers and day labourers^[421]. There were probably like reports from other places but there is nothing to make us think that the scarcity Book of Orders was better executed in 1608 than it had been in 1587 or 1597.

1. The methods in which the scarcity orders of the Privy Council were executed in 1623 and 1630-1.

But in 1623 and in 1630-31 there are returns from many different parts of the country, and these seem to show that the orders which were occasionally put in force under Elizabeth were frequently put in force under James I., and were usually well executed in the season of scarcity in the reign of Charles I.

a. The suppression of alehouses, and restrictions of malting.

The Book of Orders issued in each period of scarcity contained directions for limiting the quantity of malt and for suppressing unnecessary alehouses. This was the case because barley bread was the chief food of the poor, and they would be more easily able to obtain a supply if the barley which would have been used for malt was brought to the markets. The corn

reports of 1623 and 1630-1 for the most part state in general terms that these directions had been carried out[422]. Moreover sometimes the justices enter into details and show that they had taken great care in putting this part of the Council's orders into execution. Thus in 1623 the number of alehouses in Banbury was reduced by one-third, in Ripon by a half, while in Wycombe only nine were licensed out of twenty-one[423]. In April 1631 also in Bradford, in Hertford, and in Stafford more than half the alehouses were suppressed[424].

Similar details show us that the making of malt was carefully regulated. In 1623 the justices of South Hampshire fixed the total quantity of barley that might be used for this purpose in the county and allotted a definite quantity to each division: a hundred quarters were allotted to each of the divisions of Andover and Fawley, eighty quarters to that of Alton, and in proportion to the other divisions[425]. At other times malting was suppressed altogether, as in three hundreds of Herefordshire in 1623[426] and at Taunton in 1631[427].

Occasionally malting was continued by some of the maltsters, but in order to counterbalance the injury to the poor they contributed in some special way to their support. Thus at Warwick in 1623 the maltsters brought corn to market and sold at a shilling a bushel under the market price to the poorer people, while at Stafford in 1631 the maltsters who had continued their trade in the town agreed to contribute a specified sum to the support of the poor in several of the surrounding country districts[428]. At Norwich some of the maltsters were disobedient, and they were there ordered as a punishment to bring corn to the public granary and sell it at low rates to the poor[429]. It is thus clear that this regulation of the consumption of ale was made in the interests of the poor, and that it was carefully executed in 1623 and 1631.

b. Regulations for serving the markets with corn and for supplying the poor in their homes.

As in 1586 and in 1597 elaborate surveys of the quantities of corn possessed by each owner were made both in 1623 and 1630-1, and in accordance with these surveys the farmers were ordered to bring a proportional amount of their produce to market[430].

Moreover in 1623 and in 1631 increased attention was paid to the difficulties experienced by the labourers who had not sufficient leisure to come to market for the small quantities they were able to buy at a time. In Babergh and Cosford and in Thingoe in 1623, arrangements were made for

their supply at home[431]. In 1631 more organised plans were adopted. At Lewes a survey was made of the quantity of corn available and a reasonable proportion was then allotted to each householder: out of the residue the poor of every parish were to have enough to serve them, while any that was then left over was to be sent to market[432]: in the lath of Shepway two-thirds of the corn was sold to poor artificers at home, while only one-third was brought to market and there sold to the poor or to anyone who wanted to buy for his own consumption[433].

c. Selling corn to labourers under price.

But in some respects the corn measures of 1623 and 1631 were not only better executed but provided more direct relief than those of former times. We know that the town rulers in 1586 and 1597 bought particular quantities of corn for the inhabitants[434], and that individual owners like the Duke of Rutland sold their corn under price. The reports of 1623 and 1630-1 indicate a great extension of this practice both in London, in other corporate towns, and in the country.

Corn sold under price to the poor in London.

Even before 1520 the City rulers possessed a magazine of corn. In 1622 a regular system of selling to the poor under price was so much the usual plan that the Lords of the Privy Council complained of the method by which the Companies furnished their quota of corn for this purpose. Each Company contracted with the bakers to furnish the quantity required from its members. The wardens however were told that this course "would rather lessen the stoare than replenish the markt"; they must import for themselves from abroad so that the total supply in the City might be increased[435]. In 1630-1 even more vigorous methods were taken. The population of London was numbered, so that it was found that there were 130,280 people in the City, and the Lord Mayor calculated that five thousand quarters a month would be necessary to provide for all the inhabitants[436]. Each Company had to provide a certain quantity at under rates for the poor and was required to state how much of this supply they had in their granaries[437]. The efforts made to lower the price were for a time successful, and in December 1630 the Lord Mayor ordered the price of meal to be reduced in proportion to the fall in the price of grain[438].

Selling under price in large towns.

In other large towns similar plans were adopted both in 1621-1623 and in 1629-1631. In 1623 the Bailiffs of

Derby report "wee have alsoe at the charge of the cheife and ablest inhabitants of this Burrowe provided 140 q^{ters} of corne w^{ch} wee weekly afford to the poore as their necessities require under the comon price of the market[439]." In the later period, 1630 and 1631, Norwich spent £300 for this purpose and then borrowed more; Great Yarmouth, Leicester and Buckingham made similar provision[440]. There is no reason to think these towns were exceptional; there are comparatively few reports from the corporate towns in 1630 but we have already seen that in Bristol and Shrewsbury stores had been bought in earlier years, and their action was probably similar now to that of London and Norwich.

Stores of corn sold
under price to the
country labourers.

The same plan was also adopted in the country. It was recommended by the Council, but it is not one of the fixed regulations enforced by them. In one case however we find that a small sum of money had been collected for a magazine of corn in Suffolk, and that now the Council ordered it to be used to supply the poor of Halesworth[441].

In many other cases corn was provided by the inhabitants themselves often by voluntary agreement made under the persuasion of the justices. In 1623 this method of helping the poor was usual in Hertfordshire. In March the Sheriff sends to the Council reports from the justices of the greater part of the country. He states that the justices and gentlemen have "by there good and charitable exsamples and perswasiones" provided a quantity of corn at nearly half the market price in "euery parish where neede requireth." There was enough to last until next harvest and they hope "noe complainte of the pore shall hereafter add any disturbance unto his Ma^{ti}'s most graciouse pittifull, and charitable minde[442]."

In districts of Devonshire and Suffolk[443] also like plans were tried in 1623, while in 1631 similar methods of relief seem to have been universal in the counties of Essex and Norfolk, and to have been adopted in some districts in almost every eastern county.

Thus in December 1630 in four of the hundreds of Essex arrangements were made for supplying the people with corn at home. The chief inhabitants "of their owne accords" laid in a store for the poor allowing 7d., 18d. or 2s. the bushel and giving an equivalent amount in money to those that did not bake their own bread[444]. Next month we hear that this

plan had been adopted in most of the shire; every parish had its store and the poor were served at 18*d.* and 2*s.* a bushel under the usual price. Sometimes when grain was scarce, bread and money were given instead. Our informant states that this provision of corn for the poor at cheap rates had had a considerable effect in lowering the price of grain[445]. From every hundred of Norfolk a report of the state of the corn supply of the poor was received, and some arrangement of this kind is usually reported. In some hundreds two degrees of poverty were recognised. The very poor only paid half-a-crown a bushel for their barley, but "the labourers y^t had nott so much neede" were served at three shillings[446].

This plan does not seem to have been general in Yorkshire, but it was adopted by at least eight hundreds[447]. There are moreover many examples of stores of this kind in Hertfordshire and some in every Eastern county except Northumberland and Lincolnshire[448]. The fact that special mention is made of poor labourers shows that relief was not confined to the disabled or to paupers. It was given in the eastern counties more than in the western probably because the scarcity was more felt in the east and the poor were in greater distress[449].

d. Other special methods of providing food for the poor.

Sometimes other plans were adopted. The owners and dealers of corn were expected to contribute to the need of their less fortunate neighbours. At Reading the corn masters set apart a sack in every load to serve for the poor at twelvepence a bushel under the market rate[450]. It would seem that some allowance was usually made by dealers in corn, for another dealer who was a victim of a riot at Woodchurch states that out of ten quarters he left five to be sold to the poor[451].

Other expedients of this kind were adopted; in Devonshire the children of the poor were billeted on those able to give relief[452], and at Maidstone the town baked the bread and gave loaves to the day labourers and poorest inhabitants[453]. Three of the hundreds of Cambridgeshire tried a still more organised plan: "the poorer sort had weekly corne delivered to them at home at twelvepence in the bushell in the least under the market prices[454]."

2. Evidence as to success or failure of

We have very varied opinions as to the success or failure of the organisation for supplying the poor with

the corn regulations.

corn. The justices in several instances state that the search raised prices, and ask that a second search may not be made^[455]. In a few cases they say the regulation of the markets was injurious. The most decided of these is an account from Edwinstree and Odsey, "And we humbly conceaue that o^r strickt lookeing to the marketts by o^rselves and others, very sufficient and diligent supervis^{ors}, whom we haue imploied wth a great deale of care in these businesses is an occacion that the marketts are the smaller, the corne dearer and new shifts and devises are found out^[456]." In the autumn of 1631 inquiries as to the cause of the scarcity were instituted, and the Bridport authorities candidly replied that it was owing to the interference of the justices^[457]. But perhaps the most interesting protest is that from Chipping Wycombe. It was a town on the borders of Buckinghamshire, which was largely inhabited by dealers in corn and was the market for the neighbouring parts of Oxfordshire and Berkshire. After the instructions of the Privy Council had been followed, only a quarter of the usual quantity was brought to the market. The dealers, the Mayor tells us, lost heavily because the price of meal had been fixed by the Lord Mayor, and both they and the farmers were disgusted at the lowering of prices in other parts of the country. Formerly the badgers had set aside sacks for the poor, and the farmers and others had provided stores for them. This they now refused to do, but the justices did their best and themselves sold to the poor under the market rates^[458]. The dislike of the orders is very apparent in this report, but it bears witness to the fact that they were sometimes successful, since prices had been lowered in consequence in other parts of the country. But as Chipping Wycombe was inhabited largely by corn-dealers, and as it drew its supplies from other counties, the orders failed there, and the fact that Chipping Wycombe was such a town may have been not without its influence on the making of history, for John Hampden, we are told, was one of the justices present who witnessed the distress of this disastrous market-day. It was not a position in which he would judge favourably of the effects of governmental interference.

Still the balance of evidence is in favour of the orders. When they were first put in force they seem to have had a considerable effect in lowering the price. Many of the reports sent in during the last half of December and beginning of January tell us that this was the case^[459], though after the

beginning of the year prices again rose, because the corn was wanted for seed as well as for food. However even as late as April 30th a report from the district of Horncastle in Lincolnshire informs us that the writers have ordered the markets to be furnished every week with a particular quantity, and that the price of oatmeal, which was the chief food of the poor in that part of the country, had been lowered from eight groats to one shilling and tenpence[460].

There are other statements of the same kind[461], but one of the most strongly expressed of these is from the justices of Suffolk, "We giue y^r lo(rdshi)ps many humble thanks for your great fauours shewed unto vs and to the whole state of this county in these necessiteouse times by those most prudent, compassionate and charitable considerations deliuered in your bookes of directions and sent vnto vs w^{ch} we haue wth our uttermost endeauours laboured in euery parte to see accomplished as well by o^rselues as others. And we must acknowledge with o^r and the countrys great thankfulnesse unto y^r lo(rdshi)ps that y^e benefit w^{ch} hereof hath arisen hath bine beyonde all expectation inestemable and of wonderful effect[462]."

But the strongest argument that on the whole these measures were beneficial is to be found in the fact that they were enforced throughout the country by the justices with very few protests. The justices would as a rule be landlords and generally corn owners; the regulations were against their interests, and, unless they had thought that they contributed to the public welfare, they would have complained more and performed less. When they thought a course objectionable they said so: many of them did not approve of a second search of the stocks of corn[463]; in several instances they said that the order to prevent millers from buying corn was not beneficial, because the millers sold in small quantities to the poor who did not come to market[464]. But the rest of the orders concerning corn were enforced nearly always without comment or with approval.

3. Reasons for the adoption of the corn regulations.

It is not difficult to see reasons for the success of such an organisation. Corn fluctuated violently in price because of the narrowness of the area from which the supplies came. Even with our own worldwide supply a corner in wheat has been attempted and for a time maintained. When little corn was imported

into England, and even counties were largely self-supporting, farmers might easily raise the price by keeping back their corn from market[465].

But the great price was not always the worst of the trouble. The justices of Devonshire tell us that corn could not be had for money, and the statement is confirmed by Fitz-Geffrie in his *Curse of Corne-horders*, "O miserable condition! the poore man is put to a double labour, first to get a little money for Corne and then to get a little corne for money & this last is the hardest labour; he might haue earned almost halfe a bushell while hee runnes about begging to buy halfe a pecke[466]."

We must remember the narrowness of the market; the excessive fluctuations in price, and the difficulty of finding a seller willing to sell a small quantity of grain, before we can criticise fairly the organisation which was established during these years of high-priced corn.

In any case the corn orders of the Government seem to have helped to maintain the public peace. In 1527, in 1551, in 1587, in 1597, and in 1623 the rise in the price of corn immediately occasioned disorder[467], and even in 1630 attacks were made on the carts carrying corn, and there were other signs of disturbance[468]. But in this last season of scarcity there was no serious outburst. The orders of the Government probably relieved the distress and certainly helped to convince the people that their rulers were trying to help them.

4. Bearing of the scarcity measures on the history of poor relief.

a. The training of the justices.

The organisation for supplying the poor with corn in 1631 is both indirectly and directly connected with the history of poor relief. We have already seen that the orders for supplying corn seem to have suggested the orders for the ordinary relief of the poor, and that both sets of orders were worked by similar methods. The

season of 1630-1 is the first in which the administrators seem to have properly fulfilled their duties. Then the commands of the Government seem to have been vigilantly enforced. This was not always easily accomplished, rebellious inhabitants were coerced, negligent justices were punished[469]. But on the whole the justices seem to have worked with zeal, and the success obtained by them during this exceptional crisis must have made it easier for them to cope with the relief of the poor in more ordinary times.

b. The standard of comfort of the poorer classes.

Moreover the direct relief afforded by the corn stores must be taken into account when we attempt to estimate the amount of comfort enjoyed by the manual workers in the reign of Charles I.

Prof. Rogers has compared the condition of the labouring population at different times by estimating the amount of food which could be bought by a labourer receiving average wages in each period. This method of comparison leads him to the conclusion that the majority of the population were in a very miserable condition before the outbreak of the Civil War^[470].

But in 1630-1, and to some extent also in 1623, labourers did not pay the market price for their food, and this fact must modify any conclusion derived from such a source so far as the reigns of James I. and Charles I. are concerned. Not only was corn sold under price from public granaries and stores, but it is probable that whenever arrangements were made to serve the labourers at home the prices were somewhat reduced, as the sellers would then be saved the trouble of taking the corn to market, and the expense of paying the market tolls.

Moreover it has often been pointed out that the relative comfort of any class can be better ascertained if we consider the earnings of the family rather than those of the individual^[471]. This was a period in which women could easily obtain work in spinning and when children were apprenticed at an early age, and so required little support from their parents. For these reasons it seems likely that the labourer of the reign of Charles I. would be better off than the amount of his wages would lead us to suppose, and this estimate is confirmed by the scale of diet fixed for the boys in the Children's Hospital of Norwich in 1632.

The boys in the hospital were between the ages of ten and fourteen. For dinner they were always to have six ounces of bread and a pint of beer: three days in the week they had also a pint of pottage and six ounces of beef, and on the remaining four an ounce of butter and two of cheese. For supper they had always six ounces of bread, a pint of beer, an ounce of butter and two of cheese, and for breakfast every day three ounces of bread, half an ounce of butter and half a pint of beer^[472]. As this represents the food of the destitute orphans of Norwich it is not likely to be much better than the usual standard of the poorest class, and seems to compare very

favourably with the food of a boy in the same class in our own time. The ordinary standard of living thus does not appear to be miserable, but the poor must have suffered terribly, if there had been no exceptional relief, whenever there was no work for them to do, and when corn was double the usual price.

It is these fluctuations that were the chief source of misery, and by lessening their effect the scarcity measures of the time were of enormous importance to the whole of the labouring class.

But relief in times of emergency was afforded to the needy in other times of exceptional distress.

5. Provision of fuel
for the poor in Winter.

In Winter fuel was provided. Thus at St Albans, wood was bought for the poor in the reign of Queen Elizabeth[473]. In London there was a coal yard before 1590, and early in the reign of James I. the City authorities obtained permission to import four thousand chaldron of "sea cole" free of duty for the purpose of supplying those in need of help[474]. Payments for fuel formed part of the regular organisation at Norwich[475], and directions to secure a supply to the poor of their district are contained also in the orders to the overseers of 1623[476]. This provision is another illustration of the fact that a great deal of the relief given was designed to protect the people from excessive fluctuations in price.

6. Help in times of
sickness and plague.

Methods of relieving the poor in times of sickness were also numerous. The Great Plague of London was not an isolated attack; throughout the seventeenth century few years pass without an outbreak in one of the large towns. Special orders were drawn up to prevent the spread of infection; watchmen were appointed to guard stricken houses, and the inmates for the time had to be supported by the community[477]. The cost of this severely taxed local resources. At Cambridge we hear that in 1630, 2800 claimed relief and only seven score were able to contribute. In this case a brief was issued authorising collections from other parts[478], and London and Norwich sent generous contributions[479]. One town seems to have helped another frequently when this scourge broke out: New Sarum sent aid to London, Norwich to Yarmouth, and both New Sarum and Bury thanked the Londoners for the help they had themselves received under like circumstances[480].

Pest houses were often established; at Reading eight were built, and we hear of their erection in Norwich, London, Cambridge and Windsor^[481]. The way the funds were raised for the plague-stricken poor of Windsor is one of the many illustrations of the fact that private charity and public rates were often used for the same purposes and administered by the same officials. The site for the pest house was given by an alderman, some of the money was raised for the relief of the infected poor "by way of taxation," part was given by gentlemen of the neighbourhood, and the rest was probably paid out of the town chest^[482]. At Hitchen and in other places relief was given to the plague-stricken by means of the poor law organisation^[483].

The Privy Council frequently made orders connected with the plague. Sometimes they ordered the erection of pest houses, sometimes a special collection. In Grantham and Worcester the rich fled from the infected town, so that government was at a standstill; the absentees were required to pay double rates and, if necessary, to return and help govern the town^[484]. At another time the paper-makers in Suffolk were prevented from working because of the plague, and a special collection was ordered for them^[485]. All these orders illustrate the paternal nature of the Privy Council government, and also seem to show that in social matters it was exercised in favour of the poor.

But not only in time of plague was provision made for the sick. At Norwich it was part of the regular organisation for the poor; in London St Thomas's and St Bartholomew's hospitals were already in existence, and in most towns there were numerous lazaret houses. In some places the help provided was even greater than that of to-day; a town physician was appointed especially to look after the poor. Newcastle adopted this plan in the reign of Elizabeth, and the practice was continued down to the time of the Civil War, and in 1629 a "learned physician" was engaged by the Mayor and Corporation of Barnstable to give advice gratis to the poor^[486]. This happened just at the time when, as we have seen, there was great activity in matters connected with the poor, and is an illustration of the fact that the duties of the seventeenth century municipality were very various, and that even in 1629 the town authorities were sometimes pioneers in matters concerning the poor.

7. Contributions to sufferers from fire.

Fire was another way in which sudden loss was caused to large numbers of people. Houses were still built

largely of wood and often very close together. Whole towns were not infrequently destroyed. Tiverton suffered twice in this way, and the suddenness of the calamity to so flourishing a town seems to have especially struck men's imagination. "He which at one a clocke was worth fiue thousand pound and as the Prophet saith drunke his Wine in bowles of fine Siluer plate, had not by two a clocke so much as a wooden dish left to eate his meate in, nor a house to couer his sorrowfull head"[487]. In the second destruction of 1612 three hundred of the poor people were boarded in the shire, and collections to rebuild the town were made throughout the country. Similar disasters happened to several other towns, to Dorchester in 1613 and Hertford in 1637, and like collections were made for them among charitable people.

1632: "Paid Mr Henderson the townes physician his ½ yeares stipend due at lady-day 1632, 20l." A payment of £10 was also made in 1647, to "doctor Samuel Rand the townes physition." M. A. Richardson's *Tracts*, Vol. III. p. 47. Extracts from the municipal accounts of Newcastle. Barnstaple, Nov. 24th, 1629: "Dr Symes a learned Physician engaged by Mayor and Corporation to be resident in town and give advice gratis to the poor at £20 per annum for two years to be paid out of town stock if not raised by subscriptions." Wyot's Diary, Barnstaple Records, *North Devon Herald*, April 21, 1881.

Relief was also given to individuals who suffered loss from fire, sometimes by means of authorised collections and sometimes out of the public funds[488]. Thus in the North Riding £20 was paid to twelve persons of Thornton and Farmanby, on account of their losses caused by fire[489].

8. Characteristics of seventeenth century poor relief.

Thus in the first half of the seventeenth century relief in times of emergency forms a considerable part of the assistance given to people in distress.

a. Little distinction between paupers and non-paupers.

That provided in years of high priced corn was not distributed only to those who were usually paupers but to the whole of the labouring class; that afforded in times of fire or sickness affected all classes of the community. There was thus much less difference between paupers and the rest of the community than there is to-day. All classes were relieved because poor relief was originally part of a paternal system of government under which the rulers

regarded the maintenance of the usual prosperity of every class as a part of their duties. There is a curious case of landlord and farmer relief during the season of plenty in 1619. It was then stated that of late years there had been so much corn that the farmers were impoverished. A letter was therefore sent to the justices of every county ordering them to confer concerning some fit place where a magazine might be provided for storing a quantity of corn. The reason for this is stated to be that it is the "care of the state to provyd as well to keepe the price of corne in tymes of plenty at such reasonable rates as may afford encouragemt and lively good to the farmer and husbandman as to moderate the rates thereof in time of scarcitie for the releefe of the poorer folke"[\[490\]](#). Few regulations could make it clearer than this, that the paternal measures of the Government were not confined to one particular class, but affected the whole of the community.

b. Little distinction between relief afforded by voluntary donations and that provided by poor rates.

The distinction between paupers and non-paupers therefore was much less clear than it is to-day, and it is also true that the distinction between voluntary contributions and compulsory poor rates was much less rigidly defined. The supply of the poor with corn is nearly always stated to have been a voluntary measure, but it was carried out under very considerable pressure from the justices. Sometimes the pressure amounted to compulsion. Thus in the Sarum division of Wiltshire some gave "franklie and freely good quantities of their store" to the poor but others were "wilfull." The justices "terrified them a little wth conventing them before the Lords of the Counsell and then they seemed very willing and tractable"[\[491\]](#). It is difficult to say therefore how far the corn charities of the time were voluntary and how much they were compulsory. There was also a close connection between private and public charity in other forms of relief.

Probably in every town there were numbers of endowed charities controlled by the municipal officers or by overseers or by some public or semi-public authorities, which were practically a part of the same system as that enforced by law. Such were the four royal hospitals of London and the hospitals of Gloucester and Norwich. Such also were the many almshouses under the management of corporations, as were the almshouses founded respectively by Leche and by Kendrick at Reading, and the many charities for apprenticing poor children and lending money to poor tradesmen, which

we shall afterwards consider in detail. Sometimes the connection was closer still, and the workhouse like the Free Library of to-day might be partly provided by private generosity and partly by public rates. Such was the case with the Barnstaple workhouse and the Jersey school of Newark^[492].

The relief of the poor in times of emergency thus brings into prominence two of the main features of the poor relief of the time. First, that the public compulsory system was developed from a voluntary system and that in the seventeenth century voluntary and public poor relief were closely connected. Secondly, that the poor relief of the time was intimately connected with the general system of government under which all classes were compelled by Government to do their duties and any class might be relieved that for the time failed to obtain its usual degree of prosperity.

CHAPTER XI.

METHODS OF RELIEF, 1597-1644 (*continued*).

B. Ordinary Relief.

α. Impotent poor.

1. Almshouses and endowed charities.
 - (a) Old endowments which remained unchanged through the Reformation.
 - (b) Old endowments regranted to the Corporation or other public body.
 - (c) Fresh endowments.
 - (d) Pensions and gifts from endowed charities.
2. Provision for the old from compulsory rates.
 - (a) Relief from the county by pensions paid to soldiers and sailors and by hospitals maintained by county funds.
 - (b) Relief from the parish by pensions paid to the destitute, by the grant of a house, or by arrangements for free board and lodging in the house of some parishioner.

β. Children.

3. Provision for children by apprenticeship.
 - (a) To masters. (b) To the masters of the Bridewells or industrial schools of the time.
4. Schools for little children and orphanages.
- γ. Able-bodied poor.
5. Relief given to prisoners.
6. Provision of funds to provide work for the unemployed.
7. Methods of providing work.

- (a) Stocks used to employ the poor in their homes or elsewhere.
- (b) Introduction of new trades.
- (c) Workhouses and Jersey schools.
- (d) Bridewells.
- (e) Emigration.
- (f) Pressure on employers.
- (g) Advancement of capital without interest.

We have seen how the poor were relieved in times of special emergency; we will now examine the kind of help that was bestowed upon those classes of poor who in almost every community were more or less constantly in need of assistance. We will notice first the relief given to the impotent and aged poor; secondly, the measures adopted to provide for destitute children; and lastly, the methods used to find work for the unemployed or to suppress vagrants.

α. The impotent poor.

The method of relieving the impotent poor differed very considerably from that with which we are familiar. The workhouses of the seventeenth century were mainly places for people who could work, the aged and impotent poor were often relieved by almshouses controlled by public and by private authorities, but founded and maintained by private liberality. It was indeed an age in which almshouses or hospitals as they were often called abounded. Probably there were nearly as many in existence then as there are to-day, in spite of the fact that our population has increased sixfold. Some of these hospitals were old endowments that had survived the Reformation; others had been dissolved with the other religious houses and regranted to the municipal authorities of the place to which they belonged; many more were founded during the reigns of Elizabeth, James I., and Charles I.

1. Almshouses and endowed charities.

a. Old endowments which remained unchanged through the Reformation.

The well-known Hospital of St Cross at Winchester is a good example of an old foundation that has had a continuous existence from its first endowment in the middle ages until the present day. The modern tourist, like the wayfarer of mediæval times, may partake of the refreshment provided by its ancient regulations, and may still receive his bread and beer like a seventeenth century beggar. But it has also been an almshouse since the

time of Henry II. By the Charter of Foundation "thirteen poor men, feeble and so reduced in strength, that they can scarcely, or not at all, support themselves without other aid, shall remain in the same hospital constantly; to whom necessary clothing, provided by the Prior of the Establishment, shall be given, and beds fit for their infirmities; and daily a good loaf of wheaten bread of the weight of five measures, three dishes at dinner and one for supper, and drink in sufficient quantity[493]." This hospital was not dissolved by Henry VIII. but continued under its old regulations throughout the Reformation. Laud ordered inquiries to be made concerning it shortly after 1627, and the thirteen pensioners were then maintained with full allowances[494]. Many hospitals survived the dissolution besides St Cross and remained in private hands; a few like St Giles's, Hereford, or St Bartholomew's at Sandwich had been governed by the town-rulers from the time of their foundation[495], and these for the most part retained their old endowments and remained under municipal management.

1 b. Old endowments
regranted to the
Corporation or other
public body.

Other hospitals were regranted to the Corporations of their respective cities and towns soon after the dissolution in the same way as St Bartholomew's had been given to the City of London. Such was the case with St Bartholomew's of Gloucester. Queen Elizabeth stipulated that some of the payments formerly made by the Crown should be remitted, but placed the rest of the revenues in the hands of the Corporation on condition that a physician and surgeon and forty poor people should be there maintained[496]. Two other of the ancient hospitals of Gloucester came into the hands of the Corporation. One of these, St Margaret's Hospital, provided for ten poor men in 1562, and was then governed by the town authorities; the other, St Mary Magdalen, was granted to the city both by Queen Elizabeth and King James, and was called King James's Hospital[497]. Even if a hospital came into private hands it often returned to its original purpose. Sentiment as to its rightful use was probably very strong in the case of any institution which had been founded to do a work which obviously needed doing. Thus Kineburgh's, another of the old hospitals of Gloucester, had been sold at the dissolution to a Mr Thomas Bell, and was afterwards refounded by him and placed under the care of the Corporation. His donation was confirmed by Queen Elizabeth, and during the reign of James several other small endowments were added by various donors for the maintenance of the poor there[498].

Gloucester was perhaps especially fortunate in retaining so many of its old endowments, but elsewhere similar arrangements were made. St Giles's of Norwich, St Leonard's of Launceston, St Edmund's of Gateshead, St Thomas's and St Catherine's of York, St Mary Magdalen's of King's Lynn, and Trinity Hospital of Bristol were all old foundations which, during the sixteenth and seventeenth centuries, came into the hands of the corporation of the town to which they severally belong^[499]. St Giles's Hospital of Norwich may be taken as an example of these re-established hospitals. According to the Letters Patent of Edward VI. it was granted to the Mayor and Corporation of Norwich, and was to be called the House of God or the House of the Poor: forty men and four matrons were to be provided for; they were to receive bed and bed-clothes, bread, meat, drink and firing. The pensioners were not appointed for life, but were removable from week to week or from day to day^[500]. This hospital therefore was very much like a modern workhouse, except that it was supported by endowments or by voluntary subscriptions.

Occasionally these ancient charities came to be managed by the vestry. Thus in Bristol there were three old endowments of this sort. Redcliffe almshouse was supposed to have been established about 1440 by the famous Bristol merchant William Canninge; the Temple Gate almshouse and Burton's were probably foundations of an even earlier date. The two former were governed by the vestry of St Mary, Redcliffe, and long before 1821 had become simply houses in which aged paupers were placed by the overseers^[501]. Burton's almshouse was governed by the vestry of St Thomas's parish, and was used as an almshouse from which paupers were not excluded. These institutions had thus then become part of the compulsory and legal system of poor relief rather than of the voluntary charity which existed by its side.

1 c. Fresh endowments.

But not only were there many old foundations for helping the aged poor, but the century from 1550 to 1650 was itself the great time of the foundation of new almshouses. It is rare to find a town of any size in which some institutions of this kind were not established during these years, though in country parishes they were not so frequent. They were governed in many different ways, but generally by some public body or by some set of men closely connected with the authorities who were responsible for the administration

of poor-relief. Some were governed by the Corporation like the small almshouse founded by Fox at Beverley. Many resembled the Temple Hospital at Bristol; this was endowed by Sir Thomas White and was vested in trustees who were members of the Corporation. A few were managed by merchant or craft companies associated with the government of the town; such was the case with the Merchants' Hospital of Bristol and Dame Owen's almshouses in Islington. Others were in the hands of private trustees sometimes connected with the founder's family, at other times with his position. The Archbishops of Canterbury were generally associated with some of the favourite charities of the time. Grindal provided a stock for setting the poor to work, Abbot a workhouse, Laud apprenticeship endowments, and Whitgift an almshouse at Croydon for twenty-eight poor people, the government of which he vested in his successors in the see of Canterbury. These hospitals were usually filled by the aged and impotent of the poorer classes. But occasionally they also supplied the wants of the poor in a better social position. The Charterhouse of Colonel Newcome fame was a foundation of the reign of King James, and supplied a refuge for eighty poor gentlemen, merchants, soldiers, or mariners.

Altogether the almshouses of the time formed a very important part of the provision for the poor. In some towns like that of Hereford^[502] they were extremely numerous. Other places like Morton Hampstead seem to have established a public almshouse for the poor, but as a rule these institutions were privately endowed, and the help given by them was thus free from the sting that is attached to legal and compulsory charity.

1 d. Pensions and gifts from endowed charities.

But besides the almshouses many other charities were founded to help the aged poor, some of which have proved of doubtful benefit to their successors. Many pensions and gifts of small amount were distributed by public or semi-public bodies. The City Companies of London frequently received bequests of this kind. Thus the Clothworkers administer the gift of Sir Thomas Trevor. In 1622 he bequeathed £100 in order that six poor women might have 20s. a piece in quarterly instalments. At Bristol every week some one poor widow receives 10s. from Mr Whitson's charity, and two poor householders have 20s. each, though neither widow nor householder can have the gift more than once in the same year^[503].

Innumerable smaller charities also exist in particular towns and parishes ordering the distribution of sixpences and shillings on particular Sundays or Feasts, or after the hearing of some sermon. Even more frequently bread charities were established. Thus in Hereford Cathedral twelve poor people receive a loaf every Saturday, and sixpence on twelve of the principal feasts and vigils of the year[504]. Sometimes so many poor men or women are "apparelled," or gowns, shirts and smocks are bought and distributed: more often fuel and wood are provided[505]. Bequests of this kind are very numerous, but the amount of relief afforded to each individual is often ridiculously small. Still the value of money was three or four times greater then than it is to-day, and a pension of 10s. or 20s. was a much greater contribution towards the maintenance of the poor person. Moreover, parochial authorities and officials of City Companies had comparatively few people to deal with, and it was possible for them to know something about the recipients of these charitable doles.

Altogether the number of endowed charities which afforded assistance to old people was large in the seventeenth century in comparison with the number of persons who were in need of relief. Moreover, new almshouses were continually founded throughout this period and until the close of the century. Probably many of these are in existence to-day, but there has been no increase at all proportionate to the growth of the population, while a few of the old institutions like the Redcliffe almshouse at Bristol have become part of the legal system of relief while others have disappeared altogether[506].

2. Provision for the old from compulsory rates.

But although the aged poor were largely relieved by almshouses there were still many who were

2 a. Relief provided by county funds.

provided for by the legal and compulsory system. Some hospitals were supported by the county funds. There were several in the North Riding of Yorkshire which were used as almshouses for the impotent and aged poor and received grants from the County Treasurer[507].

Aged soldiers and sailors were also provided for not by the parish but by the county. As we should expect this was found to be a heavy charge in Devonshire, and the magistrates grumbled at the amount they had to give for this purpose[508].

2 b. Relief of the aged by means of pensions from the parish or by the provisions of houses or free board and lodging.

More often the aged poor were relieved by the funds raised by the parish. Two methods seem to have been adopted. The most usual was what we should now call a system of out-relief. Pensions were granted varying in amount from threepence to two shillings a week, but generally about one shilling[509]. Sometimes in addition rent was paid and often habitations were provided which were built by the overseers on the waste[510]. But the poor in these were not under any special control but were allowed to look after themselves in other respects. In some parishes, however, instead of receiving weekly pensions the poor were billeted on the rich. In a report from the district of Furness and Cartmell, one hundred and seventy-six people were relieved in this manner, and two hundred and eighty-eight by means of pensions. In this case each parish adopted one method or the other exclusively; thus in Alythwaite thirty-nine poor were billeted, in Coniston twelve were provided for by money payments[511]. In other cases the method of billeting existed as an exceptional practice side by side with the pension system. Thus in Staplegrove, Somerset, in 1599, after the list of payments given for the poor, there are the names of two men, each of whom kept a poor impotent person in his house[512].

The parochial system of the time was therefore mainly a system of out-relief and sometimes free lodging, but it was modified by a practice of "boarding out" the aged. It was of considerably less importance than it is to-day because the amount of endowed charities bore a much greater proportion to the number of old who were to be relieved.

β. Children.

We will now consider the main methods of providing for the young. Compulsory education does not seem to be peculiar to the nineteenth century. In the reign of Charles I. all children had to be taught to work and trained to a trade. The method chiefly employed was that of apprenticeship. But schools, training homes and orphanages also existed in which children received the technical education of the time. Parents were obliged to apprentice their children or put them into service as soon as they were old enough. If the parents were able they paid the preliminary fee themselves; if not, the parish found masters for the children, but in this case they often had to work at the more unskilled trades.

3 a. Apprenticeship to masters.

Sometimes money was paid for the pauper apprentice as for any other child, but at other times men were forced to keep the children without payment. There was often, as we should expect, a great deal of friction in the matter. In a report from Yorkshire, signed by Lord Fairfax, we are told that the justices do their best to find masters and keep the children with them, but that there was considerable difficulty in so doing[513]. Elsewhere there are also hints that the masters wished to free themselves from any burden of the kind[514], but there is much to make us think that on the whole the method at this time worked well. It was apparently the favourite remedy for the time for the evils of poverty. The writers of the legal handbooks insist that it was an especially important part of the duty of overseers[515], while throughout the seventeenth century numerous bequests for the purpose were left by private persons[516]. This is very strong evidence that the philanthropists of the time thought that the binding of poor children apprentice was an excellent way of providing for their maintenance and training. Laud himself was especially interested in the matter. In his own lifetime he made a gift for the purpose of apprenticing ten poor boys of Reading[517], and either during his lifetime or by his will he also provided funds for the same object in Croydon, Wokingham, Henley, Wallingford, and New Windsor[518]. Moreover the Privy Council appear to have specially enforced this part of the relief of the poor and to have demanded and received more detailed reports on this subject than on any other. This action of the Privy Council and the number of these bequests therefore make us believe that the evils of pauper apprenticeship were not very prominent in the seventeenth century. No doubt the fact that it was then the usual custom for an apprentice to board with his master and not a practice chiefly confined to children brought up by charity, made a great difference. Both kinds of apprentices were bound in the same way and would tend to be dealt with in the same manner. The selection of the master would make the principal difference; and the welfare of the apprentice would depend upon the care taken by the administrators of the charities and the parochial funds in providing masters for the children.

The picture in the *Fortunes of Nigel* of Jenkin Vincent, the London apprentice of this time brought up at Christ's Hospital, could not have been very unlike the reality. Great hardship must have been inflicted in some cases[519], but when the practice was new and the custom general, the apprentice bound by charitable funds would not usually be treated much

worse than other apprentices. Otherwise it is not probable the Privy Councillors in their public capacity, and an Archbishop and many other charitable people in their private capacities, would have taken so much trouble to extend this practice by finding the funds for the purpose of thus providing for the maintenance and education of poor children.

3 b. In the bridewells, or Industrial schools of the time.

But not all destitute children were bound apprentice to masters in the town. The bridewells or workhouses of the time had often a special children's department which seems to correspond with our own Industrial schools.

The London Bridewell had thus two distinct functions to perform. On the one side it was a House of Correction, on the other it was a technical school for young people. Sometimes the orphaned sons of freemen were received there, at other times children were sent by the overseers of the parishes, and often young vagrants were brought in from the London streets. They were trained in very various occupations: a full report of the hospital was drawn up in 1631, and we are then told that "four silk weavers keep poore children taken from the streets or otherwise distressed, to the number of forty-five."

There were also more than a hundred others at that time in the Hospital who were apprenticed to pinmakers, ribbon weavers, hempdressers, linen weavers, and carpenters[520]. Christ's Hospital at Ipswich, the Hospital at Reading, and the Nottingham House of Correction, had all training departments of this kind in which many of the poor children of these towns were taught trades.

4. Schools for little children and orphanages.

Besides all this, children who were too young to be apprenticed were in many places taught to spin and sometimes to read and write. We have seen that in Norwich in every parish "a select woman" was appointed for this purpose in the reign of Queen Elizabeth, and in 1630 a similar order was made to the effect "that a knittinge schooledame shalbe provided in every parishe where there is not one already, to sett children and other poore on worke[521]." Even in the hamlets like those of Whitwell and Sellside, in the county of Westmoreland, three poor boys were maintained at the school by the parish who were to be taught trades as soon as they were old enough[522]. In Hertfordshire we are told that many had been placed as apprentices "and such as are not of fitt yeares to bee put forth wee haue caused to bee sett to

spinning and such smale worke as is most meete for them according to the tendernesse of their age that idlenesse may not fasten in them[\[523\]](#)."

These schools were not improbably very numerous. In documents containing the instructions of justices to overseers knitting schools were advocated. Thus in directions issued in 1622 by some of the justices of Norfolk for the hundreds of Eynesford and South Erpingham, the justices resolve "that poore children be put to schoole to knittinge and spinninge dames and the churchwardens and ouerseers for the poore to paie the schoole dames their wages where the parents are not able[\[524\]](#)."

All this points to a system of popular education of the kind then approved.

In the largest towns orphanages also were established about this time. Christ's Hospital in London, as we have seen, was originally established for the little children of the London streets. During this period there were from seven to nine hundred children maintained at the cost of this institution, some in London and some at nurse in the country[\[525\]](#). At Bristol there were two establishments of the same kind. Queen Elizabeth's Hospital was founded by a citizen named John Carr after the model of Christ's Hospital in London. The boys were subject to the same regulations and still wear the same blue and yellow dress[\[526\]](#). The Red Maid's School was endowed by the will of John Whitson in 1621. It was to consist of a matron and forty girls. The children were to learn to read and sew and do such other work as the matron and the Mayor's wife should approve. They were to be apprenticed for eight years, to wear clothes of red cloth, and attend on the wives of the Mayor and aldermen on state occasions[\[527\]](#). In Plymouth, Exeter, and Norwich also there were similar institutions, but they seem to have only existed in the large towns. Both in the country and towns orphaned and deserted children were generally "boarded out" until they were old enough to be apprenticed, and payments were made for them from the rates amounting to about a shilling a week.

Children were thus very well provided for, and their training was considered a matter of national concern. Parents, whether they were very poor or not, were compelled to send their children to work or school and either to apprentice them or to find situations for them. We are apt to consider popular education an exclusively modern movement, but in this, as in many other matters, the aims of the seventeenth century anticipate those

of the nineteenth. They had ideas which were very different from those of to-day as to the kind of training which was necessary, but they attached an equal importance to the necessity of training. The Town Council of Norwich and the justices of Hertfordshire and Norfolk took energetic action in the matter.

γ. The able-bodied poor.

5. Relief given to prisoners.

We will now see how the administration of the time affected the able-bodied poor. The help given to the unemployed is by far the most important part of this relief, but some aid was also given to prisoners.

The prisoners of the sixteenth century must have suffered great hardships. No adequate means seem to have existed for their maintenance. Their friends supported them, and under certain regulations they were allowed to beg. Several statutes made in the reign of Elizabeth provided partially for their support as part of the relief of the poor[528]. By the statute of 1601 prisoners were to be relieved by a county rate. The County Treasurer, who was responsible for the relief of soldiers and hospitals, also disbursed a part of the funds to them, and every county was bound to pay at least twenty shillings a year to the prisoners of the King's Bench and Marshalsea[529]. Still the help given was very small; up to 1650 the allowance granted to the poor in the Norfolk prison was only a penny a day[530], and this sum could barely have sufficed to keep them alive. In Devonshire their allowance was increased in 1608 because "divers of them of late have perished through want"[531]. We must remember that incarceration in these prisons was the fate of debtors. Charitable people tried to help these people, and bequests were often made for the purpose of granting them some assistance. Thus in the reign of Charles I. George White of Bristol left a gift of five pounds a year to be used for the purpose of freeing or relieving some of the prisoners in the Bristol Newgate, and there are many other bequests of the same kind[532]. Still the amount of these legacies was wholly insufficient for the need. Certainly neither the legislators nor the administrators of the reigns of the earlier Stuarts made the criminal poor more comfortable than the unfortunate poor. If we realise the condition of the prisoners of this time we can understand why Houses of Correction were regarded as charitable foundations. We can also see how it was that whipping and stocking were so frequently inflicted and that they were comparatively merciful punishments.

6. Provision of funds to provide work for the unemployed.

But the provision for the unemployed workmen is by far the most characteristic part of the early seventeenth century administration. A man who was unemployed and had no resources had either to beg or to steal. If he begged, he was whipped; if he stole, he went to one of the terrible prisons of the time. The bands of armed vagrants, who made themselves terrible by their numbers and defied the law, were therefore only a natural consequence of the social conditions of the period. Repressive measures were tried but did not succeed because force could not restrain a man from begging if that was his only means of escaping starvation. The provision of work which had been made for the unemployed before 1597 was quite inadequate, and it remained for the earlier Stuarts to develop and extend the system.

We will examine first some of the methods of raising funds which now came to be utilised, and secondly a few of the various plans adopted in different places at different times with the object of employing the poor.

It is characteristic of the time that the money was frequently provided by private people. At Guildford Archbishop Abbot founded a workhouse, and we are told that the poor men of the town were employed to spin flax and hemp into cloth, and that this was found to be a "great comfort to many poore workefolke men, women and children^[533]".

At New Windsor several sums of money were left for this purpose. One of these was bequeathed by Andrew Windsor in a will dated 1621. He bequeathed £200, the annual interest from which amounted to fourteen pounds. With this the poor were to be set to work in the making of cloth. To some extent the donor's intentions were fulfilled up to the present century. During the eighteenth century and up to 1829 the money was expended in setting the poor to work to spin sheeting^[534].

There were many other gifts of the same kind, but of some no farther trace has been found, while others are employed for a somewhat different purpose^[535].

Besides these voluntary contributions the finding of work for the unemployed was still in some cases regarded mainly as a municipal duty. Thus at Richmond in Yorkshire before 1631 the money for this purpose had been provided from the town chest, and about the same time a contribution was requested but not obtained from the Corporation of Wells^[536].

Usually however the funds were provided by means of parochial rates. A lump sum was raised called the "stock." This was expended in purchasing materials and implements, and ought to have been continuously replaced when the finished products were sold. A "stock" was thus obtained in the three parishes of Beverley; each parish contributed six or seven pounds, besides the amount they formerly had, and the poor were employed in spinning hemp[537].

It was usually in these three ways that the money was raised for the purpose of finding work for the unemployed, but many different methods were used in the administration.

7 a. Stocks used to employ the poor in their houses or elsewhere.

We will now examine some of the more typical cases of setting the poor to work. Generally we hear that stocks were raised and the poor found with work, but we do not hear that the work was done in any public building.

It does not follow that a building was not used, but we do not hear that one was provided. We will first notice a few instances in which the poor were set to work in this way, and we will then examine some of the Jersey schools and the workhouses and Houses of Correction of the period. Lastly, we will endeavour to see what expedients were adopted by public or semi-public authorities to provide the poor with work without directly employing them. Under this head we will notice such expedients as emigration, putting pressure on employers, and the various ways in which a young artisan or tradesman was helped to set up in business for himself.

We shall see later that all these expedients were adopted much more often after 1631 than before it, and it is at that date that our information is most complete. About that time we hear of several ways in which the poor were employed directly or indirectly by the public authorities, but in which we are not told of the erection of a workhouse or other building of the kind. In Winchester, for instance, the stock was placed in a clothier's hands; at Maidstone "the towne doth ymploy poore women and their children in spinning, making of buttons and twisting of threed for the same." In two of the hundreds[538] of Shropshire "the poore of euery paryshe wthin the said hundreds are sufficiently provided for and are not permitted to wander or beg but are set to worke on husbandry as the state of the countrey doth require."

All these and many other instances are reported in 1631, but there are examples at other times. At Norwich many plans were tried[539], but in 1625 it was resolved that the stone-mines should be used for that purpose. The workmen were to be "sett on worke" the next Monday at eight o'clock and surveyors were ordered to be present. "And the Belman ys required to warne all such as want worke and dwell not in infected howses to repaire thither at that hower wth barrowes and fittinge tooles to digg stone & they shall be compounded wthall for reasonable wages[540]."

At King's Lynn also different expedients were adopted. As early as 1581 money had been spent in changing St James's Church into a workhouse, and shortly afterwards we have evidence of employment being then given to the poor. In 1623 the building was pulled down, and possibly in consequence of this we find an agreement made in that year between the citizens on the one side and a merchant taylor, a glover and a woolchapman on the other. These last undertook not only to teach children to spin worsted yarn, but also to give employment to the poor, and to pay proper wages to those who were not learners. In June, 1631, the Mayor and the Recorder sent in a report to the Sheriff, in which they said that then they had "bought materials to sett the able-bodied poore on worke not suffering to o^r knowledge anie poore to stragle and begg upp and downe the streets of this Burgh[541]." In Lynn, therefore, the authorities on several occasions made energetic efforts to find employment for those out of work, and very possibly some arrangement of this sort was in continuous operation from the year 1581.

7 b. Introduction of new trades.

Sometimes the authorities utilised the labour of their poor in order to establish a new trade. Thus in eight of the towns of Hertfordshire public funds were obtained for an unsuccessful attempt to employ those out of work in making serges and baize, then called the "new drapery[542]." A project of the same kind was suggested to the justices of Pembrokeshire, but they were very cautious about committing themselves to its adoption[543].

Our informants generally tell us only that stocks were raised and the poor set to work. But from the instances we have just examined we can see that many kinds of employment were used. On the whole clothmaking and the provision of flax, hemp and tow were the most usual expedients.

But both private employers and public officials found that if the very poor took work into their homes they might embezzle the materials. Moreover, the seventeenth century administrators often carefully provided for the training of workers, and this could be more conveniently done in some building. We, therefore, hear of the erection of workhouses and Jersey schools and the continued use of Houses of Correction. At Newbury and Reading institutions of this kind were founded by Mr Kendrick. At Newbury we are told threescore persons were employed in the trade of clothing and other manufactures, most of these "being houskeepers and havinge wyfes and children depending upon their labours." Besides this fifty households were set to work by spinning for the workhouse, and a "stock" was raised by taxation to be partly expended "to imploye the poore in worke[544]."

We have detailed accounts of the Sheffield corporation. From these we find that they spent about two hundred pounds in building a workhouse and providing the necessary materials. The details of the construction were very carefully planned; the carpenters were sent to Newark to see the workhouse there and every item of expenditure is set down in the accounts[545].

At Taunton and Abingdon similar institutions seem to have been established in consequence of the special activity of the years after 1630. The Taunton workhouse was newly built in May 1631, and some children and others who were able to work were already sent there to be trained in labour[546]. In June also in 1631 the Mayor of Abingdon reports that "wee haue erected wthin our borough a workehouse to sett poore people to worke[547]."

At Cambridge the workhouse was also a House of Correction. In 1628 many houses had already been built for the benefit and employment of the poorer sort of people, and in that year Hobson gave the town the site without Barnwell Gate on condition that a more convenient place should be erected. This was soon afterwards begun, and was partially paid for by certain sums, which had been sent to the town for the plague-stricken poor in 1631, and which after that time remained in the hands of the Corporation. In 1675 Hobson's workhouse was still not only a House of Correction but a place where five combers could be employed if they wanted work, and where all the poor people of the town that desired to have work in spinning and weaving were to be provided with employment and to be paid the usual wages[548].

In these cases the workhouses are all in large towns, but in one country district there were small institutions of the kind in the parishes. The justices responsible for Little Holland in Lincolnshire report in 1635 that in "all our seuerall parishes wee haue a Towne stocke with a workhouse, a master and utensills and that there hath beene aboue two hundred poore people sett on worke and imployed weekly by the officers[549]."

Workhouses were thus fairly numerous and varied greatly in size. They were not then like a modern workhouse, but were places where people who could work were sent that they might be trained and employed. They were, too, municipal or parochial institutions, whereas Houses of Correction were not parochial, but were either municipal or county undertakings.

7 d. Bridewells.

In the sixteenth century we have seen that the distinction between the two was not very great, but in this period the new Houses of Correction are much more like gaols. This is especially the case with those erected by public funds, those which were privately endowed still retained much of their old character. London, Bristol, Norwich, Gloucester and many other places had organised their Bridewells either before or during the reign of Queen Elizabeth, and we have already noticed that there were four Houses of Correction in Devonshire in 1598[550]. It was during the early part of the seventeenth century however that Houses of Correction appear to have been established in every county. They formed a necessary part of the system of the time. You could not provide work and maintenance for everybody unless you had some arrangement for coercing idlers. A great many of these institutions appear to have been established or revived after 1597. In 1598 one was founded at Liverpool, and in 1601 some measures of the same kind were taken in Nottingham and in Kendal, Westmoreland[551].

Others were erected shortly after the statute of 1610 was passed: thus in 1614 the City of London consented to help the counties of Middlesex and Surrey to build Houses of Correction: about the same time the Nottingham burgesses furnished and reorganised St John's Hospital for this purpose, and both Preston and Manchester had followed the same example before 1620[552]. In the reports of 1630 to 1639 the existence of Houses of Correction is assumed, since the justices state how many idlers have been sent to them[553]. Sometimes the reports give a few details concerning them; at Hastings the justices tell us they have kept their House of Correction in

good repair^[554], and from the justices of Edwinstree and Odsey in 1631 we learn that a House of Correction had been long maintained at Buntingford, and that the justices send their prisoners there although there is a more important institution of the kind in the county, fourteen miles distant^[555]. The justices' reports thus indicate that Houses of Correction were established in most places before 1635. This impression is confirmed by a letter from the Earl of Pembroke to the justices of South Wiltshire. He complains that there is no place of the kind nearer than Devizes, and he asks the Council to enforce his request that another should be built in Wiltshire^[556]. This letter would hardly have been written unless in 1623 it was usual for Houses of Correction to be nearer than Devizes is to South Wiltshire, and seems therefore to show that they were now a general institution.

Their character seems to have been much the same as in the preceding century. They provided a temporary lodging for stranger vagrants and a house of detention in which the idlers and offenders convicted for small causes could be made to work hard and were possibly reformed. Coarse kinds of labour were used at the London Bridewell, mainly the beating of hemp, but sometimes other plans were tried and the prisoners were put under the care of undertakers who agreed to keep them all at work and made such profit as they were able^[557].

But there were many other ways in which the unemployed were provided for. The modern remedy of emigration was adopted, pressure was put upon employers and there were various ways in which money could be lent to set a young householder up in business.

7 e. Emigration.

It was about this time, and partly in connection with Bridewell, that the remedy offered by emigration was adopted. It was the age in which several of our colonies were founded and first developed. The earliest vagrant emigrants were sent to Virginia. We hear of a payment of 12s. 3d. from a London parish "towards the transportacon of a hundred children to Virginia by the Lord Maior's appointment," in 1617 and in 1619^[558]. Again, in 1622 and 1635, vagrants were detained in Bridewell for Virginia, who were usually paid for by municipal funds and collections, though in a few cases we are told that the parochial officials sent particular people and paid their expenses. A few years later some vagabonds were sent to sea, and others were put to work in

the Barbadoes[559]. The emigrants did not come only from London; three boys of Barnstaple departed in 1633-4, and probably there were many more both from Barnstaple and other places. The emigrants thus sent out were bound apprentice for some years to some employer, and at the end of their term of years they were to have the opportunity of making plantations for themselves. There is a declaration made in 1647, by the Earl of Carlisle, who was Lord of the Caribbee Islands, in which it is stated that there was not land enough in Barbados for all who had served their time[560], and that every freeman unprovided with land may have a grant in his other island of Antigua.

In the midst of all the abuse heaped upon the vagrant in his own time and in our own, it is interesting to remember that he sometimes did something useful when he got the chance. Even in the days of the Stuarts he and his descendants played a part in developing the British Empire and in founding the settlements which led to the existence of the United States.

7 f. Pressures on employers.

But work was also provided for the unemployed by means of pressure exercised on employers. We have already seen how both in the sixteenth and seventeenth centuries the Privy Council endeavoured to compel cloth manufacturers to continue to carry on their trade, and how cloth merchants were called before the justices and judges and ordered not to dismiss their men[561]. Another instance of the same kind of interference occurred soon after the outbreak of the Civil War. After Bristol was captured by the Royalists, Prince Rupert endeavoured to relieve the distress of the time by ordering the clothiers to keep their workpeople employed for one month at least[562].

In another case we can see the justices exercising pressure on particular individuals not because of a fluctuation of trade, but in order to carry out the ordinary provisions of the poor law. Hitchen was the centre of an agricultural district, there was no manufacture in which men could be employed: wages were very low and many were out of work. The justices therefore ordered the "richer sort" to give employment, but they thereby only occasioned complaints, for in this part of the country there seems to have been a permanent difficulty in finding work for the poor[563].

At other times municipal rulers exerted their influence in favour of the inhabitants of a particular town. Thus in 1623 at Reading certain poor

complained; the clothiers were warned to appear and thirty of them came to the Guildhall. It was arranged that two clothiers should be appointed to consult with the overseers and see that the poor were set to work. However the complaints still continued, and both at this time and in 1630 the difficulty was met by ordering the clothiers to have all their work done in the town and not to send it into the country. The distress at Reading was thus lessened at the expense of the surrounding district[564].

That the public authorities of state and town thought they had a right to exercise pressure of this kind is evident, and many incidental sayings show us that the employers considered they had a duty in the matter. Thus at Norwich the hosiers, finding that they cannot sell their stocks, tell the town rulers that though they have not yet dismissed their men their money is exhausted and they find it is impossible for them to go on much longer[565]. They thus intimate that it was their interest to have dismissed their men sooner but that they held on as long as they could. In another case an employer writes to Nicholas about some payment, and hopes he will be used well by the Council because during a bad time, when most men stopped work, he continued his manufacture and kept nearly one thousand people at work, although he lost heavily by so doing[566].

All this shows that the employers recognised some sort of responsibility for the men whom they usually employed. The continuance of business would save much hardship if the cause of distress was merely a temporary fluctuation in trade. In the cloth-manufacture this was often the case, and therefore the pressure brought to bear on employers in this direction must be considered a real method of helping the poor.

But there was another way in which pressure was put on employers. We occasionally find that the town, instead of providing a stock of materials to set the poor to work, reported that the inhabitants found employment for them or that the inhabitants provided hemp and tow and flax and set the poor to work themselves[567]. This not improbably points to some plan like that of the roundsman system of later days. A man in want of work, on applying to the parish authorities, was sent round to different employers and was set to work by each of them for a short period. This plan does not seem to have been much used, for in most cases the justices mention that the overseers had raised stocks of money in order to provide work for the ablebodied, and thus imply their intention of giving direct employment.

7 g. Advancement of capital without interest.

Perhaps the charity which was most peculiar to the seventeenth century was that of lending sums of money to set young tradesmen and artificers up in business for themselves.

During the sixteenth and seventeenth centuries capital was growing a more and more important factor in production and it was becoming an increasingly difficult thing for the young journeyman to become a master.

We must remember that six to twelve per cent. was the ordinary rate of interest at the time. The difficulty of paying so much probably prevented many poor young men from starting business. Moreover all through the Middle Ages lending money for interest was considered contrary to Christian morality, and many men still held to the old opinion. In great numbers of places therefore funds were bequeathed to what have been termed "Lending Cash Charities." Sums were lent to young men, or sometimes to older men who had lost their capital, either for no return or at what was then a low rate of interest, and the borrowers had to find security for the repayment of the original sum. Many of the City Companies are responsible for the administration of very considerable sums of this kind. The Haberdashers' Company alone possesses £2510 which ought to be lent gratis and which was bequeathed by many different donors between the years 1569 and 1638. The Mercers' Company possesses at least twenty-one gifts of this kind. One of the most considerable of these is that of Lady Campbell, who in 1642 bequeathed £1000 which was to be lent gratis on good security to eight young men of the Mercers' Company; shopkeepers of the mercery were to be preferred, and next to them silkmen[568].

Not only the City Companies but also the town rulers of most provincial towns and sometimes parish authorities were trustees for such charities. At Ipswich bequests of this kind are especially numerous; they are much smaller in amount than those of London, but they are typical of the kind of charity that once existed in almost every town in which old records remain. In common with twenty-three other towns, Ipswich had an interest in Sir Thomas White's will and received in its turn £100 to be lent to four poor tradesmen. Besides this no less than eleven other legacies of this sort were received before 1635. Amongst these Mrs Alice Scrivener gave £100 to be lent gratis to ten people for four years, Christopher Cock gave £100 to be lent to four clothiers for five years, and John Barrett £20 to four shoemakers

without interest[569]. At Reading the same kind of thing was done; in 1626 Mr Ironside left £100 to be lent gratis to two clothiers and two shopkeepers, and in 1633 Richard Johnson gave £100 for four tradesmen for twelve years[570]. At Oxford there were once many sums for such loans, but these have most of them either been lost or are used for other purposes[571].

In Barnstaple, Bristol, Newbury, Lichfield, Wolverhampton and Colchester[572] there were similar bequests, and apparently in most towns charitable funds of this kind were in existence during the reigns of the earlier Stuarts. It was one of the ways in which the philanthropists of the time endeavoured to give employment, only in this case it was not to the vagrant, but to the householder or skilled workman. Usually these sums were given by private people and administered by the town. But at Hitchin we find something of the kind suggested as a method of poor relief. The justices in their report recount the sufferings of the poor during the plague, and say that "three poore tradesmen who were shutt up And haue lost their custome and spent their meanes haue petitioned for stock to put them into Trade againe[573]." The matter was not yet decided, but from the justices' language it is clear that they regarded it as quite within their power to grant relief in this manner. John Lock, tailor of London, bequeathed gifts of £5 to £10 to the apprentices of Bridewell with a similar object, and, having regard to the circumstances of the time, few charities would probably have had a better effect if they had been honestly administered.

We thus see that many different methods were employed to relieve the old, to train the young and to give work to the able-bodied. The examples we have already given afford some evidence that legal poor relief had become well established in many districts, but it was not equally well administered at all times and in all places. We will now inquire when and how the administration of the law was improved, and the answer to this question may suggest the reason why the history of the English Poor Law is different to that of the rest of Western Europe.

CHAPTER XII.

1597-1644.

THE ADMINISTRATION OF THE POOR LAW AS A WHOLE.

1. Importance of the period 1597 to 1644.
 - (a) Because it was the period when the relief of the impotent poor became established.
 - (b) Because it is the only period in which many efforts were made to set the unemployed to work.

Administration of the Poor Law as a whole.

2. Negligent administration of the Poor Law in the North and extreme West.
3. The administration of the Poor Law in the rest of England varied with the action of the Privy Council.
4. Action of the Privy Council and administration between 1597 and 1605.
5. Action of the Privy Council and administration between 1605 and 1629.
6. Action of the Privy Council and administration between 1629 and 1644.
 - (a) State of affairs in 1631.
 - (b) Improvement effected in 1631 and 1632.
 - (c) Improvement maintained between 1631 and 1640.

Provision of Work for the Unemployed.

7. The improvement effected in 1631 especially concerned the unemployed.

8. The detailed report from Bassetlaw.
9. Provision of work: (a) in the North and extreme West, (b) in the towns, (c) in the Western counties, (d) in the Eastern counties.
10. Summary.

1. Importance of the period 1597-1644.

We have already examined both the machinery which existed for the execution of the poor law and the different methods which were used for relieving the impotent, for training the young and for providing work for the unemployed. We have now to consider the administration as a whole; to find out when and where the machinery was put in motion and how far these methods were generally employed. The history of poor relief in the sixteenth century has already shown us that it was far more easy to pass a Poor Law than to procure a good system of administration. There were many poor laws before those of 1597 and 1601 but they were not well administered: they were never so generally or so effectively enforced as to become part of the practice as well as of the law of the country.

1. (a) Because it was the period when the relief of the impotent poor became established.

If the last Elizabethan poor law had been no more successful than these earlier statutes the whole system of compulsory poor relief would probably have collapsed during the Civil War. The fact that the part of the poor law relating to children and the destitute survived that war, and has ever since formed part of our social organisation may be attributed therefore to the improved administration of the earlier Stuarts. The administrators of this period are thus responsible for the continued practice of any legal system of relief at all.

1. (b) The period 1597 to 1644 is also the only period in which many efforts were made to set the unemployed to work.

But the history of administration during this period is important for a second reason. The part of the poor law relating to the impotent poor and children has been enforced ever since the reign of Charles I., but the clauses relating to the unemployed were very little executed after the Civil War. In 1662 the destitute were relieved, but the unemployed were no longer set to work. In this respect therefore the poor law administration of the reigns of the earlier Stuarts is unique. It is interesting therefore to examine the methods then employed a

little more closely and see if the instances of the provision of work which we have already considered are isolated cases of this kind of relief or if they are examples of a general system. If the unemployed were at all generally set to work, then this period is important, not only because the legal relief of the destitute then became the practice of the country, but because we then had more poor relief than we have ever had before or since. For a short time a limited kind of socialism was to some extent established.

We will therefore now try to find out how the events of the period throw light on these two points; (1) when and how was the system of poor relief thoroughly established, and (2) how far was that part of it which concerned the employment of the poor ever an important part of the social organisation of the country.

The two parts of our inquiry are much intermingled, and it is impossible to separate them entirely. But in the first part we will consider the system of poor relief as a whole including the finding of work for the unemployed when it is closely associated with the other portions of the system, and we will afterwards examine more in detail a few points which especially concern the provision of work.

2. The administration of the law in the North and extreme West was negligent.

With regard to the relief of the poor as a whole, it seems clear that the law was not equally well administered at all places or in all times. The places in which the administration of the law was least satisfactory were those farthest from the seat of government. They are indicated in some cases by the absence of justices' reports; in others by the character of the reports, or by the distinct statement of the statute of 1662. From Northumberland and Cumberland and some of the counties of Wales we have no justices' reports on the poor law, and we have little evidence from other sources as to any effective enforcement of the law. From Westmoreland and Lancashire we have very few reports until 1637 and 1638, and these seem to indicate that the system of poor relief was then only recently introduced^[574]. From Wiltshire, Devonshire and Cornwall we have a few reports, but they indicate a comparatively careless administration. There are few or no cases of setting the poor to work, and in Wiltshire it was difficult to find masters for the apprentices. But except in Northumberland and Cumberland some kind of legal poor relief was administered in all these counties, although it seems to have been less well

administered than in other parts of the country. The statute of 1662 tells us that at the time of its enactment parts of Wales, the counties forming the Bishopric of Durham and the county of Yorkshire derived little benefit from the statute of Elizabeth^[575], and except Yorkshire, these counties are precisely those from which we have few or no reports.

But in the South-east and Midland parts of England and the rest of the Western shires the case was different. During some part of our period the system seems to have been on the whole fairly well organised.

3. The administration of the Poor Law in the rest of England depended upon the action of the Privy Council.

But this was not equally the case at all times. It was the case only when the justices were vigilant, and they seem to have been made vigilant mainly by the frequent letters and orders of the Privy Council.

It is this action of the Privy Council that seems to make the administration of this period different from that of the sixteenth century, though it was the existence of the justices that caused this action to be so effectual. But the letters and orders of the Privy Council were not always equally frequent even during the period from 1597 to 1644.

We have already seen that in 1597 a letter ordering the good execution of the new poor law was sent to all the justices of England and Wales. We have also seen that between 1597 and 1629 this kind of action was exceptional. The Council interfered in particular cases, and in times of scarcity commanded general measures of relief, but before 1629 it did not steadily enforce the administration of general measures with regard to the relief of the poor in ordinary times. But from 1629 to 1640 we find that the matter is altogether different; a commission is appointed, a new organisation is introduced by the Book of Orders of 1630/1, and for nine years the pressure of the Council on the justices is constant and continuous. We have now to see if the improvement in the general administration of the poor law in all parts of the country corresponded to the periods when the Privy Council was vigorous. We will consider first the period between 1597 and 1605, secondly that from 1605 to 1629, and lastly the years from 1629 to 1640. We shall find that there are grounds for believing that the administration of the system of poor relief was best when most pressure was exercised and was lax when pressure was withdrawn. The main improvement therefore in

the organisation of the system took place between 1629 and 1640, that is under the personal government of Charles I.

4. Action of Privy Council and administration between 1597 and 1605.

The directions of the Privy Council in 1597 seem to have had an immediate effect both as regards measures of relief and measures of repression.

As regards the repressive measures and the efficacy of Houses of Correction the opinion of Lord Coke is decisive. He had many opportunities of knowledge and had no reason for not being impartial. Speaking of the employment and correction of vagrants he says, "And this excellent work is without question feasible. For, upon the making of the statute of 39 Eliz. and a good space after whilst Justices of the Peace and other officers were diligent and industrious there was not a rogue to be seen in any part of England, but when Justices and other Officers became tepidi or trepidi Rogues etc. swarmed again." Speaking of gaols and Houses of Correction he tells us, "Few or none are committed to the common gaol amongst so many malefactors but they come out worse then they went in. And few are committed to the House of Correction or Working-House, but they come out better[576]." For a little time therefore vagrants were repressed, and the discipline and relief afforded in Houses of Correction were very efficacious.

There was also an improvement with regard to the administration of relief to the more deserving classes of the poor. We have already seen that special energy was displayed in the West Riding of Yorkshire at this time, and that there the justices found it very difficult to administer the law, but did execute it to a considerable extent. In Devonshire also the justices received a letter from the Lord Lieutenant, urging them to take especial care for the relief of those in want, and they too began to take measures for carrying out the law. They revoked the licenses granted for beggars, put in order the Houses of Correction and authorised a system of organised billeting on the rich. The poor were to be relieved with two meals a day, one to every household or two or more according to the ability of the householder. If there was any default the justices might assess any sum up to eighteenpence weekly "for every pole[577]." Moreover the justices were to raise stocks for setting the poor to work. All this points to a great increase in vigilance after the Order in Council of 1597 and it also points to the fact that the administration was recent. A general system of billeting was seldom

adopted when the legal relief of the poor had been long put in practice. Moreover Devonshire and Yorkshire in later times were backward in administering the law, so that the improvement was probably at least as great in other counties.

We should also derive a favourable opinion as to the good execution of the law at that time from the Duke of Stettin's account of his journey through England in 1602. Speaking of the Royal Exchange he states, "It is a pleasure to go about there, for one is not molested or accosted by beggars, who are elsewhere so frequently met with in places of this kind. For in all England they do not suffer any beggars except they be few in number and outside the gates.

"Every parish cares for its own poor, strangers are brought to the hospital, but those that belong to the kingdom or have come from distant places are sent from one parish to the other, their wants being cared for until at last they reach their home^[578]." The Duke of Stettin judges favourably most things that he sees in England but still his account could not have been written unless beggars had been out of sight in the parts visited by him and unless the poor had seemed to be relieved in England more effectually than in his own country.

After 1597 therefore the execution of the law appears to have been more vigorous and the improvement is likely to have been connected with the action taken by the Privy Council in that year.

5. Action of the Privy Council and administration between 1605 and 1629.

We will now see how the administration of poor relief was carried out between 1605 and 1629. We know that during these years the Privy Council did not make continuous efforts on behalf of the deserving poor. A commission however was contemplated in January 1619/20, and the special measures in connection with the years of scarcity of 1621 to 1623 were much more organised than in former years, and may have suggested an improved administration of the law about that time. We therefore find that on the whole the law appears to have been badly executed but that from 1621 to 1623 some improvement took place.

We will first see what are the grounds for thinking the law was badly executed between 1605 and 1629.

Lord Coke himself tells us "rogues soon swarmed again" and his opinion is confirmed by the evidence of a tract of this time called "Stanleyes Remedy or the VVay how to reform wandring Beggers, Theeves, high-way Robbers and Pickpockets."

This pamphlet was not published until 1646 but seems to have been composed about the year 1606[579]. The writer is a converted highwayman who is anxious for the reformation of his fellow-sinners. He states "that Beggerie and Theeverie did never more abound," and he complains that the branding and whipping parts of the statutes are put in execution long before any place is provided where the poor could have work. He thought that this was most unfair to the vagrants for many of them would work if they could and go voluntarily to workhouses if they were in existence. He therefore urges the establishment of places where men could have work in all the larger parishes of the kingdom[580].

Another pamphlet complaining of the bad execution of the law was entitled "Greevous Grones for the Poore" and was published in 1622. The writer of this states that "though the number of the Poore do dailie increase all things worketh for the worst in their behalfe. For there hath beene no collection for them, no not these seven yeares in many parishes of this land especiallie in countrie townes; but many of those parishes turneth forth their Poore, yea and their lustie labourers that will not worke or for any misdemeenor want worke, to begge, filth, and steale, for their maintenance so that the country is pittifully pestered with them[581]."

Another document of 1624 gives precisely the same information. This is a letter from a Mr Williamson to Sir Julius Caesar, the Master of the Rolls, who was one of the most charitably disposed gentlemen of the time. The writer thinks the neglect of the overseers to apprentice children is the true cause of vagrancy. He tells us that the seventeenth century vagrant like the modern tramp was very seldom a man who knew a trade[582]. The existence of these untrained men was due to the fault of the administrators of the Poor Law. For these "intollerable offences haue originally growen from the Ou(er)seers of the poore who heretofore and att this day haue and doe so ou(er)see as though they did not see at all[583]."

These writings would therefore lead us to believe that justices soon grew careless; the poor were not relieved and in many places there was very little

execution of the law at all. All these statements are made by writers who are vigorously supporting only one side of the case but the official evidence of the period confirms their view of the matter. The reasons given for the appointment of the commission suggested in 1619/20 show that the unofficial writers had not exaggerated the existing neglect in the administration of the poor laws. Good laws have been made but they are not executed because the justices are negligent and the judges of Assize have not time to fully investigate the matter. The laws in consequence "are in many partes of our Realme laid aside or little regarded as lawes not in force or of small consequence, whereas in some other counties and partes of this kingdome in w^{ch} by the diligence and industrye of sume justices of the peace and other magistrates the said lawes haue bine dulye putt in execucon there hath evidentlye appeared much good and benefitt to haue redowned to the Comon welth by the same[584]." At this time therefore there was a real likelihood that the poor law would become obsolete.

However the season of scarcity in 1622-3 was accompanied by a crisis in the cloth trade and the Privy Council was active in enforcing measures of relief. A great improvement was consequently then effected in the execution of temporary measures of corn relief, and some reports indicate that this was accompanied by a better administration of the ordinary poor law also.

Thus from Burnham in Buckinghamshire the justices report, "We have alsoe looked into and have caused the poore to bee well provided for in every parrish within this diuision both by stocks to sett them on worke as alsoe by weekly contributions[585]." From several of the hundreds of Suffolk there are similar reports. Thus in every "towne" of Lackford and Exning the rates had been augmented and the "poorer sorte of people within the seurall townes and places are ordered to be sett on worke[586]." From other districts in both East and West we have like accounts[587].

Between the years 1605 and 1629 therefore the administration of poor relief was on the whole negligent and in many districts the poor law was already considered to be of little importance. The government was however still anxious to secure its enforcement and the measures taken to relieve distress in 1622-3 effected an improvement in a few districts.

6. Action of the Privy Council and administration

But from 1629 to 1644 we have a different state of things. We know already that during this period the

between 1629 and 1644.

action of the Privy Council was continuous and constant, and it is in this period therefore that we shall be able to see how far it was effective. The justices' reports, to which we have already often referred are the main sources of our information.

We will endeavour to see how far the evidence of the early part of the period confirms the view we have already formed as to the administration of the law at the beginning of the time, and we will secondly try to estimate the evidence as to improvement during this period.

The condition of affairs before 1631 is indicated by the preamble to the commission of Jan. 1631/2 and by some of the earlier reports of 1631. The reasons given

6. *a.* State of affairs in 1631.

for the appointment of the commission of 1631/2 are almost exactly the same as those given in the draft of 1619/20. The justices are said as before to be negligent so that the laws were almost obsolete in some parts of the country, and this alone shows that there had been little permanent improvement since 1620. The preamble also refers to an earlier time "vpon the present making of the said lawes," when they were duly executed and thus confirms the evidence as to the good execution of the laws after 1597[588].

The justices' reports of 1631 give us more detailed information of the same kind. One of these was sent from three of the hundreds of Hampshire, Fawley, Bountisborough and Mainsborough. The justices say that they sent an abstract of the act to the officials concerned and ordered constables, tithingmen, and overseers to bring presentments to them. But they "for the most parte" replied, "that they haue noe poore that wanted worke or releife, that they had noe rogues but suche as were punished." The justices thought this state of things too good to be true; they made further enquiries and found that the highways were out of repair, that no monthly meetings had been held by the overseers and that there were no stocks for setting the poor to work. They also heard that some of the poor were "in noe small want" but did not complain because of ignorance or fear. They hoped to effect improvement by exacting fines for negligence, by publishing the particulars of their monthly meetings, and by sending a series of definite questions to the overseers as to the names of the poor relieved or set to work and of the children over ten years of age who were not bound apprentice[589]. In this way they tried to obtain detailed statements so that there could be no

evasion of the law. There is a later report from Fawley concerning corn and apprentices, and the part of the law relating to apprentices was certainly then carried out[590].

But there are other districts in which the justices do not tell us of negligent officials, but rather seem proud of their vigour and yet seem to imply that it was only recently the law had come into force. This is particularly the case in Radnorshire and Cheshire. In two divisions of Radnor the justices say they have appointed overseers, and have given particular directions as to the provision of stocks and return of the names of the poor relieved[591]. The reports suggest that the justices were now energetic, but that little had been done before; the mention of the appointment of overseers is unaccompanied by the word new or by any statement as to the rendering of the accounts of the old overseers, so that it is possible that these were the first overseers appointed in that district.

In two of the divisions of Cheshire the same state of things is implied more definitely. The justices say that they have ordered the collection of a stock for the setting the poor to work and for the relief of the impotent, but they find the people poor and averse to paying money for any purpose of the kind. They fear some time will elapse before these orders can be properly executed. At present these divisions have not got a House of Correction, and the justices wish to have one in the Castle in order that they may be able to subdue the people to subjection[592]. These reports seem to reveal a very primitive state of things, and recall the difficulties in the West Riding of Yorkshire in 1597, when poor relief seems to have been first enforced there, and the people greatly objected to the imposition of rates.

Other reports show that the Book of Orders strengthened the hands of reformers; thus in the town of Wells, charities had been negligently administered, but after the issue of the orders the Recorder was able to procure information formerly withheld, and hoped to effect farther improvement by obtaining a commission of charitable uses[593].

It is thus fairly clear that before 1631 the law had not been well administered. We will now examine the evidence as to the improvement between 1631 and 1640.

6. *b.* Improvement
effected in 1631 and

The greater number of the reports of 1631 and 1632 point to some execution of the law before 1631 and

suggest improvement rather than entire innovation. The justices generally state they have "raised rates" or have bound many more children apprentices or that stocks had been provided in the parishes where there were none before. Two reports enable us to trace the process of improvement in detail, and seem to throw considerable light on the general statements of other documents of the kind. They do not however present so favourable a view as to the execution of the law as most of the other returns. These reports relate to the district of Braughing in Hertfordshire. The overseers of thirteen places in the half hundred of Braughing made returns to the justices at six successive monthly meetings held in accordance with the provisions of the Book of Orders, between Feb. 7th and June 27, 1631. Abstracts of these returns were sent in by the justices in two documents, one of which was forwarded in April and the other in July 1631^[594]. We can thus see exactly when the improvement was effected. At the first meeting four parishes provided corn at reduced rates for the poor. The Book of Orders relating to scarcity had been issued since September, and we should expect some improvement would already have been made. Six sets of overseers had already placed some children apprentices, but not very many, and only two of the largest places had stocks for setting the poor to work. At the last meeting on June 27th relief was much more extensively administered. Two other places provided corn at reduced rates: the six parishes which formerly had placed a few apprentices now bound many more, while five other townships also provided for the children in this manner. A much better provision for the employment of the poor was also made. In five places instead of two there were now stocks for this purpose and most of the others give reasons for the want of one. In three cases we are told there is plenty of employment, at Eastwick the inhabitants set the poor to work, and at Westmill the general statement only is made that the poor are relieved according to their necessities. Three places do not provide stocks or give any reason for not doing so. We can also see that these funds might often have disappeared, for the ten pounds stock at Hunsdon had "decayed" to only five pounds at the end of the period. In the district of Braughing therefore the law was executed in the larger places before 1630 but negligently even there. Immediately however after the receipt of the Book of Orders the justices set themselves to work, held the monthly meetings, stimulated the overseers, and in five months succeeded in effecting a very considerable improvement.

This was only typical of what was going on all over the country. It is of course impossible to quote all the reports of the period; it is only possible to give particular cases, and to state that they are not isolated instances, but are typical of the documents of that time. Thus in April, 1631, we hear that meetings had been rapidly held and that they had been partially successful, but that the justices were still in the midst of their activity; they had done a good deal to make matters better and were still doing more. For example in the account sent from the New Forest the justices write "the rates for the poore where neede most requireth wee haue caused to be rised for reliefe of the poore people wthin that part, and haue given strict order to the ouerseers for providing necessary releife for such as are ympotent and such as are able to sett them to worke, and haue alreadie placed many poore children apprentizes and doe proceede in placing of more[595]."

In the returns sent later in the year the organisation appears to be more settled and we hear that not only the rates are raised but that they have had a good effect. Thus in Monslow in Shropshire the justices state "and as for the late booke of orders for the reliefe of the poore and the punishing of rogues and vagabonds wee have had severalle monthlye meetings in the said hundred and wee have long since worked such effect thereby as they have not any rogues or vagabonds appeared amongst vs or walked abroad as wee can heare of since our first meetings, and the impotent poore are relieved in such sort by their parishoners as wee have noe complaints and there are stocks in all parishes more or lesse as the charge of the parishes require to set the able poore on worke[596]." Not all the reports are as favourable as this, but on the whole they indicate that improved order followed the execution of the Book of Orders. It thus is clear that the Orders of 1631 had a very considerable immediate effect both in bringing the law into operation in places where it had been almost or altogether neglected and still more in improving the administration in those districts in which the system was already to some extent administered though not yet effectually.

6. c. Improvement maintained between 1631 and 1640.

We have now to see whether this improved administration was maintained. The reports are certainly less frequent after 1631 but those that remain shew that the efficiency is preserved and there is much to indicate a farther improvement.

We will first examine a few documents which seem to indicate that the area of administration was extending into backward districts, we will then investigate a few cases in which we have reports both in 1631 and in 1638 or 1639, and we will lastly consider a special department of the poor law system, namely the placing of apprentices.

We have already noted the fact that in the earlier years of the period there were few reports from Westmoreland and Lancashire.

But in 1638 there are a series of documents from Westmoreland^[597] and several reports from Lancashire. In 1638 some of the Lancashire parishes adopted the system of billeting the poor in need of relief on the richer inhabitants. This plan does not seem to have long continued as an exclusive system of relief, and the facts that it was still employed and that these are the earliest reports from Westmoreland seem to indicate that a compulsory system of poor relief had only lately been established in the northern counties. Moreover in 1637 we are told that at the meeting of the justices in Rochdale in Sept. 1637, the churchwardens of Middleton confessed that they had never before levied a tax for the relief of the poor there; they now however proceeded to levy one, and in March in the following year the tax provided the necessary relief^[598]. All this seems to show that the area of the administration of the poor law was extending and that in 1638 there was little danger of the system of poor relief becoming obsolete but that it was obtaining a firmer hold over the country.

We will now examine a few of the cases in which we have reports from the same district both in 1631 and 1638 or 1639. We have already noted the detailed returns from Braughing. It happens that one of the latest documents of the series returned in August 1639 comes from the hundreds of Hertford and Braughing. The justices tell us that our "ymptotent poore are weekelie releiued by a certein pencon and the rates increased as necessitie requires. And those of able bodies are plentifully stored with work for the maynteynance of their families"; five apprentices had also lately been bound^[599]. From this we see that the improved administration there lasted throughout the period.

We have several other places from which we have similar reports. Skenfreth, one of the hundreds of Monmouth, often sent accounts of the proceedings of the justices. One belongs to May, 1631. The justices state

some of the things they did both before the Commission and afterwards. Before the Commission they provided weekly stipends for all the aged and impotent people, "sithence the said commission" they "have taken order that the same stipends shalbe contineually paied soe that none of any such poore people have made any complaint unto us for any mainetenance." Both before and after the commission they had punished rogues and since they had also placed apprentices and suppressed alehouses. Moreover the highways had been last year in better condition than for twenty years before[600].

Thus the immediate improvement effected by the commission was that the pensions were paid as well as ordered, apprentices were bound and alehouses suppressed.

In May, 1637, we have a report from the same district together with the hundreds of Ragland and Trellech. At that time apprentices were bound, rogues punished and efforts made to secure the observance of fasting days. The justices have also "taken course for provision of stock to sett the poore on worke," and have "caused to be sufficiently relieved all the aged lame and ympotent people[601]." Thus if these documents are to be believed the improvement effected in 1631 was maintained and even increased in this hundred of Skenfreth.

There are many other cases in which reports are sent in several times from the same place and all show that the improvement made in 1631 was continued in 1637, 1638 or 1639[602].

We will now examine a few of the reports which relate especially to the placing of apprentices. Before May 1635 the Privy Council or the commissioners seem to have urged the justices to see especially that this part of the law was carried out, and to have asked them to report the names of the apprentices and those of their masters[603]. The reports sent in 1634 and 1635 therefore relate especially to the placing of apprentices and the monthly meetings of the justices.

Reports from twenty-one places were sent in between July 17th and July 31st, 1634. In almost every case the justices expressly state that they hold monthly meetings and bind poor children apprentice[604]. In the year 1635 the statements are more detailed. Between May 20th and May 30th replies were sent from ten places in eight of which the names of both apprentices

and masters were given^[605]. Sometimes these were numerous; thus at Blandford in Dorset one hundred and nineteen apprentices were bound in the course of two years^[606]; in one district of Somerset the names of one hundred and sixty-six are returned^[607], while in all ten districts a fair amount of work was done. Thus in 1634 and 1635 apprenticeship was more insisted upon than other methods of poor relief and it seems to have been very generally well administered. We hear of some complaints but not many in proportion to the number of reports.

We thus see that during the years 1630 to 1639 we have a large amount of information concerning the administration of the Poor Law. We find that a great improvement was effected in 1631. We also find that the area of administration continued to extend into the Northern counties after 1631: the difference is indicated by the fact that in 1638 it is exceptional to find a place without a poor rate, whereas in 1631 the Government spoke of the laws as being almost obsolete in many places. We see further that sometimes the later reports come from the same places as the earlier, and that then the administration continues to be reported as good. Lastly, in regard to apprentices we are told that the Privy Council made special efforts to enforce the law, and that all over the country there is evidence that it was enforced though occasionally without favourable results. There is thus reason to believe that the efforts made by the central government to enforce the law were at last successful, and that the period to which we owe the survival of our English system of poor relief is that of the personal government of Charles I.

But we have already noticed that not only is this period the critical time in the history of the poor relief that survived, but in one respect the poor relief of this period was unique. Many efforts were made to find work for the unemployed. Relief of this kind was so much a part of the general system of the time that we have already examined many instances in which it was administered.

We will first investigate a few more of the reports of 1631, and we shall find that the improvement effected in all parts of the administration of poor relief especially concerned the relief of the able-bodied; we will then examine a detailed report in order to see what light it throws on the interpretation of the general statements of other justices, and we will lastly try to find out if relief of this kind was confined to a few districts, or was

administered all over the country, and also in what parts of the country there was the greatest need of employment.

7. The improvement effected in 1631 especially concerned the unemployed.

To begin with cases in which improvement was reported in April 1631. From a large district of Hertfordshire we hear "we haue already rayased a stocke in some parishes, and are raysing stocks for the rest to sett all the poore on worke in this division[608]." In Essex, Richmond, Bedford and Beverley fresh taxes for this purpose had just been raised, and at Agbrigg they were still "setlinge such a course for raysinge of stocke to sett y^e people of able bodies on work[609]."

At Winchester the same thing is implied: the stock has been put in a clothier's hands, so that now the poor do not want work[610]. Twenty-eight reports relating not only to measures for corn, but also for the poor were sent in between April 21st and April 30th 1631. In seventeen of these the poor were set to work, and in many cases we can see that the measures have been taken since the receipt of the Book of Orders of January 1631/2[611].

In the answers sent in May we have the same kind of information. In Brixton and Wallington we have a report similar to that from Hertfordshire; "stockes of mony," we are told, "are raised in moste of the parishes wth in the said hundrede and burrow and the reste not yet raised are wth as much expedicon as may bee to bee raised for buyinge of flax, heme and other materialls to set the poore to worke[612]." From Arundel there is a like account, "we haue caused the taxations for the releefe of the poor to be raised in euey parish in this time of scarsitye, and haue likewise caused stocks of mony to be raised in euey parish to buy materialls to sett the poor a warke, and we haue caused the Statute of Laborors to be inquired after and to be putt in execution[613]."

We can thus see that in 1631 the justices were busy raising stocks to provide work for the poor, and that in seventeen documents, or more than half of the reports of the last ten days of April 1631, we are informed that measures had been taken with this object.

8. The detailed report from Bassetlaw throws light upon the more general

We will now examine a more detailed report relating to sixty parishes of Bassetlaw in County Nottingham and sent in during March 1636/7[614]. In most cases information is given under four headings, first we are

statements of the justices.

told how many of the impotent poor are relieved, secondly the amount of the town stock, thirdly how many rogues have been punished, and lastly how many apprentices have been bound. This document is important because it seems to indicate the number of parochial officials who provided work for the unemployed in the district of Bassetlaw. This is not directly stated in the report, but the overseers return the amount of the town stock of their parish whenever a town stock existed. From the method in which the return is made it seems that this town stock was always used for finding employment for the able-bodied poor^[615]. Other methods of dealing with those out of work are also noted, so that it appears that in forty-five out of sixty parishes the parochial authorities provided employment for those poor who could work. The amount of the stock was often quite small; in one case only sixteen shillings, but it is very possible that in this instance the parish also was small; in another place the stock consisted of a sum of about thirty pounds, and the average amount was about three pounds. This document from Bassetlaw only states in detail what many of the other reports imply, but the detail is much more convincing, and it is confirmed by the overseers' accounts from Barnet and Elstree which we have already examined^[616]. It is perhaps worth while to notice that as early as 1623 the justices wrote from Bassetlaw that work for the poor was wanting, and they even then ordered that the labourers should be set to work by the town's stock and the impotent relieved by the public contribution^[617].

9. Local variations in the provision for the unemployed.

We have now to try to find out if it was only in a few counties that work was found for the unemployed, or if it was all over England. We have already noted that in the counties north of the Humber, and in the three western counties of Devonshire, Cornwall, and Wiltshire the poor law was apparently less well administered than in other parts of the country. In these counties with the exception of Yorkshire therefore there are few instances in which stocks are found for providing work for the unemployed. We hear however that in Ashton-under-Line there existed a "small stocke of money which is disposed on for the setting of poore to worke^[618]". Moreover, in two Yorkshire reports of 1635 it is stated that the justices have been "verie carefull to raise stockes for setting ou^r poore on worke^[619]." There are other Yorkshire returns containing information of the same kind, but still the plan

a. Not so extensive in the parts North of the Humber and in the extreme West.

of finding work for the unemployed of the North seems to be comparatively unusual.[\[620\]](#)

But with regard to the rest of England this is not the case. In every county except Northampton some justices state that they have found employment for the poor. As we might expect this was done most frequently in the towns and in the manufacturing counties, both because in these places there were more rich people and because there were also more unemployed owing to the greater fluctuations of trade.

9 b. Provision of work more necessary in the towns than in the country.

A report from Reading and Theale illustrates this: "Wee finde that the able poore in boddy to worke and w^{ch} are in country villages and hamblets haue theire ymploymt in husbondrie and by that meanes are mayntayned; other lyen in such countrie townes, populer, incorporate, where heretofore multitudes of such able persons haue lived by worke from the clothier, now through the defect and decaye of that trade and soe consequently of the clothier, thousands of these poore formerlie relieved by worke liue in much want and could hardlie subsist this deere yeare did not many extend theire charity even beyond their meanes[\[621\]](#)." Newbury and Abingdon were also towns in the same neighbourhood subject to similar conditions, and we know already that workhouses were founded in both these places and in Reading itself also[\[622\]](#). Shrewsbury and Hereford are fair examples of more westernly towns. At Shrewsbury the justices report in June 1631 that they "are aboute a course to sett all the poore on worke within our Towne and Libertyes[\[623\]](#)," and in 1638 an order was made for regulating a workhouse there[\[624\]](#). About the same time the Mayor of Hereford records that "there is a collecon made in euerie severall parish wthin the said Cyttie, and competent somes rayسد for to releive the impotent and needy, and a stocke for the setting of poore able people to worke and for the placeing of youth apprentices[\[625\]](#)." Other magistrates report in like manner: thus in the rape of Hastings they have caused the officers "as much as in them lyeth to see the said poore inhabitants bee duely kept to worke and haue fitting materialls provided for them[\[626\]](#)." In the hundred of Hertford the justices state in 1631 that the more populous places have already raised stocks of money to set the poor to work, and that they are still trying to induce all the others to do so though a few are not rich enough to bear the necessary taxation[\[627\]](#). From St Albans, Reigate, Ipswich, Maidstone, Lynn, and

Norwich, as well as from more inland towns we have similar information: the magistrates of Bedford write that "we haue raysed diuers extraordinary taxes for the reliefe of our poore and settinge them on worke and therby they are set to worke[628]." But perhaps the Buckingham report indicates the most thorough organisation. There the poor had been visited apparently in the same way as at Norwich. Five hundred people were examined; the age and occupation of each were noted, and whether they had work or not. Afterwards employment was provided for those who needed it and we are told that the poor "of good disposicon are glad they are thus settled wthout begging and settle themselves seriouslie to their labo^r." This good result however was not obtained without complaints from the ratepayers[629].

In the country districts also employment seems to have been provided as well as in the towns whenever the poor suffered much from the want of work. In the western counties, however, there were few complaints of lack of employment, except from the cloth-workers when the trade in cloth was slack. Some justices expressly state that there is no want of work in their part of the country. Thus from a large district of Somerset we hear that there are "none lefte unplaced but such as doe mainetaine their charge by their labor[630]." Therefore, as we should expect, in many reports from the West nothing is said about finding employment for the able-bodied poor. There are, however, also a fair number of cases in which work is said to be provided. This is especially the case in the counties of Shropshire and Stafford; thus from Staffordshire three reports were sent in 1634, and in all three we are told that the poor were set to work[631]. Moreover, the Worcester justices write that "wee are carefull ... that the able poore bee well provided of worke[632]" and in almost all[633] the other western counties, at least one instance of the kind is reported[634].

(d) Provision of work in many districts in most counties of the east.

But in the east and south-east there was at any rate sometimes a chronic want of employment, and consequently numerous efforts to provide for the able-bodied poor. In the country round Hitchen we are told, as in the Reading district, that it is the poor in the town that are distressed, but in the hamlets the farmers find work for the inhabitants. The justices say they have no manufacture, and they do not know how to find a remedy for the people in the town. At one time they make the richer people employ the poor, but they do not find the experiment successful[635]. We have also an

account of a permanent want of employment in a large district of Norfolk. In the hundreds of South Greenhoe, Wayland, and Grimshoe provision had been made by raising a stock to set the able-bodied poor to work, and besides the magistrates write, "Wee have manie young people w^{ch} live out of service by reason of the multitude of them, there not being services for them, but worke is provided for them in their seuerall parishes[636]."

There are very many reports of stocks for the provision of work in other country districts of the east. In Hertfordshire, Suffolk, Norfolk, and Cambridge there is much to make us think the system was nearly general[637], and in each of the other eastern counties there are many cases of the kind.

In a district of Middlesex the unemployed were sent to fight for Gustavus Adolphus[638], but in most parishes materials were provided for them to work up. Thus in several hundreds in Kent "stocks of materialls" were provided in every parish[639]; in Nottinghamshire those out of service and able to work were set to work "on the towne stock[640]," while at Horncastle sessions, in Lincolnshire, the justices take "special care ... that the abler sort bee constantly sett on worke by the stocke of the parishe[641]." Sometimes the sum expended was very considerable if we take into account the great difference in the value of money. Thus in Wallington, Surrey, more than £120 was used for providing work, while nearly fifty pounds remained in hand[642]. On the whole therefore in the eastern counties, between 1631 and 1640, it seems that considerable sums of money were raised and employed in most districts[643] with the object of setting to work the able-bodied poor.

10. Summary.

We have thus seen that in 1631 the improvement in the administration of poor relief concerned especially the relief of the able-bodied poor, and we have noted many instances in which taxes were raised for this purpose at that time. We have also examined a detailed report from a particular district in the county of Nottingham in which in forty-five out of sixty parishes some provision seems to have been made for finding employment for the poor. Moreover, we find that the plan of providing work for the unemployed was reported from some district of every county south of the Humber except Cornwall, Northampton, Devon, and Wilts; and in Devon and Wilts also the same plan was tried, although no report of the justices has been preserved. This form of poor relief thus seems to have been frequently in use in the towns of both east and west, and

in the country districts of the eastern counties also. It was not quite so general in the country districts of the west, but still was not infrequent even there.

We may, therefore, say that from 1631 to 1640 we had more poor relief in England than we ever had before or since. We shall try to estimate later how far this system was successful. But we will now see what happened to the organisation of English poor relief during the Civil War. We will also trace the history of poor relief in France and Scotland during the sixteenth and seventeenth centuries, in order that we may see that the history of poor relief in England is unique.

CHAPTER XIII.

POOR RELIEF IN FRANCE, SCOTLAND, AND ENGLAND DURING THE CIVIL WAR AND COMMONWEALTH.

- § 1. Lax administration of poor relief in England during the years of Civil War.
 - a.* Decline of charitable institutions.
 - b.* Neglect in execution of ordinary law.
 - c.* Instances of corrupt practices.
- § 2. Attempts to regain a good organisation of poor relief under the Commonwealth.
- § 3. Reasons why disorganisation especially affected the provision of work for the unemployed.
- § 4. State of poor relief after the Restoration.
- § 5. Reasons for failure under the Commonwealth to restore the old state of things.
- § 6. History of legislation on poor relief in Scotland,
 - a.* Before 1597.
 - b.* Between 1597—1680.
- § 7. Failure of administration of poor relief in Scotland during the seventeenth century.
 - a.* Responses of the Scotch justices to the orders of Council in 1623 show that they were unable or unwilling to enforce the poor law themselves and left it to the kirk sessions.
 - b.* Inadequate poor relief granted by the kirk sessions of Banff.

- c. Relief of the poor in Aberdeen shows that the relief considered sufficient by the municipal rulers was double that which could be granted from the funds at the disposal of the kirk sessions.
 - d. Infrequency of assessment in Scotland before 1818.
 - e. Insufficiency of relief during the years 1692-1699.
 - f. Prevalence of begging in Scotland.
 - g. Reasons for the failure of Scotch administration.
- § 8. The history of poor relief in France.
- § 9. Comparison between the history of poor relief in England and that in France and Scotland.

The histories of poor relief in England after the Civil War, and in France and in Scotland throughout the sixteenth and seventeenth centuries, both compare and contrast with the history of English poor relief in the period from 1529 to 1644. While in each of these cases like circumstances produced similar attempts to afford relief, in none did both an energetic Privy Council and a vigorous system of local officials coexist, and consequently in each case poor laws were in existence but were badly administered. The course of events in all these instances will therefore confirm the view that the survival of the English system of poor relief is owing to the organisation which was enforced by the English justices and was created by the Book of Orders of 1631.

In England the justices' reports concerning the administration of the poor cease after the year 1639. After that date either no more reports were sent or no care was taken to preserve them. The cessation of these documents probably marks the time when the system created by the Book of Orders began to disappear. Other and more pressing matters engaged the attention of the Privy Council, and were subjects for the special inquiries of the judges of assize. The justices devoted their zeal and attention to raising troops or to meeting the great demands in money made by both King and Parliament, while constables and overseers were used as collectors, not only

of funds for the relief of the poor, but also of the revenues needed by the armies^[644]. Under these circumstances the system created by the Book of Orders fell to pieces, and the whole administration of poor relief became lax. Still the effect of the execution of the Book of Orders remained. For nine years the overseers had been drilled by the justices, and the parishioners had been compelled to pay rates. The inhabitants had become accustomed to the organisation, and that part of it continued which was most easily enforced by the overseers, and which seemed to them most urgently necessary. The impotent were still relieved, and children were still apprenticed, though less efficiently than before, but the able-bodied poor were no longer found with work, except in a few isolated cases.

We will first examine part of the evidence bearing upon the lax administration of the whole system of poor relief and some of the efforts which were made under the Commonwealth to restore the old state of things. Sometimes we hear of the disorganisation of semi-voluntary charities; at other times of the bad administration of the laws for the poor; occasionally of fraudulent practices in connection with charitable endowments.

1. Lax administration of system of Poor Relief in England during the years of the Civil War.
a. Decline of charitable institutions.

The four royal hospitals of London are the most conspicuous instances of charities which were under public management, but only partly supported by public contributions. We get from them several complaints of a partial break-down owing to the Civil War, and the figures furnished by the Governors speak for themselves. In 1641 there were over nine hundred children in Christ's Hospital, in 1647 there were only five hundred and ninety-seven; at Thomas's Hospital, in 1641, over a thousand patients were relieved, and in 1647 only six hundred and eighty-two; at St Bartholomew's and Bridewell the numbers had also decreased^[645]. The Governors of Christ's Hospital give us their estimate of the reasons for this. We are told that "in respect of the troubles of the times, the meanes of the said Hospital hath very much failed for want of charitable Benevolences which formerly have beene given, and are now ceased; and very few legacies are now given to hospitals, the rents and revenues thereunto belonging being also very ill paid by the tenants, who are not able to hold their leases by reason of their quartering and billeting of soldiers and the taking away of their corne and

cattell from them[646]." A few years later the billeting had apparently ceased, but the tenants then suffered "by reason of the severall charges and taxes laid upon them[647]." Even in 1653 we are informed that the revenues of Christ's Hospital "hath divers wayes fallen very short of means formerly received, viz. heretofore many have given monies privateley, others very bountifull at their deaths. And several parishes in London have sent in large contributions and now but one that sends anything at all[648]." The Civil War had reduced many of the richer classes to poverty, and probably most institutions which were maintained by private contributions would suffer in the same manner as Christ's Hospital in London.

1 b. Neglect in execution of ordinary law.

There are also complaints and instances of the bad administration of the ordinary law. One of these is contained in the ordinance of the Lords of 1646/7. The Lord Mayor in the City and the justices and judges in the country are to put in execution the laws concerning the poor and rogues, because "by reason of the unhappy distractions of these times the putting of the Lawes into execution have been altogether neglected[649]."

Numerous resolutions tell us that the state of the London streets had become almost unbearable. The vagrants hung on coaches and begged clamorously at the doors of churches and private houses[650]: moreover not only did men gather in tumultuous assemblies "by playing at football or otherwise," but many "loose and vagrant persons" also had been found to wander, who, "under colour of begging in the day time," did pilfer and steal, and in the night time "did break into houses and shops to the scandall of the governmente of this City[651]."

In 1652 several resolutions were passed by Parliament on the matter, and a committee was appointed to consider how the poor might be employed, to revive the laws concerning the poor and setting them to work, and "to consider by what means or default the same are become ineffectual or are not put in execution[652]."

These resolutions and these complaints at once show that the administration had become lax, and that there had formerly been a time in which these laws had "not become ineffectual," and were put in execution.

1 c. Instances of corrupt practices.

There are other cases in which there seems to have been evidence of corruption. The Chester Hospital, we are

told, had been much neglected^[653]; in 1653 we hear also that persons counterfeited the Letters Patent and orders of the Council of State for licenses to collect money for charitable purposes, so that people were cheated, and it was necessary to pass a special resolution of Parliament on the subject^[654]. A curious instance of corruption in the administration of charitable funds appears at Barnstaple. Many sums of money had been bequeathed there as elsewhere for the purpose of enabling a young craftsman or trader to set up business on his own account. Some time before the war the town rulers found it difficult to find young men who could furnish good security, and so lent part of the money to more prosperous manufacturers, who, they said, set the poor inhabitants to work. But in 1653 the money was altogether misapplied; the Corporation bought some gold maces, found they had no funds to pay for them, and so ordered the debt to be paid with this endowment^[655]. Apparently the money was never paid back, for payments on account of it cease after this time.

Any one of these instances of fraud and neglect might have occurred at any time, but so many receive official notice when peace was restored that they must have occurred more frequently during the war than at other times. A letter of this period seems to indicate the opinion of contemporaries: "You speak of feasts to relieve the poor, but it is well if the money left long since for the poor be given to them and not to feasts^[656]."

2. Attempts to regain a good organisation of poor relief under the Commonwealth.

As soon as the Commonwealth was fairly well established many efforts were made to relieve the poor of London. As early as 1647 a new organisation was established, named the Corporation of the Poor, which was empowered to erect workhouses and Houses of Correction^[657]. Something seems to have been done by the members of this body. The store-house situated in the Minories and the Wardrobe-house were granted to them, and here orphans were maintained and many hundred of poor families were employed and relieved by the Corporation by spinning and weaving, "and," they tell us, "whosoever doth repair, either to the Wardrobe near Blackfriars, or to Heiden House in the Minories, may have Materials of Flax, Hemp or Towe to spin at their own houses if it be desired, leaving so much money as the said Materials cost, until it be brought again in Yarn; at which time they shall receive money for their work and more Materials to imploy them; so that a stock of 12*d.* or 14*d.* will be a sufficient security for

any that will be employed; and every one is paid according to the fineness or coursness in the Yarn they spin: there being a certain rule of Length and Tale to pay every one by, so that none are necessitated to live idly, that are desirous or willing to work[658]."

But the President and Corporation of the Poor were soon hindered in their work by want of funds, and were not at all successful in maintaining order in the London streets[659]. Their greatest difficulty seems to have been in 1656, and they try an interesting experiment. Many pamphlets of this century concern the fishing trade and were written to urge the English to keep it from the Dutch. Some of the writers consider the fitting out of fishing-boats the best means of setting the poor of the nation to work[660]. The plan now was actually attempted; three busses or fishing smacks were taken from the Dutch and granted to this Corporation for the purpose of employing the poor[661].

But still the help given was but small; several committees were appointed by the Council of State, but few decisions were reached; the measures of relief only concerned London and not the whole of the country, and even in London comparatively little was accomplished. In spite of the new orphanage at the Wardrobe few children were educated there, probably because no money could be got. The hymn sung by the children implores Parliament to redress the matter:

"Grave Senators that sit on high
Let not poor English Children die
And droop on Dunghils with lamenting notes;
An Act for Poor's Relief they say
Is coming forth; why's this delay?
O let not Dutch, Danes, Devils stop those
Votes[662]."

The work of the Corporation of the Poor continued, but it never seems to have been great or to have grappled seriously even with the London poor. In the rest of the country there was probably the same disorganisation, and less attempt to remedy matters. At Great Yarmouth the burgesses apparently thought that the spoils of Norwich Cathedral might be used for the purpose: they petitioned Parliament to "be pleased to grant vs such a part of the lead and other vseful materialls of that vast and altogether vseles Cathedrall in

Norwich towards building of a works house to employ our almost sterued poore and repairing our peeres etc.[\[663\]](#)"

3. Reasons why disorganisation especially affected the provision of work for the unemployed.

There were many reasons why this disorganisation should especially affect the plans for the employment of the able-bodied poor.

Even if efforts for this purpose had been much needed after the outbreak of the Civil War it is probable that they would have been less enforced than other parts of the system of poor relief. We see from the justices' reports that schemes of this kind were not usually undertaken, except under pressure from the justices. The privation of the helpless old and young appealed far more to the sympathy of overseers and ratepayers than the needs of the able-bodied poor. Besides it was far easier to grant pensions than to superintend work and supply materials.

But a far stronger reason existed for the discontinuance of the parochial stocks for employing the poor. The necessities of the war made enormous demands upon the able-bodied males of the population. The Parliamentary army was recruited from the men above the age of sixteen and below the age of sixty. An attempt has been made to make a rough estimate of the proportion of Hertfordshire men drawn away by the war. If in 1642 the population of Hertfordshire was about one-sixth of that of the present time it would amount to about 36,000 men, women and children, and this would mean about 9,000 men of an age fit for active service. But in the summer of 1644 apparently between four and five thousand Hertfordshire men were serving in the Parliamentary army and others with the Royalists, so that a large portion of the work of the country would necessarily have to be done by women, old men and boys[\[664\]](#).

This calculation is very rough, but it probably approximates to the truth. We hear from the complaints of the time that much inconvenience was felt. In 1644 the Grand Jury of Hertford Quarter Sessions beg that "in regard their harvest is at hand and their labourers few to gather it, some part of their soldiers ... may be for a while recalled to assist herein." The Committee of the Eastern counties about the same time write that they have promised that some of the Hertfordshire men shall return "considering the necessity of their attendance upon their harvest[\[665\]](#)."

The drain on the supply of labourers might not have been so great in all districts and at all times, but it must have been considerable; the problem to be solved would therefore be to find workmen and not to find work. The difficulty of getting men is indicated by the fact that the Parliamentary army offered two and sixpence a day to a waggoner instead of the shilling or one and threepence usual before the war^[666]. All who were not altogether incapable could get employment, and there would therefore be no need for the parochial stocks of materials.

4. State of poor relief
after the Restoration.

We should therefore expect that the lax administration during the war would affect the schemes for the employment of the poor more than any other part of the organisation, and the evidence of many treatises published between the Restoration and the Revolution show us that this was the case. Order had been somewhat restored, and the impotent poor were then relieved, but the practice of finding work had so much fallen into disuse that its former existence was almost forgotten. Thus in a pamphlet published in 1673, called "The grand Concern of England explained^[667]," the writer states that the money paid for the poor at that time amounted to £840,000 a year, and "is employed only to maintain idle persons." He proposed that instead of giving the poor weekly allowance, both old and young should be set to work at spinning, or some similar occupation. Another treatise, published in 1683, has been attributed to Sir Matthew Hale^[668], and likewise shows that little was then done for the able-bodied poor. The author says, "Indeed there are rates made for the impotent poor.... But it is rare to see any provision of a stock in any Parish for the relief of the poor." The word "stock" is here used in the sense of capital for the employment of the poor, and this writer also states that the law provides that sums of this kind should be so raised. He gives many reasons for the neglect in the matter. One of these is that there was no authority in the Justices of Peace or other superintendent officials to compel the raising of a stock where the churchwardens and overseers neglected it. Both practice and opinion as to the requirements of the law had considerably altered since in 1629 the Privy Council told the justices that it was the opinion of all the judges that they both had the power and the right to levy stocks to set the poor on work, and since in 1631 the justices from all parts sent in the reports on the Book of Orders^[669].

The author of a pamphlet of 1685^[670] also points out that by the law of Elizabeth the parish was bound to provide "work for those that will labour, punishment for those that will not, and bread for those that cannot; and if the first two parts of that law were duly observed the Poor would not only be reduced to a small number comparatively to what they now are, but there would be no such poor as idle and wandering rogues and vagabonds." The writer further complains that work was not provided for those who will labour, but only bread both for those who can and those who cannot labour. These pamphlets thus afford abundant proof that the plan of raising a stock had fallen into disuse in the reign of Charles II., and few efforts were made to employ the poor until new workhouses were founded in different towns, each by separate Acts of Parliament.

5. Reasons for failure under the Commonwealth to restore the old state of things.

This disorganisation, we have seen, was owing to the Civil War. It is easy to see that when the war was ended, it would be difficult to restore the old state of things because the old conditions were altered. The Privy Council after the Restoration had a much less paternal method of governing, and moreover the nation had outgrown the old methods of organisation: the Council of State of the Commonwealth did however try to restore some of the old remedies.

But under the Commonwealth the justices could no longer have been as efficient instruments for carrying out the poor law as before. Many of those who had formerly had most local influence were in banishment or disgrace; others had lost heavily by the sacrifices made for the war. Probably those who remained were chiefly interested in the more exciting political and religious questions of the time. But without an energetic Council and vigorous and powerful justices acting in sympathy with them, the administration of the poor law had been ineffectual in the reign of Elizabeth and in that of James I. We should therefore expect the same result under the Commonwealth and Charles II., except for the difference made by the ten years in which the relief of the poor had been efficient. The whole of the improvement was not lost, but enough of it to show how much the execution of the law had depended on the Book of Orders, and enough to make the poor relief granted in the years immediately preceding the war different from that of any future time.

6. History of
Legislation on poor
relief in Scotland.

We will now briefly glance at the history of poor relief in Scotland. Prof. Ashley has shown us that poor laws were not at first peculiarly English institutions. In every country of Western Europe like difficulties seem to have occurred at about the same time. Every one of these countries was developing in new industrial and commercial directions, and all were becoming more peaceably and quietly governed. France, Germany, Holland and Scotland were alike troubled with unemployed vagrants and unrelieved poor. The monastic houses and hospitals under the old system certainly failed to cure the evil, perhaps they only increased it. Municipal regulations and state laws dealing with beggars and almsgiving therefore appear alike in France, Germany, Scotland, and England, and at about the same time^[671].

In the sixteenth century the history of poor relief in Scotland and in France is so like that of England as to suggest similar conditions or possibly conscious imitation. In all three countries it is a history of successive enactments in which the legal right of the poor to relief is created, and in which more and more pressure is employed to obtain the necessary funds.

6 a. History of
legislation in Scotland
before 1597.

In Scotland as in England before 1535 there are a series of vagabond acts^[672], and in 1535 a statute was passed bearing a strong resemblance to those passed in England under Henry VIII. The punishments of whipping awarded to vagrants under the older Acts were continued, and no beggar was to be allowed to beg in any parish except that of his birth. New regulations were introduced with regard to funds as in the contemporary English statute; the head men of each parish were to "make takings" and to distribute to the beggars belonging to the parish and to them only^[673]. Thus, as in the England of 1536, parochial responsibility was recognised, and the funds were to be raised within the parish, but without compulsion.

The next important change in Scotch legislation was made in 1574, and the provisions then made were continued and amplified in 1579. In this later statute the resemblance to the English Act of 1572 seems more than accidental. Both the Scotch and the English statutes begin with decreeing sharp punishments for vagrants, although those of the Scotch law are the more severe. But the later clauses of both statutes deal with relief, and in the Scottish enactment these are introduced almost in the words of the English regulations, "And since charity would, that the poor, aged and

impotent persons should be as necessarilie provided for, as the vagabonds and strong beggars repressed, and that the aged and impotent poor people should have lodging and abyding places throughout the realm to settle themselves into," it is ordained that the provost and bailies in the towns and the justice in every landward parish shall inquire into the names and condition of the poor and impotent people born in the parish, or who have lived there seven years, and shall make a register book containing their names and surnames. And in order that every parish may know its own poor, all poor people are ordered to return to the parish where they belonged within eleven days. The provost and bailies and justices are then to provide for the sustenance and lodging of those that must live by alms; in order to meet the cost they are "to tax and stent the whole inhabitants within the parish according to the estimation of their substance, without exception of persons, to such weekly charge and contribution as shall be thought expedient and sufficient to sustain the said poor people." Overseers and collectors were to be chosen in every town and parish, and any person who refused to contribute or discouraged others from so doing was, if convicted, to remain in prison until he obeyed the order of the parish. Badged beggars were allowed in some parishes, prisoners were to be relieved and children were to be apprenticed[674].

Compulsory taxation, parochial responsibility, the authority of justices or municipal rulers, the appointment of overseers and the provision made for the impotent poor and children are like those of the English Act. But there is no regulation concerning the employment of the able-bodied poor and the clauses concerning apprentices are far more severe than those in the contemporary English statute[675].

There are other vagabond Acts in 1592 and 1593, and the Act of 1592 ordains that the Act of 1579 shall be as well executed in all parts of the realm as it has been in Edinburgh[676]. This seems to show that in Scotland as in England the statutes of this time were badly executed, but were not altogether a dead letter[677].

6 b. History of legislation in Scotland from 1597 to 1680.

But in 1597 the next important change occurs. It begins by a clause which approximates the poor relief system still more to that in force in England. "Strong beggars and their bairns" are to "be employed in common work during their life times." But it concludes with a clause that separates the likeness hitherto

existing between the regulations of the two countries. The execution of the law in landward parishes is placed in the hands of the kirk session[678].

Henceforward the history of poor relief in Scotland is different from that of England. In England the law of 1597, as re-enacted in 1601, remained the chief enactment for dealing with the poor throughout the century, but in Scotland, on the contrary, many alterations in the law were made; sometimes the kirk session was declared responsible for relieving the poor, at other times the justices, sometimes the heritors of the parish, were to assist the sessions, at other times the presbytery; sometimes the impotent were to be better relieved, at other times the able-bodied were to be employed in Houses of Correction[679]: statute succeeded statute in the seventeenth century as in the sixteenth, and for the most part with as little result.

Still, in spite of these many alterations, the Scotch poor law always resembled that of England in insisting on the duty of each parish to support three classes of people, (1) the aged poor, (2) the lame and blind, &c., and (3) orphans and destitute children. But the able-bodied poor of Scotland, unlike those of England, were not entitled to either work or relief. No legal provision was made for them except in Houses of Correction[680].

7. Failure of
administration in
Scotland.

But during the seventeenth century even the relief given to the old and to the young in Scotland was not thoroughly administered. Not only do the frequent enactments of the legislature show that the governing class were not satisfied with the result of the existing laws on the subject, but the fact that the Scotch poor laws were on the whole ineffectual is also indicated by the response made by the justices to the Scotch Privy Council, by the hardships which the poor suffered in the time of dearth at the close of the century, and by the continued existence of beggars, licensed or unlicensed, not only in the seventeenth century but until the beginning of the present reign.

In Scotland as in England the Privy Council endeavoured to induce the justices to secure a better administration of the poor laws. But the Scotch justices possessed less legal authority than their English colleagues, while they also were less inclined either to obey the Council or to impose taxation. Consequently

7 a. Responses of the Scotch justices to the Privy Council in 1623 show that they were unable or unwilling to enforce the poor laws themselves, and left it to the kirk sessions.

the efforts of the Scotch Privy Council failed while those of the English Privy Council succeeded. The effect of the Council's interference in Scotland can be seen in the events of the year 1623.

This was a time of great hardship. "Mony familieis and tennentis and labouraris of the ground who formarlie wer honnest houshalderis ... ar now turned beggaris thame selffis and of all siort of beggaris thair estate and conditioun is most miserable, becaus thay for the most pairt being eshamed to beg underlyis all the extremiteis quhairwith the pinching of thair belleis may afflict thame^[681]." In consequence of this distress the Council issued an order that the destitute poor of each parish should be adequately supported, and that constables should be provided to apprehend and punish vagrants. The expense of both proceedings was to be met by a tax levied upon all the inhabitants of the district.

The replies of the Scotch justices to this order bring out the difference which existed between England and Scotland in law, opinions and practice and the consequent difficulty in enforcing in Scotland a thorough organisation of poor relief. Thus the justices of Haddington and Lothian write that in regard to the tax which was ordered by the Council for apprehending and keeping of idle beggars they "doutt if ane simple proclamatioun be ane sufficient warrand unto us to sett down stent upoun every man"; with regard to the relief of the poor they thought the general contribution beneficial, but "becaus every contributioun is odious and smellis of ane taxatioun they could not undertak how to proceid thairin, being ane matter beyond thair capacitie^[682]." The justices of Edinburgh reply that "thair is no jaillis nor warding plaices within the parochins nor touns of this sherefdom that is able to containe a tent pairt of the pure beging in the same," order was therefore given in Edinburgh that every landed gentleman should sustain his own poor, and that the ministers should exhort their parishioners to refrain from giving alms to the able-bodied beggars^[683]. Other justices arrange meetings to discuss the best means of relieving the destitution which existed; they nearly all report that it is best for the kirk sessions to "stent" their own parishioners, and for each landlord to support the poor on his estate^[684].

Again in 1631 and 1632 there are signs of greater care for the poor in Scotland, and this may be due to the action of the Council, but in Scotland it seems clear that the justices left the administration almost entirely in the

hands of the kirk sessions, and that the kirk sessions were not induced to enforce an adequate system of poor relief for a long term of years. Consequently Scottish poor relief remained in the seventeenth century in much the same condition as it had been in both England and Scotland in the preceding period.

7 b. Inadequate relief given by the kirk sessions of Banff.

In Scotland, as in both countries before 1597, assistance was given to the poor by the parochial officials, and the money was raised by collections at the church doors.

How small these contributions were may be seen from the records of the town and parish of Banff. In 1624 the condition of the poor at Banff was discussed during the visitation of the presbytery, and the "hail eldership promised to have ane faithfull cair for provisioun of thair awne poore and to purge ther bounds of vagabond beggars." No improved method of relief was reported at the next visitation, but the "minister and eldares" again promise to look after the poor^[685]. In 1631, however, some arrangement was actually made. No one was to give alms to strange beggars, and the town poor were to be relieved in their homes. But, in order to secure this result, provision was made only for twenty poor, although the population of the town probably numbered nearly two thousand^[686]. It seems likely that this was about the amount of assistance granted in Banff throughout the century, for in 1673 it is noted that twenty-seven poor received assistance from the kirk sessions, and in 1691 only twenty-five^[687]. This relief was so insufficient that beggars abounded; in 1633 £3 6s. 8d. was paid "To Willie Wat, scurger for outhaliding the poore^[688]"; in 1642 vagrant beggars were to be put in the "theiffis hoill" until the magistrates had time to see them well scourged, while in 1698 and again in 1742 the system of badged beggars was adopted^[689], which is itself an admission of the insufficiency of the relief afforded by the parish.

7 c. The relief of the poor in Aberdeen.

Occasionally also, as in Elizabethan England, the burgesses of particular towns saw that the poor could not live on the relief granted by the church officials, and made great efforts to raise additional funds so that they might be able to free their town from beggars. But, as the convention of Scotch boroughs stated in 1579, it was difficult to grant relief in one town only, because there were so many beggars from other parts. In Scotland, as in England under Elizabeth, the town systems of poor relief ceased to be successful after a

few years. The efforts in this direction made in Aberdeen are probably fairly typical of those attempted by more philanthropic burgesses. Even in 1595 the inhabitants of Aberdeen had distributed the destitute "babis" and had levied voluntary contributions for the other poor[690]. Early in the seventeenth century, however, beggars existed who were licensed by the town[691], and in 1619 the "haill towne" was again convened, and it was agreed that all the beggars should be sustained in their homes and prevented from begging. It was estimated that the cost would amount to 2,600 marks, and £1,000 of this was to be raised "by way of taxatioun," while eleven hundred marks was to be obtained from the contributions at communion or collections at the church doors[692]. Two years later, in April 1621, we are told that "the wark hes hed a gude and happie succes so that the haill poor peopill within this burght that were then beggaris have beine now almost these thrie yeiris past interteained and keiped from begging." It was therefore then agreed that the same methods should "stand and continew" always, and that the town should continue to contribute its thousand pounds a year, that the poor might be relieved at home[693]. Why the plan failed does not appear, but it did fail, since in 1650 tickets were given to the town beggars of Aberdeen to distinguish them from those of other districts[694].

In Aberdeen, therefore, we can see that the money raised by the kirk sessions was only about half the amount which the town rulers considered necessary for the adequate support of the poor, and that when the town was kept free from beggars resort had to be made to a compulsory tax.

7 d. Infrequency of assessment in Scotland before 1818.

But compulsory taxes were very unpopular both in Scotland and England, but while in England they were forced on the people by the justices of the peace, acting under instructions from the Privy Council, in Scotland they never were generally adopted until the present century. In the report of 1818 the temporary arrangements of Aberdeen and other towns[695] were forgotten, and it was then said that before 1700 only three parishes had resorted to compulsion[696]. This means that only three parishes continued to use assessments for a long period, and therefore the poor relief granted in Scotland was almost always the voluntary assistance given by the kirk sessions.

How insufficient this assistance was is indicated by the proclamations issued during the years of scarcity at the

7 e. Insufficiency of relief granted during

close of the century. The period from 1692 to 1699 has been called the "seven ill years." The poor suffered great distress, and a series of proclamations was issued by the Privy Council with the object of remedying matters.

the years 1692-1699.

In 1692 the first proclamation was published; this stated that the Act for Houses of Correction had been neglected, and ordered the heritors and inhabitants of each parish to meet and put in execution the other good laws made for the poor^[697]. In the same year a second proclamation was issued which stated that the previous order had had little effect because it was uncertain where the beggars were born and because suitable provision was not made for them in their parishes^[698]. The next year therefore another proclamation was promulgated, and, it is said, "due obedience" was not yet given to the laws, "so that the poor are not duly provided for in many places nor the vagabonds restrained." In 1698 the fourth and last proclamation was published, and again it is stated that the poor laws have not taken effect, partly because there were no houses provided for the poor and partly because the people responsible for the execution of the laws had been negligent of their duty^[699].

The statements of these proclamations show that little poor relief was then administered in Scotland, but a stronger proof that this was so is furnished by the existence of the misery endured by the poor during these years: this was so great that it is said whole parishes in some districts were nearly depopulated^[700].

7 f. Insufficiency of relief indicated by prevalence of beggary.

But the fact which throws the strongest light upon the administration of poor relief in Scotland is the continued existence of beggary. This was the real method by which most of the poor were relieved. Even the Town Council of Aberdeen tolerated licensed beggars, and in 1664 a resolution was passed by the synod, which shows that the licensing of beggars was then a general practice in the diocese; it is ordained that a minister should license "those creaving for support" only within his own parish^[701].

In 1699 the beggars of Stirling also were licensed^[702], but the existence of licensed beggars was not the worst of the evil. This method of dealing with the matter, it is true, is very strong evidence that insufficient poor relief was

given because it is furnished by the administrators themselves; the beggar must be destitute, or they ought not to have given him a license, and he could hardly have been among those who were too proud to receive relief. But the districts where unlicensed beggary prevailed were in a far worse condition. How great the evil was may be seen from the evidence of Fletcher of Saltoun, who wrote in 1698. His complaints and even his language closely resemble that of Harman when he describes the English beggars under Henry VIII., and that of Hext, concerning those who lived under Elizabeth; they are in strong contrast to the self-satisfied reports of the English justices of the reign of Charles I. "There are," he says, "at this day in Scotland (besides a great number of families very meanly provided for by the church boxes, with others, who, living upon bad food, fall into various diseases) 200,000 people begging from door to door. These are not only no ways advantageous, but a very grievous burden to so poor a country, and though the number of them be perhaps double to what it was formerly, by reason of the present great distress, yet in all times there have been about 100,000 of these vagabonds who have lived without any regard or submission either to the laws of the land or even of those of God and nature.... No magistrate could ever discover or be informed which way any of these wretches died, or that ever they were baptized. Many murders have been discovered among them; and they are not only a most unspeakable oppression to poor tenants (who, if they give not bread or some sort of provision to perhaps forty such villains in one day, are sure to be insulted by them), but they rob many poor people, who live in houses distant from any neighbourhood. In years of plenty many thousands of them meet together in the mountains, where they feast and riot for many days; and at country weddings, markets, burials and other like public occasions, they are to be seen, both men and women, perpetually drunk, cursing, blaspheming and fighting together[703]."

This terrible state of things indicates clearly that no efficient system of poor relief was then in force in Scotland, and shows the evil resulting from trusting the relief of the poor to charity, when charity was altogether insufficient. It is, however, well known that in more charitable days the Scotch system of poor relief found many supporters who urged that the poor obtained sufficient help, and that the organisation which relied on charity called forth a much more noble spirit in both rich and poor than that which depended upon compulsion. This opinion prevailed especially in 1818,

although even then beggary was nearly universal^[704] in Scotland, but it must be remembered that in 1818 Scottish poor relief gained by comparison with the English because England was then suffering from the increase in pauperism produced by the lax rules of administration which had been introduced into her system of poor relief during the preceding twenty-five years.

7 g. Reasons for the failure of the administration in Scotland.

But in the seventeenth century the danger was rather that there should be too little relief than too much. The citizens of Glasgow, like those of Aberdeen, introduced compulsory assessments, and said the "commendable cair" for the poor now shown was "to the glorie of God and good report of this citie"; but, in spite of this good result, altered their methods, apparently because of the unpopularity of the poor rate^[705]. It is easy to see why this happened. Town governors and kirk officials were much more affected by unpopularity with the ratepayers than justices of the peace, and were much less influenced by the central government. Consequently it seems that because in Scotland the system of poor relief was not in the hands of the justices of the peace, there was no period in the history of Scotch poor relief corresponding to the years in which the Book of Orders was enforced in England under Charles I. The result was that in Scotland the poor laws though made were not thoroughly administered until the present reign.

8. The history of poor relief in France.

The history of poor relief in France is very similar to that in Scotland, except that in the earlier stages French legislation is in advance of that of England.

After the middle of the fourteenth century there were vagrant laws in France and Paris as in Scotland and England. The first general measure for the relief of the poor also is almost exactly contemporaneous in all three countries. In 1536, Francis I. issued two edicts. The first ordains "that the impotent poor who have room and lodging and dwelling houses shall be nourished and entertained by their parishes, and for this purpose a register shall be made by the curés, vicars or churchwardens, each for his own parish," in order that these officers may distribute alms to the poor who are disabled. In each parish boxes were to be placed in which offerings were to be collected, and every Sunday, in Paris as in England, the preachers in their sermons were to exhort their hearers to contribute. Abbeys, priories, chapters and colleges were to give their alms to this box^[706].

By a second edict of King Francis, issued in this year, the able-bodied poor were compelled to labour in return for their alms, and it was ordered that the ordinances made in Paris concerning the poor should be binding also in the towns of Brittany^[707]. These edicts of King Francis contain almost exactly similar provisions to those of the statutes of Henry VIII., even in matters of detail.

Several other edicts between this and 1551 concern the poor, chiefly the Parisian poor. Public works were established to employ them, and efforts were made to succour the impotent poor in hospitals. In 1544 a governing body for the poor was established by Letters Patent, and the right of levying a tax or poor rate was given to this new authority^[708]. But the new taxation met with much opposition, and in 1551 an ordinance was issued which bears a very close resemblance to the English statute of 1563. All the inhabitants of Paris and the suburbs were to state how much they were willing to contribute to the support of the poor. Their answers were to be laid before the Parliament, which was then to assess everyone according to his wealth. The object of the edict was to make the taxation voluntary if possible without surrendering the right of imposing compulsory payment. Even at the Revolution this contribution had not altogether disappeared, although it was too small an amount to have much^[709] practical effect.

In 1566 it was again ordered that throughout France every town and every village was to care for its own poor^[710]. In particular towns a good deal was done: not only were public workshops opened in Paris^[711], but in 1612 new hospitals were established, and in Lyons and in certain other towns the same kind of relief was given.

But, as in England in the sixteenth century, relief was only administered in particular districts and for a short time. In France as in Scotland the history of the seventeenth century was like that of the sixteenth. Edict succeeded edict; they had some result but not much; no general system was ever established, nor were the poor ever effectually relieved. Perhaps it was impossible that laws of this kind should be executed in France because the French did not possess any county officials like the English justices of the peace. The Council might be willing to enforce the law, but the necessary machinery was wanting, and consequently in France as in Scotland poor laws were only made; they were not thoroughly administered.

9. Comparison
between history of
poor relief in England
and that in France and
Scotland.

The history of poor relief in France and Scotland thus seems to bring into greater prominence the fact that the English organisation is not exactly the inevitable result of the statute of 1601. Like causes led to like regulations in all three countries, but the regulations did not lead to the same result. The organisation of poor relief in France and Scotland continued in the English sixteenth century stage down to the present century. In the light of their history we can understand the preamble to the commission of 1631. The justices acted in many parts as if the poor laws were obsolete, and they were always tending to become obsolete in France and Scotland. In England that stage was passed during the ten years of the enforcement of the Book of Orders. Privy Council and justices were alike effective at the same time; the Privy Council took action, and the justices were urged to do their duty. Few officials, perhaps none, could have done the work so well. If the justices of later days granted too much relief it was because of the justices of Charles I. that relief was ever efficiently administered at all.

CHAPTER XIV.

CONCLUSIONS.

1. Summary of history of English poor relief before the Civil War.
2. The political significance of the paternal measures of the Government.
 - (a) Possible attempt to attach to the Government the poorer part of the nation.
 - (b) Habitual use of proclamations and orders in Council for a popular purpose.
3. Success of the enforcement of the Book of Orders in the reign of Charles I.
4. Results of effectual administration of the poor law on English social history.
 - (a) The increased communication between rich and poor.
 - (b) Decrease of bitterness of competition and increase of order.

1. Summary of history of English system of poor relief before the Civil War.

We have now traced the history of the making and early administration of the English Poor Law. We have seen that the English system of poor relief like the English House of Commons was once only one of many like institutions common to the whole of Western Europe. Although in our century other nations have again regulated the help given to the poor by public authorities, in neither France, Scotland nor Germany has the public organisation for the relief of the destitute a continuous history. The system survived in England alone among the greater nations of Europe. It began as part of the labour statutes, but the regulations of Richard II. had probably little practical effect. The administration of relief of the poor by secular authorities seems to have been first really organised under Henry VIII. by

London, Ipswich, and other towns. Even after this public poor relief was not thoroughly established for more than another century.

These municipal orders were followed by statutes adopting similar regulations for the whole country. But the statutes were very irregularly enforced; they were constantly neglected, and new legislation was passed with little better result. Still the great distress of the years of scarcity of 1594 to 1597 excited public attention; men like Bacon and Raleigh joined in the discussions of Parliament and in 1597 the statutory provisions were made which remained for the most part unchanged until 1834. But the law was only well executed for a few years: good administration rather than good legislation was necessary, and it is in regard to the provision for administration rather than in regard to municipal regulations or statutory enactments that the history of England differs from that of France and Scotland.

The difference was mainly caused by the coexistence in England of a Privy Council active in matters concerning the poor and of a powerful body of county and municipal officers who were willing to obey the Privy Council.

Even in the reign of Elizabeth the Privy Council sometimes interfered in enforcing measures of relief, but only as a temporary expedient for relieving the distress caused by years of scarcity. But from 1629 to 1640 they acted continuously in this direction and by means of the Book of Orders succeeded, as far as children and the impotent poor were concerned, in securing the due execution of the law.

The Council also succeeded in inducing the justices to provide work for the able-bodied poor in many of the districts in the eastern counties, and in some places in almost every county.

This provision of work was provided either in Houses of Correction or in the parishes. In the former case it was punitive, in the latter it was given mainly with the object of enabling the unemployed to earn their living; in both cases it was often accompanied by training in a trade. It does not seem to have been designed at all as a test for the applicant for relief. The poor of the parishes were probably well known; the strange poor were all supposed to be sent indiscriminately to the House of Correction; moreover no other form of relief was granted to the able-bodied poor except when the parishes failed to find sufficient work.

The organisation was needed because it was an age of economic transition; the agricultural revolution prevented men from finding work in their old employments, while under the new industrial organisation earnings were more unstable even when they were higher than they were before.

2. The political side of this paternal government.

It may be that there is a political side to the policy of Charles's Council in this matter. Dr Gardiner

2 a. Possible attempt to secure the adhesion of poorer classes to government.

suggests that the adoption of this policy of paternal government may be attributed to the influence of Wentworth. "It can hardly be by accident that his accession to the Privy Council was followed by a series of measures aiming at the benefit of the people in general, and at the protection of the helpless against the pressure caused by the self interest of particular classes[712]."

There were also other members of the Council who were likely to be interested in enforcing orders for the benefit of the poorer classes. Sir Julius Caesar, the Master of the Rolls, was at that time in office. He certainly was very charitable if not very wise in his charity. He is described by Fuller as "a person of prodigious bounty to all of worth or want so that he might seem to be Almoner-General of the Nation. The story is well known of a Gentleman who once borrowing his Coach (which was as well known to poor people as any Hospital in England) was so rendevouzed about with Beggars in London that it cost him all the money in his purse to satisfie their importunity; so that he might have hired twenty coaches on the same terms[713]." It is also probable that Laud may have had something to do with the strict enforcement of the apprentice part of the law in 1633-4, for we have seen he was much interested in apprenticeship, and founded many charities for the purpose himself.

Dr Gardiner also thinks that this policy "may serve as an indication that there were some at least in the Council who in their quarrel with the aristocracy were anxious to fall back upon an alliance with the people[714]." It is very possibly not entirely accidental that the name of John Caesar is attached to a report from Edwinstree in 1639 in which the inhabitants are "well disposed in relegion, obedient to gou(ern)m^t and forward in pious and charitable accons[715]," while the district of John Hampden sent up at least one protest as to the measures of scarcity[716].

2 b. The use of proclamations and orders in Council for a popular purpose.

There is however possibly another political side to these orders. The measures which were designed to protect the poor from the undue rapacity of traders or from the carelessness of parochial officials were nearly all enforced by proclamations and orders in Council. Generally these orders were in accordance with the letter of the law and almost always with the spirit which had dictated the legislation; but still the fact that proclamations and orders in Council were used to enforce this popular side of government may have been designed to increase the popularity of government by this means; it certainly tended to habituate the justices to their use and to make the majority of the nation cease to regard them as instruments of tyranny.

This danger was not unforeseen at the time. A knowledge of it probably influenced the reply of the Scotch justices when they doubted if "ane simple proclamatioun be ane sufficient warrand" for levying a tax^[717], but there is also a remarkable protest by John Hawarde in 1597 when he is recording the enforcement of the measures undertaken to help the poor at that time. He says that engrossers, and forestallers of corn in London were proceeded against "by the Queen's prerogative only and by proclamation, councils, orders and letters, and thus their decrees, councils, proclamations, and orders shall be a firm and forcible law and of the like force as the Common law or an Act of Parliament." The Puritan lawyer jealously notes that the builders of illegal cottages and negligent justices also were to be punished "on the proclamation and not on the statute^[718]." "And this is the intent," he says, "of the Privy Councillors in our day and time to attribute to their councils and orders the vigour, force and power of a firm law and of higher virtue and force, jurisdiction and preheminance' than any positive law, whether it be the common law or statute law. And thus in a short time the Privy Councillors of this realm would be the most honourable, noble and commanding lords in all the world and [have] the majesty of prince and ruler of the greatest reverence in all the world^[719]."

It is quite possible that this side of government was enforced by the orders in Council simply as a matter of convenience; it might have been difficult to pass new legislation contrary to the interests of the middle classes through a body in which the representation of those classes was so great as it was in the Tudor and Stuart House of Commons.

But if the danger of allowing the royal prerogative to be used apart from statute law was seen and protested against under the popular Queen Elizabeth, it would certainly also excite opposition in the reign of Charles I.

The substance of the orders however does not appear to have excited opposition. Men of both sides sent in their reports to the Privy Council, and more energetic measures to execute the poor law were taken in the Puritan counties of the east than in any other part of England.

3. Effect of the enforcement of the Book of Orders in the reign of Charles I.

The effects of the enforcement of the Elizabethan poor law and of the Book of Orders were considerable both in the reign of Charles I. and ever since that time.

Harman's book, the many insurrections and riots of the sixteenth century, the letter of Justice Hext and the statements in many proclamations show us how great was the disorder in England during the reigns of the Tudors and James I. The Somersetshire justice almost unconsciously reveals the main part of the reason. Many people, he tells us, were emboldened to say, "They must not starve, They will not starve," and so the honest countryman suffered from the depredations of rogues and could hardly endure the burdens laid upon him^[720]. "Maximus magister venter" quotes another writer of the period; repression did little good until it was accompanied by relief. Moreover it was impossible to enforce the repressive regulations against vagrants until relief was administered because the "foolish pity" of the inhabitants and of the justices prevented punishments from being inflicted. Throughout the sixteenth century and, after a short interval after 1597, again in the reign of James I. there are complaints of the increase of vagrants and of the disorder in the country^[721].

The effect of the Book of Orders cannot be lightly estimated if we contrast the statements of Justice Hext and his contemporaries with those of the justices under Charles I. Complaints of great disorder then cease in all parts of the country except London. In many places vagabonds are said to no longer trouble the neighbourhood. In High Peak the justices state "nowe wee haue fewe or noe wanderers^[722]"; at Wallington in Surrey few vagabonds are taken because now only a small number come to the hundred^[723]; while at Andover there is "scarce a vagrant found about vs nor are any pickeryes com(m)itted^[724]." In a few places, as at Bramber^[725], the improvement is stated to be owing to the activity of Provost Marshals but in

many other places it is directly connected with the Book of Orders. Thus in parts of Westmoreland we hear that there was great improvement in consequence of the enforcement of the poor law in 1638; "idle persons haue beene banished out of the countrey" and the poor of the neighbourhood were "more willing to take paynes[726]." In two divisions of Shropshire it was "rare to see a wandring person[727]," and at Appletree in Derby the overseers relieve the poor and set to work "such as are poore and yett well able to worke w^{ch} wee fynde doeth very much good in the cuntrye[728]." But the most decided symptoms of improvement are indicated by a report from a district of Leicestershire which reveals a state of things in strong contrast to that of Somerset in 1596. The justices record a very careful attention to the Book of Orders, especially the parts relating to setting the poor to work, teaching knitting to the young and placing out apprentices "that yong people and children may receive imployment and fittinge educacon and soe avoide idlenes and lewdenes of life." These efforts they tell us "in all partes of the cou(n)tie hath already wrought soe good effect; as that since the last Assizes to the day of the date hereof there is come into the comon gaole in the cou(n)ty of Leic. but two prisoners for two small felonies, committed by two seu(er)all yonge people, beinge servants settled at the tyme of the offences committed[729]."

The disappearance of vagrants, the decrease of felonies and increase of order are reported as the direct consequence of the administration of the Book of Orders. Other causes may have contributed to this result, but the reports of the justices from so many places in different parts of the country are conclusive evidence that efficient relief of the poor hastened the time when the peaceable citizen and peasant could work and live in security and quietness.

This great belief in the good results of the work and of the relief afforded is very characteristic of the administrators of the time. If the system of the seventeenth century had many disadvantages when concerned with the more capable members of the community, its dealings with the poor compare very favourably with the methods possible in a freer community. The modern philanthropist may talk about being an individualist but he cannot be one. He cannot punish the idler and the drunkard as such directly and so it is rarely possible for him to aid the innocent members of a family without encouraging the guilty. Consequently he cannot deal with

individuals on their merits, he can only deal with families. But in the seventeenth century the drunkard was either fined or placed in the stocks, and the idler was sent to the House of Correction. You might then help the rest of his family to find employment or have the young children taught in knitting schools and apprenticed without dangerously weakening the incentives to industry and sobriety. The direct punishment had a good effect in dealing with people for whom the community made itself responsible. It sacrificed only the individuality of the offender and not that of all his family. Consequently there was little danger in the increase of organised relief and it seems to have produced good results. The comments when we hear them are all in a satisfied tone. The Norwich magistrates were delighted with their organisation after seven years' trial and this in the reign of Elizabeth when the complaints were great in most parts of the country where little relief was given.

The stocks for the poor might be expected to operate unfavourably on the wages of unskilled labour; but there is no trace of their having done so. Wages rose during the Commonwealth it is true, but they rose also during the reigns of the earlier Stuarts and continued to rise until near the end of the century. This rise in wages seems to have been increased rather than checked by the enforcement of the Book of Orders, probably because the casual labourer had a far more depressing effect on the labour market when he wandered everywhere than when he was regularly employed by the stock of his parish. Moreover if the system affected wages at all, it would affect the unskilled labourer rather than the skilled. But after the Civil War the unskilled labourer gains relatively less: it is the more skilled forms of labour that are better paid^[730]. It thus seems fairly certain that the stocks for setting the poor to work did not unfavourably influence the wages of the lower class of labourers.

The setting of the poor to work in this period cannot be judged as if it were part of the system of free competition of modern England. There was little notion of free competition; state and town interfered in wages and in the management of industry; everyone was subject to restrictions in the supposed interests of the nation, and the stocks for the poor were almost a necessary complement of this national organisation of industry. The idea of the time was to maintain a stable condition of affairs; the attempt to find employment for the poor in their slack times corresponded to the measures

taken to lower prices in the years of bad harvests and to secure the interests of the employers when labourers were scarce and wages rising. Whatever effect these attempts may have had on industry as a whole they certainly lessened the immediate sufferings of the unemployed during this time of transition and they must be taken into account in any attempt to estimate the condition of the poor at the period.

So far as the temporary difficulties of the seventeenth century were concerned therefore, the system established by the Book of Orders lessened the misery of the poor and contributed to the establishment of order.

But the whole of the poor law did not disappear during the Civil War. It is true that the existing schemes for the employment of the poor were discontinued but the relief of the impotent and the care of children have continued down to our own time.

4. Results of poor relief in later times.

We have been so accustomed to hear of the evils of the law of settlement and the abuses of the relief granted in aid of wages, that we perhaps fail to consider the better effects of the existence of a system of poor relief.

In the first place the method of administration has helped to unite the different classes of the nation together. The rich may have known little about the poor but the country gentlemen as justices have been obliged to know something. Besides every ratepayer has suffered when any cause has permanently depressed the labouring class. All have to pay more poor rates and so are led to discuss, and if possible to remedy, abuses and grievances. In this way the evils of bad administration of relief have been checked and interest in all matters affecting the poor has been stimulated.

4 a. The increased union of rich and poor.

But the existence of the poor law may have had even more important effects.

4 b. Decrease of bitterness in competition and increase of order.

Many are affected by the poor law who never receive relief; it takes away some of the horror of failure from all who may if unfortunate need help of the kind and so renders the struggle for existence less brutal to the whole of the labouring class.

In the seventeenth century this assistance to the poor helped to make England a peaceful community and it has probably had the same effect ever since.

The earlier centuries of our history were not distinguished by the quiet and orderly habits of the people. Whenever, as in the reigns of Henry III. and Richard II., we had little war abroad there was disorder at home. In the sixteenth century we have seen every season of scarcity produce riots, insurrections or rebellion. In 1529 Norfolk and Kent were in insurrection, in 1586 Gloucestershire was discontented, in 1596 the peasants of Oxfordshire took up arms; while in 1549 the economic distress was mainly responsible for the rebellion which caused the fall of the Duke of Somerset and nearly produced a revolution. Even in ordinary times property was not safe; bands of vagrants roamed the country who compelled the inhabitants to grant them relief; petty thefts were committed and were neither detected nor punished, sometimes robbery even was successfully attempted in open daylight and was unrepressed. In Scotland a like state of things lasted at least as late as the end of the seventeenth century and indeed much later still. Louise Michelle on her visit to England was more struck by English poor relief than by any other English institution: she said that a like system in France would have prevented the French revolution. The distress of the masses of the people and the existence of a large number of hungry men always ready to join the forces of disorder, are at all times a danger to the stability of governments. It may well be therefore that the law-abiding characteristics of the nation and the absence of violent changes in the political constitution have been at least partly due to the regular relief which has been granted under the English poor law. Ever since its provisions were first thoroughly put in execution through the efforts of the Privy Council and of the justices in the reign of Charles I. no man has been able truthfully to plead that he was driven to crime or desperation by absolute want.

APPENDIX I.

EXTRACTS from the Journals of the Common Council of London.

These Journals begin with the entries for the year 1416 and are still continued. They are contained in large folio volumes and are written on paper in French, Latin and English. The entries made in the sixteenth and seventeenth centuries are generally in English. The resolutions of the Common Council and the chief letters, precepts and proclamations concerning the government of the City were copied within a few days of the time they were made by one of the officials under the Town Clerk[\[731\]](#).

The following two extracts illustrate the fact that the organisation for the poor in London was municipal, both before and after the statute of 1572[\[732\]](#), and show the methods by which the City authorities enforced their orders.

A. Copy in the Journals of a precept for a collection for the poor issued in 1563. *Journals*, XVIII. f. 145 b.

By the Maio^r.

To thalderman of the warde of Cheape. A precept for to make a collection for the pore.

Whear as there was a precept dated the VIIth of this present September directed to all and every parson, vicar, curate and churchwarden of every parishe church wthin yo^r saide warde com(m)anding them that they and euery of them should cause the Inhabitants of there saide parishe to assemble them selues together and make a colleccion and provysyon for the pore, sick and nedye of there saide parishe and, if there saide parishe were not afflicted and had no nede of any suche provysion, that then they shoulde bestowe the same vpon other pore paryshes wthin the saide Citty where they shoulde think it moste nedefull. Forasmuche as the execucon of suche diligence therin towards the poores releif hath taken no suche good successe as was hoped for, And understanding, the great visytacon of god to continew and

sicknes to encrease and perceyving also by complaynt of the nedye there miserable estate, These are therefore to requyer and in the Quenes Ma^{ts} name to charge and comaunde you that you cale before you the saide parsones, vicar and churchwardens of euery parishe churche wthin yo^r saide warde, once every weke, and that you see o^r saide precept putt in execucon according to the Teno^r therof and the charytye collected to be bestowed accordingly. Requyring ye to take suche order wth them as either refuse orells be found negligent in doing there dutyes therin (if by gentyll monytion to them geuen) they will not be reformed as yo^r discession shall seme good. Fayle ye not hereof As ye will answer for the contrarye at yo^r perill, yeoven at the Guildhall of the saide Cittye the last of this present moneth of September 1563.

Blackwell J.C.

B. Copy in the Journals of a precept for a collection in February 1573/4. *Journals*, XX. I. f. 119.

By the maio^r.

Albeit that, accordinge to the late statute made fo^r releif the poore, eu(er)ye persone inhabitinge wthin this city and liberties of the same haue byne seu(er)ally taxed, yet the nombe^r of the poore is so great that the same collecons notwthstandinge beinge faithfully disposed amonge them in this hard tyme many poore, impotent, sicke and deseased people lyue in great penury and neede redy to be famished fo^r lack of releif. And to thend the sayd poore may be charitably provided fo^r, theis shalbe to will and require you that you take such order in yo^r ward by yo^r self or by yo^r deputy that the churchwarde(n)s of eu(er)y parishe churche wthin yo^r sayd ward at everye sermon readinge o^r service in the sayd parishe churches collect and gather the devocon and charitable almose of well disposed people towardes the releif and maintenaunce of the sayd poore to be distributed

A precept for the collection fo^r the poore.

in suche parishes of this city as hath most neede thereof and as shalbe appoynted by suche persons as shalbe named by the lord maio^r of this city fo^r the tyme beinge fo^r the distribucon of the same. And also that you cause eu(er)y preacher and reder of eu(er)y such sermon and readinge and also eu(er)y parson, vicarre and curate of the sayd parishe churches wthin yo^r sayd ward to be moued gently to exhort there audience charitably to gyue ther almose for the end and purpose afforesayd. And further that you cause diligent serch to be made from tyme to tyme through out yo^r sayd ward fo^r all such poore as shalbe newly com into yo^r sayd ward out of the country o^r ells where. And to take order fo^r thavoydinge of the same with all speede, fayle ye not hereof etc. Yeoven at the guildhall of the City of London the XVII{th} of february 1573.

Stapleton.

APPENDIX II.

EXTRACT relating to the parish of St Peter's of Southgate, from the census of the poor taken at Norwich recorded in the "Maioris Bocke for the Pore^[733], made in the feaste of St John the Baptiste 1576" and continued down to 1580.

Theis be the names^[734] of the poore within the saide Citie as they were vewed in the yere of our lord god 1570. In the tyme of M^r John Alldereche maior.

THE WARDE OF SOUTHE CONSFORTHE.

Names of the poore to be relieved weekelye.
In St Peters of Southgate.

In the house of Robt.
Susling. no allmns
and vrie pore but able
to worke

Richard Bitche of the age of 35 yeres, a husbondman which worketh with Mrs Cantrell and kepith not with his wife (but at tymes) and helpith her little. And Margarit his wyfe of the age of 40 yeres she spinne white warpe and Jone her doughter, of the age of 12 yeres, that spinne allso the same. And Simond her sonne of the age of 8 yeres that goe to scoole. And Alice and Faithe? the eldiste of the age of 8 yeres and the other of the age of 3 yeres, And haue dwelt here ii yeres and sence Witsontyde and haue dwelt moste parte at Banham where thaie ware maried and since at Swanton next Norwaltham and Amringall.

Peter Browne (porter) a cobler of the age of 50 yeres and hath little woorke. And Agnes his wyfe of the age of 52 yeres that workith not, but have bene sicke since Christmas (but in helth now) she spinne white warpe havinge three doughters, the one of the age of 18 yeres, the other of the age of 14 yeres, and the other of the age of 13 yeres, the which all spinne when they can get it, but now they ar without worke:

the house of the gates.
iiii^d a weke and verie
pore but able to worke

thaie have dwelt here theis twentie yeres, and thaie haue one daughter Elizabethe w^{ch} is idle and is sent from service where she dwelt with Willm. Nought of Thorp iii quarters of a yere.

in the house of his owne but now in morgadge. iii^d a weke

Thomasse Claxon, boote wrighte, is abroad at worke, and comfort his wife to his power, and is of the age of 43 yeres, and Anne his wyfe that is of the age of 27 yeres, and ii sonnes; the eldiste of the age of 4 yeres: she spinne white warp, he hathe dwelt here ever and now she lyeth in childebed, and theie be indifferentlie stowred with househoulde stuffe.

Thomas Mathew laborer, who is gonne from his wyfe beinge of the age of 40 yeres, from whome she hath no help, and Margarit his wyfe, of the age of 32 yeres, and haue no childrene, she spinne white warp, and have dwelt here (ever) and knoweth not where her husbond is.

Henrie Bisbioke mason, of the age of 46 yeres, and Elizabeth his wyfe, of the age of 30 yeres: and two sonnes the eldist three yeres of age: she spinne white warpe.

in monfor

in the first tower. no almns verie pore but able to worke.

Willm. Bridges of the age of 40 yeres (a laborer) and Jone his wyfe, of the age of 23 yeres, she spinne white warp, havinge one sonne, and one daughter: the eldist of the age of 8 yeres, and thaie kepe together and haue dwelt here eyght yeres.

Allso there is Thomas Warde and his wyfe but these liue uppon there labor.

At gaywodes. no almns indifferent able to worke.

James Taylor, a taylor, of the age of 30 yeres (now in prisonne, in the Gylde haule) and Margarit his wyfe, of the age of 30 yeres, which spinneth white warp, and was Linstis wyfe that was so longe in prisonne and havinge one childe beinge a sonne, of the age of eyght yeres theie haue dwelt here since Michelmas, last past, but she liue of her labor and dwell wthin Gaywode at monforthes.

Thomas Willsonne, of the age of 30 yeres a basketmaker, and Katherin his wyfe of the age of 25 yeres who maketh buttonnes, havinge two doughters the eldist of the age of 5 yeres, thaie haue dwelt here ever.

Calistones house.
indifferent no
al(m)ns.

Edward Paulms
house.

Michael Cocke, of the age of 40 yeres a laborer and [\[735\]](#)

his wyfe, of the age of 50 yeres; they liue together, and have dwelt here aboue three yeres.

Nicholas Feelde of the age of 30 yeres sometyme a painter, and Beeth? his wyfe of the age of 30 yeres who spinne white warp hauinge two sonnes, the eldist of the age of 6 yeres, and haue dwelt here ever.

Palmes house. verie
pore no allmns.

IN SOUTH CONNESFORTHE.

The names of the poore to be relieved weekelye [\[736\]](#).
St. Andries, St. Edmondes, St. Julianes.

Indifferent able to
worke. no all(m)ns.

John Soule of the age of 40 yeres, a laborer, and Alice his wyfe of the age of 23 yeres, who spinne white warpe, havinge no children, and they liue together and have dwelt here ever.

etc.

APPENDIX III.

EXTRACTS from the "Orders for the poor" drawn up in Norwich, 3rd May, 1571.

These are entered in a smaller folio volume entitled "The Book for the poore. Mr John Aldriche maio^r." It concerns the organisation of the poor in Norwich between the years 1571 and 1580.

Orders for the poor.

None to begge in
payne of vi stripes.

"1. Fyrst that no parson or parsons olde or yonge shalbe suffred to go abrode after a generall warninge gyven, or be founde a beggyng in the stretes at the sermon or at anie mans dore or at anie place within the Citie in payne of sixe stripes with a whippe.

2. Not that anie parson or parsons, shall sustayne or fede anye such beggers at their dores in payne of such fyne as is appoynted by statute and further to paye for everi tyme fower pence, to be collected by the deacons, and to go to the use of the poore within the seide Citie.

None to sustayne anie
beggars at ther dores
in paine of y^e statutes.

A working place at
the Normans for men
and women.

3. Item that at the house called the Normans in the convenienteste place therfor, shall be appointed a workinge place, aswell for men as for women viz. for the men to be preparad forteyne mawlte quernes to grinde mawlte and suche excersises. And for the women to spinne and carde and such lyke excersises.

Which workinge place shall contayne to sett twelve parsons or more upon worke which parsons shall be kepte as presonars to worke for meate and drinke for the space of twentie and one dayes at the leaste and longer yf cause serve and they shall not eate but as they can earne (excepte som frende

Twelve parsons to be
set a worke & of ther
kepinge &
continuance.

wyll be bownde for them) that the Citie shall nomore be troubled with them with this proviso that such parsons as shall be thether comytted shall be suche as be hable to worke and daielie notwithstandinge wyll not worke but rather begge, or be withoute master or husbonde, or ellis be vacabowndes or loyterers.

The howres to worke both wynter and somer.

Whiche parsons shall begynne their woorkes at fyve of the clok in somer viz^t from ower Ladie the an(n)unciacion untill Myhellmes, and shall ende ther workes at eight of the cloke at nighte, and in wynter to begyn at sixe of y^e cloke from Mihellmes to ower Ladie, and to ende at seven of the cloke at nighte or halfe an hower past with the allowaunce of one halfe hower or more to eate and a quarter of an hower to spende in prayer.

And everye one sent thether shall be by warrente from the maior or his deputie or deputies to the balie ther, upon which warrente the balie shall be bownde to receive every one so sente and see them sett a woorkes.

Those sent to bridwel to be by warrante

punishment for those that will not worke.

And those that shall refuse to do their workes to them appointed or kepe their howers to be ponished by the whipp at the discrecion of the wardens or balie of the house."

(Other orders relate to the official government of the poor. The Mayor was to be master of Bridewell, and four aldermen were to be commissioners of the four great wards. All minor officers were to be appointed by the commissioners.)

"For the balie of Bridewell.

Mr John Aldriche maior.

Item upon the seide awcthorite be also appointed another offycer he to be called the balie of bridewell, who is to be residente ther with his wyfe and famelie, who shall take the charge by inventorie from the wardens of all beddinge and other utenciles

The balie to be
apointed to be
resident & of his
charge.

delyvered unto hym to the use of the
workefolkes, who shall yerelie accompte
with the wardens for the same.

And also shall take charge of such
vagabowndes men and woomen as to them shall be committed
enforcinge them to worke by the Houres aforeseide. The men to
grinde mawlte and other workes, and the women to use their
handedede and, except that thei worke, not to eate.

What the balie shal
take for fewel &
victual.

And to take of them for their victuall, and
fewell, or other necessities as the price shall
be rated and ther sett up. And to alowe them
for their worke by the pownde (or otherwise) as shall be rated
and sett up and shall use such correccion as is aforeseid.

And also shall receive all stuffe thether browght and see the
same trewlye and well used and sawfely delyverid.

And he to provide hym of such sarvantes as
in his abcons or his wyves shall see the
workes done as it owghte to be and to do the
howse busynes as washinge, makynge of beddes, bakinge and
also to be experte in handedede to spynne, carde etc.

What sarvantes the
balie shal provide.

To provide an officer
surveyor to go abrod
to areste offenders
and what y^e surveior
shal do.

And also to provide one offycer survayor to
go daielye abowghte the citie, with a staffe
in his hande to areste whome that is apte for
brydewell and brynge them to master maior
or to anie of the committies be comaunded
thether.

And as he goeth abrode he shall certifie howe the workes in
everie warde ar ordered and occupied and shal enforme master
maior the committies or his master therof.

And he shall resorte to the deacons in everi warde and be
aydinge unto them to bringe suche as be newe commars into the
citie to master maior, the same presentlie to be sente away
agayne to the place they cam from. And lykewise shall bringe all
disordered parsons to be ponissed to Bridewell yf suche shall

dwel in anye warde, and shall gyve his whole attendaunce theruppon.

And the seide balie shall be allowed for hym sylfe his wyfe sarvauntes and surveyor (yf he shalbe charged with his whole nombre of presoners) for meate, drinke and wages thirtie powndes by yere, wherof he shall paye fourtie shillinges a yere to a preste to mynister cervis to them twise a weke or elles yf he have lesse charge to have after the rate as by the discretion of the committies and wardeins of Bridewell shall be thought convenient or as they can agree...."

What the balie shal be allowed for his fameli.

(The next orders provide that twelve children shall be brought up in S. Giles' Hospital.)

"Orders for children and others in wardes.

Everie single warde to have selecte women to receive to worke & learning suche as to them shalbe appointed

Item, that there be also appoynted by the committies or comissioners for every synge warde so manye selecte women as shal suffyse to receyve of persons within that warde, viz. of women, maydens or children that shalbe appoynted unto them by the comitties or deacons, to worke or learne letters in their house or houses, of the most porest children whose parentes are not hable to pay for theyr learinge or of women and maydes that lyve ydelye or be disordred to the number of six, eight, tenne or twelve at the moste in anie one of their howses.

their workes howers and correccions.

The same to be dryven to worke and lerne, by the howers appoynted in bridewell and with such corrections, tyll their handes be brought into such use and their bodies to suche paynes as labore and learninge shall be easier to them than idleness and as they shall of themselves be hable to lyve of their owne workes with their famelies as others do.

And everie suche selecte woman appoynted to take charge of such aforeseide, shall see

What the selecte women shal do or se done.

that suche as to them be comitted shall do ther woorkes trowelie and workmanlye and be learned profitablie, or ellis to laye sharpe correccion upon them; and everi such selecte woman doenge her duetie to teache or cawse to be tawghte or sett a worke, to have for her paynes in that behaulfe twentie shillings by yere everi one of them so appoynted and nominated.

What rewards everie selecte woman shall have & yf she refuse, to have twentie daies impresonement.

And whoso ever selecte woman so appointed shall refuse the same beinge therevnto appoynted, shall suffer imprisonment by the space of twentie dayes at the leaste.

Orders for the deacons.

Deacons in everi ward to be apoynted to have the oversight of y^e poore of their warde.

Item that in every single warde within this citie be also appoynted in that order, fourme and tyme aforesyde twoo

Mr John Aldriche
Maior.

To have the names of y^e warde that have not remained three yeris to be sente awaye.

civil and experte men that wyl be paynefull, the same to be called deacons, whiche twoo in everie petie warde appoynted, shall have the oversight of the poore of that warde and have the names of them as well of men, women as chyl dren. And suche as have not remayned three yeris in the Citie to certifie the committies therof, to be presentlie sente awaye with their families, and also to have a contynuall eye that no more suche straungers be suffred here to inhabit as be not hable to lyve of themselves, or be lyke to be chargeable to the citie for the which they shall make search ir warde onis in a monethe at the least vpon payne of three shillings and fower pence for everi tyme doenye the contrarye.

To search onis in a moneth in paine of three shillings & fourpence.

And suche as shall have nede and remayne and that the awlmes can not suffyse to certifie the

Who thei shall certifie to the comitties yt can worke not to ronne abowght.

seide commytties of their state from tyme to tyme as they maye be provided for.

And the reste that can worke, to se they ronne not abowght abegginge, but rather to be sett a worke.

Also all those that can and wyll not woorke to se them placed with suche selecte women as shall be charged with them and to kepe their howers to them appoynted or ellis to see correccion upon them as at brydewell (yf they shall refuse the correccion of their dames).

Yt wyll not worke to be placed with the selecte women.

And also to certifie the nombre of disordered parsons to be ponissed wekelye.

To certifie y^e names of disorderid parsons.

To certifie y^e nombre of children not hable to be sustayned of them.

And also that the nombre of childrene under age (not hable to worke) and that their parentes ar not hable to sustayne to certifie aswel of their names ages as places inhabiting to be considerid of.

And also to certifie the nombre of such bygge wenches or boyes as maye do cervis, not hable to be kept of their parentes, to be putt to cervis accordinge to the statute, and the reste to worke with their parentes so as they go not ydelie abowght.

To certifie ye nombre of bigge wenches and boyes to go to servis.

Also that begge to be ponissed.

And whosoever olde or yonge goinge abowght to begge the same to be ponissed as aforesyde.

Also what vagaboundes or ydle loiterers, dronkerdes or disordered parsons doth in that warde remayne that they be certified to be ponissed also.

To certifie vagabonds etc. to be ponissed.

All moni or other things gyven to be done by the deacons.

And that all monye woode or other thinges whatsoever gyven or to be gyven to be distributed to the poore maye by them within everie warde be trewely done and recorded and the comitties made privie therunto.

And everi one to this office appoynted and shall refuse to do his duetie (in all the

that refuse to do ther duetye to forfet fortie

premisses) both trewlie and faithfullie, shall forfett the some of fortie shillinges the same to go to the vse of the poore.

shillinges.

one to continue for
twoo yearis.

Of the which twoo, one of the same shall ever contynue for twoo yeris befor he shall go of, to the ende to enstructe the other.

Itm yt is also orderid that the pore in everie warde shall receyve suche somes of money as is to them wekelie assigned at the handes at everie of the forseide deacons.

The pore to receive y^e
somes wekely
apointed.

All giftes collecons
legaces to go to the
use of the pore.

Item yt is also orderid that all gyftes colleccions, legacis, or benevolenses gyven or bequethed to the use of the poore, shall go to the use aforeseyde, and as ellis hereafter shall be thowght mete, to prepare woode or other fewell to sustayne the poore in wynter or to prepare them howses to dwell in or for anie other necessitie or to purchase some certentie of landes to maynteyne the same.

Finis."

APPENDIX IV.

REPORT concerning scarcity from Norfolk, 1586 (*Dom. State Papers*, Queen Eliz., Vol. 191, No. 12).

The following is the Report returned to the Council by the justices of Norfolk on July 11, 1586, and also a part of one of seven certificates which they enclose. It is addressed on the back "To the right honourable our singuler good Lordes the Lordes of her Ma^{ty}s most honourable priuie counsell," and is endorsed "11 July 1586 Justices of peace in Norff. Price of graine."

"May yt please your honours, after the remembraunce of our humble duities to be aduertized; that for a further proceedinge in the accomplishm^t of your honourable l[ett]res concerninge the furnishing of the markets wth corne, wee haue according to our former l[ett]res of the ixth of June laste, mette here together this day for conference therein. And pervseinge all our notes and preceedings together, wee fynd that thoroughe oute this sheire by suche order as wee haue taken withe owners and farmers and also Badgers and buyers of corne and graine, the markets are by them plentiefullie sarued everie market day withe corne, and the same solde at resonable rates, viz. wheat at xxii s. the quarter, rie at xvi s., maulte at xiiii s. and barley at xii s. of whiche kyndes of corne, the poorer sorte are by perswasion sarued at meaner pryces. And so wee dowbte not but yt shall likwyse contynue acco(r)ding to our direction vntill yt shall please god that new corne may be vsed. And hereof thinking yt best in performaunce of our duities to aduertize your honours wee humblie take our Leave. From Attlebrigge the xith of Julie 1586.

Your ho: humble at comaundment

Willm. Heydon.

Clement Paston.

Natha. Bacon.

Henrye Gawdye.

Willm. Paston.

Tho. Tomiested.

Willm. Rugges.

Christ^r Heydon. Morr. Bernye. Henry Helmerton."

The following is a portion of one of the seven certificates enclosed:

Southgrenhoo
hundrethe

"The certyficat of Willm. Hawke and Robt.
Co(n)stable, Chieff Constables of y^e
said hundreth of all y^e corne and grayn found by them
vppon serche w^hin ye seid hundrethe xxth of June
1586."

The report concerns twenty places of which North Pukenhām is one.

North Pukeh(a)m	Wheat	Messelyng & Rye	Malt barley	Y ^e No(m)ber of y ^e Persons	Y ^e corne to (er)ve ye m ^r ket
Frances Reynolds		l cobs	x cobs	10	
John Cuves	i cobs	iiij cobs	iiij cobs	3	
John Constable	ii	iiij	iii	7	
John Egglynge	iiij	v	iiij	6	
John Callibut	ii	iiij		9	
John Samlyng	v	v		4	
James Wryght	ij cobs	viii cobs iii cobs	v cobs iii cobs	6	
Sm ^a totall	xvi ^{co} .	iiij ^{xx} ij ^{co}	xxvii ^{co} .		

APPENDIX V.

PART of a draft of orders for remedying the scarcity of corn in 1586 (Lansdowne MSS. Brit. Mus., No. 48, f. 128).

The following draft is found among the Burleigh papers. It is written on four folio sheets on both sides, for the most part in an official hand, but throughout it is corrected in Burleigh's own hand, and the last portion is written entirely by him.

The orders here contained must have been substantially the same as those issued and printed by order of the Privy Council on Jan. 4, 1586/7 since a series of reports dated in 1587 answer these instructions point by point[737]. Most of these regulations were suggested by the three judges, Popham, Mildmay and Manwood, to whom the matter had been referred. Their report was considered and annotated by Burleigh, and the following draft seems to have been based on their conclusions[738].

Already several times during the reigns of Edward and Elizabeth similar sets of orders had been issued in order to prevent a bread famine in years of high-priced corn. Earlier in this year of 1586 commands had already been sent, and reports had been received from the justices. These orders however were more carefully considered and detailed than any previous commands.

Orders of this kind continued to be issued throughout the reigns of Elizabeth, James I. and Charles I., but these of January 1586/7 were thought to have the best effect and were reprinted and reissued in 1594[739]. They thus seem to be the original form of the scarcity Book of Orders which apparently afterwards suggested the Book of Orders for the relief of the Poor of Jan. 1630/1.

A few of the later clauses only of this draft relate directly to the relief of the poor, and the general character of the instructions given in these contrast strongly with the detailed directions dealing with the supply of grain. This bears out the contention that at this time the direct relief of the poor was only subsidiary to the indirect relief afforded to the poorer classes by these measures for the supply of corn: it also indicates that the interference of the Privy Council in the direct relief of the poor was suggested by the distress

and disorder of these years of high-priced grain, and was begun at least as early as 1587, as one of the methods which were adopted to relieve that distress.

Lansdowne MSS. 48, f. 128, No. 54, 27 Decembris 1586.

Orders devised by y^e speciall comma(n)ddment of y^e Qu. Ma^{ty} for y^e releiff and ease of y^e present derth of gray(ne) w^hin y^e realme[\[740\]](#).

That the Sheriffe and Justices of the peace *by spedy warni(n)g* of y^e shyrriff shall ymediatlie vppon the receipte of these *orders*[\[741\]](#) assemble themselues togeather, wth as much speede as they possible maye, and havinge conferred amongst them selves vppon the contents hereof, shall first for the better execucon of *the same* devide them selves into sondry companies and take amongst them *into ther chardg* by seu(er)all divisions *all* the hundreds, rapes or wapentaks of the said countie.

Itm eu(er)y Companie so allotted out shall forthwth direct their preceptes vnto the said Sheriff to warne the high cunstables vnder cunstables and others the most honest *and substa(n)ciall* inhabitants wthin the same hundred, rape or wapentake to the number of xxxvi persons, moe or fewer as the quantetie of the hundred rape or wapentake shall require, to appere before them, at a certayn place and wthin as shorte a tyme after the receipte hereof as they convenientlie may, and vppon the apparance of the said persons, they shall divide them into so many Juries as they shall thinke meete, gevinge instruccon to the said Sheriffe to retorne as fewe of such as *be known great firmers for corn or* haue store of grayne to sell as he can; and such of the same *perso(n)s so warned* as shall not appeare, but make default beinge somoned, and not havinge any *just or* reasonable excuse *allowable by y^e justices*, to be punished therefore at the good discrecons of the justices *both by i(m)priso(n)m(e)nt and fyne* before *whom* they are to appere.

Itm. they shall *first declare y^e cause why they ar sent for and therw^h earnestly chardg them in the feare of God to apply*

*themselves to the s(er)vice wherevnto they shall be now called
w^h all dutyfullnes and dilige(n)ce and w^hout any parcialyte to
any person and the(n) they shall gyve them the oth followy(n)g:*

The Juries Oth.

Yo^u shall sweare &c. that yo^u shall enquire and make trewe and
dewe search and triall what number of persons eu(er)ye
housholder that hath corne *in thir barns, stacks or otherwher*
aswell Justices of the peace as others *what so ever* wthin the
parish of have in their houses, (fedyng and lye(in)g and
vprisyng?); what number of acres they haue *certainly* to be
sowen this yere wth any mann(er) of grayne; what bargaynes
they haue made wth any person for any kynde of grayne to be
sold by or to them; to whome and by whome and vppon what
prices they haue made the same and what quantetie of any
mann(er) of grayne they or any other haue in their barnes,
garners, lofts, cellers or flowers or otherwise to be deliu(er)ed
vnto them uppon any bargayne.

Itm what number of badgers, kidders, broggers[\[742\]](#) or cariers of
corne doe inhabite wthin the said parishe and whither they doe
vse to carrie their corne they buy and *wher they do vsually buy*
the same and what their names be *and how long they have vsed*
that trade, and by whose lycense, and to se the same lycenses of
what tenor they ar of.

Itm what number of malte makers, bakers, comen brewers or
tiplers[\[743\]](#) dwell wthin the said parish and whoe they are *by*
name and how long they have vsed y^t trade and how much they
bake or brew in y^e weke and what other trade they have wherby
otherwise to lyve.

Itm. whoe wthin the same parishe be the greate buyers of corne or *do (usually?)* buye or have bought any corne or grayne to sell agayne or haue sold it agayne *sence Midsomer last.*

Itm whoe wthin the same parishe buyeth or haue bought or sold any corne vppon the ground, of whome and to whome hath the same bene bought or sold *and at what pryces*, and to c(er)tefie vnto vs of the premisses & of eu(er)ye parte thereof on the daye of nowe next comynge, and *to every part of these articles you shall bryng answer fro(m) poy(n)t to poynt*[\[744\]](#)....

That the said Justices of the peace, havinge receaved into their hands the verdicts of the said Juries *on every and to every poynt of ther chardg*, shall call at c(er)ten dayes by them to be assigned such persons before them of eu(er)ye parish as vppon the presentment so made shall appere to haue corne to spare, and vppon *dew* consideracon of the number of persons w^{ch} ech hath in his howse *accordy(n)g to ther qualites*, and of the quantetie of grayne the partie hath toward the fyndinge of the same or otherwise to be spent in his howse and sowinge of his groundes, allowinge to eu(er)y housholder for his expenses in his house for eu(er)ye person thereof *accordy(n)g to ther qualite* sufficient corne for bread and drinke betwyne this and the next harvest and for their seed after the rate of the sowinge of that contrie vppon an acre. *And tha(t)* they shall bynd all such as shall appere to haue more of any kynde of grayne then shall serve to the vses above menconed aswell Justices of the peace as others by recognizance in some *good* reasonable *somes of mony* to observe the orders ensueinge viz.

The forme of the
recognizance to be
frely taken.

Ye doe knowledge yo^r self to owe vnto o^r Sou(er)aigne Ladie the Queenes Ma^{ties} &c. the some of &c. The condicon thereof shalbe, that yf ye shall well and trewlie wthout fraude, covyn[\[745\]](#) or collusyon, and wthout any mean deceipte or crafte, fullfill, observe and keepe all and eu(er)ye such orders, appoyntments and direccons as shall at this pre(se)nte be by vs on her Ma^{ts} behalf prescribed and enioyned vnto yo^u, to be by yo^u donne and

fulfilled Then this recognizance to be voyd or els to stand in force.

The orders to be by yo^u observed be these viz.

Yo^u shall bringe or cause to be brought weekelye so many quarters or bushells of corne as wheate, rye, barlie, malte, pease, beanes, or other grayne, or so much thereof as shall not be *directly* sold to the pore artificers or daye laborers of the parishe wthin w^{ch} yo^u dwell by order of the Justice of the peace of the division wthin w^{ch} yo^u do dwell or of two of them, to the market of there to be by yo^u or at yo^r assignement sold vnto the Queenes subiects in open markett by half quarters, two bushells, one bushell or lesse as the buyer shall require of yo^u and not in greater quantetie, excepte it be to a Badger or carier of corne admitted accordinge to the statut, or to a comon knowen bruer or baker, havinge testimonye vnder the hand and seale of some *twoo* justices of the peace *at ye lest* of the division or *of a* mayo^r or other hed officer of the Cittie, Towne or Borrough *corporat* where he dwelleth that he is a *co(mm)en* Brewer or Baker wthin the same, or to such other person as shall make provision for any Lord sp(irit)uall or temporall, knighte or other gentleman *y^t hath no provisio(n) of corn of ther own so as y^e former person* hav & show vnto such person as shall haue the over sighte of the markett in that behalf testimonye vnder the hand and Seale of the partie for whome *he cometh to y^e market* to make that provision declaringe that it is for the provision of his howse and conteyninge the quantetie & kynd of grayne to be provided: and yo^u shall not willinglie leave any parte of yo^r corne, so brought to that market, vnsold yf money be offered to yo^u fo(r) th(e) same by any that are permitted to buy the same after the vsuall price of the markett there that daye, *nether shall you fro(m) y^e begy(n)ning of y^e markett to y^e full end therof kepe or cause to be kept any part of your sayd corn out of y^e oppen sight of y^e markett*[\[746\]](#)....

Ye shall buye noe corne to sell it agayne.

Ye shall neyther buy nor sell any mann(er) of corne but in the open market, vnlesse the same be to pore handiecraftesmen or dayelaborers wthin the parish where yo^u doe dwell y^t *can not conveniently come to y^e markett towns by reaso(n) of dista(n)ce of place, accordinge* to such direcon as shalbe geuen vnto yo^u in that behalf by the Justices of the peace of that division wthin w^{ch} yo^u doe dwell or two of them, and to none of these above one bushell at a tyme.

That the Justices of the peace wthin their seu(er)all divisions haue speciall regard that engrossers of corne be carefully seene vnto and severely punished accordinge to the lawe, and wher such are found, to make certificate thereof and of the proves to the Q. Ma^{ty's} Attorney gen(er)all for the tyme beinge whoe is directed *spedeli* to informe against them for the same and *to se also* that none be permitted to buy any corne to sell agayne but by *speciall* license.

That they take order wth the comen bakers[747] for the bakinge of Rye, barlie, pease and beanes for the vse of the pore, and that they appoynte speciall and fytt persons diligentlie to see their people well dealt wthall by the co(mm)en bakers and Brewers in all Townes and places in their weight and ass(ize) and effectually to enquire for and search out the default therein, and there-vppon to geve order for punishment of the offendo^{rs} severely accordinge to the lawe, *and wher any notable offe(n)ce shall be in the bakers to cause y^e bread to be sold to y^e porar sort vnder y^e ordynary pryces in part of punishment of y^e baker.*

That noe Badgers of corne, bakers or Brewers doe buy any grayne or couinne[748] or bargayne for the same but in the tyme of open markette, and that but by license vnder the hande of the Justices of the division where they doe dwell or three of them, and that they weekly bringe their license wth them to the markett where they doe eyther buye or sell, and that the license conteyne how much grayne, of what kynde and for what place they are licensed to buy and carrie, that there be set downe

vppon the license the daye, place, quantetie and price the corne is bought at, that they take but measurablie for the cariadge bakinge and brewinge thereof, that they showe their booke weekly to such, as the Justice of the division wherein they dwell shall appoynte, beinge noe bakers *or* Badgers of Corne. And that those *p(er)so(n)s* eu(er)ye xiiii dayes make reporte to the Justice of the division wherein they dwell how the people are dealt wthall by the badgers, bakers and Brewers. And that such as have otherwyse sufficient to lyve on *or that ar known to be of any crime or evill behavior* be not permitted to be badgers of corne, nor any badgers to be permitted but such as the statut doth lymitt, and that none be permitted to buy or provide corne in the market in grosse as badger or baker and such lyke, *uppo(n) payn of i(m)prisonm^t, vntill* one hower after the full markett *be begon* that the pore *may* be first served.

That the said Justices *or twoe or* one of them at the least in eu(er)ye division shalbe personallie presente at eu(er)ye market wthin their seu(er)all divisions to see the orders to be taken by thauctoretie hereof to be well observed and the pore people provided of necessarie corne *and that w^has much favor in y^e pryces as by ernest perswasio(n) of y^e justyces may be obteyned*[\[749\]](#)....

That all good meanes and perswasions be vsed by the Justices in their seu(er)all divisions that the pore may be served of corne at conveyent and charitable prices.

That there be noe buyenge or bargayninge for any kynd of corne but in open market, and that the justices in their seu(er)all divisions restrayne comen malsters of makinge barlie malte in those contries and places where there be otes sufficient to make malte of, for the use of the people, and to restrayne, aswell the brewinge of barlie malte by or for Alehouses or Comen Tiplers in those contries and places, as also the excesse vse of any kynde of malte by all comen brewers in all alehouses and comen Tipling howses wheresoeu(er), and that sufficient bondes be taken of all comen brewers, malsters and comen Tiplers

accordinge to the trewe meaninge of this article, and that the unnecessarie number of Alehouses and comen Tipplers be forthwth suppressed in all places and *y^t direction be gyven to all typlyng howses, taverns and alehouses not to suffer any perso(n)s to repayre thyther to eate and drynk at unseasonable tymes.*

That the Justices vse all other good meanes *that ar not me(n)tioned in these orders that the* marketts be well served and the pore releived in their provisions dueringe this tyme of dearth and *y^t no expe(n)ce be of any gray(ne), mete for bread to fede men, be wasted vppo(n) fedyng of bestts, neither y^t any be spent in maky(n)g of a stuff called sterch, as of late theyr hath bene discovered great qua(n)tite expe(n)ded in that vayne matter being in no sort to be suffred to contynew.*

That the justices be straightlie comaunded to see by all good meanes that the able people be set on worke, the howses of Correction provided and furnished and there ydle vagabonds to be punished.

That the Justices doe their best to have convenient stocke to be provided in eu(er)ye division or other place, accordinge to the statut for settinge the pore a worke, and the justices to vse all other good and politique meanes wthin their seu(er)all divisions to contynewe and maynteyne the pore people in worke wthin the parish or at the furthest wthin the hundred or division.

That the *maymed or hurt* soldiers and all other impotent persons be carefullie seene vnto to be releived wthin their seu(er)all parishes, hundreds or divisions, accordinge to the lawe *therfor provyded*, and that where the provisions form(er)lye made be not sufficient it may be *now for this tyme of derth* increased; and where one parishe is not able to geve sufficient releife to such their pore, that parrishe to haue the supplye of such parishes nere adioyninge as have fewer pore and are better able to geve releife, *and that no vagabond or sturdy beggar or any y^t may otherwise gett ther lyving by ther labors be not suffred to*

wander abroad under collar of beggy(n)g in any town or high waye, and y^t the Justyces do presently gyve order that ther be p(er)so(n)s sufficiently weaponed to asist the constables of every town to attach such vagabo(n)ds both in ther towns side and high wayes and to com(m)itt them to prison w^hout bayle, but as twoe of y^e justyces of y^e peace n^r y^t divisio(n) shall order, and if the townshipp shall not obs(er)ve this order for y^e attachy(n)g and punisy(n)g of y^e sayd vagabo(n)ds then the justyces shall se due punishme(n)t by fyne uppo(n) the whole townshipp or uppo(n) such partyes in y^e town as shall be found in fault.

That the Justices of the peace doe once eu(er)ye moneth c(er)tefie their doings and proceadings by force of these Instrucons vnto the Sheriffe of the said countie, in w^{ch} c(er)tificat they shall also make c(er)tificat of such Justices as shalbe absent from any these services and the trewe cause of their absence, and shall also c(er)tefie the vsuall prices of all kyndes of grayne in their marketts for that moneth past, of all w^{ch} the same Sheriffe to c(er)tefie the privie Counsell once in eu(er)ye fortie dayes at the farthest, so as y^t defalt in any justyce y^t shal be absent may be duly considered and corrected by authorety of hir Ma^{t's} counsell as reaso(n) shall req(u)ir and so as such perso(n)s as ar placed as Justyces for ther credit may not contynew in those roomes, wherin they shall be found not disposed to attend such a necessary and Godly servyce as this is, but y^t others of better dispositio(n) may supply those roomes, if ther shall be ned of any such no(m)ber, as in most places is thorght not very nedefull, the nornber being in co(mm)on opinio(n) more hurtful tha(n) proffitable to Justyce.

And, yf any shall offend against the trewe meaninge of these instrucons or of any parte thereof or shall vse any sinister means to the defraudinge thereof, that such be severely punished accordinge to the lawes, and for such obstinat persons as shall not conforme them selves the Justices shall at their pleasure bynd to appere before y^e Q. Ma^{t's} privie Counsell by a daye

certen there to be further dealt wth *by sever* punishment for the
better ensample of *all* others[\[750\]](#)....

APPENDIX VI.

ACCOUNTS of the Churchwardens and Overseers of the parish of Staplegrove, Co. Somerset, for the year 1599 (Brit. Mus. Add. MSS. 30,278).

The accounts of the overseers of Staplegrove have been preserved for several years between 1599 and 1623 (1599, 1605, 1621, 1622, and 1623). The churchwardens' accounts also remain and begin as early as 1585 and in some of these also payments to the poor are noted[\[751\]](#).

This account is of course made under the provisions of the Act of 1597 (39 Eliz. c. 3)[\[752\]](#).

The accounts of the churchwardens and overseers of the poore in the parishe of Stapelgrove for the eyare last past. This account stood before her maeistis Justis on the xj daye of apreill in Anno Domini 1599.

A noot what every man hath paid to this colletion this whole eyar that was set weekly to the poore.

George Poyre	xj ^s .
John Wuse.	xviii ^s .
Anthone Gonson	ix ^s . ij ^d .
John Chattocke	xiiij ^s . viii ^d .
Thomas Harris	vii ^s . iiiii ^d .
Robert Parsons	xi ^s .
Will. Cole	iiij ^s . viii ^d .
Richard Nelcomb	v ^s . vi ^d .
John Sindercomb	iiij ^s . iiij ^d .
William Davy	ii ^s . ix ^d .
Harry Chattocke	iii ^s . viii ^d .
Bartholmew Sindercomb	xxii ^d .
William Hit before hee had his apprentis	viii ^s . iiiii ^d .

Thomas Perrett before hee had his apprentis	v ^s .
Wat Gale before he had his apprentis.	vi ^s . viii ^d .
John Chattocke before he had his apprentis	vi ^s . viii ^d .

Som. of v^{li}. xviiij^s. x^d.

A noet of every mans name that keepe anei poore body and them that hath taken apprentisses

Roger Smyth	kepeth	William Harvy,
Impot.		
Water Knight	kepeth	Christine Fort,
Impot.		
Nicholas Cornishe	kepeth	Harry Gale as
		apprentis.
John Chattocke tholder	kepeth	Jone Rison
		as apprentis.
William Hit	kepeth	Mamwell Brice as
		apprentis.
Thomas Perrot	kepeth	Margery Huis as
		apprentis.
Walter Gale	kepeth	Jone Huis as
		apprentis.

The namis of them that paieth quarterly to the poore and what every one of them hath paid the whole eyar.

first M ^r . John Switteinge	xii ^s .
John Decon	xii ^s .
Hugh Farthinge	xii ^s .
Andrew Crosse	vii ^s .
William Whitt	i ^s . vi ^d .
Mr. George Hill	i ^s . vi ^d .
Water Duddroge	iii ^s .
Water Shut	vi ^s .
Mr. George Fenwell	i ^s .
Robert Westcomb	xxi ^d .

Robert Farthinge	iijs. vi ^d .
John Parsons	ii ^s . ix ^d .
William Wilse	i ^s . vi ^d .
Thomas Slape	i ^s .
Thomas Rooch	iii ^s .
William Corvenell	ii ^s . vi ^d .
Mr. John Gibbones	i ^s . vi ^d .
John Ollyver	vi ^d .
Robert Soger	i ^s . vi ^d .
M ^f . Jamis Clarke	ii ^s .
Thomas Brice	i ^s . iii ^d .
Bartholmew Farthinge	xviii ^d .
	Som. of iii ^{li} .
The whole resowte for this yeare	Som. of ix ^{li} . xviii ^s . x ^d .

The namis of all them that haue receved collection and euey one of them haue Receved as followith.

first Jone Cole haue reseved	xxix ^s .	
Richard Rison & his wyfe Reseved	lvii ^s .	
John Gould Reseved	xiiii ^s . ii ^d .	
Christian Fort Reseved	xii ^s .	
Jone Gale the wyfe of Richard Gale	xii ^s .	
Margret Brice the wyfe of John Brice	vi ^s .	viii ^d .
Jane Hues the wyfe of Thom. Hues	xviii ^d .	
Wilmoth Hunt	xii ^d .	
Johane Rison	xii ^d .	
To Roger Smyth for that his land is charged in St. Jamis	viii ^s . vi ^d .	
To Christian Fort in her sicknis and for wood	iii ^s . ix ^d .	

To John Gould's buriall	xii ^d .
To the tithingman for releivinge the poore	xii ^d .
strangers that were broght to hem Wee haue laid out before Christmas for Clothers for the poore & for wood and parrell for the apprenteses	xxxviii ^s .
disburssed som of	ix ^{li} . vi ^s . vii ^d .
so there is remayninge in ou ^r hande	xii ^s . iii ^d .

Churchwardens

Hugh Portman.
 John Colles.
 John Frances.
 Thomas Beaton.
 Thomas Perett & Bartholmew Sindercomb.

Overseers

Richer Smyth, Water Knight.
 Nicholas Cornish & John Chattocke.

APPENDIX VII.

ORDERS made by the justices responsible for Aylesham and Reipham, Co. Norfolk, 23rd October, 1622 (Brit. Mus. Add. MSS., No. 12,496, f. 222).

The following orders were enclosed with a letter of Dec. 7th, 1622, written by John Rycherds, one of the justices of Norfolk, to Sir Julius Caesar^[753]. Sir Julius had sent this justice the letters of the Privy Council, regulating alehouses and the strength of beer, the 19th October, 1622, and had asked him to report as to the condition of the country with regard to the supply of corn. John Rycherds states that these orders had been made in the "Lymitt" where he served before the receipt of the letter and that they dealt with all the matters commanded in the Council's letter. After the letter had been received, however, the matters named were again "given in perticuler charge."

Both the letter and these enclosed orders form part of the Caesar papers.

Norff.

Orders conceived and put in Execucon at Aylesham and Reipham the xvijth and xxijth of October 1622, by the Justices of the Peace for the Lymitt in the Hundreds of Eynesford and South Erpinham in the said Cownty as followeth.

39^o Eliz. 16.

That the greatest Malsters and Ingrossers of Barly be suppressed in parte or in the whole, whereby much Barly may be staied from maltinge, for bread for the poore, which is nowe wastfullye consumed in stronge Beere vpon riotous drunkards while the poore Labourers want bread.

23^o Hen. 8^o 4^o. 2^o Jac.
4^o. 4^o Jac. 4 & 5.

That Brewers be not permitted to sell Beere to Alehowsekeepers aboue the rates of 6^s 8^d a barrell, the best, & iiij^s iiij^d the small, accordinge to the rates agreed vpon at the gen(er)all Sessions of the peace houlden at the Castle of Norw^{ch} at Easter last. And that they brewe aswell small beare as stronge, and be restrayned from makinge of Malt.

51^o H. 3. 51 Ed.
1[754].

That Bakers keepe the Assise of bread accordinge to the price of corne, that they bake but the three sorts of bread appointed by the lawe and sell but 13 to the doz. That Cakes and Finger breade be restrayned in Innes and Alehowses.

8^o H. 6. 5^o. 10 H. 7.
4^o.

That Troy weights be provided in Townes where Bakers do dwell and where they utter bread, and that the Constables wth the overseers of the poore there, doe weekelie weigh and survey the bread baked there or brought thither.

39^o Eliz. 4^o. 43^o Eliz.
3^o. 7^o Jac. 4^o.

That poore people be not permitted to wander and begge out of the parishe where they dwell but kept at worke and that worke be provided for those that cannot gett worke themselues and that such be compelled to doe their worke well that the stocke be not consumed.

That poore children be put to Schoole to knittinge and spinninge dames, and the Churchwardens and Ouerseers for the poore to paie the Schoole dames their wages, where the parents are not able.

39^o Eliz. 4^o. 43^o Eliz.
3^o. 1^o Jac. 7^o. 7^o Jac.
4^o. 11^o H. 7. 2^o. 5 & 6
E. 6. 25^o.

Rogues and wanderers to be corrected and ordered accordinge to lawe, and the constables to be punished that do neglect y^t, for they are the Roguemakers.

Superfluous Alehowses to be both suppressed and kept downe, and that none be permitted to be Alehowsekeepers but those that are licensed by the gen(er)all consent of the Justice of the Lymitt, that best knowe both the conveniency of the places, the necessitie of an Alehowse there, and the abilitie and condicon of the Alehowsekeeper, and accordinge to the Articles heretofore agreed vpon betwene the Judges of the Assises for that County and subscribed by the Justices of the peace there.

1^o Eliz. 2. 23 Eliz. 1^o.
1^o Jac. 9. 4 & 5 Jac. 4

That all the good Lawes ordained for the goverment of Alehowses licensed and

& 5. 7 Jac. 10. 3 Jac.
4^o. 5 E. 6.

vnlicensed the Alehowsekeepers, the
Brewers, (who are the principall Causers
both of the excessive nomber and of the
great disorders in those howses), the idle Tipplers, the
blasphemours, drunkards or excessive drinkers and the Absent
from Church be seuerely and constantly put and kept in
Execucon.

That the Lawes against Ingrossers, Forestallers and Regrato^{rs} of
Corne & victualles be looked vnto and the offenders punished
accordinge to the Lawes.

For all or most of these there are good Lawes prouided, if the
Justices wth one gen(er)all Consent be carefull to putt their lief
vnto them. But there is one other mayne inconvenience w^{ch} to
remedie will require power from the ho^{ble} Board, and that is,
That the great owners of Corne aswell farm^{rs} as others do not
thresh out their owne Corne, but buy all they spend or Sowe
either at the Marketts or of poore small farm^{rs} that are
constrayned to sell nowe and yett must buy againe before
Harvest next for their owne expence w^{ch} doth both encrease the
prices of all grayne, and by that meanes all the Corne is brought
into a fewe handes who then make the prices at their owne
pleasure. If theis things be provided for and duly putt in
execucon, there wilbee Corne enough found and spared for the
people of our Countrey wthout inquiringe or examininge
perticuler mens store, w^{ch} doth but discover the want and there
bie inhaunce the prices, but augments not the store.

APPENDIX VIII.

REPORT of the justices from Lackford and the half hundred of Exning February 7th, 1622/3. Dom. State Papers James I. Vol. 142. 14. 1.

The following is one of nine reports forwarded by the Sheriff of Suffolk to the Lords of the Privy Council on April 2nd, 1623.

All nine returns together with many others were sent in reply to orders of the Privy Council issued in consequence of the distress in 1622-3[755]. If we compare this reply with the draft of the orders corrected by Burleigh in 1586 (App. V.), we shall see that the orders issued in 1623 must have been substantially the same as those of 1586/7. This report also shows, like the orders themselves, that the direct relief of the poor was improved in consequence of the measures of the years of scarcity.

Suff.

A Certificate to y^e right hono^{ble} y^e Lords
and others of his Ma^{ties} most hono^{ble} Priuie

Councell.

The quantitie of corne and grayne wthin y^e hundred of Lackeford and y^e halfe hundred of Exninge, taken y^e 7th. day of Februarie a(nn)o regni regis Jacobi Angliæ 20^o a(nn)oq(ue) d(omi)ni 1622 by presentm^t, and inquiry of a Jury in y^e said hundred and halfe accordinge to his Ma^{ties} booke, is as followeth.

Inprim. in wheate two hundred fiue score and ten Com^{bs} and thre bush^{lls}.

In Rye thre thousand and two combs.

In Barly eight thousand thre hundreth and fiftie fiue com^{bs}.

In Malte foure thousand, twenty seauen combs and thre bushells.

In Pease foure hundreth twentye seauen combs and thre bushells.

Deductions out of this

For persons remayninge in y^e houses of those y^t haue y^e said corne for their mainetenance till Haruest fouretene hundred threscore and two persons.

For Lands to be sowen this yeare followinge beinge six thousand thirtie fiue acres.

For forehand bargaines to be deliu(er)ed w^{ch} amounts to seauen hundred fiftie foure combes and two bushells.

For Sheephardes wages ten score and foureteene combes.

For wheate, rie, barly, malt, sheepheards wage, and Pease six score is accounted to each hundred; for persons in house, lands to be sowen, forehand bargaines as aforesaid, fiue score is accounted for each hundred.

There beinge within the hundred of Lackeford diu(er)ssome Townes, consistinge of a greate number of miserable poore people w^{ch} neither plowe nor sowe for Corne, we thinke in o^r opinions and iudgem^{ts} y^t all y^e corne and graine aforesaid, the said poore people beinge prouided for, and the deductions beinge allowed as before is expressed, will hardely serue y^e people now inhabitinge within the said hundred, and halfe vntill haruest next.

For y^e Marketts within y^e hundred and halfe aforesaid they are now sufficiently furnished with corne and graine, the poorer sorte of people within the seuerall townes and places are ordered to be sett on worke, hauinge caused these deere times y^e weekly collections of each towne for y^e poore to be raysed and augmented. And y^e better sorte of people that haue corne doe sell to the poore of each towne within y^e hundred and halfe eight pence, ten pence and some twelue pence in y^e bushell vnder y^e value y^t corne is sold in the next adioyninge marketts.

For Maltsters, Brewers Ingrossers and millers wee haue taken such order as by his Ma^{tie} is com(m)anded.

The prizes of corne and other grayne sold at y^e last markett day
at Mildenhall beinge y^e xxviiith. of Februarie is

For wheate y ^e combe	xxii ^s .
for rie y ^e combe	xvii ^s . iiiij ^d .
for barly y ^e combe	xiiij ^s . vi ^d .
for pease y ^e combe	x ^s . viii ^d .
oates y ^e combe	vi ^s . viii ^d .

This wee y^e justices of y^e Peace inhabitinge within the hundreds
aforesaid accordinge to o^r bounden duties doe most humbly
certifie.

J. Heightting?, Roger North.
Joh. Smythe.

APPENDIX IX.

Extracts from the Privy Council Register.

Copy of a letter sent to the Deputy Lieutenants and Justices of the Peace in the Counties of Suffolk and Essex concerning the employment of the poor. Privy Council Register^[756] Chas. I. Vol. V. f. 263, 22nd May, 1629^[757].

Dated the 22nd.
Signed

Lo. Trer.
Lo. Privie Seale
Lo. High Chamb.
Lo. Steward
Lo. Chamb.
Ea. of Suffolk
Ea. of Dorsett
Ea. of Holland
Lo. Chanc. of
Scotland
Lo. Vic.
Dorchester
Lo. Vic.
Grandison
Lo. Vic. Wilmot
Lo. Bp. of
London
Lo. Bp. of
Winton
Mr. Trer.
Mr. Vic. Chamb.
Mr. of the
Wardes
Mr. Chanc. of the
Ex^r.

"Whereas wee by special direcons of his Ma^{tie} did lately commend unto yo^r care the present state of those parts of y^r county where the poore clothiers and their workmen at present destitute of worke might some other way be imployed or for the tyme be releevd till some obstructions to trade were remooved, as also to kepe in order those that are loose and ill disposed people. To w^{ch} end his Ma^{tie} by advise of his Privie Councell and the Judges hath lately published a proclamacon declaring his pleasure and command; in what manner the truly poore and impotent should be relieved, those of able bodies should be sett on worke and imployed in honest labors and the sturdie, idle and dangerous roagues and vagabonds should be repressed and punished w^{ch} proclamacon you shall herewth likewise receive. Now, bycause wee understand that in yo^r countie there is more

than ordinarie occasion to use all dilligence and industrie at this time, wee have thought fitt to putt yo^u more particularlie in minde thereof, and in answeere of yo^r l(ett)res to lett yo^u know that it is the resolucon of all the Judges, that by the lawe yo^u have sufficient power and ought to raise meanes out of the

severall Parishes if they be of abilitie, or otherwise in their defect in their severall Hundrethes, Lathes or Wapentakes, and for want of their abilitie (to sett yo^r poore on worke and to relieve the aged and impotent not able to worke) in the whole bodie of the county, wherefore his Ma^{tie} commands that the wayes provided by lawe in theise cases be duely followed wth all diligence and possible speede. You are required to understand the true state of the country from the ministers, churchwardens and overseers of the severall parishes wthin your severall divisions. And what rests herein to be done by order at the Quarter Sessions, the judges advise that for this purpose you may call the Quarter Sessions sooner then the ordinary sett tymes and doe that w^{ch} in this case is so requisite. Further wee lett yo^u to know, that such hath bin his Ma^{ty}s care and personall paines taken to remove theis impediments, that of late have bin to trade and to open a free vent to the commodities of yo^r country, that yo^rselves will shortly see the fruits of it to yo^r comforts neverthelesse in the meane tyme theise things provided by the lawe and the helps that by yo^r care may be added are in no sorte to bee neglected, but exactly pursued of w^{ch} yo^r proceedings wee are to bee advertised that so wee may render account thereof to his Ma^{tie}. And so etc.

Ut supra.

A like warrant or lre to the Deputy Lieutenants and Justices of the Peace in the Countie of Suffolk, dated and signed ut supra.

APPENDIX X.

Extracts from the Privy Council Register (continued).

Letter concerning the disturbances in Rutlandshire (*Privy Council Register*, Vol. VI. f. 345. 15th Feb. 1630/1).

This entry illustrates the connection between efforts to improve poor relief and the maintenance of order.

A Lre to S^r Edward Harrington, Sir Hen. Mackworth Bar^t S^r Guy Palmer K^t and Basill Fielding Esq^r or any twoe of them.

Lo. Keeper.
Lo. Trear.
Lo. Privie Seale.
Ea. Marshall.
Lo. V.
Wentworth.
Lo. Bp. of
Winton.
Mr Trear.
Mr Comptroler.
Mr Secre. Coke.

Whereas we have beene made acquainted wth a lre written by John Wildbore a Minister in and aboute Tinwell wthin that County to a friend of his here wherein after some mencon by him made of the present want and miserie sustayned by the poorer sorte in those parts through the dearth of Corne and the want of worke, he doth advertize in particular some speeches uttered by a shoemaker of Uppingham (whose name wee finde not) tending to the stirring upp of the poore therabout to a mutiny and insurrecon. W^{ch} informacon was as followeth in hæc verba "Hearest thou" saith a Shoomaker of Uppingham to a poore man of Liddington "if thou wilte be secrett I will make a mocon to thee." "What is yo^r Mocon?" saith the other. Then said the Shoomaker "The poore men of Okeham have sent to us poore men of Uppingham and if you poore men of Liddington will ioyn wth us wee will rise and the poore of Okeham say they can have all the Armour of the Countrie in their power wthin halfe an hower, and (in faith saith he) we will ryfle the churles." Upon consideracon had therof however this Board is not easily credilous of light reports nor apte to take impression

from the vaine speeches or eiaculacons of some meane and contemptible persons. Yet because it sorts well wth the care and providence of a State to prevent all occasions w^{ch} ill affected persons may otherwise lay hold of under pretence and collour of the necessitie of the tyme, we have thought good hereby to will and require you the Deputy Lieuts. and Justices of peace next adioyneing forthwth to apprehend and take a more particular examinacon aswell of the said Shoomaker as of such others as you shall thinke fitt concerning the advertizement aforesaid. And that you take especial care that the Armes of that County in and aboute those parts be safely disposed of. And lykewise (w^{ch} is indeede most considerable and the best meanes to prevent all disorders in this kinde) that you deale effectually in causing the markett to be well supplied wth corne and the poore to be served at reasonable prices and sett on worke by those of the richer sorte and by rayseing of stocke to releve and sett them on worke according to the lawes. All w^{ch} we recomende to yo^r especiall care and require an account from you of yo^r doeings and proceedings herein wth all convenient expedicon. And soe &c.

APPENDIX XI.

Letter from Sir Thomas Barrington concerning the eight hundreds of Yorkshire (*Dom. State Papers*, Chas. I. Vol. 177, No. 31. 21st Dec. 1630).

The following letter is substantially like many other justices' reports relating to the corn measures of 1629-1631. This document, like a few others of the same kind, preceded the issue of the Book of Orders of Jan. 1630/1; and was sent in answer to previous orders of the Privy Council^[758]. It is addressed on the back "To the right Hon^{le} my most hon^d Lo. the Lo. viceCount Dorchester^[759] at his lodgings in Whitehall"; and has attached to it a seal with a crest and also the date 1630.

My Lo., the assurance y^t I haue of yo^r Lo^{ps} desyre to understand y^e carefull and successfull execution of y^e late commaunds w^{ch} we haue receiued, and feareing least y^e high Sheriff may delay y^e retourning of owr certifficates; I shall take the bouldnes to aduertize yo^r Lo^p that haueing attended the seruice inioyned by his Ma^{ts} instructions and yo^r Lo^{ps} letters in eight hundreds of this Countie, (as yo^r Lo^p will find when y^e Cirtificates are retourned) we haue followed those directions giuen us conserneing Badgers^[760], Millers etc. a sort of people y^t did much rayse y^e prizes of Corne; but I hope we haue preuented it for y^e future, som of them being bound to y^e Sessions, others ouerlooked wth a strict eye that they offend not as they haue done; we find the Marketts to be well serued; and tharefor no compulsion yet needes to be used as yet; we haue furthermore taken care (w^{ch} I conceiue to be yo^r Lo^{ps} chiefe ayme) that the poorer sort be prouided for by y^e laying in of Corne in euery Toune sufficient to satisfy them for this yeeare, and y^t at such rates, as y^e scarcitye and dirth of these times will be y^e less bitter unto them, when they shall haue it 18^d. and 2^s. in y^e Bushell cheaper then y^e Markett can afford, as vpon calling y^e cuntrye together we haue easily perswaded them heearunto, &

y^e most parishes haue already begun this worke, w^{ch} if it
answar not yo^r Lo^{ps} desyres I shall be sorye y^t I was one of y^e
first moouers heearin; in y^e same forme y^t I exprest unto yo^r Lo^p
when I wayted upon you; w^{ch} haueing tendred to y^r Lo^p and
other Justices in theise parts I found them so well to approue it
(as y^t yo^r Lo^p will find) we haue followed y^t way wth a ioynt
consent; by w^{ch} meanes it appeears playnely y^t y^e prizes of y^e
marketts are fallne and doe weekly fall, wheate being in
diuerse Marketts where I haue attended this seruice at 7^s. y^e
bushell and vi^s. vi^d. whare lately it was sold at 8^s. vi^d.; for y^e
laborers and all y^e poorer sort being supplied at home who are
the greater nomber, the rates of graine must of necessitye fall to
be less. My Lo. I feare I haue ben toe troublesom in this tedious
discourse, but yo^r Lo^p knowes circumstances make y^e busines of
no small consequence, w^{ch} it hath pleased his Ma^{ty} so graciously
to consider & yo^r Lo^{ps} so carefully to order, wharein if thare be
any thing y^t yo^r Lo^p will be pleased to commaund me, I shall
willing obaye, and so shall yo^r Lo^p euer find me deuoted to yo^r
desyres in any thing, whareby I may becom seruiceable to y^e
Countye, or to y^r Lo^p in particular, whose fauors have ingaged
me to study how I may any way express myselfe most,

Hatf. Bro.

Yo^r Lo^{ps} faithfull seruant

10^r. 21, 1630.

Tho. Barrington.

My wife wth me offers yo^r Lo^p and yo^r noble La. obliged seruice
thare being nothing we more desyre then to heear of yo^r good
healthes.

APPENDIX XII.

Justices' reports on the execution of the Book of Orders of January, 1630/1[761].

A. Dom. State Papers, Chas. I. Vol. 188. 85.

Questions sent by the justices responsible for the division of Fawley, Hants. to the constables etc. of their district.

This copy of the inquiries was sent by Sir Richard Tychborne, Sir Thomas Stukeley, Henry Clerke and William Rolfe, the justices responsible for Fawley, to the High Sheriff of the county, together with a report on the measures taken to improve poor relief in the division of Fawley. The justices state they have sent these inquiries to the "officers of everie parish," but have so far not obtained satisfactory replies.

The document is directed "To the right wor^{ll} Thomas Cotele Esq. high Sheriffe of the county of South(amp)ton."

Southht.

"The perticuler of such things as by vertue of divers statutes menconed in his Ma^{t^s} Commission are given in charge to the severall officers vizt.

Touching the poore.

1. What poore are releived that cannott worke.
2. What poore are sett to worke that want it.
3. What stocks are provided to sett the poore on worke.
4. The names of such poore as want stocks to worke.
5. The names of such men or women children that are above the age of 10 yeres & not bound apprentice.
6. The names of such householders as are fitt to take apprentices.
7. What monies or lands have bine given to charitable vses.

8. Whether the Churchwardens & overseers for theis things have mett monethly.

Touching highwaies.

1. What high waies are in decay & need repaier wthin yo^r parish.
2. Whether the Churchwardens and Constables in Easter weeke last did chuse surveyo^{rs}.
3. Whether they did appoint 6 daies for worke and give notice thereof the next Sunday after.
4. Whether everie man having a plowe did for 6 daies and 8 houres in that day wth twoe men and necessarie tooles worke in those daies.
5. Whether everie person not being an hired serv^t or taking wages have wrought those 6 daies.
6. What defects in any persons have bine presented by the Surveyo^{rs} to the Justices.
7. Whether any nuisance by anie neighbors to anie high waies be comitted.

Touching laborers & s(er)v^{ts}. [\[762\]](#)

1. Whether those in the parish w^{ch} are fitt to serve doe serve.
2. Whether anie be retained or doe serve for lesse then a yeare.
3. Whether any doe give or take wage other then the Statute allowes.
4. Whether any departe att the end of their terme wthout a q(uar)ters warninge.
5. Whether any doe serve or be retained wthout first shewing a testimoniall.
6. Whether any refuse to serve either as apprentice or otherwise w^{ch} ought to serve.

Touching Rogues.

1. All wanderers are rogues viz^t.

{ All beggers.
Patent gatherers.

Collecto^{rs} for persons.

Proctors.

Juglers.

2. All using vnlawfull trades as

{ Plaiers.
Fortune tellers.

Egiptians.

Minstrells.

Bearewards.

3. Idle traders travelling ag^t the lawe.

{ Tynkers.
Pedlers.
Pettichapmen.
Glasmen.

1. To present w^{ch} of theis or what other persons have bine apprehended or punished either by private persons or officers.

2. Whoe have neglected to punish anie such Rogues.

3. Whoe have releived or lodged them.

Touching Alehouses.

1. What alehouses there be in yo^r parish & where they stand.

2. What persons they bee that keepe them & whether licensed or bound.

3. What assize of bread & beere they keepe.

4. What disorders they keepe in their houses by drinking or otherwise.

5. What persons haunt the same Alehouses or continue drinking therein.

6. What persons have bine drunke and have not bine therefore punished.

Lastly.

Whether the watches appointed by the Statute have bine duly observed for the apprehencon and punishm^t of Rogues."

B. Dom. State Papers, Chas. I. Vol. 189. 80 and Vol. 197. 69.
Extracts from two reports from the hundred of Braughing, one sent to the High Sheriff in April and the other in Sept. 1631.

These two reports contain abstracts of the returns sent in by the overseers at six monthly meetings held between Feb. 7th, 1630/1 and June 27th, 1631[763]. The whole of the abstracts sent in on Feb. 7th are here printed, but of the others only those which indicate improvement in the administration of the poor law. The first document is written on parchment, the second on paper, both in a clerk's hand.

Hertf.[764]

"An Abstract of the Returne and presentments made by the Churchwardens, Constables and Ouerseers for the poore in the parishes of the halfe Hundred of Braughinge vnto vs Justices of the peace in this deuision whose names are herevnder written, on the viith of February 1630.

Braughinge[765].

Noe stocke for the poore, noe land or rents for charitable vses. A dozen of bread out of Lent and ii dozen in Lent wth a barrell of white and a cade of red herrings. Noe children put to seruice this yeare, foure to be put out, six rogues punished, fiftie shillings guift to the poore.

Edward Dogood, Henry Watts, *Churchwardens*.
Thomas Smith, *Ouerseer for the poore*.

Widford.

Noe stocke, but foure pounds yearely gathered, and fiue markes rent, none that want worke, none put to seruice, one to put forth. Prouision of corne at iii^s iiii^d for the poore.

Oliuer Mills, *Churchwarden*.
Thomas Hadsley, *Ouerseer for the poore*.

Eastwicke.

Noe stocke for the poore, noe children to put to service, noe disorder in Alehouses, Watches and Ward duely kept, iii rogues punished, xxx^s yearly rent for the poore.

Thomas Kinge, George Cramphorne, *Constables*.
John Thorogood, *Ouerseer for the poore*.

Stansted Abbot.

Noe stocke but twoe cowes^[766] and xviii^s iiij^d yearely rent. One lately put to seruice one to be put fourth, noe disorder in the Innes or Alehouses, eleuen rogues punished.

John Tayler, *Constable*.
Abraham Grisley, *Churchwarden*.
John Bannester, *Ouerseer for the poore*.

Ware.

Thirtie pounds stocke to sett the poore one worke; three lately put to seruice, nine more male and female to put forth; rents yearely imployed according to the donors wills; fortie markes, 80^{li} yearely collection by Rates for the poore, more levied since Michaellmas last; 93^{li} to buy corne for the poore and sold them at iiij^s. the bushell, more 26^{li} giuen at Christmas by the Inhabitants in money to the poore; Watch and Ward duely kept, xiii rogues punished and passed, none but will worke for reasonable pay, three drawe Beare and sell wthout Licence, noe disorders in Innes or Alehouses but such as haue lately been punished.

Robert Dowell, Isacke Needham, *Constables*.
Humphrie Parker, Thomas Mead, *Churchwardens*.
Joseph Wattson, Thomas Hadsley, *Ouerseers*.

Chorley.

Noe stocke, twoe put to service, noe rents for charitable vses, no vnlicenced Alehouses, 24 Quarters of corne provided for the poore and sold to them at iiis. iiij^d. the bushell.

Nicholas Humfrie, *Churchwarden*.
Richard Godfree, *Constable*.
Edward Sabine, *Ouerseer*.

Gildston.

Noe stocke, The poore imployed by clothiers, one childe put to seruice the others twoe young, 5^{li} yearly Rent for the poore, but one Alehouse noe disorder therein, Watches and Wards duely kept.

Nathaniell Spencer, *Constable*.
John Rogers, *Churchwarden*.
Henry Corney, *Ouerseer*.

Hunsdon.

Tenn pounds Stocke to sett the poore on Worke, none to be put out, 10^{li} Land for charitable vses; noe unlicenced Alehouses; noe disorder in any, Watch and Ward duely kept, Rogues punished by the Marshall.

George Elliott, Richard Hunt, *Const.*
Thomas Howe, *Churchwarden*.

Westmill.

Noe stocke for the poore, xvii rogues punished & passed, Richard Beadle and John Boldle liue idly^[767], one boy put to seruice, one other to put fourth, neither Inne nor alehouse.

Richard Haruey, *Const.*
Thomas Kirby, *Churchwar.*
John Bullard, *Ouerseer*.

Sabridgworth.

Noe stocke to sett the Poore on worke, a stocke of corne at iiis. and iiid. the bushell for the poore, none put to seruice, many to be put forth, the profits to the poore imployed as by the doners wills, noe unlicenced alehouses, noe disorder in licenced, none liue idly, Watch and Ward duely kept, Rogues punished and

passed according to the lawe; Levied vpon drunkards xs. w^{ch}
was giuen to the poore.

William Addams, *Churchwarden*.
Richard Shepheard, *Constable*.
Simon Abbott, *Ouerseer for the poore*.

Standon.

Noe stock for the poore, watch and ward duely kept, xii rogues
punished and passed, none liue idly, fiue children put out to
seruice, viii male & ix female children to put fourth, noe
vnlicenced Alehouses nor disorder in any, noe money Levied
vpon drunkards, 50^{li} per annu(m) rents impoyed according to
the donors intent.

William Beadle, *Churchwarden*.
Richard Hill, *Constable*.
Thomas (Avorch?), *Ouerseer for y^e poore*.

Stortford.

Twentie foure pounds & tenn shillings collected yearly for the
poore xii^{li}: xi^s rents, xxiiij^{li}: x^s laid out to buy corne for the poore
at xvi^d the bushell cheaper then it cost, not any put to seruice
this yeare, viii children to be put out, noe vnlicenced alehouses,
noe disorder in Inne or Alehouse, foure vagrants punished,
Watch and Warde duely kept, not any idle persons.

Leonard Knight, *Constable*.
John Jones, *Ouerseer for y^e poore*.

Thundridge.

Noe stocke for their poore, watches and wards duely kept, none
put to seruice this yeare, Henry Cobham selleth Beare wthout
Licence noe disorder in Innes or Alehouses, noe money levied
upon drunkards. The rest of the presentment is against Edward
Gardiner Esq. w^{ch} doth depend vpon the Lawe.

Frier Durden, *Churchwarden*.
Thomas Young, *Constable*.
Isacke Gray, Thomas Gilson, *Ouerseers for the poore*."

This ends the returns for Feb. 7th; the same parishes send returns on each of the later dates; the few which are here printed are those which indicate the alteration effected by the enforcement of the Book of Orders.

"An Abstract of the Returnes made March the viith....

Sabrdgworth.

Noe vnlicenced Alehouses, noe disorder, watch and ward duely kept, vagrants punished according to the Lawe, x^s leuied vpon drunkards to the vse of the poore. Gabraell Whittawe, his wife, sonne and daughter liue idly and are hedgbreakers, noe stocke in the parish to sett the poore on worke. A greate stocke of corne laid in for the poore at iii^s iiij^d the bushell, none want worke, all being set one worke in the parish, ii^{li} x^s yearly rent distributed to the poore by the donors, xi boyes and girles to be put to service....

Richard Shepheard, Robert Goulett, *Consta*.
Thomas Thackguere, William Addams, *Churchwar*.
Abraham Thorogood, Simon Abbott, *Ouerseers*....

Stortford.

Stocke to set the poore one worke to make Clothe 22^{li}: 10^s: of hempe, towe and flax; 24 children to put to seruice, 22 poore spinners sett to worke, none sell beare or ale wthout licence, noe disorder in Innes or Alehouses, iiii rogues punished, watch & ward duely kept, noe Money leuied vpon drunkards since our last returne: Thomas Gurston goeth aboute wth a Gunne or Peece, Tobias Chandler hath noe Lawfull calling.

Tho. Barnard, gen. *Church*.
Leonard Knight, Robert Freeman, *Constables*.
John Jones, James Scruby, *Ouerseers*.

Westmill.

Tenn pounds, thirteene shillings Stocke for the releife of the poore in corne; Richard Beadle, John Beadle idle liuers out of seruice, noe Inne or Alehouse in the parish, the Guifts formerly given imployed as by the donors wills, watch and ward duely kept, three rogues punished....

Thomas Kirbey, Michael More, *Churchwardens*.
Tho. Ancell, Richard Haruey, *Ouerseers*.

An Abstract of the Returnes made Aprill the iiiith Anno d(omi)ni 1631....

Braughinge.

Noe stock to sett the poore on worke but they are sett on worke by the inhabitants to spinn towe at iiii^d the pound, fiftie shillings guift to the poore, adozen of bread out of Lent and twoe dozen in Lent wth a Barrell of White & a cade of Redd herrings the Weekly Collection amounteth to aboue xx^{li} the yeare, six rogues punished, Watches and Wardes duely kept....

Will Denison, *Const*.
Hen. Wattie, Edw. Dogood, *Church*.
Tho. Smith, Edw. Tubman, *Ouer*.

Widford.

None that keepe Alehouse wthout Licence noe disorder in the Licenced, Watch and Ward duely kept, iiii rogues punished, noe money leuiued vpon drunkards, none but will and doe worke for reasonable wages, noe stocke but the poore are releiued wth corne and money, noe Guifts to charitable vses, none to put fourth Apprentices but those whome their parents will put fourth.

Tho. Ouerill, *Const*.
Tho. Wett, *Churchw*.
John Cripes, *Ouers*.

An Abstract of the Returnes and presentments made by the churchwardens, constables and ouerseers for the Poore in the parishes of the halfe hundred of Braughing vnto vs Justices of the peace in this diuision whose names are herevnder written on the first day of May anno do(min)i 1631....

Stortford.

Twoe put fourth Apprentices, there is more to put fourth soe soone as there cann be masters gotten for them, Robert Gray refuseth to pay to the Rate for the poore, there is one William Brookes will not keepe his seruice....

James Scruby, John Jones, *Ouerseers.*
John Bull, Robert Colt, *Churchwardens.*
W^m Ellis, W^m Reade, *Constables.*

An Abstract of the Returnes made May xxxth 1631....

Gilston.

Noe unlicenced Alehouse keepers, Watch & Ward is duely kept, one Rogue punished and passed since the last Sitting, Joseph Charnocke and Thomas Charnocke liue idly and will not worke there is fiue pounds stocke and the poore are sett on worke, none put fourth apprentices as yet....

Hen. Damyan, *Constable.*
Robert Ellis, *Churchwarden.*
Hen. Corney, *Ouerseer....*

An Abstract of the Returnes made June xxviith anno do(min)i 1631....

Hunsdon.

None sell Ale or beare wthout Licence, Watch and Ward is duely kept, tenn Rogues haue been punished and passed, noe money leuied vpon drunkards, noe idle persons, theire was a stocke of Tenn pounds to sett the poore on worke, w^{ch} is decayed and come to fiue pounds, Noe guifts to charitable vses, none fitt to put apprentices....

George Elliott, *Constable*.
John Burton, *Churchwarden*.
W^m Hale, *Ouerseer*.

Eastwicke.

Watch and Ward is duely kept, noe unlicenced alehouses, noe rogues punished since the last sitting, the poore are sett on worke by the inhabitants, there are some yearely rents w^{ch} are weekly distributed to the poore, none to put fourth apprentices."

Tho. King, *Constable*.
Geo. Cramphorne, *Churchwarden*.
Tho. Porter, *Ouerseer*."

This later report is endorsed "Certified by the high Sheriff the first of Septemb(er) 1631. Jo. Boteler."

C. Dom. State Papers, Chas. I. Vol. 190. 10.

Part of the Report of Bridewell.

This report of Bridewell seems to have been made in consequence of the inquiries of the commissioners on poor relief appointed in Jan. 1630/1.

The estimated value of the labour of the inmates, the cost of their maintenance, the amount paid in salaries to the officials of the hospital all throw light on the rate of wages and on the cost of living at this time.

London Bridewell.

"To the right hon^{ble} the lords of his Ma^{ties} most ho^{ble} privy Counsaile.

We, the Presid^t, Treasurer and other the Governo^{rs} of the hospitall of Bridewell, in obedience to yo^r Lo(rdshi)ps order dated the xviiith day of Aprill now last past doe humbly present vnto Hono^{rs} a true particuler of all the state of the same Hospitall as it now standeth this Second day of May 1631 in manner and forme following (viz^t.)[\[768\]](#)." ...

"Casuall receipts."

"There is raised by the labo^r of eu(er)y
man that is set to worke wthin the said
hospitall

for eu(er)y dayes worke iiij^d and for eu(er)y
woman and boy ii^d, w^{ch} for vii yeares now last
past co(mmun)ibus annis hath raised per
ann(um)

xl^{li}

There hath been moreover receaved for the
dyett of such rude apprentices and other idle
and vnruely persons as have been sent thither
wthin Seaven yeares last past co(mmun)ibus
annis per ann(um)

xxxvi^{li}

There hath been given by well disposed
persons towards the releife of the poore
people

harboured wthin the said hospitall and towards
the putting forth of poore children apprentices
wthin the space of vii yeares last past
co(mmun)ibus
annis the yearly som(m)e of

cxx^{li}

Som(m)e of all the Casuall receipts yearly ys

clxxxxvi^{li}

There hath been letten wthin the space of
Seaven yeares of the lands and Tenem^{ts}
belonging

to the said Hospitall fifteene leases

for the w^{ch} there hath been receaved in fines
the totall som(m)e of Three hundred &
fifteene

xlvi^{li}

pounds w^{ch} co(mmun)ibus annis doth amount
vnto the yearly some of

In toto ccxli^{li}

There is also belonging to the said hospitall
one lease of fifteene Tenem^{ts} at Bethlem

lx^{li}

wthout

Bishopsgate London w^{ch} cost cccl^{li} wherein
are

yet to come v yeares at o^r Lady day last
whervpon is to be receaved the cleare yearly
rent of

Som(m)e totall of all the rents revenue
and receipts aforemenconed ys

mxxv^{li}, ii^s,
ii^d

There is remaining in stock belonging to
the said Hospitall these severall som(m)es
he(re)after menconed (viz^t)

ccccv^{li} vii^s
ii^d

There remaineth vpon the foote of the
account of the Tre(asure)r of the said hospitall
made vp at Xpimas 1630 the som(m)e of

There is also remaining in stock belonging
to the said hospitall by the guift of Mr Richard
Culverwell dec. the somme of

cc

There is also remaining in stock of the
guift of M^{ris} Mary Paradyne Widdow the
som(m)e of

cc^{li}

For the ymploym^t of the said last recited som(m)es of Two
hundred pounds a peice, the Citty have given bonds that the
same shall remaine and foreu(er) continue as a stock in the said
Hospitall and that the benefitt thereof made shall redound to the
putting forth of poore children apprentices and otherwise to
releive the poore of the same hospitall in such sort and to such
vses as the dono^{rs} thereof have limitted. The same to be
disposed by the discrecon of the Governo^{rs} of the same
Hospitall.

And whereas the said house was indebted
to the chamber of London the som(m)e of
200^{li}

mclxxxix^{li} v^s
iii^d

and did otherwise want stock to releive the

poore and set them to worke, there was
therfore
a colleccion made wthin the Citty of
London
by order of Lord Maio^r and Court of
Ald(e)r(me)n
about Seaven yeares now past for and
towards the releife of the poore harboured
in
the said Hospitall and towards the
mainteining
of a stock there to set the poore on worke
and
otherwise to put poore children out
apprentices
to the totall som(m)e of 1749^{li}. 5^s. 3^d,
parte
whereof (viz^t) 200^{li} was paid into the
chamber
of London to satisfy the debt aforesaid and
350^{li} more was laid out for the purchase of
the
lease aforemenconed at Bethlem and the
residue
is remaining yet in stock to buy hempe or
otherwise to be disposed of in such sort for
vse of the house as the Govern^{ors} of the
said
house shall best advise (that is to say)
Som(m)e totall of all the stock
aforemenconed
ys
There is furthermore to be receaved for
fines of leases vpon bonds and other
security
not yet due to be paid

mmiiij^{li} xii^s v^d

cclxxx^{li}

There ys also due to the said Hospitall by bonds the som(m)e of	cxi ^{li}
And there is more also due to the said Hospitall in doubtfull or desperate debts the som(m)e of	cxxxiiij ^{li}
Som(m)e totall of all the said debts ys	v ^c xv ^{li} [769]

There ys no Linnen bedding or ymplemts of houshold stuffe belonging to the said Hospitall other then such as are hereafter menconed in a particuler Inventory thereof made and here vnto annexed.

There are vsed wthin the said Hospitall these occupacons or workes hereafter menconed (viz^t).

Four Silkeweavers who doe keepe poore children taken vp in the streets or otherwise distressed as their apprentices to the number of fortye & sixe.

Two Pinmakers who doe likewise keepe as apprentices twenty and three.

One Ribbon weaver who keepeth v apprentices.

Two Hempdressers who keepe Tenn apprentices.

Five Glovers who keepe Sixteene apprentices.

One Linnen Weav(er) who keepeth iiij^r apprentices.

One Carpenter who keepeth Two apprentices.

The whole number of the apprentices are cvi.

The Hempmen aforesaid doe at this time keepe at worke in beating hempe of men and women to the number of xlviii.

There are also kept at this present wthin the said Hospitall of vagrants and persons vnable to worke to the number of xiiij.

There are also wthin the said Hospitall these seu(er)all officers hereafter menconed.

A Preacher who hath for his yearly wages and house rent	xxvi ^{li} xvi ^s viii ^d
A Clarke to keepe their bookes and to enter vp their accounts who hath yearly for his sallary	xx ^{li}
A Steward who for himselfe his man and his maid receaveth yearly	xxxii ^{li}
A Porter who receaveth yearly for himselfe and his man	xxij ^{li} xvj ^s viii ^d
A Matron who receaveth yearly for herselfe and her maid	xxv ^{li}
One Beadle who is also Sexton of the Chappell and receaveth yearly for his service therein and for making cleane the yards and looking to themptying of the vaults Three pounds Sixe shillings and Eight pence And he being a Tailor ^r is allowed yearly towards making the apprentices and others of the poores clothes w th in the house iiii ^{li} and he is allowed more yearly xx ^s in tot.	viii ^{li} vi ^s viii ^d
One other Beadle who receaveth yearly	xx ^s
These two Beadles receive the rest of their wages from the other Hospitalls.	xiiij ^{li} iiij ^s

Two other beaules who receave yearly
for
wages and livery coats

These officers doe all reside wthin the
house.

A Surgeon to view the bodies of such as
are brought in diseased or lame wthin the
house and to cure such as be suddenly
hurt

xl^s

who receaveth yearly

There are also Two Marshalls men who
doe receive yearly for their wages

xxxvi^{li} x^s

There is a Raker to carry away the soyle
from the house who hath yearly

xx^s

A Nightman to empty the Vaults who
hath
yearly

iiij^{li}

Som(m)e totall of all the officers wages
ys

clxxxxiiij^{li} viii^s
[\[770\]](#)

The Revenue of the said Hospitall is
expended

ccxl^{li}

and disposed of in releiveing and
manteining such aged lame sick and idle
persons as are sent downe to the said
Hospitall

and either cannot or will not worke for
whome they are constrained to provide
clothes

for such as be naked, diet, straw and
other

provision, and also to allowe continuall
sustenance

to those whose worke is not sufficient
to releive them, all w^{ch} wthin the space of
vii yeares last past one yeare wth another

hath
 expended per ann(um)
 And also, according to the intent and true
 meaning of their grant, there are
 maintained in
 clothes wthin the said hospitall one
 hundred
 and sixe apprentices, poore children most
 of
 them taken out of the streets whose
 Masters
 dwell rent free wthin the said Hospitall,
 besides
 many other poore children are put forth
 apprentices
 into other places. All w^{ch} together
 wth the repaire of the houses and other
 necessary
 charges and expences of the said
 hospitall
 disbursed and laid out, as by the
 particulers
 thereof may appeare at large in the
 bookes
 of accounts, wthin vii yeares last past
 hath
 cost one yeare wth another at least
 Som(m)e totall of all the casuall paym^{ts}
 aforemenconed ys
 Som(m)e totall of all the paym^{ts} afore
 specified
 ys

vii^{cli}

ix^{cxl}^l

mcxxxiiij^{li}
 viii^s[\[771\]](#)....

The Ordinances and Constitucons by w^{ch} the said hospitall is
 ordered and governed are conteined and specified in great
 bookes by reason of the largenes whereof they cannot in so short

a time be coppied out but they shalbe ready to be shewed forth
as yo^r Hono^{rs} shall appoint."

**D. Dom. State Papers, Chas. I., Vol. 191, No. 42. This report is
endorsed "16 May, 1631. Certificate from the Maior of
Guldeforde in Surr."**

Guldeford in Com.
Surr.

"The certificate of John Champion gent
Maior of the Towne of Guldeford, on the
behalf of the Maior and Justices of peace of
the saide Towne and Lib(er)ties made the Sixtenth day of
May, in the seauenth yere of the Raigne of o^r Sou(er)aigne
Lord kinge Charles 1631.

Accordinge to his Ma^{ties} good Orders and direccons, and in
performance of o^r Duties I certifie That forthwth vppon receipt
of the Booke of instruccons w^{ch} was about the 5^t of Februarie
last past, we, the saide Maio^r and the Justices of Peace in the
saide Towne, did assemble o^rselues togeather and did call before
vs The constables, churchwardens and overseers of the poore in
the seu(er)all parishes wthin the saide Towne and lib(er)ties. And
ther did enquire, As by the saide booke of Orders is directed,
And haue vntill this tyme contynewed a three weekes meetinge
and made enquirie accordinglie.

We found no neglect in any of the saide Officers, But that they
haue discharged ther duties accordinge to Lawe.

Vppon o^r enquirie had, seuerall presentm^{ts} were made to vs ag^t
dronkards and such as do sitt tiplinge and drinckinge in
Alehouses and vitlinge houses, and we haue caused the penalties
lymitted by the statute to be leuyed, as well on them as the
vitlers and disposed the same to y^e poore of the seu(er)all
parishes wher the offences were comitted as the Lawe requirith.

We haue caused also Two apprentices to be bound to handicrafts
and raysed money to place them And do prouide to haue such
other as are yet to be placed, to be put out so sone as they are fitt

to be put out We haue, at o^r Sessions of the peace helde for the saide Towne on the second day of May last, enquired on those Articles that tend to reformacon or punishm^t of Offences in Bakers or Brewers, Forstallers, regrato^{rs} and ingrossers and of such other offences as are in the direccon menc(ion)ed. And such Delinquents as stand presented before vs and appered in Court we haue fyned and punished accordinge to Lawe. And caused proces from the saide sessions to be made out against the delinquents so presented and not appereinge, and entend to put the seu(er)all Lawes in execucon against them.

Further we haue caused the statute of laborers to be putt in execucon[772].

Item we haue ordered That the taxacons for the releife of the poore are duely collected for their present releife. And touchinge the hable poore men of the Towne both great and smale They are daielie imployed and set on woorke, by the meanes of a good manufacture founded by the right hono^{ble} the most Reuerend father in god, the Lord Archbishopp of Canterbury his grace, in Guldeford, the stock beinge flaxe and hempe, spinning and weauing the same into cloth, w^{ch} we finde to be a great comfort to many poore workefolke, men, women and children her.

We haue caused daylie ward in the Toune to be kept by sufficient persons for the app(re)hencon of Rogues and Vagabonds and for safetie and good order.

And we haue wth all diligence and care taken order That the constables and officers in the saide Towne haue vsed all diligence and care in punishinge of Rogues and Vagabonds and that ther was few or no Rogue taken for that by the late care and watch in the countrie and Townes nere to tak Rogues, verie few or none are found to wander nor any come to this Towne.

The number of Alehouses ar wth all care lessened wth vs and the unlycensed punished and Brewers that haue s^rued them, and the penalties disposed to the poore accordinge to lawe.

We haue taken speciall Care for the amending of highwaies wthin the lib(er)ties of the Towne and haue giuen the same in chardge to the Surveyo^{rs} of the high waies to see it trulie performed

16^{to} May Anno D(omin)i 1631.
Jo. Champion *Maior*."

E. Dom. State Papers, Chas. I., Vol. 216, No. 45. This document is endorsed "Cantebr(igia) July 1632, Certificate of y^e justices for the hundreds of Chesterton, Papworth and North sto(we).

Julii 16^o 1632." [\[773\]](#)

Com(itatus)
Cantebr(igiensis).

"The c(er)tificate of S^r John Cutts, S^r Edward Hynde, S^r Robert Hatton knights and Martin Pearce Esqr. Justices of the peace wthin the County of Cambridge aforesaid, and assigned to the deuisions of the hundreds of Chesterton, Papworth and North Stowe, vnto the high Sheriffe of the said County, by vertue of certayne imprinted orders and direcons sent from his ma^{tie}, and l(ett)res sent vnto vs by the right hono^{ble} the lords of his ma^{ties} most hono^{ble} privy Councell beareinge date the last day of Aprill Anno d(omi)ni 1632.

From o^r meeteinge at Longe Stanton the thirteenth of May 1632.

Wee, or some of vs whose names are heere subscribed, have mett seu(er)all tymes for the said hund(reds) accordinge to the instruccons sent vnto vs.

Wee have taken a strict accompt of the high Constables, petty Constables, Churwardens and ou(er)seers for the poore of eu(er)y parish wthin theis hundreds howe the impotent poore are releived and their other poore sett on worke in eu(er)y Towne, and we find that they are sufficiently provided for and the

Towne stockes we have in most Townes increased wth direcons to have them duly imployed.

Since our first meeteings we find the contry to have bin soe carefull that wee have bin sloe in punishinge, but have rather sought by gentle meanes to incourrage them, where we find the lawe to give vs that liberty.

We have caused a gen(er)all privy Search to be made in all Townes wthin the sayd Hundreds, for the apprehendinge of rogues and vagabons, and have caused them to be punished and conveyed accordinge to the Statute, and we have comanded a strict and diligent ward to be kept in eu(er)y Towne for the apprehendinge, punishinge and conveyinge of all such Rogues and wandringe persons as shall hereafter be found wthin the said lymitts and we shall punish the defaults of such officers as have bin negligent in the due execucon of the premisses.

We have at o^r seu(er)all meeteings put forth above one hundred and fifty apprentices and have since taken an accompt of all such masters as have heretofore taken apprentices and have putt them away, and we have settled them againe wth their said masters where they remayne quietly.

For the statute of laborers, retayneinge of servants and orderinge of wages, we have taken it into our consideracon, but have perfected nothinge[774], the care of the poore and puttinge forth of apprentices hath imployed soe much of our tyme.

The howes of correcon we have yett had noe tyme or means to alter but we shall carefully and speedily obey comandem^t.

For the highe wayes we have vsed our best diligence, and we have seene the lawes strictly observed, but y^t must be a worke of tyme, and we will continewe our care.

Jhon Cutts. Edw. Hynde. Rob. Hatton. Martin Perse.

Rec. this from y^e Justices

Julii 16^o 1632."

F. Dom. State Papers, Chas. I., Vol. 226, No. 78.

Part of the certificate of the justices of Middlesex for the Finsbury division.

The original document contains the accounts of six parishes[775] but only the part relating to St Giles', Cripplegate, is here printed.

The document is endorsed "Finsbury Division Midd. Certificate of forfeitures[776] levyed of vnlycensed alehousekeeps for defective measures, for the poore 1630, 1631 & 1632."

St Gyles Cripplegate
in Com. Midd.

"The constables and churchwardens
there
haue levyed of Alehousekeepers

lxxiiij^{li} xv^s

unlycensed

and for defective measures in annis 1630, 1631

& 1632, hucusque

Francis Foster,
Thomas Howgrave,
John Willes,
Churchwardens.

And that they have improved by the
stocke
disbursed

iiij^{li} xii^s

Whereof they have disbursed to poore
people for stocke to sett them on worke

ix^{li} viii^s

Apprentices put out,
19.

And for releife of those that were
infected
wth the plague in y^e said parishe

iiij^{li} xviii^s

Rewards to informers.

And for the puttinge forth and
Clothinge

xxxiii^{li} xviii^s

nyneteene Apprentices

Discretion.

And for rewardes to those that
discovered

viii^{li} iii^s

the said forfeitures in y^e paryshe (for the vse of y^e
poore?)

And they haue disbursed to divers poore
people accordinge to their necessities by the
discretion of the saide churchwardens

xvi^{li} xvii^s

They have receaved

lxxviii^{li} vii^s

Stocke remayninge.

And haue disbursed

lxxiii^{li} iii^s
iii^d

And there remaynes in stocke for the vse
of the poore of that parishe[777]

v^{li} ii^s viii^d

G. Dom. State Papers, Chas. I., Vol. 349, No. 86.

Part of the Certificate from the wappentake of Bassetlaw[778] 10th March 1636/7.

The following document is endorsed "Nott. 10th March 1636," in another hand, while in the same hand as the rest of the document is written, "The Divisions of North Clay, South Clay and Hatfeild wthin the wapentake of Bersett Law in the County of Nottingha(m)." The part of the document here printed relates to the division of South Clay.

"A Certificate of our proceedings at the Monethly meeteings held wthin the Hundred of Bersett Law in the County of Nottingh(a)m since the last Assizes delivered to his Ma^{ties} Judges of Assize the tenth day of March Anno d(omi)ni 1636.

At East Retford for the Divisions of South Clay and North Clay in October and Februarie 1636."

"Laneham[779].

They certifie six poore people w^{ch} haue weeckely releife.

It(em) that they haue in Towne stocke xvi^s w^{ch} is bestowed in hemp and employed to sett such poore on worke as wante.

It(em) that they haue had noe wanderers come wthin their liberties.

It(em) that they haue 4 poore children to bee placed out apprentices w^{ch} are to bee bound the next meeteing.

Ekring.

Impr(imis) there is in that Towne and parishe 6 impotent and aged people w^{ch} haue weeckely pension.

It(em) they haue in Towne stocke xx^s.

It(em) they haue punished one vagrant.

It(em) they haue placed foure poore children app(re)ntices.

Stokeham[\[780\]](#).

Impr(imis) they haue in that Towne noe poore people but such as are able to maintaine themselues.

It(em) wanderers they had none.

Gamolston.

Impr(imis) they haue noe poore w^{ch} neede weeckely releife.

It(em) they haue in Towne stocke 40^s to sett such poore on worke as neede.

It(em) they haue noe poore children fitt as yett to bee putt apprentices.

It(em) they haue punished 3 wanderers and sent the(m) into Yorkeshire where they sayed they were borne.

Ragnell.

Inpr(imis) they maintayne 3 poore people wth weeckely pension being aged.

It(em) they haue in Towne stocke 3^{li} to sett such poore on worke as want worke.

It(em) they haue noe poore children fitt to bee placed apprentices.

It(em) wanderers they haue had none.

East Drayton.

Impr(imis) they maintayne 5 poore people being impotent and aged wth weeckely pension.

It(em) they haue in Towne stocke 40^s to sett such other poore on worke as want worke.

It(em) they haue noe poore children fitt to bee placed Apprentices.

It(em) they haue punished 3 vagrants.

Darleton.

Inpr(imis) they maintaine 2 poore people wth weeckely pension.

It(em) they haue 30^s in Towne stocke.

It(em) they haue noe poore children fitt to bee placed apprentices.

Item they haue punished 3 vagrants.

Rampton.

Impr(imis) they maintaine one poore man wth weeckely pension.

It(em) they haue xx^{li} in Towne stocke.

It(em) they haue placed out 2 Apprentices.

Item they haue noe wanderers come wthin their Towne.

Dunham.

Impr(imis) they maintaine 4 poore people wth monethly pension.

It(em) they haue in Towne stocke 2^{li}. 6^s. 8^d.

It(em) they haue noe poore children fitt to bee placed apprentices.

It(em) wanderers they haue had none.

Askham.

Impr(imis) they have 5 poore people w^{ch} haue weeckely pension.

It(em) in Towe stocke twenty mks.

It(em) they haue placed out one apprentice.

It(em) they haue punished one vagrant.

Eaton.

Inpr(imis) in Towe stocke 2^{li}. 6^s. 8^d.

It(em) one poore boy placed out apprentice.

It(em) two wanderers punished.

Kirton.

Inpr(imis) 3 poore people w^{ch} haue weeckely or monethly releife, as they neede.

It(em) in Towe stocke x^{li}.

It(em) wanderers they haue had none.

Welhagh.

Inpr(imis) in Towe stocke 6^{li}. 13^s. 4^d.

It(em) wanderers they haue had none.

It(em) poore children to bee placed out apprentices none.

It(em) 4 poore people w^{ch} haue monethly releife.

Bilstrop.

Impr(imis) they allowe a poore woman a weekely pension.

It(em) they give for the keepinge of a bastard child per ann(um) xxxiii^s iiij^d.

It(em) in towne stock 4 pounds.

It(em) they haue punished 2 vagrants.

Tuxford.

Impr(imis) they give to 9 poore people weekely pension.

It(em) in towne stock five pounds.

It(em) they haue placed out 6 poore children apprentice.

It(em) they haue punished 3 vagrants.

East Markham.

Impr(imis) in towne stock vij pounds.

It(em) they haue placed out fower apprentice and wth two of them given vii^{li} x^s.

It(em) wanderers they haue had none.

Treswell.

Impr(imis) the(y) releefe weekly of poore people, impotent, aged and younge children 29.

It(em) they haue punished 3 vagrants.

Grove.

Impr(imis) they haue no poore that need releefve all being able to mainteine themselues wth their labo^r.

It(em) they haue no towne stock in regard their poore are otherwise sett on worke.

It(em) they haue no wanderers.

Egmonton.

Imp(rimi)s they mainteine 8 poore people wth weekly pension and one wth monthly pension.

It(em) towne stock they haue none because they imploy their poore in other worke as they wante it.

Laxton cu(m) Morehouse.

Inpr(imi)s they haue placed 3 poore children out apprentice and given wth them vi^{li} x^s.

It(em) they haue no towne stock, their poore such as want work being sett on worke otherwise by the towne.

It(em) wanderers they haue had none.

West Markham.

Impr(imi)s they haue diuers younge children but are too young to place out apprentice w^{ch} wee mainteine and their parents wth worke.

It(em) an old woman is mainteyned wth a monethly pension of v^s iiii^d and a load of coles eu(er)y yeare.

It(em) wanderers they haue had none.

Headon cu(m) Upton.

Impr(imi)s they give vnto 3 poore people a weekly allowance.

It(em) such poore as are able to worke are sett on worke.

It(em) they haue placed out 4 apprentice.

It(em) they haue punished 2 vagrants."

The reports for the divisions of North Clay and Hatfeild follow, and the whole is signed by the justices.

H. Dom. State Papers, Chas. I., Vol. 395, No. 55.

Certificate concerning the Book of Orders from the hundreds of Loes, Wilford, Thredling and Plomesgate, 14 July 1638[\[781\]](#).

Suff.

"To the high Sheriffe of the County of Suff.

The Certificate of the Justices of the peace whose names are herevnd(er)written for the hundreds of Loes, Willford, Thredlinge and Plomesgate wthin the lib(er)ty of S^{ct} Etheldred made the xiiiith day of Julye: 1638, touchinge his Ma^{t^s} Booke of Orders as followeth:

1. First that wee doe contynue o^r monethly meeteings wthin the said hundreds according to his Ma^{t^s} said Booke of orders.
2. That the impotent poore wthin the said hundreds are releived and such other poore as are able to worke and will worke haveing noe stocks are provided of stocks and sett to worke by the ou(er)seers.
3. That such idle poore as will nott worke are sent to the house of Correction and there sett to worke and punished according to lawe.
4. That the number of sup(er)fluous alehouses wthin the said hundreds doe still contynue suppressed.
5. That since o^r last c(er)tificate wee haue bound forth syxe poore children to be apprentices.

6. That since o^r last c(er)tificate wee haue levied wthin the said hundreds for disorders in Innes and Alehouses and for other offences comitted contrary to lawe the some of Twenty shillings.

7. That there hath bin a watch kept wthin the said hundreds for the apprehending of Rogues and vagabonds in w^{ch} watch such Rogues as haue bin Apprehended haue bin punished and sent according to lawe.

Edw^d Duke.

Nic. Reuette."

APPENDIX XIII.

The assessment for a rate made at Norwich in Jan. 1642/3 in order to relieve the poor and to raise a stock for setting them to work (Add. MSS. Brit. Mus. No. 22619, f. 11).

The accounts for this rate are given in full for seven parishes of Norwich, and a summary is also made of the accounts received from all the parishes of the city. The whole sum together with contributions from a few private gentlemen amounted to £105. 5s.

The part of the account here printed relates to the parish of S. Benedict. It is printed on a separate sheet of paper and is endorsed "St Benedict's."

"St Benedict's.

	<i>s.</i>	<i>d.</i>
Ric. Puckle	02 :	8
Edward Norris	02 :	0
Daniell Stiles	01 :	4
Will(ia)m Fearman	01 :	4
Tho. Powle	01 :	4
Henery Tompson	01 :	4
Daniell Desermew	02 :	8
Nathaniell Debony	02 :	0
Nathaniel Depute	02 :	0
Francis Gissell	02 :	0
Will(ia)m Stratton	02 :	0
John Whall	01 :	4
Richard Puckle, Edw. Norris, <i>Churchwardens.</i>		
Henry Tompson, John Sabbarton, <i>Overseers.</i>		

The rate abouesaid made by vs the churchwardens and ou(er)seers of the said parishe whose names are aboute written for releiffe of the poore of o^r said parishe and for rayseinge a

stocke to sett them on worke in theise necessitous times to be forth wth paid at one payment this 3 day of January 1642.

We haue perused the rate abouesaid and doe consent vnto ratefie and confirme the same and doe hereby require yo^u the said ou(er)seers forth wth to collect the same and pay the same to M^r Adrian Parmenter Ald(erman) by the 14th of this instant January to be imployed for the vse aforesaid this 4th of January 1642.

Will(ia)m Costlin, *Maio^r*.
Adryan Pimenter.

Rd. this 24th of January } John Tolye
In full of this byll } xxii^s."

APPENDIX XIV.

Report of the Four Royal Hospitals, 1644^[782] (*King's pamphlets*, 669, f. 10, No. 2).

A true Report of the great Costs and Charges of the foure Hospitals, in the City of London, in the maintenance of their great number of poore, this present yeare, 1644, as followeth:

Children kept and maintained at this present, at the Charge of Christs Hospitall in the said House, in diverse places of this City and Suburbes, and with sundry Nurses in the Countrey.	}	758
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The Names of all which are registred in the Bookes kept in Christs Hospitall, there to be seene from what Parishes, and by what meanes they have beene from time to time admitted.

Children put forth Apprentices, discharged and dead this yeare last past	}	100
--	---	-----

In respect of the troubles of the times, the meanes of the said Hospitall hath very much failed for want of charitable Benevolences which formerly have beene given, and are now ceased and very few Legacies are now given to Hospitals, the Rents and Revenues thereunto belonging being also very ill paid; besides the want of bringing Cloth and other Manufactures to London, which have formerly bin brought to *Blackwell-Hall*, the Hallage whereof was a great part of the poore Childrens Maintenance, which being decaied, by these and other meanes, the said Hospitall hath not beene able to take in any Children for two yeares past.

There hath bin Cured this yeare last past at the Charge of <i>St. Bartholomewes</i> Hospitall of maymed Souldiers and other diseased Persons, to the number of	}	1122
--	---	------

All which have beene relieved with Money and other necessities at their departure.

Buried this yeare after much Charge in their Sicknesse	}	152
Remaining under Cure at this present, at the charge of the said Hospitall	}	249
There hath bin Cured at the Charge of <i>St. Thomas</i> Hospitall this yeare last past, of diseased persons, wherof a great number have bin Souldiers who have bin relieved with money and other necessities at their departure	}	1063
Buried this yeare after much charge in the time of their Sicknesse	}	248
Remaining under Cure, upon the charge of the said Hospitall at this present	}	265
There hath beene brought to the Hospitall of <i>Bridewell</i> within the space of one whole yeare last past, of Cavaleers and wandring Souldiers and other vagrant people, to the number of	}	1128

Many whereof have beene very chargeable to the said Hospitall, for Apparrell, sicke dyet and Surgery, besides their ordinary dyet, and other provisions and charges expended about them, which could not be avoyded, by reason of their necessities. And there are now kept and maintained in Arts and Occupations, and other severall workes and labours at the charge of the said Hospitall, to the number of 134 Apprentices and other Persons.

The Hospitall of *Bethlem* is of great antiquity, use and necessity for keeping and curing distracted persons who are of all other the most miserable, by reason of their wants, both for soule and body and have no sence thereof.

That the charge thereof is very great, there being kept and maintained with Physick, dyet, and other reliefe, 44 distracted persons, constantly at least, and the rents and revenues thereof

very small, not amounting to two third parts of the yearely charge and therefore is a fit object of Charity.

The date "Aprill 24th 1644" is added in a contemporary hand with the note that "this yeare ther was noe psalmes printed as usually."

APPENDIX XV.

Ordinance of the Lords for putting in execution the laws for the relief of the poor^[783] (*King's pamphlets*, Brit. Mus. 669, f. 9, No. 81).

This sheet is prefixed by the royal arms.

Die Veneris 5 March 1646.

The Lords in Parliament Assembled taking into their consideration the multitude of Beggars, poore, and Vagabonds in and about the Cities of *London*, *Westminster* and in the other parts of this Kingdome; for prevention whereof, divers Acts of Parliament have been made, as well to punish such Beggars and Vagabonds, as also to provide for the reliefe of poore people, but by reason of the unhappy distractions of these times, the putting of the Lawes into Execution have been altogether neglected. It is therefore Ordered by the Lords in Parliament assembled, That the Lord Mayor of the City of *London* for the time being, and all Judges and Justices of Assize and Commissioners of Oyer and Terminer and generall Goale delivery, in their severall Circuits, and Justices of Peace in their Quarter Sessions, and all other person or persons (who are by any Act of Parliament entrusted to see the said Acts put in Execution, and the poore to be provided for) doe strictly and carefully put in Execution all and severall the Acts of Parliament for the punishment of Beggars, Rogues, and Vagabonds and for releife of the poore. And the said Judges and Justices of Assize in their severall Circuits are required to give the said Acts of Parliament in charge at the Assizes in all the Countries where they shall come and keep Assize.

Joh. Brown Cler. Parliament.

Printed at *London* for *John Wright* at the King's Head
in the Old Bailey 1646.

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FOOTNOTES:

- [1] 27 Hen. VIII. c. 25, 1535-6.
- [2] 14 Eliz. c. 5, 1572.
- [3] Preamble to Orders and Directions of 1631.
- [4] Bede's *Eccles. Hist.*, Bk. III. c. VI. King Athelstan ordered the distribution of much help to the poor. He ordered each of his reeves every year to redeem one "wite theow" (penal slave) and to entirely feed one poor Englishman. Thorpe, p. 84.
- [5] Asser, Bohn, p. 68.
- [6] Athelstan the Atheling gave lands to Ely on condition that they fed a hundred poor men on his anniversary at the expense of his heirs. Kemble, *The Saxons in England*, II. p. 510.
- [7] *Ib.* p. 545. Eadgar, Archbishop of York, and Aelfric in the canons which bear his name both order the same proportion of tithe to be set aside for the poor. Thorpe, pp. 326 and 345.
- [8] 36 Edw. III. c. 8.
- [9] *Rolls of Parliament*, 46 Edw. III. II. p. 312. Petition of the Commons.
- [10] 12 Richard II. c. 3 and c. 7.
- [11] Riley's *Memorials of London*, pp. 304, 390.
- [12] 11 Hen. VII. c. 2, 19 Hen. VII. c. 12.
- [13] The following incident in the reign of Edward II. shows us the bishop interfering in order to enforce the distribution to the poor of part of the revenue of a church. Richard, Bishop of Durham, in the course of the visitation of his diocese, came to the parish of Wessington. The people there complained that hospitality was not shown by the Church and that alms were not given to the poor. The bishop therefore ordered that a portion of the revenue should be given to the poor, and especially set aside the tithes of the new assarts of Sir Walter de Wessington for this purpose. *Hist. Man. Com.*, MSS. of J. R. Ormsby, Esq., 1020 B. The statutes of Richard II. and Henry IV. seem to have aimed at doing exactly what the Bishop did at Wessington, whenever a living was impropriated by a monastery.
- [14] 15 Rich. II. c.
- [15] 4 Hen. IV. c. 12.
- [16] *The Complaynt of Roderyck Mors*, E. E. T. S., p. 33.
- [17] C. Gross, *The Gild Merchant*, vol. II. pp. 159-161.
- [18] Boy's *History of Sandwich*, pp. 3 and 127. The references to this and several of the following examples of municipal action are quoted by Mrs Green, *Town Life in the Fifteenth Century*, vol. I. p. 41, note 2.
- [19] In Hereford also, St Giles' and the Sick Man's hospital were governed by the Corporation from the time of Rich. II. (*Reports of Char. Com.*), and in Exeter, the town rulers at one time exercised rights over St Mary Magdalen's hospital, and afterwards exchanged these for power over St John's hospital for lepers. Freeman's *Exeter*, pp. 68, 174, etc.
- [20] Tanner's *Notitia*, Yorkshire, CVI. The burgesses of Scarborough are said to have founded and maintained another hospital, dedicated to St Nicholas, and in both poor men and women were maintained.
- [21] *Hist. Man. Com.*, Rep. VIII. p. 371. 24 Hen. VII.

[22] Nathaniell Bacon's *Annalls of Ipswiche*, p. 129. In Rye also payments were made to the poor from municipal funds as early as 1474. *Hist. Man. Com.* V. p. 494.

[23] *Hist. Man. Com.* V. 527. In 1482-3, 3s. 4d. was paid to Thomas Maykyne "to kepe Goderyng's doughtyr," and in 1485 there is another entry of the same kind, "Paid for a kertylcloth for Herry Goderyng's doughtyr and for making thereof, 3s. 1d."

[24] Payments in connection with this distribution of corn continue to be mentioned, down to the end of an account book containing municipal accounts from the beginning of the fifteenth century until the reign of Richard III. *Hist. Man. Com.* V. 519.

[25] London had a regular Court of Orphans: see also *Southampton*, John S. Davies, p. 159, and *Exeter*, Freeman, p. 154.

[26] John S. Davies, *Southampton*, pp. 139, 294, and C. Gross, *The Gild Merchant*, vol. II. p. 231.

[27] Thomas Harman, *Caueat or Warening for Common Cursetors*. The second edition bears date 1567.

[28] Vagrants were already numerous when Sir Thomas More wrote *Utopia*, c. 1516.

[29] W. Harrison's *Description of England*, edition of 1587, edited by F. J. Furnivall, vol. I. p. 218.

[30] Harman's *Caueat* (E. E. T. S., Extra Series, No. ix.).

[31] *Liber Vagatorum*. Luther thought that begging ought to be prohibited altogether and the poor provided for by the inhabitants or from ecclesiastical revenues. See his manifesto "To the Christian nobility of the German nation," 1520, and the "Regulation of a Common Chest" quoted by Ashley, *Economic History*, II. p. 342.

[32] Preface to Harman's *Caueat*, E. E. T. S., p. 1.

[33] More's *Utopia*, p. 36, Pitt Press ed. "Yet Fraunce ... is troubled and infected with a much sorer plage. The whole royalme is fylled and besieged with hiered souldiers in peace tyme."

[34] *Tales of a Grandfather*, last chapter, Sir W. Scott.

[35] *Utopia*, p. 30, "They that be thus destitute of service, either starve for honger or manfullye playe the thieves."

[36] Between 1511 and 1550 provisions seem to have risen about 60 p.c. in price, and there is a further rise in the next ten years of another fifty p.c.

	Wheat the quarter.		Barley.		Oxen.		Hens.	Herrings.	
	s.	d.	s.	d.	s.	d.	d.	s.	d.
1511-1520	6	8¾	4	0¼	23	2	2	6	0¾
1521-1530	7	6	4	9	30	10¼	3½	6	7¼
1531-1540	7	8½	4	11¾	28	7½	3¼	6	8
1541-1550	10	8	6	2¼	42	3¼	5¾	10	3
1551-1560	15	3¾	10	0¼	78	7½	4¾	11	0½

The rise in wages was barely 15 p.c. before 1550, though during the next ten years there is a rise of 30 p.c., so that the rise in wages is less than half that in the price of provisions.

	Carpenter, average.	Mason.	Mason's labourer.	Sawyers, pair.		Tiler.	Thatcher.	Man.	Plumber.	Unskilled labour.
	d.	d.	d.	s.	d.	d.	d.	d.	d.	d.
1511-1520	6¼	6	4	1	0	6	5¼	4	6	3¾
1521-1530	6	6¼	4¼	1	0½	6	6	4	6½	4½

1531-1540	7	6¾	4¼	1	0½	6½	7	4½	7	4
1541-1550	7	6¾	4¾	1	1½	7½	6½	4½	7½	4½
1551-1560	10¾	10	6¾	1	5	9¼	—	6¼	8½	6

Hist. of Agric. and Prices, vol. IV. pp. 292, 355, 545, and 524.

[37] Epistle to the *Caveat for Commen Cursetors*, pp. 19, 20.

[38] Stow's *Survey*, ed. Thoms, p. 34. Quoted in W. J. Ashley's *Economic Hist.* II. p. 329.

[39] The monks were also probably poorer at the beginning of the sixteenth century than they had been in times past, and were so less able to give relief. Father Gasquet quotes several cases in which the revenues of the monasteries had been diminished by the demands made upon them by those in power. He quotes a letter from the son of the Duke of Buckingham, showing that in some cases they seem to have been expected to provide free board and lodging for the poor relations of wealthy families. "And because," the writer says, "he hath no dwelling place meet for him to inhabit (he was) fain to live poorly at board in an Abbey this four years day with his wife and seven children." *Henry VIII. and the English Monasteries*, Gasquet, I. p. 34 n. See also p. 29. The revenues of the monastic bodies also largely consisted of payments of fixed amounts, and would be unfavourably affected by the rise in prices, which was especially great after the alteration of the coinage in 1527.

[40] W. Rendle, *St Thomas's Hospital*. The information in this paper is derived from the Cartulary of S. Thomas, Stow MSS. 942.

[41] 2 Hen. V. Stat. I. c. 1. In the *Complaynt of Roderyck Mors* the writer asserts the existence of a similar evil: "I heare that the masters of your hospytals be so fatt that the poore be kept leane and bare inough," p. 52. Edition of E. E. T. S.

[42] Ashley, *Economic Hist.*, vol. II. pp. 346, 347.

[43] There was a successful system of poor relief in Holland.

[44] Stow's *Survey*, ed. Thoms, p. 41.

[45] *Letter Book of the City of London*, N. fol. 142-3. Quoted in Herbert, *Livery Companies*, I. p. 132. Herbert quotes from the corresponding entry in the *Journals*, 25 September, 12 Hen. VIII.

[46] *Repertories*, III. f. 164, Sept. 9 Hen. VIII. The Repertories of the City of London consist of large volumes in manuscript, dating from 1485. They contain the minutes of the proceedings of the Court of Aldermen and copies of the orders decided upon by that Court.

[47] *Ib.* III. f. 197.

[48] *Ib.* IV. f. 154 b

[49] *Repertories*, IV. f. 215. Oct. 13, 16 Hen. VIII.

[50] *Ib.* III. f. 174 b and 192, 194. About five hundred tokens were thus distributed, 18 Feb., 9 Hen. VIII.

[51] *Repertories*, VIII. f. 274 b.

[52] Stow mentions 20 hospitals altogether. Two, Christ's and Bridewell, were later foundations, and three other foundations had already been suppressed by Hen. V. The purpose and fate of the remaining fifteen, as stated by Stow, are given below. No. 3, 4, 5, 6, 9, 10, 11, 14 were the eight threatened by Hen. VIII., and also No. 13, until rescued by the Mercers. Stow's *Survey of London*, pp. 183-184, ed. Thoms, 1876.

Hospital	Founded	Purpose	Suppressed	Refounded
----------	---------	---------	------------	-----------

1.	St Mary's, Barking		For lunatics	Yes	Given to St Catherine's
2.	St Anthony's, Broad Street		Free School	Edw. VI.	Gone
3.	St Bartholomew's	Rahere, temp. Hen. I.	Sick people	Hen. VIII.	By Hen. VIII.
4.	St Giles in the Fields	Matilda, wife of Hen. I.	Lepers	"	
5.	St John's of Jerusalem		For defence of Rhodes	"	
6.	St James in the Fields	By citizens	Leprous virgins	"	
7.	St John's at Savoy	Hen. VII.	100 poor people	Edw. VI.	By Mary. Barrack, Chas. I.
8.	St Catherine's by the Tower	Matilda, wife of Stephen, and Catherine, wife of Hen. VIII.	Master, Chaplain, 2 brethren, 3 sisters, and 10 almswomen; also dole	Not suppressed	
9.	St Mary's within Cripplegate		100 blind people	Hen. VIII.	
10.	St Mary's, Bethlehem	Simon Fitzmary	Lunatics	"	Given by Hen. VIII. to the citizens
11.	St Mary's Spittle without Bishopsgate	1203	180 beds for poor	Hen. VIII. £478	
12.	St Mary's, Rounceval		Brotherhood	Hen. V. and Edw. VI.	Refounded Edw. IV. to Edw. VI.
13.	St Thomas of Acon		Master and brethren	Surrendered Hen. VIII.	Sold to Mercers
14.	St Thomas in Southwark	Rich. Whittington	Sick people	Hen. VIII.	By citizens and Edw. VI.
15.	Hospital and almshouse, Whittington Coll.		Almshouse for 13 poor men and College	Suppressed	The poor remain and are paid by Mercers
16, 17, 18.	Three hospitals		all cells of Clugny.	Hen. V.	

[53] *Memoranda of the Royal Hospitals of the City of London*, Appendix I. pp. 1 and 2.

[54] *Ib.* II. p. 4.

[55] *Ib.* III. p. 8.

[56] *Ib.* IV. p. 8.

[57] "Sermon of the Plough, preached by Latimer, at St Paul's, Jan. 154-8/9." "Now what shall we say of these rich citizens of London? What shall I say of them? Shall I call them proud men of London, malicious men of London, merciless men of London? No, no, I may not say so; they will be offended with me then. Yet must I speak. For is there not reigning in London as much pride, as much covetousness, as much cruelty, as much oppression and as much superstition as was in Nebo? Yes, I think, and much more too.... But London was never so ill as it is now. In times past men were full of pity and compassion, but now there is no pity; for in

London their brother shall die in the streets for cold, he shall lie sick at the door between stock and stock ... and perish there for hunger: was there ever more unmercifulness in Nebo? I think not. In times past, when any rich man died in London they were wont to help the poor scholars of the Universities with exhibition. When any man died, they would bequeath great sums of money toward the relief of the poor. When I was a scholar in Cambridge myself, I heard very good report of London, and knew many that had relief of the rich men of London: but now I can hear no such good report, and yet I inquire of it, and hearken for it; but now charity is waxen cold, none helpeth the scholar, nor yet the poor."

[58] Journals, XV. f. 325 b. See Appendix. The Journals of the City of London, like the Repertories, are contained in large volumes, in manuscript. They contain notes of the resolutions passed by the Common Council, and both copies of precepts sent by the Mayor to the Aldermen, and of letters written to official personages upon matters decided by the Common Council.

[59] *Repertories*, XII., No. II. f. 52, f. 53 b.

[60] Brinklow, *The Lamentacyon of a Christen agaynst the Citye of London for some certayn greate vyces used therin*, p. 91.

[61] Arber's reprints of Lever's *Sermons*, p. 78.

[62] Supplement to *Memoranda relating to the Royal Hospitals*, p. 7.

[63] Stow's *Survey*, edited Thoms, p. 140.

[64] Ridley's *Life of Bishop Ridley*, p. 377.

[65] T. Bowen, *Extracts from the Records and Court Books of Bridewell*, p. 2. Appendix.

[66] *Memoranda of the Royal Hospitals*, Appendix, pp. 52 and 59.

[67] A copy of the original pamphlet is in the British Museum. Eight hundred persons had been healed "in the meane season" during the past five years. The list of expenses is interesting because of the light it casts upon the cost of living in 1552. The diet of the hundred patients is calculated at 2d. the day; each sister was allowed for her board sixteen pence a week, while the matron obtained eighteen pence.

[68] "Account of Expenses incurred by the City in erecting and maintaining St Thomas's Hospital." Harleian MSS. No. 604, p. 176, printed in Supplement to *Memoranda of Royal Hospitals*, p. 32.

[69] The allowance paid for the children was tenpence a week.

[70] W. Rendle, *Old Southwark*, p. 138. The whipping-post or "Crosse" soon required repair, and stocks also were provided. We hear frequently of its being used. In 1567, John Martyn was sentenced to twenty-five stripes for robbing gardens and misusing a poor "innocent;" while in 1570, "Jane Thornton, one of the Systers," was sentenced to receive "xii strypes, well layd on." There are several cases also in which the hospital governors find masters for patients when they have been cured, or sometimes bind them apprentice. In one case they apprentice a boy who had been cured of a sore leg, and covenant that "yf hitt happen the sayd Legg Do brek outt agayn" the boy shall be cured "only of the chardg of the hospital." Occasionally there are details of the employment of the inmates. In 1569 a small sum is received from the Matron "for work done by the poore women and children," and in 1573 "a mocion is made that a handemyll to grind corne may be provyded to sett the pore to worke to kepe them from ydelnes." But the arrangements for employment are on a very small scale and seem only likely to concern patients, or perhaps the people in the casual ward. Others would be sent to Bridewell. These details are all derived from Mr Rendle's *Old Southwark*, where much more information, derived from old records of the hospital, has been printed.

[71] The general rules relating to the holding of general Courts and to the election of governors, the duties of the officers and the charges to be given to both officers and governors were printed in 1557, together with the particular regulations for the governors of Christ's. An

original copy is in the British Museum, entitled, "The Order of the Hospitalls of K. Henry the viiith and K. Edward the vith,

viz. { S. Bartholomew's,
 { Christ's,
 { Bridewell,
 { S. Thomas,

By the Maior, Cominaltie and Citizens of London, Governors of the Possessions, Revenues and Goods of the sayd Hospitals. 1557." The orders provide that sixty-six governors should be appointed, fourteen of whom were to be aldermen and the rest "grave commoners." Of the fourteen aldermen, six were to be "Grave clokes" and two of these were to be Governors general of all the hospitals.

[72] T. Bowen, *Extracts from the Records and Court Books of Bridewell*, Appendix, II. p. 8 seq.

[73] *Ib.*, p. 9.

[74] T. Bowen. *Extracts from the Records and Court Books of Bridewell*, Appendix, II., p. 11 seq. The whole of the particular regulations relating to Bridewell are here printed.

[75] Some of the original Court Books of Bridewell are still preserved among the records of its modern representative, King Edward's schools. By the kindness of the authorities I have been allowed to examine them.

[76] *Journals*, XIX. 164 b. March 15, 1568/9.

[77] Ricart's *Calendar*, p. 49. Corn was also bought for the use of the Mayor and "cominaltie" of Bristol, in 1532, p. 52.

[78] *Minutes collected from the ancient records of Canterbury*. Civis (William Welfitt), No. XIV. Account of the corn furnished for the poor, 21st November, 1552 (6 Edw. VI.).

£32 6s. contributed by St Andrew's, the value of the plate of
the parish church.
£32 contributed by the Mayor and Commonalty.
£10 from the churchwardens of St George's.
£2 " " " St Michael's.

Sixty-six quarters and one bushel of wheat were bought, nearly fifteen quarters of which were sold to the poor at sixteen shillings a quarter; nearly forty quarters of barley were bought, and nine of these were sold to the poor at six shillings a quarter.

[79] *Hist. Man. Com.*, Rep. XIV., App. VIII. pp. 38 and 40.

[80] *Hist. Man. Com. l.c.*, pp. 41, 44.

[81] *Ib.*, p. 51.

[82] *Ib.*, p. 49. 5th May, 1557.

[83] In the Smiths' charter, approved 17th July, 1563, it is provided that "if any fall into poverty, or by reason of infirmity or age shall not be able to relieve himself, sevenpence shall be paid to him weekly from the chattels of the fellowship, and on his death the officers shall cause his body to be decently buried, and at his burial shall dispose to the poor of the city two dozen of bread."

Also the Charter of the Girdlers, Glovers, Skinners, Pinners, Pointers, Scriveners and Parchment-makers provides: "The weekly allowance to brethren in poverty is 6d. at the least." Do. p. 57.

[84] Nathaniell Bacon's *Annalls of Ipswiche*, pp. 129, 235.

[85] Nathaniell Bacon's *Annalls of Ipswiche*, p. 237. There are thus indications at Ipswich, as at Southampton, of a connection between the guild customs and the action of the town with regard to the poor.

[86] *Ib.*, p. 246. Oct. 9, 1556.

[87] *Ib.*, p. 247.

[88] *Ib.*, p. 250.

[89] *Ib.*, p. 283.

[90] *Ib.*, p. 292. 10 Sept. 1571.

[91] Cooper's *Annals of Cambridge*, vol. II. pp. 62, 132.

[92] *Ib.*, p. 110.

[93] *Ib.*, p. 110.

[94] *Ib.*, p. 163.

[95] "City of York in the Sixteenth Century." Article by Miss Maud Sellars, *The Eng. Hist. Rev.*, April 1894.

At York, in the reign of Henry VIII., beggars had been badged, and in 1551 a fixed poor rate had been levied from the different wards. The system of allowing licensed beggars to beg was however continued in York for some time after 1569.

[96] *Hist. Man. Com.*, Rep. VIII. p. 427. Gloucester, 14 Eliz. c. 5.

[97] J. S. Brewer's *Reign of Hen. VIII.*, II. p. 261.

[98] *Letters and Papers of Hen. VIII.*, 13 March, 1528, IV. No. 4058.

[99] Do. No. 4276; 17 May, 1528.

[100] Do. No. 4239; 4 May, 1528.

[101] Hall, p. 745, quoted in *Reign of Hen. VIII.*, Brewer, II. p. 261.

[102] *Letters and Papers of Hen. VIII.*, Nos. 4043, 4058.

[103] The average prices of wheat were as follows:—

1520.		1521.		1522.		1523.		1524.		1525.		1526.		1527.		1528.		1529.	
s.	d.	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.
9	4½	7	8½	6	0¼	5	6	5	1½	5	5	6	2½	12	11	8	10¼	8	10

Thorold Rogers, *Hist. of Agric. and Prices*.

[104] The buying and selling of bread were under regulation, while law and custom required that the corn should be sold in the open market. As a rule it was supposed to be sold by the producer to the consumer, but certain licensed "dealers" or "badgers" were allowed to buy corn to sell again. A "forestaller" was one who bought corn or victuals while it was on the way to a port or market, and so did not give other buyers an equal chance; an "engrosser" was a dealer who bought up corn while it was growing, or purchased corn or victuals to sell again; and a "regrator" was one who bought corn or victuals and sold it again in the same market, or within four miles. 5 and 6 Edw. VI., c. 14.

[105] *Letters and Papers of Hen. VIII.*, IV., No. 3587. 18 Nov. 1527.

[106] Thus one of the Wiltshire reports gives details of this kind parish by parish for the hundred of Amysbury. Parish of Boscum, three persons have grain; population of parish, 80. In Alyngton two persons have grain; population 70.... In the parish of Fiddeldene seven households, consisting of 114 persons, have grain, while sixty persons were without. *Letters and Papers of Hen. VIII.*, No. 3665. 15 Dec. 1527. See vol. IV., App. 273.

[107] *Letters and Papers of Hen. VIII.*, vol. IV., No. 3625. Norfolk to Wolsey.

[108] *Letters and Papers of Hen. VIII.*, vol. IV., Nos. 3822, 3664.

[109] Do. Nos. 4173 and 4192.

[110] *Dom. State Papers*, Edw. VI., vol. X. 42, 43, vol. XI. 5 and 6.

[111] Stowe MSS. 152, f. 16.

[112] *Acts of the Privy Council*, Nicolas, vol. VII. p. 320.

[113] This letter is referred to in the June letter. *Journals*, XIX. f. 171 b.

[114] *Journals*, XIX. f. 171 b.

[115] 1 Edw. VI. c. 3.

[116] More's *Utopia*, Pitt Press ed. pp. 40, 41, 44. The suggestion to make vagabonds public servants is put into the mouth of Cardinal Moreton.

[117] 3 and 4 Edw. VI. c. 16.

[118] 5 and 6 Edw. VI. c. 2.

[119] At Lambeth there is a register book made in accordance with the provisions of this Act. It is entitled "A Register Booke of the Benivolence of the Parishioners for the Reliefe of the Pore made in A^o VI. Regis Edwardi VI^{ti}, etc." It states that it was "a register booke gevyne by master Ambroose Wylles, gentylman, unto the churche of Lambethe, wherein it is declared the benyvotence of the paryshoners of Lambethe aforsaid towards the releiffe of the poore inhabitors there ... particularlye every man's name and what his devosyon is to geve weklye towards the sustentacion of yher poore neyghbours according to the king's highness prosedyngs, &c."

Master Parson gave for half a year 10s., and my lady Bridgwater 6s. 8d. during the year. The book states that "On Sundaye October 30th there was nothing distrybuted because that Master Wylles did extend his charitye among the poore householders," and "on Sundaye the 6th day of Auguste master parsonne did give his cheritye to the poor people." Denne, *Addenda to the History of Lambeth*, p. 392.

[120] 2 and 3 Ph. and Mary, c. 5.

[121] 7 Edw. VI. c. 11, 1 Mary St. 2, c. 13, 1 Mary St. 3, c. 12 all continue 5 and 6 Edw. VI. c. 2. The 2 and 3 Ph. and Mary, c. 5, restates and re-enacts the substance of the chief provisions of this Edwardian statute, and was continued by 4 and 5 Ph. and Mary, c. 9.

[122] The interrogatories issued by the Bishop of Norwich in 1561, before his visitation of his diocese, are similar to other interrogatories of the time, and indicate the way in which the bishops discharged their functions with regard to the relief of the poor. The Bishop of Norwich enquired of the priests "whether they doo exhorte the people to remember the poore after the homelye when they reade the sentences exhorting the Almoſe." He enquired of the churchwardens "whether they know any man that refuseth to contribute to the Almes of the poore as a thing not rightlie appointed and discourageth other from such charitable Almes?"

There were also questions as to whether a strong chest had been provided for "the poore men's boxe," and whether it had been fastened in a fit place. Other enquiries concerned the dues of the poor, such as the payments that had formerly been made for lights out of movable property and the fines of those who did not go to church. "Injunctions of John, Bishop of Norwich," 2nd May, 1561.

The part taken by the bishops must have been of very considerable importance, even when they acted only on the ecclesiastical side, and it often happened that the bishops took a considerable share in the general organisation of relief. Bishop Ridley, as we have seen, took the leading part in the foundation of three out of the four royal hospitals of London. This action of the bishop was exercised on the lines laid down in the statutes, was recommended by the letter of the Privy Council to the rulers of London in 1569, and was used to develop the organisation of the towns. It serves to link every part of the new organisation with the old methods of relief, but became less and less important as more and more compulsion became necessary for the raising of the funds.

[123] It was evidently difficult to induce men to become collectors. The time of their election was often changed, and the fines for refusing to serve continuously increased. This amounted to 20s. in the 5 and 6 Edw. VI. c. 2, to 40s. in 2 and 3 Ph. and Mary, c. 5, and to £10 in 5 Eliz. c. 3.

[124] More's *Utopia*, p. 28. Pitt Press edition.

[125] *Hist. Man. Com.*, Rep. XIV., App. VIII. p. 139.

It was also ordered that "every spynster to have (if it may be) vi^{lb} of wolfe everye weeke, and to bringe the same home every Saterdaie at night, and if any faile so to doe, the clothier to advertise the cunstable thereof for the examynacion of the cause and to punyshe it according to the qualitee of the falte." Moreover no poor person was "to be suffered to kepe their childrene at home able to serve."

[126] *Dom. State Papers Queen Eliz.*, vol. 41, No. 76. See p. 69.

[127] D'Ewes' *Journals*, pp. 112, 132.

[128] D'Ewes' *Journals*, p. 165.

[129] I.e. keeper of a public-house.

[130] 14 Eliz. c. 5.

[131] D'Ewes' *Journals*, p. 220.

[132] This Act of 1572 was at certain times rigorously enforced. Thus at Middlesex Sessions held June, 17 Eliz. Thomas Maynerde, Oswald Thompson and John Barres were brought before the magistrates. On the 18 March in the same year they had been whipped and burnt through the ear at the Old Bailey; they were now accused of "being over 18 years old and fit for labour, but masterless and without any lawful means of livelihood." They pleaded guilty and were sentenced to be hung. Also on the 6 Feb. 18 Eliz. a woman was tried for vagrancy and committed for two years to a surety who was her husband, to be his servant. She was again found wandering, and in October of the same year was sentenced to be hung. In the ten weeks between 6 Oct. 32 Eliz. and 14 Dec. 33 Eliz. seventy-one persons were sentenced at Middlesex Sessions to be whipped and branded for vagrancy. Middlesex Sessions Roll, ed. T. C. Jeaffreson, pp. 94 and 191.

[133] 18 Eliz. c. 3.

[134] 27 Eliz. c. 11; 29 Eliz. c. 5; 31 Eliz. c. 10.

[135] 35 Eliz. c. 7.

[136] Exceptions were made in favour of cottages built within a mile of the sea or a navigable river, and of those built for the use of shepherds, forest rangers, workmen employed in mineral works, quarries or mines or impotent poor allowed by the justices.

[137] I.e. lodgers.

[138] 35 Eliz. c. 4.

[139] D'Ewes' *Journals*, p. 551.

[140] D'Ewes' *Journals*, p. 551. Sir Francis Bacon "had perused the Preambles of former statutes, and by them did see the inconvenience of this matter, being then scarce out of the shell, to be now full ripened."

[141] *Ib.* p. 552.

[142] *Ib.* p. 555. Friday, 11 Nov. 1597.

[143] A resolution on the 25 Feb. 31 Eliz. was also proposed by him to the effect that if any one should depart before the rising of the House of the Speaker he should pay sixpence "to the use

of the poor." D'Ewes' *Journals*, p. 439. He also introduced the statute of 1601. Townshend's *Historical Collections*.

[144] *Ib.* p. 559.

[145] *Ib.* pp. 559 *seq.* Nov. 22nd. Eleven Bills were referred to the committee, p. 561. Nov. 28th. Bill for erecting hospitals or abiding and working houses for the poor. Nov. 30th. The new Bill was introduced.

[146] *Ib.* p. 531.

[147] *Ib.* pp. 533, 534.

[148] D'Ewes' *Journals*, p. 537.

[149] *Ib.* p. 580.

[150] *Ib.* p. 582. Tuesday, 17th Jan. 1597-8.

[151] 39 Eliz. c. 4.

[152] *Ib.* c. 5.

[153] 39 Eliz. c. 6.

[154] *Ib.* c. 21.

[155] *Ib.* c. 17.

[156] *Cal. of State Papers*, Addenda, May 26, 1569. President and Council of the North to the Queen.

[157] *Ib.*, Dec. 28, 1572. Henry, Earl of Huntingdon, to Lord Burghley.

[158] *Dom. State Papers Queen, Elizabeth*, Vol. 86, No. 12.

[159] *Ib.*, Vol. 81, 42. Hundred of Dorchester.

[160] *Ib.*, Vol. 81, Nos. 14 and 44. Other reports from Northampton show that many rogues were found and severely punished, Vol. 81, Nos. 45 and 46, Vol. 86, 22. That from Bullington however is an exception, for there a watch was kept, but no vagrants were taken, Vol. 81, 16.

[161] Cirencester, Vol. 80, No. 42. The report for Thornbury and five other hundreds is for the searches made on Aug. 20th and Aug. 21st, 1571. The division contained six hundreds, and was nearly a quarter of the shire, Vol. 80, No. 33. Tewkesbury and Deerhurst, Vol. 80, No. 59. At Normancross in Huntingdon eleven vagrants were found on September 13th, of whom three were pedlars, one was a "tynker," and two "minstrells," Vol. 83, 36. III.

[162] In the hundreds of Cheveley, Staine, Staplowe and Flendish and in the Isle of Ely there were no vagrants found in the two watches kept on Aug. 20th and Sept. 12th, Vol. 83, No. 36.

[163] In the hundreds of Wetherley, Thrylow, Armyngford and Stowe. At Chesterton, Papworth and North Stowe, also in Cambridgeshire, eleven vagrants were found and punished on the three days August 20th, Sept. 12th, and Oct. 12th, 1571, Vol. 83, No. 36.

[164] Barking and Walthamstow, Vol. 80, No. 26. Brixton, Vol. 80, 44. V.

[165] See above.

[166] Vol. 80, No. 55.

[167] See p. 51.

[168] *Dom. State Papers, Queen Elizabeth*.

Norfolk and Suffolk, July 31st, 1572, Vol. 89, 1.

Norfolk.	Suffolk.
Wheat 18s.	Wheat 14s.

Rye 13s. 4d. Rye 12s.
Barley 7s. 4d. Malt 8s. 8d.

Western Counties, Vol. 88, No. 52.

	Dorset.	Somerset.	Devon.	Cornwall.
Best wheat	16s. a quarter	20s.	26s. 8d.	48s.
Seconds	13s. 4d. "	17s. 4d.	24s.	44s.
Rye	10s. "	16s.	21s. 4d.	32s.
Barley	6s. "	8s. 8d.	16s.	26s. 8d.
	Sent to Devon,			
Abundant—able to export.	but no more to spare.			

It is difficult to compare the prices in Devon and Cornwall with the rest of the counties because the size of the bushel varied in Cornwall and was often twice as great as that used elsewhere; in Devon also the Winchester measures were not always used.

[169] The commission is dated Oct. 21, 1573: it attributes the high prices to the greediness of corn-dealers who secretly export abroad, and it empowers commissioners to order farmers to bring to market such portions of grain as they prescribe, and to sell the same at reasonable prices. They were also to advertise the Council of their difficulties, to the intent the Council might assist them. *D. S. P.* Vol. 92, No. 41. The rough draft of the Commission is amended in Cecil's handwriting. *D. S. P.* Vol. 92, No. 40.

[170] On April 29th, 1586, these letters were sent to the maritime counties. On May 7th to eight of the home counties, and on May 22nd to seventeen other counties and to Wales. *Privy Council Register*, Vol. XIV. pp. 79, 98 and 119.

[171] *Ib.*, p. 91, 6th May, 1586.

[172] See below.

[173] *Privy Council Register*, Vol. XIV. p. 93, 6 May, 1586. The difficulty in the cloth trade was connected with the concessions granted to the Merchant Adventurers. Their privileges forced the English manufacturer to sell cloth to them only. When there was a slackness in trade these concessions were always questioned or annulled. In December, 1586, the Company say they will raise a stock and buy more cloths than they can at present sell so that the workfolk of Somerset and Wilts can be employed. If this fails they consent that the trade shall be thrown open. This was apparently afterwards done, but difficulties were still thrown in the way of the "Merchant strangers." *Privy Council Register*, p. 237, Sept. 1587. The Earl of Leicester wrote both to Walsingham and Burleigh on the subject. In his letter to Walsingham he says the towns of the West, Bristol and Hampton, are falling into decay, and there is an "exstraeme cry and compleynt of y^e poore for lack of work such as have bin sett on work heretofore by clothiers." The cause, the clothiers say, is because they "can not have reasonable price nor utterance for their cloth in London." He says that "sondry of the most hablest ... are worthie great favo^r and thanks for they to ther great loss kepe more now on than ever they did for the poor's sake." *Dom. State Papers, Queen Eliz.*, Vol. 200, Nos. 5 and 10.

[174] Lansdowne MSS., Nos. 48, 51.

[175] *Ib.*, Vol. 48, No. 52.

[176] *Ib.* See Appendix.

[177] The Council appear to have held a meeting on the last day of the year 1586 expressly to sign these orders. *Cal. of State Papers*, Dec. 31st, 1586.

[178] *Privy Council Register*, Vol. XIV. p. 277. On Jan. 2nd, 1586/7, letters were sent to the "Lordes Archbishops of Canterbury and Yorke signifyinge her Majesties care for the releefe of the poore in this tyme of derthe and scarsety for redresse wherof certen orders, by her specyall commandement, are devysed by theyr Lordships; for furtherance of which purpose theyr Lordships are prayed to geve order to the Bishops and Ordynaryes under theyr Dioces to

instruct the curates, ministers or preachers of the Word to exhort the (people is here struck out) of habylytye to extend charitye to the poore and them to beare this visytation of God with payence &c." Letters to the same effect were written to the Lord Presydent of the Northe and the Lo. Pres. of Wales, also "to all the sheeres of the Realme dyrected to the Shryves and Justyces of the Peace."

[179] Lansdowne MSS., Vol. 48, No. 54. Printed in the Appendix.

[180] Lincolnshire. The justices have divided themselves and sent a list of those allotted to the different divisions. *Dom. State Papers, Queen Elizabeth*, Vol. 189, No. 35. From Surrey the names of the justices allotted to the different markets are enclosed. *Ib.*, Vol. 189, No. 37. The names of the justices for the several divisions of Huntingdonshire are enclosed, with a report signed by the Bishop of Lincoln and a Henry and an Oliver Cromwell, &c.

[181] Berkshire. The justices attend the markets and "see the selling of each kind of graine there at such prices as shall seme most fittest." *D. S. P.*, Vol. 189, 49.

Warwickshire. The justices of Hemlingford have attended the markets "aswell to see the poore people provided necessarie corne as also to use o^r best endeavours to ease them in the prices therof as much as we could." *Ib.*, Vol. 198, No. 77. III.

[182] *D. S. P.*, Vol. 189, 50. The justices have licensed a certain number.

[183] Detailed reports were sent from Gyltcross, Shropham, South Greenhoe, Wayland and Grimshawe. Vol. 191, 12. See Appendix. Most of the replies sent in 1587 report the appointment of juries to search the barns for corn. *Dom. State Papers, Queen Eliz.*, Vol. 199, 43. I. II.; Vol. 200, 16. The justices responsible for the nine hundreds of Caistor Sessions say that in their division there were 13,536 "handicraftesmen and poore people that have no corn."

[184] Vol. 198, No. 42. Considerably over a hundred farmers are ordered to bring definite quantities of each kind of grain to particular markets, generally either that of Woodstock or that of Oxford.

Vol. 199, No. 43. The farmers of Buckinghamshire have been bound to bring their corn "by porcions weeklye to such marketts as we thinke most fittest."

In Lancaster order has been taken that those who have to sell "shall bring and sell the same in open markette or otherwise to their poore neighbours." Vol. 200, No. 54. IV. In the hundreds of Caistor Sessions also the poor people might buy away from the markets and the farmers might deduct any grain sold to them from the quantity they were to bring to market. Vol. 198, No. 21.

[185] The justices of Gloucestershire say that in their several allotments they have "visited the marketts, seen the poore relieved as we may, searched the barnes, storehouses and grenyers of farmers and others hable to furnishe the marketts with corne, and having consideration to theyr private families have in discretion appointed them a certeyne quantytie of certen kindes of graine to be by them brought weekelie to the markett accordinglie, and of such our appointments have kepte books in writinge and doe finde therapon, that as yet the said farmers and others doe fullfill our appointments in this behalfe without any disobedyence. And further according to the said your lettres we have sett downe several prices upon everie kinde of graine within the severall divisions of this Shire, as in respecte of the distaunce of the places and the present tyme of necessytie we have thought most convenyent, after which rate we will hereafter in our several limitts have care to see the same solde as may be beste for the relief of our poore neighbours." *Dom. State Papers, Queen Eliz.*, Vol. 189, 50.

[186] A letter was written from the Council to the justices of Notts stating that the greate quantitie of corne of one Freston "should be employed for relieving the necessitie of the shire." If he refuse to follow their directions they are to take the corn and cause a "quantitie to be solde at reasonable prices in the markettes adjoyning for the reliefe of the poore people."

[187] Egerton MSS. 2644, f. 55.

[188] Vol. 191, No. 12. See Appendix. In Bedfordshire the justices for the hundreds of Manshed, Flett and Redbornestoke state that "the farmers do sell to the poore labourers barley for xx^d y^e bushell and ii^s the most," and that have so "promysed to do untill August next." The

ordinary price of barley as reported in the same document was 2s. 8d. the bushel. Vol. 200, No. 10. I.

[189] Vol. 190, 14.

[190] Vol. 198, 74.

[191] The appointment of overseers or collectors for the poor was first ordered by the statute of 1572. In Hemlingford they seem to have been two distinct offices.

[192] Vol. 198, No. 77. IV.

[193] In the orders themselves the justices are ordered to "use all other good meanes that ar not menconed in these orders that the marketts be well served and the pore releeyved ... duringe this time of dearth." The letters sent with them stated that the orders were devised because of "Her Majestie's care for the releefe of the poore in this tyme of derthe." See note above. Many reports show that the orders were intended to help the poor. One from Kington, Warwickshire, is signed by the Sir Thomas Lucy of Shakespearian fame and by Richard Verney. The report is said to be sent "in the execution of the orders sett downe by the lords of her mat^s moste honorable privie counsell for the desposinge of corne and graine in reliefe of the poore and furnishinge the marketts." *Ib.*, Vol. 198, 77. I. See also Beds. justices report orders taken "for the staie of the dearthe of graine and the reliefe of the poore therof." *D. S. P.* Vol. 200, No. 10.

In Buckinghamshire overseers were appointed "to see in our absence all things duly performed as well for the reliefe of the poorer sort as otherwise." Vol. 199, I. II. IV. V., &c.

[194] See Chapter VII.

[195] In Devonshire the justices say there is not so much corn as they could wish, but they think there will be "no greate inconvenience or disorder." Vol. 189, 51. In Bedfordshire the report states no "manner of person poore or riche founde anye falte for wante," nor did they "move or attempte anye manner of disorder or strive for the same or for any other cause, but were and remayne in verie good and dutyfull obedience, god be thanked." Vol. 191, 6.

[196] See Chapter IV.

[197] *Journals*, Vol. XX. 1 f. 42, March 14, 1572/3.

[198] *Journals*, 14 May, 1579, XX. No. 2, f. 483. "This daye the residue of the Booke devised for the settinge of the poore on worke in Bridewell was redd to the Comon Counsell." ... It was agreed "that it shabe, as it is preferred to the consideracon of the lordes of your mat^{ys} pryvie Counsell by the whole concent of this Court of Comon Counsell and that Sir Rowlande Haywarde, Sir James Hawes, Mr Alderman Woodcross, etc. shall travell in preferringe the same booke to the lordes of the Counsell." 17 Nov. 1594, *Remembrancia*, II. 74.

[199] *Journals*, 21 f. 329 b, 28 Dec. 1583.

[200] *Remembrancia*, I. 495, 496, 514; II. 17.

[201] *Ib.*, II. 75.

[202] *Ib.*, II. 59.

[203] *Cal. of State Papers*, March 17, 1590.

[204] *Quarter Sessions under Queen Eliz.*, A. Hamilton, p. 19.

[205] The Privy Council write that they "are given to understand that divers of the inhabitants of the Town of Cambridge seeking their own private gain with the public hurt and incommody of the whole University and Town have heretofore accustomed to build and erect houses upon sundry spare grounds in and about the said Town; but of late and at this present especially they do not only increase and continue the same but do more usually divide one house into many small tenements and those for the most part do let and hire out to the meanest and poorest persons, which tenements ... are a means ... as we are informed whereby the University and Town are overburthened in yearly allowance towards the maintenance of the

poor." The Mayor and Vice-chancellor therefore with the assistance of the "best and discretest persons and officers of the University and Town" are to cause inquiry to be made as to how many tenements there are and as to how many people inhabit them, and are also to find out if the tenements had been built or divided within ten years. They were then to take measures to alter as many tenements and to remove as many of the inmates as they should deem expedient. The letter is dated June 8th, 1584, and is signed by Burghley, Walsingham, and several other members of the Privy Council. Cooper, *Annals of Cambridge*, Vol. II. p. 398.

[206] *Cal. of State Papers*, Vol. 133, No. 56.

[207] *Journals of the Common Council of London*, Vol. XX. No. 1, f. 15b.

[208] *Journals of the Common Council of London*, Vol. XX. No. 1, f. 24.

[209] *Ib.* f. 25.

[210] *Ib.* f. 32 b.

[211] *Journals*, f. 42.

[212] *Ib.* Vol. XX., No. 1, f. 119.

[213] *Ib.* f. 122 b, 8th April, 1574.

[214] There is a statement of the accounts of St John's, Walbrook, between Sept. 10th, 1572 and Sept. 11th, 1573. From this we learn that the collectors received £16. 17s. 5d., and that £1. 6s. 8d. was lacking of the assessed sum. £5. 3s. 4d. had been paid to the poor of the parish, £9. 15s. 9d. to the Treasurer of Christ's Hospital, while the collectors owed the remaining 18s. 4d. *Cal. of State Papers*, Addenda, Sept. 11th, 1573. So far as this parish is concerned therefore the amount paid to the central authorities was much greater than that distributed in local pensions.

[215] *Journals*, Vol. XX., No. 2, f. 323.

[216] *Ib.* f. 498, 499 b, Aug. 4th, 1579. These orders have been printed, and are often dated 1587. But they were first established in 1579 under the title of "Orders appointed to be executed in the Cittie of London for setting roges and idle persons to worke and for releefe of the poor."

[217] Orders 3 to 8, printed edition.

[218] Order 52. "Also a note shall be kept in Bridewell of places and persons where and of whome worke may be had, that poore in parishes sent thether to require worke may be the better releved."

[219] Orders 57 and 59.

[220] Order 61 in the printed edition of the Orders, a copy of which is in the Guildhall Library. *Journals*, XX. 2 f. 502.

[221] *Remembrancia*, II. 74.

[222] *Remembrancia*, II. 76.

[223] J. Kirkpatrick, *History of Religious Orders, &c. of Norwich*, p. 219. The accounts of the Bridewell begins in 1565. In 1598 the House of Correction was removed to St Andrew's.

[224] The following account of the transactions at this time concerning the poor of Norwich is derived from two large folio volumes. They are in manuscript and are bound in leather. One is entitled "The Maiores Booke for the Poore." Inside the cover is written "This booke made in the feaste of St John the Baptiste 1576. In the xviiith yere of the rayne of our soveraigne Ladie Elizabeth by the grace of god quene of Enland, France and Irelande defender of the faith and dothe containe certaine orders made for the poore of the Citie of Norwiche as allso the names of everie of them, the saide poore regestrede in everie warde vewede. Beginnyng the xxth day of June 1571 according to a statut made. And allso what searcementes ware made for the wekely contribution unto suche as had neede of whome the same sholde be recevede, and

lykewise to whome the same sholde be payede. With the names of the Deaconnes and collectors, tharefore appoyntede, in everie warde to receive and make distribution thereof, according to the same orders, and accordinge to the commandemente of Mr Maior and the Justices from tyme to tyme." This book is continued down to the year 1579. The second book contains the proceedings from 1571 to 1580. Both volumes often contain the same entries in almost the same words; the census is given only in the first volume, the orders are fully quoted only in the second. The contents of the "wrighting" to the Archbishop of Canterbury are given in different versions in both books. Besides this there is a little book containing in rougher notes the list of poor who are to depart the City, to receive money or to be placed with the "select women." Lastly there is a loose paper containing the accounts of the different collectors, with the aldermen of the wards.

[225] Thus in Middle Wymer the classification was as follows:—

	Indifferent	Able to work	Not able to work
Men	20	50	14
Women	32	89	13
Children	58	52	69

In other districts a few were ordered to depart and one or two were described as disreputable.

[226] Thus Richard Smith has one sonne "that goe to scole at times." See Appendix.

[227] Thus the following is a fairly typical entry concerning a man belonging to the parish of St John's on the Hill in the ward of "Bearestrete":

In Nichols fleman's house iii ^d a weke indiff.	Roger Mason of the age of 56 yeres tailor that worketh, and Elizabeth, his wyfe, of the age of 38 yeres that spins warpe and one daughter of the age of 6 yeres that is idle; he hath dwelt here 32 yeres.
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See also Appendix where the part of the census relating to St Peter's of Southgate is printed.

[228] The following are the first four names in the list for St John Sepulchre:

	p^d before	pay now
Mr Haydon gent.	vid.	viiid.
Mr Smyth	0d.	iiiid.
Richard Blofield	iii	vid.
Robert Spingold	iid.	iid. etc.

[229] Thus for example an order is made that "Elizabeth Browne of the age of 18 years to be enquered for at John Croland, a duch man in St Michael of Bearstreet, whether she be hired by the yere or elles to go to service."

[230] See Appendix for the orders for the "balie of Bridewell."

[231] See Appendix for the orders for children and others.

[232] See Appendix for the orders for deacons.

[233] A paper among the Norwich records contains the sums paid to the aldermen and the amount given by them to the deacons of the different parishes. Other accounts in the "Maiores booke" show the sums given by the deacons and by the commissioners for the medical treatment of the poor. Thus in 1571-2 a deacon paid iiiid. to "Glavin's wife to heal Tom Parker's leg," while Mr Thomas Beament paid 6/8d. to "Mother Colls for healinge a broken legg of Margarete Paine, a pore wydow in the Normans."

[234] *The Maiores Booke for the Poore*. See note 1, p. 102.

[235] *Journals*, Vol. XVI. f. 127.

[236] *Ib.* Vol. XVII. f. 42 b

[237] Nathaniel Bacon's *Annals of Ipswich*, p. 249.

[238] *Ib.* p. 319.

[239] C. H. Cooper, *Annals of Cambridge*, Vol. II. p. 398. See note p. 93.

[240] A. E. Gibbs, *The Corporation Records of St Albans*, Oct. 1st, 1596, p. 14.

[241] *Ib.* Ap. 15th, 1588, p. 24. Orders for sending poor people away in order that they might not become chargeable were made on many other occasions. *Ib.* pp. 12, 26 and 45.

[242] *Ib.* Feb. 5th, 1587/8, p. 24. See also p. 37, Oct. 19th, 1590. Gabriel Hill, a new comer, was brought before the Mayor to give sureties that he and his wife and children should not become chargeable to the borough. Sept. 1st, 1593. Nich. Cobell had to give sureties, bring a testimonial from his former parish, pay 4d. quarterly towards the parson's stipend and a certain sum weekly to the poor.

[243] *Hist. Man. Com. Rep.* IX. App. 1, p. 286. The will was made in 1579, and six years later an agreement was made with the widow under which the Mayor agreed to purchase hemp as directed. *Hist. of Rochester* (S. Denne), p. 220.

[244] W. Somner, *Antiquities of Canterbury*, p. 273.

[245] P. Morant, *Essex*, Vol. I. p. 164.

[246] A. Gibbs, *Corporation Records of S. Albans*, p. 28, June 10th, 1588. The spinning of fine worsted and certain light yarns was introduced into England about this time, and was taught mainly by the foreign refugees from France or Holland.

[247] *Corporation Records of S. Albans*, Sept. 2nd, 1588. The next year it was agreed that the children should be paid for their labour when they had been taught six weeks. *Ib.* Jan. 20th, 1588/9.

[248] *Ib.* Feb. 17th, 1588/9.

[249] *Ib.* Sept. 29th, 1588.

[250] "City of York in the Sixteenth Century," Miss Maud Sellars. *The English Historical Review*, April 1894, pp. 288, 289.

[251] *Lincoln Hist. Man. Com. Report*, XIV. App. viii.

p. 74. On July 31, 1591, "A committee appointed to confer with Mr Grene of Boston who has offered to set 400 poor people of Lincoln on work for five years at wool, if the city will find him a convenient house and lend him 300*l.* freely for the five years."

p. 17. Among the manuscripts described is a "fragment consisting of eight small quarto leaves of a book of orders made in 1591 and 1592 respecting a knitting school established by the city." This contains the following information:

8th Oct. 1591. Cheeseman undertakes under certain conditions to teach a competent number of women and men how to knit and "to hide nothing from them that belongeth to the knowledge of the said science." Four aldermen were appointed overseers.

28 July, 1592. Forty stone of wool to be provided.

4 Aug. 1592. Articles of agreement made at the Knitters House in St Saviourgate between John Cheeseman and Francis Newby.

In this agreement Francis Newby and his wife Jane undertook to attend regularly at Cheeseman's house to learn his trade of knitting, spinning, dressing of wool and keeping his mill. Newby and his wife were to have the oversight and teaching of thirty scholars. They were to be paid 40s., twopence for every pair of stockings knitted by a scholar and the full price of their own work. They were also to have such profit as might arise from "amending and footing all stockings" brought unto them.

On the same day it was agreed by the Corporation that the Knitter should be paid 16s. 8d. for ten wheels which he had provided and the overseers arranged to visit the school in turn.

This Lincoln school very closely resembles the experiment tried at St Albans. It shows the corporation attempting to provide employment and technical education at the same time for the children of the town.

[252] For Leicester see *Growth of English History and Commerce*, W. Cunningham, Vol. II., p. 60 note.

[253] Alexander H. A. Hamilton, *Quarter Sessions from Queen Elizabeth to Queen Anne*, p. 16. At Windsor also the following resolution was adopted: "All the brethren of the hall and all other inhabitants shall be assessed according to their ability by the subsidie after the rate of 12d. in the pound towards levying of a stock to set the poore on work." Mr Gwyn and Mr Harris were appointed Governors of the poore for the first year. *Annals of Windsor*. I. 637. Tighe and Davis quoting Ash. Mans. No. 1126.

[254] Coates' *Reading*, pp. 307-8.

[255] Morant's *Essex*, p. 182. For King's Lynn see Chapter XI.

[256] Bacon's *Annals of Ipswich*, 25 Oct., 1594, and 8 Dec., 1597.

[257] Regulations of a House of Correction at Bury, 1589. Printed, Eden, *The State of the Poor*, Vol. III., Appendix vii.

[258] *Records of the Borough of Reading*, Vol. I. p. 403.

[259] "The City of York in the Sixteenth Century," *The English Historical Review*, April 1894, p. 288.

[260] Freeman's *Exeter*, p. 177. Seyer's *Bristol*, Vol. II. p. 248. "This year 1577 was a collection for the erecting of a Bridewell at the old house called Mombridge, where much cost in building and repairing was done and one called Meg Lowrey was the first ill person there corrected." Winchester *Cal. of State Papers*, April 24th and April 29th, 1582. Gloucester Rudder's *Gloucestershire*, p. 190.

[261] *Dom. State Papers, Queen Eliz.*, Vol. 189, 50. The report goes on to say that the clothiers will have to give up their trade, because since they might only sell to English merchants they could not get a good price. They say they were working at a loss of 6s. 8d. a cloth. See p. 86 *supra* for the Earl of Leicester's letter to the same effect.

[262] Bacon's *Annals of Ipswich*, 1st April, 1591.

[263] Thus a fifteenth at Reading raised "xxiiii. li. xiiid. ob. ut patet per recordum in Scaccario domini Regis inde factum et per veterem compotum per collectores inde similiter factum." *Records of Reading*, I. 87, 1489.

[264] See p. 30. See Cannan, *The History of Local Rates*, p. 20.

[265] Bacon, *Annals of Ipswich*, 8th Oct. 1585, p. 344.

[266] Regulations of a House of Correction at Bury, Suffolk. Eden, Vol. III. Appendix vii.

[267] Bacon's *Annals of Ipswich*, 19 Sept. 1571, p. 292, and 1575, p. 307.

[268] *Ib.* 16 July, 1571. A burgess who neglected to attend the Great Court was fined fourpence "to the use of the poore." *Ib.* 5th Mar. 1568, p. 279.

[269] A. Gibbs, *Corporation Records of St Albans*, p. 46.

[270] At St Albans in 1587 two men were reported for carrying on their trade as fullers without being freemen. It was resolved that one of them should have his freedom if he would bring up one of the children of a widow Floyd until it could get its own living. *Corporation Records*, p. 27. At Ipswich Peter Ray, a tailor, was made a burgess provided he took an apprentice from the hospital. Nathaniel Bacon's *Annals of Ipswich*, 22nd July, 1575, p. 306. In Ipswich also a "fforainer" having a town child as his apprentice was allowed to trade with his linen cloth in the town on market-day so long as the apprentice remained with him. *Ib.* 24th April, 1599, p. 398.

[271] Orders given to the "Overseers of everie parish" in 1576, 1577, 1578, entered in the "Maiores Booke for the Poore."

[272] Bacon's *Annals of Ipswich*, 4 Dec., 1579.

[273] The gentlemen responsible for the sums belonging to the other parishes were not present, but it was resolved that these funds also should be lent on good security and the interest only used for distribution "so that the stocke may still remayne to the like reliefe of the poore hereafter." *Dom. S. P. Qu. Eliz.* Vol. 173, No. 62.

[274] The prices given in the *History of Agriculture and Prices* are as follows:

	Wheat.	Barley.	Rye.	
Average price per quarter of 10 years 1583-1592	23s. 8½d.	12s. 10½d.	17s. 2½d.	
Sept. to Sept. 1594-5	37s. 7½d.	16s.	32s.	Prices are not given in 1590 and 1591
" " 1595-6	40s. 9½d.	21s. 4d.	34s. 2½d.	
" " 1596-7	56s. 6¼d.	52s. 9½d.		
" " 1597-8	52s. 4½d.	25s. 5¼d.	36s.	

In July 1597 the price reached 96s. a quarter at Newcastle. Hatfield MSS. VII. p. 296.

[275] Egerton MSS. 2644. Copy of a set of orders sent by Henry Mildmay to the justices of a division of Essex. It is signed by Burghley and other Lords of the Privy Council, and states that the orders issued in Jan. of the 29th year of the Queen's reign were now renewed and that these justices were to meet and put them in execution.

[276] "Par sa devise demesne." *Les Reportes del Cases in Camera Stellata*, 1593-1609, John Hawarde, edited by W. P. Baildon, F.S.A., p. 19. Hawarde was a barrister of the Middle Temple: he wrote his volumes from rough notes taken in Court, but does not seem to have verified his references. *Ib.* Introd. p. vii.

[277] The Lord Treasurer and Lord Keeper.

[278] *Les Reportes (l.c.)* p. 21. June 3rd, 1595. On July 1st, 1596, the justices were again addressed and ordered to return home "in regarde of eminent daungers." *Ib.* p. 56.

[279] A. Hamilton, *Quarter Sessions from Queen Elizabeth to Queen Anne*, p. 17.

[280] Hamilton, *Quarter Sessions*, p. 16.

[281] Add. MSS. Brit. Mus. No. 32092, f. 145. See Appendix.

[282] In May 1596 the price of wheat at Barnstaple was 11s., rye and barley 8s., oats 2s. 4d. "whereupon upon letters sent to the Earl of Bath" presumably from the Council, he set the prices mentioned in the text. *Barnstaple Records North Devon Herald*, June 3rd, 1880, quoting from Wyot's Diary. Wyot's Diary is described as a small quarto book of 52 leaves purporting to contain extracts from an older manuscript. It was copied by William Palmer in the seventeenth century, from the diary of Philip Wyot, who was Town Clerk between 1586 to 1608. *Ib.* April 22nd, 1880.

[283] 1596. "Not a dry day in November." 1597. "April 8th wheat sold for 18s. a bushel, barley 13s., rye 14s., oats 4s. Now in July by reason of continual rain wheat sold last Friday for 20s. a bushel." The beginning of harvest brought relief and wheat fell to 3s. 4d., rye 2s. 7d., and barley 2s. 4d. This fall to one-sixth of the former values makes us realise how violent were the fluctuations in price. A like sudden alteration took place at Bristol in 1587. On Aug. 12th, 1587, wheat was sold at 5s. a bushel, but on the 19th of the same month it fell to 22d. Seyer's *Memoirs of Bristol*, Vol. II. p. 253.

[284] *The Life of John Whitgift*, John Strype. Appendix, Bk. IV. No. xxx. 27th Dec. 1596. The Minister was to stir up the people "to abstinence, fasting and true humiliation; to forbear all excess; to relieve the poor and needy by good house-keeping, by setting them on work and by other deeds of alms and brotherly compassion. And considering the most princely and gracious care her Majesty hath for their relief, and that all good means should be used for the succour and help of them in these times of dearth, the people must be taught to endure this scarcity with patience; and especially to beware, how they give ear to any persuasions or practices of discontented and idle brains, to move them to repine or swerve from the humble duties of good subjects." The double purpose of helping the poor and maintaining order may be observed in this letter of the archbishop as well as in the direct orders of the Privy Council.

[285] Seyer's *Memoirs of Bristol*, Vol. II., pp. 254 and 255, quoting from Adams and Ricart's *Chronicle*.

[286] *Remembrancia*, II. 31. Apparently other ships were sent in 1595. *Ib.* II. 95; II. 59.

[287] Owen and Blakeway, *History of Shrewsbury*, Vol. I. p. 400. Wheat in Shrewsbury in May 1597 was 18s., rye 15s., beans 13s., while in Sept. 1598 rye was 3s. 4d. and wheat 4s. 4d.

[288] *Cal. of State Papers*, May 31st, 1597. The Ipswich officials were careful to provide for their needy neighbours. Every year from 1594 to 1597 loans were raised to buy corn, and it is always stated that this corn was bought for the poor. In 1594 a loan of £200 was so raised, and the town consented to bear any loss: the next year £600 was thought necessary and three hundred quarters of rye were purchased. On the 15th Oct. 1596, it was ordered that "100 quarters of rye and 150 quarters of barley shall be bought for provision for the poor and so much money as the same shall be valued at shall be lent by the inhabitants of the town." Again, in 1597 three hundred combs were provided at 4s. 6d. a bushel, and the charges for keeping it and lading it were borne by the town. Nathaniel Bacon's *Annals of Ipswich*, 25 Oct. 1594, 13 Oct. 1595, and 21 Feb. 1597.

[289] M. A. Richardson's *Tracts*, Vol. III. p. 44. See also Dec. 1596, "Paid for the charge of burying 7 poore folke which died in the streete, for winding theme, grave making and carrying to the church 7s. 4d."

[290] *Cal. of State Papers*, Jan. 1597, p. 347.

[291] *Les Reportes del Cases in Camera Stellata*, John Hawarde, ed. W. P. Baildon, F.S.A., pp. 76 and 78. Among others Edward Framingham, then High Constable of Norfolk, was brought before the Court "for converting thirteen houses into cottages and tenements and reserving the land for his own occupation and for ingrossing corn and buying and selling the same out of market." He was sentenced to imprisonment, a fine of £500, confession of his fault in Cheapside and Norfolk, to pay £40 to the poor people, and to restore the houses with the land to husbandry again. *Ib.* p. 76.

[292] *Ib.* p. 104.

[293] *Cal. of State Papers*, June 1597, p. 433.

[294] *Calendar of State Papers*, Dec. 14, 1596, p. 316.

[295] *Dom. State Papers Queen Eliz.*, Vol. 262, No. 151.

[296] Strype's *Annals*, Vol. IV., p. 404 seq. Letter to Burghley from Edw. Hext dated 25th Sept. 1596.

[297] "Provision for the poore now in penurie." Explained by H. A. Printed by Thomas Creede 1597. A copy is in the British Museum.

[298] Rudder's *Gloucestershire*, pp. 186, 202. Queen Elizabeth granted the patronage of St Mary Magdalen also to the City on Dec. 4th, 41 Qu. Eliz. p. 187.

[299] *Calendar of the Records of the Corporation of Gloucester*.

No. 1335. 1569-70. Governor's account. Almoners and Governors exist as early as 1558-9. No. 1327.

No. 1336. 1570-71. Almoner's account.

No. 1337. 1570-71. Treasurer's account.

No. 1339. 1570-71. Almoner's account.

No. 1340. 1573-74. Scrutinear's account, etc.

The Masters' accounts of St Margaret's are also preserved for the years 1556, 1560-1, 1561-2. *Ib.* p. 459.

[300] *Calendar of the Records of the Corporation of Gloucester.* Accounts of the Collectors for the poor.

No. 1349.	1572-3.	Parish of	St Nicholas, St Mary de Lode and St Mary de Crypt.
1350.	1575-6.	Parish of	Holy Trinity.
1352.	"	"	Graslane.
1352.	"	"	St Michael.
1353.	"	"	St Katherine.
1355.	1576.	"	St Ewen, etc.

The only account of this kind before 1572 is an undated account of the reign of Queen Elizabeth in a time of plague.

[301] The effect of the years of scarcity in stimulating the vigour of the justices is illustrated by a set of orders agreed upon by the justices of the peace of Cornwall in April 1597. A copy was sent by Sir Francis Godolphin to Sir Robert Cecil.

The orders first provide for a survey of all the poor which was to distinguish between those who could earn part of their subsistence and those who were altogether incapable and also for a list of the householders who could contribute to their relief. The constables and chief governors of the parish were to state whether they would themselves undertake the relief of the parish or whether the justices should levy a weekly rate for the purpose. After arrangements for supporting the poor had thus been made beggars were to be severely punished, fines for absence from church were to be rigorously exacted and the fast of two meals weekly was to be carefully observed. The orders further command an arrangement like that known as the "roundsman" system for the unemployed: "Such poor as cannot provide work for themselves are to present themselves in a convenient place in the church on the Sabbath day a little before the ending of morning and evening prayer and as soon as prayer is ended order shall be taken to send them abroad among such householders as shall maintain them meat, work and such wages as they can deserve for the week following" (*Hatfield MSS.* VII. p. 161). These measures were taken before the statute of 1597 was passed, and, in accordance with the statute of 1572, the justices and not the overseers were to make the rate. They show an improvement in Cornish poor relief, not dependent on the statute of 1597 but like the statute itself brought into existence by the distress of the years of scarcity.

[302] Other differences between the two Acts were as follows:

1597-8.

- (1) Four Overseers were to be nominated yearly in Easter week.
- (2) Every inhabitant or occupier of lands in the parish was to be assessed.
- (3) People refusing to work were to be sent to the House of Correction.
- (4) A girl might be apprenticed until 21.
- (5) In 1597-8 the Mayors or Head Officers of Corporate Towns being justices of the peace had the same authority within their towns as justices of the peace in the country.
- (6) If a parish be in two counties or partly in a county and partly in a borough the justices or head officers of the towns were to "deal and intermeddle" only within their own "Liberty."

1601.

- (1) Four, three or two Overseers were to be nominated according to the size of the parish in Easter week or within a month after Easter.

- (2) In 1601, the liability of the parish, vicar, owner of tithes impropriate and of saleable underwoods and of the occupiers of houses is specially mentioned.
- (3) In 1601 they might be sent to the House of Correction or gaol, probably because there was not yet everywhere a House of Correction.
- (4) If she married she was released at the time of her marriage.
- (5) In 1601, these powers were extended and the Town officials had not only the same authority as the justices out of their sessions and at their sessions, but the same power as was appointed "to any two or more of them or to the justices of the peace in their Quarter Sessions." Every Alderman of the City of London in his Ward had the same power as one or two justices in the county.
- (6) If the parish were in two counties or partly in a county and partly in a borough there were only the one set of Overseers, but the justices or Mayors &c. were to be responsible for the execution of the Act only within the part of the parish in their own counties or borough and the Overseers were to account to both.
- (7) In 1601 the penalty on justices for neglecting to nominate Overseers was fixed at £5.
- (8) A special order was made that the island of Foulness should be treated as a parish.
- (9) It was also provided that if an action for trespass should be brought against anyone acting in accordance with the provisions of the statute, it should be lawful for him to plead "Not Guilty" or to plead the authority of the Act. He was to be entitled to treble damages "by reason of his wrongfull vexacon."

Between the passing of these two Acts a series of resolutions was circulated which related to the statute of 1597. These were attributed to the judges and if they correctly stated the law several of the new clauses of 1601 were already legally binding. Thus four of the resolutions were as follows:

Res. 16. By this word parents is understood a father or a grandfather, mother or grandmother, being persons able.

Res. 17. Within the word children is included any childe, or grandchilde, being able.

Res. 18. Parsons or Vicars &c. bee bound (as inhabitants) to the relief of the poore as wel as others that inhabite within the parish.

Res. 19. Everie one that hath Tithes impropriate, coale mines or lands in manuel occupation &c. is chargeable. And so for such as haue saleable woods proportioning the same to an annual benefite.

W. Lambard, *Eirenarcha*, ed. 1599 after p. 206. See E. Cannan, *Hist. of Local Rates*, p. 75.

[303] 4 and 5 Will. IV. c. 76 (1834).

[304] 43 Eliz. c. 3. It is interesting to notice that this provision for maimed soldiers was due to Sir Robert Cecil, Hatfield MSS. VII. p. 160.

[305] Bequests for some of the more unusual of these purposes occur among the charities of Ipswich.

Thus in (1513) Jan. 14, the following entry is made: "Edm. Danby at this Court declared that he had given to the Town lands and tenem^{ts} in vallew 6^{li} p annu' to the end that they should discharge the poore commonalty of the Towne of all dismes, quinzimes and charges w^{ch} shall happen: the lands doe lye in Rushmere." Bacon's *Annals of Ipswich*, p. 186.

Mr Henry Tooley, Portman of Ipswich, in a will dated Nov. 4, 1550 bequeathed:

£100 to the repairing of Bone Bridge.

£20 to the amending of the Haven.

£100 towards repairing and amending certain highways.

20s. to every maid who is fatherless and poor and shall marry within Ipswich until £60 should be spent.

An Indenture of 1513 recites that a Mr Drayle left £70 in order to release natives and foreigners from certain tolls &c. Ipswich, *Gifts and Legacies*, pp. 1 and 168.

[306] 1 James I. c. 31.

[307] 7 James I. c. 4.

[308] The following are other statutes concerning the relief of the poor and passed during the period 1597 to 1644:

1 James I. c. 7. Removes the exemption of glassmen from the statute of rogues. States that no licence by a nobleman shall exempt players and provides for the branding and in certain cases for the death of dangerous rogues.

1 James I. c. 25. Continues 43 Eliz. c. 2 and provides that masters may retain the pauper apprentices whom the Overseers have bound to them.

7 James I. c. 3. Enacts various provisions with the object of securing that funds which had been left to bind poor children apprentices shall be properly employed.

21 James I. c. 1. States that the licence to erect "abiding or working houses for the poor" is to continue for ever.

21 James I. c. 28. Continues 43 Eliz. c. 3, with addition of 1 Jac. I. c. 25. Also continues 1 James I. c. 7, and 7 James I. c. 4, repeals 11 Hen. VII. c. 2, and 19 Hen. VII. c. 19, 12 Ric. II. cc. 3-9, and also 22 Hen. VIII. c. 12 and 3 and 4 Edw. VI. c. 16.

3 Chas. I. c. 5. Continues 43 Eliz. c. 2, and empowers Overseers to set up any trade they will, provided it is only for the purpose of employing the poor, notwithstanding any statute to the contrary. This last enactment was probably

designed to protect the Overseers from penalties for violating the statute of apprenticeship.

Another series of statutes assigns the fines for their infraction to the relief of the poor. Some of these are as follows:

- | | |
|--------------------|--|
| 1 Jac. I. c. 27, 7 | |
| Jac. I. c. 11, 21 | most of the fines for the infraction of the game laws. |
| Jac. I. c. 28, | |
| 1 Jac. I. c. 9. | Fines of alehouse keepers for allowing people to sit
tippling in their alehouses or for selling for a penny less
than one quart of best beer or two quarts of small. |
| 4 Jac. I. c. 5. | Fine of 5s. for drunkenness or 3s. 4d. for sitting drinking |
| 21 Jac. I. c. 7. | in an alehouse in one's own parish. |
| 3 Jac. I. c. 4. | Fine of one shilling for absence from church. |
| 21 Jac. I. c. 18. | Fines for breaking certain regulations for making cloth. |
| 21 Jac. I. c. 20. | Fine for profane swearing, one shilling. |
| 1 Car. I. c. 1. | Fine for meeting for games outside one's own parish on
Sunday or in one's own parish for unlawful games. |
| 3 Car. I. c. 2. | Fine of 20s. for carriers driving on Sunday.
Fine of 6s. 8d. for butchers killing meat on Sunday. |

[309] Lysons' *Cheshire*, p. 523 seq.

[310] Michael Dalton, "The Countrey Justice," ed. 1635, p. 100.

[311] *Ibid.*, p. 93. Dalton is here quoting almost exactly the words of the statutes 39 Eliz. c. 3, 43 Eliz. c. 2.

[312] Resolutions of the judges, No. 10, Lambard's *Eirenarcha* (1599) after p. 206. Dalton, p. 99. It is interesting to notice that a case concerning the present law on this point has been recently before the Courts. The Guardians of the poor in Merthyr Tydfil established labour yards and relief works for the purpose of affording outdoor relief to able-bodied persons during a strike. An action was brought by, and on behalf of, the ratepayers of the district against the Guardians asking for a declaration that the establishment of relief works for the purpose of providing outdoor relief for able-bodied persons during a strike was a breach of the Guardians' statutory rights and duties, and also asking for an injunction to restrain the defendants from paying for these relief works out of the common fund when there was plenty of work to be had if the men would agree to accept the wages offered.

It was held by Lord Justice Romer that in any case of urgent necessity an able-bodied man or his family ought to have such relief from the Guardians as might be immediately required, even if the necessity had arisen from the man wilfully refusing to work. But when the urgent pressure was relieved, the Guardians ought to require the man to work, and if he were able to get work and still refused they ought to prosecute him under the Vagrancy Acts. It was also decided that though the Court had

jurisdiction in an action at the instance of the ratepayers to restrain Guardians from applying the poor rates for unauthorised purposes, still such an action should not be instituted for the purpose of asking the Court whether the Guardians had been right or wrong in granting relief in particular cases. The proper course for the ratepayers to take when objecting to expenditure was to go before the auditors appointed by the Local Government Board or to appeal to the Local Government Board itself. In the present case no instance of relief given except for urgent necessity had been proved and no instances of improper relief had been brought before the Court. The action therefore was dismissed. *Attorney-General and others v. Merthyr Tydfil Guardians*, March 27th, 1899. *Weekly Notes*, April 1st, p. 38.

[313] 5 Eliz. c. 4. Anyone who was unmarried or under thirty even if he had a skilled trade could be compelled to serve in that trade or all artificers could be obliged to help in harvest.

[314] "A true copy of the charge given to the overseers of every towne the 19th of December 1623," Tanner MSS., 73 II. § 390. The document seems to relate to some particular division of a county which is not mentioned.

[315] *Dom. State Papers*, Chas. I. Vol. 189, No. 66. See Chapter IX.

[316] Thus the overseers of "Idlestrey" (Elstree) report, "We have none that live out of service ydlely or otherwise." See also "Questions touching Labourers," Appendix XII. A. Cases of the enforcement of regulations of this kind occur early in Elizabeth's reign at Norwich. Thus in 1571 a certain Agnes Smith "is to be putt to service," "Meke's wife and Garodes wife ar to be with the select weomen" and a certain Suzan Brown if not hired for the whole year is "to goo to service," the "Maiores Booke for the poore." Norwich MSS.

[317] Privy Council Register, April 5th, 1598. With a note that it was dated March 25th, 1598 "and stayed until this present." The records of the proceedings of the Privy Council are to some extent preserved in the Privy Council Register. This consists of an almost continuous series of manuscripts preserved at the Privy Council Office. They are now being printed but are still unpublished so far as the seventeenth century is concerned. The volume containing the records from 1603 to 1612 is missing. The Register is by no means complete; only some of the letters and proceedings of the Council are entered there.

[318] Little Proclamation Book, James I., No. 27 and No. 23.

[319] *Ib.*, No. 88. This proclamation states that special orders had already been issued for preventing and remedying the dearth of grain. The orders are stated to command the punishment of

engrossers &c., and the prevention of the transportation of corn; the furnishing of the markets rateably and weekly &c.

[320] *Ib.*, No. 94. 12th Dec. 1608.

[321] Drafts of this commission are in existence both in the British Museum and Bodleian, and its issue was therefore contemplated, but it does not follow that it was actually issued. Brit. Mus. MSS. No. 12,504, Tanner MSS. lxxv. 175.

[322] *Privy Council Register*, 12th May, 1620. The Merchant Adventurers in reply said the vent of cloth was so little because so many difficulties were thrown in the way of their sale of gold and silver thread and the glass goods of the Levant.

[323] The average prices given by Prof. Rogers are as follows:

	1619	1620	1621	1622
Wheat per quarter	25s. 10½d.	25s. 5d.	40s. 9d.	51s. 1d.
Barley "	14s.	11s.	21s.	27s.
"	11½d.	4½d.	2¾d.	2¼d.

[324] *Privy Council Register*, 8th Mar. 1622. In a letter from Locke to Carleton it is stated that in the cloth-making counties the poor have assembled in troops of forty and fifty and have gone to the houses of the rich demanding meat and money; they had also taken provisions which were for sale in the market. *Cal. of State Papers*, Feb. 16, 1622.

[325] Minute of the proclamation. *Dom. S. P.*, Jac. I., Vol. 133, No. 52. The enforcement of the orders is again especially commended in another proclamation issued on the 22nd Dec. 1622. *Large Proc. Bk.*, No. 109.

[326] *Large Proc. Bk.*, No. 108, 20th Nov. 1622.

[327] *Ib.*, No. 109.

[328] Letter of Chamberlain to Carleton, *Dom. S. P.*, Vol. 134, No. 801.

[329] *Cal. of State Papers*, Mar. 26th, 1623.

[330] *Privy Council Register*, 9th Feb. 1621/2. The ten counties to which this letter was sent are as follows:

Wilts.,
Somerset,
Dorset,
Devon,
York,
Gloucester,
Worcester,
Oxford,

Kent,
Suffolk.

[331] *Cal. of State Papers*, April 28th, 1622, Vol. 128, No. 67; March 18th, 1622, Nos. 49 and 50. From Oxfordshire there is a like report. The justices of Somerset state that the corn riots are now suppressed, but that the want of work tends to mutiny. *Cal. of State Papers*, May 14th, 1622. The justices of Wilts reply that some of the clothiers have dismissed their workpeople and there are now 8000 out of work; some of them have attacked and seized corn on its way to market and further outrages are feared. *Cal. of State Papers*, April 30th, 1622. In consequence of this distress inquiry was ordered. A committee of the Privy Council was appointed to find out the causes of the decay of trade and to suggest remedies. Representative clothiers were to be sent from every county to the Council, and the Merchant Adventurers were to appoint some of their number to confer with the committee. In May it was settled that if the Eastland merchants did not buy the cloths the merchants might do so themselves, and in October an important committee was appointed to consider the whole matter.

[332] *Privy Council Register*, 18th Dec. 1622.

[333] See Chapters XI., XII.

[334] Thus from Suffolk a whole series of reports record a vigilant execution of the poor laws. In Hadleigh the justices say they have done their best to set the poor to work (the "towne consisting onely of clothinge"). At present (Mar. 18, 1622/3) and for a month past were few shearmen, weavers, spinsters or other workfolk that could not have sufficient work to employ themselves, but they do not know how long this may continue ("the vent of cloth being so doubtfull"). *D. S. P.*, Jac. I., Vol. 142, No. 14, VI. In April we hear of the price of corn abating. *D. S. P.*, Jac. I., Vol. 143, No. 24.

[335] May 2nd, 1629, *Proc. Bk.*, Chas. I., *D. S. P.*, Vol. 541, p. 107. June 13th, 1631, Letters to Justices of England and Wales. *Privy Council Register*.

[336] *Privy Council Register*, Nov. 9th, 1630. Letter to the Lord High Treasurer. "We understand ... yt the frequent exportacon of beere beyond the seas doth ... increase the present dearth in the ... City. We therefore require your lp. to give expresse order ... yt no beere be caryed out of the kingdome."

[337] *Privy Council Reg.*, 12th Nov. 1630, 9th June, 1630, 10th Sept. 1630.

[338] *Privy Council Register*, 12th Nov. 1630, ff. 169, 181.

[339] *Ib.*, April 2nd, f. 431.

[340] *Proc. Bk.*, Chas. I., No. 134. *Privy Council Reg.*, 9th Sept. 1630, f. 97.

[341] See Scarcity Reports of 1630, e.g. *Dom. S. P.* Chas. I., Vol. 176, Nos. 1, 18, 55, 57; Vol. 177, Nos. 31, 32, 43 etc.; Vol. 192, No. 19.

[342] *Cal. of State Papers*, June 10, 1631.

[343] *D. S. P.*, Chas. I., Vol. 185, No. 41.

[344] *D. S. P.*, Vol. 192, Nos. 24, 93, 94.

[345] 10th May, 1629. *Privy Council Reg.* "The merchants have been earnestly delt wth ... to continue their wonted course in that behalfe. And upon conference wth the said marchants wee find them inclined and plyable to his Mat^s desire."

[346] *Privy Council Register*, 12th May, 1629.

[347] *Privy Council Register*, 26th April, 1637.

[348] *Ib.*, 28th Feb., 1643/4.

[349] *Ib.*, Entered 29th April, 1629.

[350] *Ib.*, 5th May, 1629 f., No. 237.

[351] The word "stockes" or stocks is here used in the sense of capital for providing employment. We shall see that it was usual to raise a lump sum of money for this purpose, almost always called the "stock" of the parish. This was supposed to remain intact. Occasionally the word stock was used for any capital sum possessed by the parish, but never for the ordinary poor rates which were spent during the year.

[352] *Proclamation Book*, Chas. I., No. 109. Record Office, 17th May, 5 Chas. I.

[353] *Privy Council Register*, 22nd May, 1629. See Appendix.

[354] The Devonshire justices are told that people began to want employment "w^{ch} in a short time may (if not prevented) breede great inconveniences to the country." They in consultation with the justices of Exeter were to "settle some good course whereby the poore labouring people in generall may be provided of worke, and that in particular those who more especially belong to the trade and busines of cloathing." *Privy Council Register*, 13th April, 1639.

[355] See Chap. VII.

[356] 15th Feb., 1630/1. Rutland justices ordered to see the poor were set to work. See Appendix.

31st March, 1631. Houses of Correction were to be erected in Herts. without any more delay.

22nd April, 1631. J.P.'s of Middlesex and to those of Westminster. Elsewhere much good had been done but they were negligent. Order them to look after Houses of Correction and set vagabonds to work there.

31st March, 1631. Lord-Lieutenants commanded to see the poor were set to work.

8th Jan., 1635-6. Several propositions for the employment of the poor were referred to a committee, who were to give such order as was fit for so good a work.

15th April, 1637. Inquiry into want of work at Godalming.

25th Aug. 1639. Inquiry into the grievances of the journeymen silk weavers, who complain of slack work and lowered wages, f. 615. All these are entered under their respective dates in the *Privy Council Register*. We shall see when we consider the relief of the different classes of poor in detail that there are evidences as to the result of the Privy Council action on other occasions.

[357] In June 1630 the following Privy Councillors were appointed "Commissioners for the Poore."

Lord Privy Seal.
Earl Marshall.
Earl of Bridgwater.
Earl of Danby.
Lord Viscount Wimbledon.
Lord Viscount Dorchester.
Lord Viscount Falkland.
Mr Trer.
Mr Vic. Chamb.
Mr Secre. Coke, "or anie foure of them."

The petition of Viscount Wimbledon is referred to them on 12th Nov., 1630.

[358] *Dom. State Papers*, Chas. I., Vol. 213, dated Jan. 1631. This volume is said to contain the minutes of the proceedings of the Commissioners of the Poor, but after a few pages there are few entries relating to the poor at all. There was an inquiry into the hospitals of London and into Kenrick's charity at Reading, but little besides.

[359] *Privy Council Register*, Commissions for Exeter and Colchester were issued 29th Feb., 1631/2, for Stamford 2nd July, 1632, f. 127, for the London parishes 31st May, 1632. One for Bury had been issued before 29th Feb. 1631/2, and further complaints were referred to its members. All these commissions are stated to be issued in accordance with the commission of the 5th Jan. 1630/1 for putting in execution the "lawes for the

reliefes of the poore," which authorised the granting of commissions for inquiry into charitable trusts at the request of six of the commissioners.

[360] Addit. MSS. British Museum, No. 12496, f. 282. This document states that the commissioners were assigned to particular districts in order that the business of the several counties might be more thoroughly investigated. The distribution was made according to circuits because the judges of each circuit were to receive the justices' reports from the district and then to account to the commissioners.

[361] Addit. MSS. 12496, f. 243. The Orders and Directions, but not the preamble, are printed by Eden. *State of the Poor*, Vol. i., p. 156.

[362] A minute of letters directed to "y^r high Sheriffe of y^e severall countyes of England and Wales," *Privy Council Register*, April 30th, 1632.

[363] *Privy Council Register*, 16th Oct., 1633.

[364] *Ib.*, 7th May, 1635.

[365] Thus on 25 Sept. 1636, a collection is ordered in the cities of London and Westminster and in the counties of Middlesex and Surrey for those affected with plague.

[366] On 30th May the Council order a collection for those stricken with plague in Hadleigh, and also for the poor clothworkers who are out of work and have no means of subsistence. Like collections were made for Northampton 10th May, 1638, and for Gloucester 16th May, 1638, &c. *Privy Council Register*.

[367] *Privy Council Register*, 3rd July, 1629, Vol. 5, f. 399.

[368] *Privy Council Register*, 16th Feb., 1630/1.

[369] *Cal. of State Papers*, 27th April, 1631, p. 22.

[370] Rymer, XX. 41.

[371] The text of the document and the substance of these paragraphs have already appeared in *The English Historical Review*, January, 1898, p. 91.

[372] *Dom. State Papers*, Chas. I., Vol. 176, No. 1, 1st Dec. 1630. "And we have accordinge to the Statute appointed the wages of servants, laborers and workemen at such Rates as will conveniently recompence their paynes and yeld unto them competent maintenaunce."

[373] Wages assessments have been printed for Bury St Edmunds in 1630 (*The English Historical Review*, April 1897);

for St Albans in 1631 (A. E. Gibbs, *Corporation Records of St Albans*, p. 281); for Gloucester in 1632 (Thorold Rogers *History of Agriculture and Prices*, Vol. VI., p. 694). One also exists for Hertford made in 1631, Hist. Man. Com. R. XIV., App. viii., p. 160.

[374] *Privy Council Register*, 10th May, 1637. On 17th May an order was made for the release of Thomas Reignolds as he had then given the weavers full satisfaction.

[375] Although the judges were not strictly speaking local authorities so much of their work with regard to the poor law was done locally that it seems more convenient to consider them in this connection.

[376] *Les Reportes del Cases in Camera Stellata*, John Hawarde, ed. W. P. Baildon, p. 367-8.

[377] The *West Riding Sessions Rolls* have been printed from 10th Jan. 1597-8 to the 1st July, 1602, inclusive. The Roll for the year 1598 contains the orders made at the Sessions as well as the panels and indictments, *West Riding Sessions Rolls*, Vol. III., Yorkshire Archæological Association.

[378] April, 1598. "Ordered that the churchwardens and surveiors of the poore within the parishe of Braiton shall see and take order that Elizabethe Corker and her iiij^{or} children shalbe releevd and provided for as the late statute requireth etc." *West Riding Sessions Rolls*, p. 76.

[379] *West Riding Sessions Rolls*, pp. 84-86, June, 1598.

[380] *Ib.* p. 94.

[381] *Ib.* p. 97. The churchwardens and overseers of Wakefield in some way failed to comply with the statute, although according to Arth's pamphlet the poor there were sufficiently relieved. *Ib.* p. 118. See Chap. VIII. *supra*.

[382] *West Riding Sessions Rolls*, pp. 84, 85. Knaresborough Orders.

The Mayor of Doncaster seems to have been an offender in this respect; a poor man named Gregorie Shawe had lived in Doncaster twenty years and was in the Hospital, but he had been turned out and sent away. *Ib.* XXXI. p. 105.

[383] Sometimes a parish was disobedient even when an order for relief was made by the justices. Thus the parish of Silkston had been ordered to pay vi^d weekly to John Michell of Gunthwaite towards the educating of Mary and Elisabeth Michell. They had neglected to do so and were therefore fined £3. 6s. 8d., while the churchwardens and overseers were ordered

to provide for the children "according to the last statute in that case made and provided." *Ib.* p. 96.

[384] The following orders seem to show that regular relief funds could be taken for granted. A poor succourless child was left in Ossett, and Ossett was charged with many poor. The three townships of Ossett, Dewisburie and Suthill were each to pay 16/8^d. for its support. *Ib.* p. 41.

A child came with its mother begging to Northowrom: the mother fell ill and was carried by the constable to a poor man's house in Shelfe, where she died. Northowrom was ordered to pay a shilling and Shelfe 4^d. towards the relief of the child. *Ib.* p. 39. There are several other orders of the kind. See p. 40.

[385] Thus on April 14, 1607, Rob. Thompson was presented for building a cottage or habitation for John Joye of Alne, labourer, now occupied by the same, without assigning to it four acres of land &c., contrary to the statute 31 Eliz. *North Riding Sessions Rolls*, Vol. I. p. 68. Several cases of the same kind were presented at Richmond Oct. 8, 1607, and they occur frequently throughout the North Riding Sessions Rolls of our period until 1672, except from the period 1634 to 1647. *North Riding Sessions Rolls*, vol. VI. 177, Oct. 8, 1672. See also pp. 28, 94, 99, 112 &c.

Like presentments were made for harbouring inmates or undersettles (i.e. lodgers) until 1675, VI. p. 232, e.g. Oct. 8, 1607. Leon. Marshall of Ravensworth "for keeping of an undersettle for the space of a moneth &c. and also John Ramshawe, James Foster and Richard Dunn all of the same: they were fined 10s. each." *Ib.* vol. I. p. 95.

[386] Thus there was a disputed liability with regard to Margery Pearson, and she was to be relieved in accordance with the decision of Sir Richard Etherington and Tho. Dearle, Esq., *Ib.* vol. I. p. 12.

Elizabeth Scotson of Melmerby is to be provided for by the High Constable and the churchwardens and overseers of the parish, *Ib.* p. 97. See also pp. 115, 117, 124, 125 &c.

The Treasurer for the hospitals appears all through these records. In 1608 the payments made by Mr Brigges, Treasurer for the Langbaugh district, were as follows:—

	£	s.	d.	
The Hospitall juxta Malton	13	6	8	per ann.
Hospitall of Sharbrough	5	0	0	
The Marshallsey		20	0	
Summa	19	6	8	

At the same time another treasurer for the district distributed pensions to eleven soldiers amounting altogether to £28. 6s. 8d. *Quarter Sessions Records, North Riding*, vol. II. p. 257.

[387] *Quarter Sessions Records, North Riding*, Vol. I.

p. 75, 13th July, 1607. "It is ordered that there shalbe a House of Correction at Thirske within the North ridding of the countie of Yorke."

p. 203. Oct. 2nd, 1610. "Two Houses of Correction shalbe builded within the North Riding, whereof thone to be within the Liberties of Richmondshire."

p. 225. April 26, 1611. House fixed upon but not yet used as a House of Correction.

1612-19. Orders continue about the House of Correction the site of which was sometimes arranged at Richmond and sometimes at Thirske.

p. 229. Jan. 8, 1619/20. The House was almost finished at Richmond and the Governor was appointed.

p. 249. Oct. 1620. James Durham committed.

Vol. III. p. 134. Jan. 15th, 1621/2. £100 raised for stock. There are many entries relating to committals in the succeeding years, vol. III. pp. 39, 64 &c.

[388] April 29, 1606. Belief of Ellen Killington ordered by parish of Boltby; the same order is repeated on July 10, pp. 38, 43. *Quarter Sessions Records, North Riding*, p. 1. The following also were presented:—

11th April, 1605. Michael Meeke, one of the Churchwardens of Kirkly on the Wiske for not paying the sum due for lame soldiers and the hospitals, p. 2.

p. 31. Richard Nicholson, of Topcliffe, for taking on himself the office of Overseer and declined to fulfil the duties.

p. 99. "Rog. Ringrose of Aymonderly being one of the supervisours of the poore for Appleton-in-the-Street A.D. 1600 for not having maid his monethly accompt for the said office for that year and the like for the years 1601 to 1607 both inclusive."

July 1611, p. 231. The Overseers of Kirklington for not relieving their poor and exercising their office. Also the Overseers of Wath, Burneston, Topcliff, West Garfeild and Condall.

Jan. 11, 1632/3. The Churchwardens and Overseers of Grinton for not making cessments for the relief of their poor, etc., p. 345.

[389] April 11, 1621. *Quarter Sessions Records, North Riding*, vol. III. p. 115.

[390] See Chapter VIII.

[391] One letter in the form of a corn report and several reports dealing with ordinary poor relief are printed in the Appendix.

[392] *Proclamation Book*, Chas. I., No. 228.

[393] See Appendix XII. Reports B. E. and H. were sent first to the sheriff, C. is sent to the Lords of the Privy Council, G. was delivered to the judges of assize.

[394] See Appendix XII. B. F. G.

[395] See Appendix XII. D. E. F. New assessments and the increase of assessments are frequently mentioned, e.g. *Dom. S. P.*, Chas. I., vol. 192, 79; the fines of people who do not go to church in many others, e.g. Hitchen and Broadwater, *D. S. P.*, Chas. I., vol. 238, No. 42. Other reports state whether there is employment in the cloth trade or other occupations, e.g. *D. S. P.*, vol. 190, 54. In this report the justices of Babergh and Cosford report that the clothiers are on the point of dismissing their workfolk. It is interesting also to learn that on April 5, 1631, Portsmouth only had corn for 20 days "there being resident wth in the said Towne and Liberties therof six hundred persons att the least." *D. S. P.*, Chas. I., vol. 188.

[396] *D. S. P. Chas. I.*, vol. 189, 66.

[397] *D. S. P.*, Chas. I., vol. 190, No. 13.

[398] See note Chapter XII. for cases of employing the poor in counties and towns where no justices' reports definitely report anything of the kind.

[399] e.g. Appendix XII. H.

[400] *D. S. P.*, Chas. I., Vol. 293, No. 129. Report from Ryedale, July 1635.

[401] All these are mentioned in the above-mentioned reports from Alton and Cambridge. The fines for not going to church were often regularly exacted. In one report we are told that some of the accused were too poor to pay and that others had compounded for recusancy, Vol. 300, No. 17.

[402] See Chapter VIII. See above, Alton and Cambridge. See also Appendix XII. B. Westmill.

[403] The proceedings at these meetings closely resemble those at Petty Sessions. If these meetings were identical with the ordinary Petty Sessions, then these latter must have been held more frequently in consequence of the Book of Orders. Many of the reports, like that of Cambridge, expressly state that the meetings they report were held because of the letters and orders of January 1631, e.g. see Winchester, *D. S. P.*, Chas. I., Vol. 188, No. 101.

[404] *Dom. State Papers*, Chas. I., Vol. 189, No. 42.

[405] See Chapter VIII.

[406] *Dom. State Papers*, James I., Vol. 115, Nos. 98, 100.

[407] *Dom. Stat. Papers*, James I., Vol. 116, No. 51.

[408] See p. 154 *supra*.

[409] Michael Dalton, *The Countrey Justice*, ed. 1655, p. 115. The resolutions are given in the form of answers to questions submitted to the judges on particular points of law. They decided among other things, that a man must take an apprentice if the justices so ordered whether payment were made or not; that all the lands in the parish must be rated equally, but that an extra sum might be levied from a man "for his visible ability" within the parish; and also various points concerning settlement. One question and answer are as follows:

Qu. If one who is under the age of 30 years and brought up in husbandry or a maid servant, or brought up in any of the arts or trades mentioned in the statute, 5 Eliz. cap. 4, and not enabled according to that stat. to live at his or her own hand, shall be warned by two justices of the peace to put him or her self in service by a day prescribed by them, and shall not doe the same accordingly, but shall after continue living at his or her own hand, what course shall be taken with such a person and how punished?

Resol. Such persons being out of service, and not having visible means of their own, to maintain themselves without their labour, and refusing to serve as a hired servant, by the yeer, may be bound over to the next Sessions or Assises, and to be of good behaviour in the mean time, or may be sent to the house of correction. These resolutions of the judges are quoted by Dalton as having great authority.

[410] *Privy Council Register*, 16 Oct., 1633.

[411] *Dom. State Papers*, Chas. I., Vol. 187, No. 22.

[412] *Dom. State Papers*, Chas. I., Vol. 186, No. 16.

[413] In 1631 also a dispute about a poor rate in Marlborough was referred to the Lords of the Council and was sent by them to the Lord Chief Justice and judges of assize. *Privy Co. Reg.*, 13th May, 1631.

[414] See Appendix.

[415] See *supra*, p. 142.

[416] "A true copy of the charge given to the overseers of every towne," Dec. 19, 1623. Tanner MSS. LXXIII. II. f. 390.

[417] See justices' reports, Appendix XII.

[418] *Dom. State Papers*, Chas. I., Vol. 344, No. 30.

[419] *Ib.*, Vol. 347, No. 67.

[420] *Ib.*, Vol. 418, No. 21.

[421] *Morant's Essex*, p. 53.

[422] See reports from Newbury, six hundreds of Norfolk, Taunton, nine hundreds of Somerset, Wentllooge in Monmouthshire, Bridgewater, the soke of Peterborough and the wildish parts of Pevensey, all returned between May 21st and May 31st, 1631.

[423] *Cal. of State Papers*. Ripon, Feb. 25, 1623, Banbury, Mar. 1st, Wycombe, Mar. 12.

[424] *Dom. State Papers*, Chas. I., Vol. 189, Stafford, No. 1, I., Bradford and Haworth, No. 8, V., Hertford, Vol. 189, No. 79.

[425] *Dom. State Papers*, Jac. I., Vol. 138, No. 14.

[426] *Ib.*, Vol. 140, 25. The three hundreds were those of Stretford, Grimsworth, and Wigmore.

[427] *Ib.*, Chas. I., Vol. 192, No. 34.

[428] *Ib.*, Jas. I., Vol. 138, No. 88; Chas. I., Vol. 192, No. 25.

[429] Court Book of Norwich for the Court held 1st Feb. 1630/1.

[430] Thus in 1623 detailed returns were sent in by the constables of Devonshire, Vol. 144, 32, V. to XXXIV., while an especially elaborate report was sent from the hundred of Pider in Cornwall on Dec. 2nd, 1630. The bushel there consisted of twenty gallons, and a return is made of the number of people in every household, of the quantity of barley, oats and wheat possessed by every owner, of how much of it was already sold, of the names of the brewers, bakers, and maltsters, and of how much they brewed and baked every week. *D. S. P.*, Jas. I., Vol. 176, No. 13.

It is perhaps interesting to notice that as early as 1613-14 a special payment was made to Rich. Aucher, Sergeant-at-Mace, "for his attendance at corne market in the deare yeares to see that such corne were brought in as appoynted by the justices," *Hist. Man. Com.*, Rep. IX., Appendix I. 162 a.

[431] *D. S. P.*, Jas. I., Vol. 142, 14.

[432] *Ib.*, Vol. 189, 15.

[433] *Ib.*, Vol. 189, 6.

[434] See pp. 123, 124 *supra*.

[435] *Privy Council Reg.*, 23rd Dec. 1622, Vol. 5, p. 543.

[436] This amount was arrived at by calculating that eight ounces a day would serve for each person, counting "the little" with "the great." Remembrancia.

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[437] *D. S. P.*, Chas. I., Vol. 197, 61. In July 1631 the Companies had a very small proportion of the quantity they had to supply in their possession.

[438] *Privy Council Reg.*, 14 Dec. 1630. The Lord Mayor appears to have fixed the price of grain. See the complaint of the badgers of Chipping Wycombe.

[439] *Dom. State Papers*, Jas. I., Vol. 143, 35, 2.

[440] Norwich. Numerous resolutions are recorded by the Court Books, 18th

Oct. 1630. "Some of the corne in the City Granary shalbe weekly ground into meale and solde to the poore in the market."

14th Feb. Corn is bought for the poor and delivered to the aldermen of each ward weekly to be sold.

6th Mar. The corn delivered to the poor to be two parts barley, one wheat, and one rye.

8th June. Barley bought.

15th June. Rye bought.

2nd July. Wheat bought for 30s. the combe, rye 25s. and barley 16s. To be sold to the poor at 16s. the combe; the three grains equally mixed.

Between 25th Feb. and 25th March, 1631. £114. 18s. 10d. "was given towards buyeing of corn for the poor."

See also *Dom. S. P.*, Chas. I., Vol. 186, 26, 191, 54.

Great Yarmouth, *Dom. S. P.*, Chas. I., Vol. 188, 80. "There hath beene 300^{li} laid out to buy corne w^{ch} hath beene brought into the comon graineries of the towne and there by parcells delivered to the poore inhabitants of this towne under the rate of the markett price which hath beene a great releife to the poore."

Leicester, Vol. 191, 69.

Buckingham, Vol. 187, 2, i.

Ware, Vol. 189, 80.

"93^{li} to buy corne for the poore and sold them at iijs the bushell."

[441] *Privy Council Register*, 18th Dec. 1830.

[442] *D. S. P.*, James I., Vol. 140, 41. This statement is confirmed by the reports enclosed by the Sheriff from the justices responsible for the divisions of Braughin, of Hitchin, of Edwinstree and Odsey and of Dacorum. These all state that in most of the "townes" the poorer people have corn provided them far under the market rate.

[443] At Crediton, West Budleigh and part of Wonford in Devon and in several districts of Suffolk, *e.g.* in the hundreds of Blything, Wangford, Mutford and Lothingland corn was sold to the poor under the market price. *D. S. P.*, Jac. I., Vol. 142, Nos. 37, II. and 14.

[444] The hundreds of Dunmow, Uttlesford, Freshwell and Clavering. *D. S. P.*, Chas. I., Vol. 177, 43.

[445] Jan. 7th, 1631. *Dom. State Papers*, Chas. I., Vol. 182, 20.

[446] Hundred of South Greenhoe and half hundreds of Grimshoe and Wayland. Rye was also sold to the very poor at 3s. 4d. and to the poor at 4s. May 1631, *Dom. S. P.*, Chas. I., Vol. 191, No. 78. Other stores in Norfolk are reported as follows:

i. At Blofield, Walsham and Taverham barley was sold to the poor for 2s. 6d. rye at 3s. 4d., and buck for 20d.: all far under the market rate, Vol. 186, 16, Vol. 190, 20.

ii. West Flegg, East Flegg, Happing and Tunstead a sufficient quantity of barley and buck "for the most part in euery towne throughout all the sayd hundreds is set aside to be issued to ye poore at a reasonable rate." Vol. 192, 19, (*D. S. P.*, Chas. I.).

iii. In Earsham, Diss, Deepwade and Henstead corn was provided for the labourers in every parish. *D. S. P.*, Chas. I., Vol. 191, 79, Vol. 186, 16.

iv. A like arrangement was made in Forehoe, Mitford and Humbleyard, Vol. 190, 8.

In this county therefore the store for the poor was probably generally adopted all over the county.

[447] Eight hundreds of York, Vol. 177, 31. See App. XI.

[448] (1) Herts.: Edwinstree and Odsey. The poor were relieved at under rates in their parishes. Vol. 182, 40, *D. S. P.*, Chas. I.

Braughin, 189, 80, *D. S. P.*, Chas. I. See Appendix.

Part of the Liberty of St Alban's and hundred of Cashio, 188, 43, *D. S. P.*, Chas. I.

Hertford. The poor are relieved by "corne or otherwise," 189, 79, *D. S. P.*, Chas. I.

(2) Sussex: Lewes, Vol. 189, 15. "Some charitable well-disposed persons sell to the poore at lower rates."

Pevensey, Vol. 192, 99. The justices "dealt wth the most substantiall inhabitants ... who partly by the perswasions of us and of their ministers and of their owne charytable disposition haue laid corne in some one parish about 30 pounds, in another 20 pounds some lese," and have sold it one shilling a bushel "better cheape than itt did cost."

(3) Kent: Shepway, Vol. 187, 40. The parishes have provided a store of corn for their own inhabitants.

(4) Suffolk: The Liberty of St Ethelred's, Vol. 187, 10. A supply of corn was to be brought from Norfolk and sold to the poor 4s. a quarter under cost price.

(5) Cambridge: Staploe, Cheveley, Staine and Flendish, Vol. 189, 81, III.

(6) Berks.: Wantage and Farringdon, Vol. 191, 40, I. and III.

(7) Nottingham: charitable selling under price, Vol. 189, 12.

(8) Surrey: Rye was sold to the "poorer sorte" at 5s. the bushel, *Dom. S. P.*, Vol. 182, 7.

It is most probable that the poor were relieved in this way in many other parishes though the justices' reports may not have been returned or preserved.

[449] We hear in Nov. 1630 of Ireland that "that kingdome is for the present so plentifully stored wth corne that besides the feeding of itselfe it may also in some measure supply the necessity of this realme," *Privy Council Register*. In Cornwall, Flint and Hereford also there was plenty of grain (*D. S. P.*, Chas. I., Vol. 176, No. 57, Vol. 184, No. 61, Vol. 183, 37) while the justices of Agbrigg report that "Lancashire is a county this year able to help its neighbours."

[450] *Dom. State Papers*, Chas. I., Vol. 182, 81.

[451] *Ib.*, Vol. 191, 4. See below for the custom of the badgers at Chipping Wycombe.

[452] *Ib.*, 189, 5.

[453] *Ib.*, 186, 74.

[454] *Ib.*, 189, 75, Whittlesford, Chilford and Radfield.

[455] *Dom. S. P.*, Chas. I., Vol. 189, Nos. 11, 39, 92.

[456] *Ib.*, Vol. 186, No. 98.

[457] *Ib.* Vol. 203, No. 30.

[458] *Ib.* Vol. 177, No. 50. See above.

[459] *Dom. S. P.*, Chas. I., Vol. 177. Contains reports between Dec. 15th and 30th, 1630, and the following state that prices have lessened:—

Dec. 20th, No. 29. Anderfield etc., Co. Somerset prices decrease.

Dec. 21st, No. 31. Eight hundreds of York. Wheat 7s. and 6s. 6d. where formerly 9s. 6d.

Dec. 21st, No. 32. Hundred of Lexden etc. Essex, "So as whereas before there was a great scarcitie and want of graine in every market and the price every-daie risinge nowe by these endeav^{rs} the markets are fully served wthout any want and the prices of corne decreasinge."

Dec. 24th, No. 43. Dunmow etc. Essex. By means of "princely care" wheat has fallen from 8s. 6d. to 7s.

Similar reports occur from Jan. 1 to 14th, 1630/1, *D. S. P.*, Vol. 182, No. 2, 7, 39, 81.

In 1623 the approval of the justices expressly concerns the suppression of alehouses.

Feb. 14th, 1623, the Mayor of Launcester states that the price of a bushel of wheat has fallen from 12s. to 10s. and that the quantity of barley brought to market has doubled. (*Cal. of State Papers.*)

The Mayor of Liverpool also reports that much good has been done by the suppression of alehouses. *Ib.* 20th Feb. 1623.

[460] *D. S. P.*, Chas. I., Vol. 189, 58.

[461] *D. S. P.*, Chas. I., Vol. 187, 22; Vol. 189, 39. The High Sheriff of Suffolk states that "much good haue ensued."

[462] *Dom. S. P.*, Chas. I., Vol. 187, 12.

[463] *Ib.* Vol. 188, 92, Vol. 189, 12, 29.

[464] *Cal. of State Papers*, Jan. 27, 1623, *Dom. S. P.*, Chas. I., Vol. 182, Nos. 2, 1 and 67.

[465] The following examples show that prices varied considerably in different parts of the country at the same date.

<i>Dom. S. P.</i> , Chas. I.	Price of bushel of wheat.	Barley.
Cornwall, Feb. 5th, Vol. 184, 16	9d. a gall. or 6/- for eight galls.	5¼d. 3/6 for eight

Flint, Feb. 10, Vol. 184. 61	5/- a bushel	3/6 a bushel
Kingsbridge and Dodbrooke	8/- for 13 galls.	5/8 for 13 or 3/7
Devon, 1630/1, Vol. 184, 3	or 4/11 for eight	for eight galls.
Edwinsey and Odsey, Feb. 18th Vol. 185, 27	8/- a bushel	5/2 a bushel
Appletree, Derby, Feb. 21st, Vol. 185, 41	8/- do.	6/- do.
Bulmer, N. Riding, April 26th Vol. 189, 35	6/- to 7/- do.	3/6 to 4/4 do.
Westminster, April 28th, Vol. 189, 48	12/8 1st qu., 11/8 2nd	

[466] Fitz Geffrie, *Curse of Corne-Horders* (Printed 1631) p. 37.

[467] See above pp. 48, 85, 129, 145.

[468] As early as Nov. 18, 1630, the justices of Berkshire were uneasy and ordered the constables of several parishes not to allow the people to assemble, to charge the churchwardens and overseers to double the poor rates; to forbid the brewers to serve the alehouse keepers and the alehouse keepers to sell ale at all. (*Cal. of State Papers*, Nov. 18, 1630.)

In Kent the Sheriff reports signs of disorder; the people, he said, fell on the carriers of corn and the following lines of doggerel were picked up in the minister's porch:—

The corne is so dear
I dout mani will starve this yeare
If you see not to this
Sum of you will speed amis
Our souls they are dear
For our bodyes have sume ceare
Before we arise
Less will safise
Note. The poor there is more
Than goes from dore to dore etc.

Cal. of State Papers, Nov. 22nd, 1630.

There were several attacks on carts at Newbury and elsewhere; and there were rioters at Gloucester.

[469] Thus at Doncaster engrossers of corn were made to sell their stocks in bushels and peckes 7s. a load under the market price. *Dom. State Papers*, Chas. I., Vol. 189, 8. III. At Ipswich,

Edw. Man refused to bring his corn to market when ordered to do so and was made to submit and to sell sixpence a bushel under the market rate. *Privy Council Reg.* 26th Dec. 1630, f. 256 and 272. Conners and bakers of Colchester also were guilty of the same offence and were punished in the same manner, *D. S. P.*, Vol. 184, 30. At Uppingham, an Edmund Wright refused to pay his rate and if still refractory was to be ordered to appear before the Privy Council. *Privy Council Reg.*, 24th Feb., 1631/2. Two justices of Stamford were removed from their office and one was sent to the Fleet because they opposed the Book of Orders. 3rd Dec., 1631, f. 286.

[470] *Hist. of Agric. and Prices*, Vol. V. p. 592.

[471] W. Cunningham, *Growth of English Industry and Commerce*, Vol. II. p. 688.

[472] This table of food was approved by the city rulers on 30th June, 1632 (Norwich Court Books). The keeper of the orphanage was sold wheat and rye from the granary at 12s. a combe and was given £4. 6s. 8d. for each child every year. He had also their work and certain allowances for their clothing.

[473] *Corporation Records of St Albans*, A. E. Gibbs, June 10th, 1587, p. 28.

[474] *Remembrancia*, I. No. 586, II. No. 255 and VII. No. 193. In October 1630, the store of coal was larger than in former years. *Ib.* VII. No. 50.

[475] "Maiores Booke for the Poore" Norwich.

[476] See above chapter IX.

[477] In 1638 at Reading 4d. a day was allowed to each person shut up in the Conduit Close and 3d. a day to each of those confined in Minster Street. *Reading Records*, Vol. III. p. 421.

[478] The brief was issued 25th June, 1630. Cooper's *Annals of Cambridge*, III. p. 223.

[479] Cooper, Vol. III. p. 225. Some thousands of pounds were collected in London.

[480] New Sarum contributed £52 to London. *Remembrancia*, VIII. 180. October, 1636. Bury, *Ib.*, VIII. 207, April, 1638. Norwich, see *Norwich Court Books*, 4th Feb., 1626.

[481] Reading: 1639. More than £190 is spent in building eight pest houses. *Records of Reading*, Vol. III. p. 454.

Norwich: *Court Books*. 12th May, 1630: a pest house was built. 24th June, 1630: a separate pest house was built by the Dutchmen. 14th May, 1632: two more pest houses ordered to be made.

London: *Remembrancia*, 7, 19.

Cambridge: *Cooper's Annals*, III. p. 226.

[482] Windsor: Tighe and Davis, *Annals of Windsor*, Vol. II., p. 52, 1604. The site of the building was given by Thos. Aldem an Alderman. Also "There was collected within the Towne for ye reliefe of infected people by way of taxation £25. 11s. 1d. Given by divers gentlemen and other neighbours £29. 6s. 6d. and paid them over and above these two somes £17. 5s. 2d."

[483] The justices of Hitchen thus report their expenses in time of plague. "By the ouerseers of the poore in this tyme of y^e visitation 128^{li}. Besides the charges of six watchmen and one officer with them euerie night, And besides daileye reliefe from the houses of the able and welldisposed. And xx^{li} taxed by us upon the halfe hundred the greatest parte wherof is not yet payd in. And besides the charges in setting of poore on worke etc." *D. S. P.*, Chas. I., Vol. 349, No. 70.

[484] *Privy Council Reg.* 22nd April, 1636.

[485] *Ib.*, 6th and 27th Nov. 1638.

[486] 1599: the Town's physician was appointed at Newcastle. *Welford, Newcastle and Gateshead*, III. p. 132. Seven years earlier a surgeon obtained by grant of the mayor 40s. as his accustomed fee for helping to cure the maimed poor folk. In 1599, a physician was paid his quarter's fee and in later years was known as the town physician.

[487] Pamphlet of 1598 reprinted in Harding's *Tiverton*, Appendix, p. 7.

[488] Circular letters or briefs were often issued by the Council authorising collections for the sufferers. W. A. Bewes, *Church Briefs*, p. 97.

[489] *North Riding Records*, Vol. IV. p. 27. Jan. 16, 1634/5.

[490] *Privy Council Registers*, 19 Jan. 1619/20.

[491] *D. S. P.*, Chas. I., Vol. 182, No. 2. I.

[492] Barnstaple Records, *North Devon Herald*, Feb. 24th, 1881. Mr John Penrose gave £200 to employ the poor in Bridewell. Shelton's *Hist. of Newark*, pp. 38, 387.

[493] *The Hospital of St Cross*, Rev. L. M. Humbert, p. 14. Translation of the Charter of Foundation.

[494] *The Hospital of St Cross*, pp. 38 and 41 seq. There were then belonging to the hospital besides the Master and 13 brethren, 12 out-brethren, 28 sisters and 2 probationers.

[495] See Chapter I.

[496] Rudder's *Gloucestershire*, p. 202.

[497] *Ib.*, pp. 186-7.

[498] Rudder's *Gloucestershire*, p. 203.

[499] St Leonard's of Launceston is an interesting example of the way in which the old hospitals for lepers came to be used for the poor.

Philip and Mary granted the hospital to the Corporation for the use of leprous and infirm people.

James I. repeats this grant and adds that "for default of leprous persons in the hospital aforesaid that it be and shall be lawful" for the mayor and aldermen etc. to receive the rents for the support of the poor. *Char. Com. Rep.* 32, Pt. 1, p. 406.

1610. King James I. refounded St Edmund's of Gateshead. Sykes's *Local Records*, I. p. 84.

St Thomas's and St Catherine's, York, also came under the control of the city. Drake's *Eboracum*, pp. 246, 247.

St Mary Magdalen, King's Lynn, was originally founded partly for lepers; its revenues were taken away in the time of Edward VI., but a few of the poor were maintained there by the Corporation. Its lands were restored by James I. and it was placed under the care of the town rulers. Mackerell, *Lynn Regis*, p. 194.

The property of Trinity Hospital, Bristol, since the time of Queen Elizabeth has been conveyed in trust to members of the Corporation of the city of Bristol. *Reports of the Charity Commissioners*, VI. p. 506.

[500] Letters Patent, 1 Edw. VI. No. 54. *Charters, Oaths and Charities of the City of Norwich*, p. 50.

[501] *Charity Com. Rep.* 7, pp. 204, 205, 234.

[502] There were endowments for at least ten almshouses in Hereford in 1642.

I. St Ethelbert's, an old foundation for ten poor people in the hands of the Cathedral authorities.

II. Sick Man's Hospital. A foundation partly managed by the Corporation and partly by the Vestry.

III. St Giles's, an old endowment in the hands of the Corporation.

IV, V, VI. Kerry's, Williams', and Price's Hospitals, endowed during the reigns of Elizabeth and James I., and governed by the Corporation.

VII. Lingen almshouses founded 1609.

VIII. Coningsby Hospital founded 1617 for eleven old soldiers, mariners, or serving men.

} Under private management.

IX. Mary Price's almshouses, 1636, for six poor widows or single women.

X. Weaver's almshouses, 1641. Under management of parochial authorities of All Saints'. *Charity Commissioners' Rep.* 32, Pt. II., pp. 6-56.

[503] *Rep.* VI., pp. 253 and 495.

[504] *Ib.* 32, Pt. II., p. 11.

[505] Numerous examples of these bequests occur in the Reports of the Charity Commissioners. The following may serve as specimens of the charities of this kind existing in a single parish.

In St Giles, Reading. Char. Com. Report, 32, pt. I., pp. 131, 132.

Clothing. Augustine Knapp, 1602, gave to the churchwardens 20s. a year for ever to be bestowed for the clothing of poor, lame, blind and impotent people in the parish.

1625. Richard Shaile gave £10 upon trust to buy yearly three shirts and three smocks worth 2s. 6d. a piece for three poor aged men and three poor aged women, chosen by the churchwarden. This gift was lost before 1688.

Bread. 1606. Thos. Deane gave an annual rent of £3 to be bestowed yearly in good, wholesome, well sized bread and given to the poor of the town in St Giles's churchyard as might be settled by the churchwardens and overseers of the poor. The bread was to be given as follows: yearly upon Christmas Eve, 20 dozen of bread: upon Good Friday another 20 dozen, and upon Ascension Eve another 20 dozen.

1623. Rich. Aldworth gave another gift of £3 a year for the same purpose, to be distributed at the same times.

Money. In 1614 A. Humphrey Champion had given a gift of £10, the interest of which was given to poor people. Now lost.

[506] There is an almshouse in St Just not now occupied. See *Rep.* 32, Pt. I., p. 438. In Gloucester also almshouses were founded by a Mr Hill, Mr Keylock, Mr Pater, and Alderman Thomas Semys. The two last were in existence in 1643, but are not now distinguishable. Rudder's *Gloucestershire*, p. 204.

[507] Sums were paid out of the county funds of the North Riding to hospitals at New Malton, Old Malton, and Scarborough. *Quarter Sessions Records, North Riding*, Vol. I. p. 43, Vol. II. p. 183. In 1618/9 New Malton hospital was dissolved, and pensions were then allotted to the old and impotent poor there. *Ib.* Jan. 7th, 1618/9.

[508] *Quarter Sessions from Queen Eliz. to Queen Anne.* A. Hamilton, p. 17.

[509] See Appendix VII., and also the overseers' returns from East Barnet and Elstree in 1639, and from Chipping Barnet and Elstree in Feb. 1636/7. *Dom. State Papers*, Chas. I., Vol. 347, No. 67, and Vol. 418, No. 21.

[510] In the North Riding, at Quarter Sessions orders were frequently made for the building of houses for particular poor people. Thus in the Court held April 17th and 18th, 1610, the overseers and churchwardens of Bagby were commanded "to find or provide Alice Cooke, being a poore widow, of a house." *Quarter Sessions Records, North Riding*, Vol. I. p. 189. On July 20, 1619, also an order was made that the churchwardens and overseers of Startforth shall provide a convenient dwelling house for Ellen Winter before Michaelmas. At the same court the overseers of Easbie were told to collect 82s. 10d. from various townships in order to pay for a house for two poor men which had been already built by order of the justices. *Ib.* Vol. II. p. 211. Like orders continued to be made through the reign of Charles I. and under the Commonwealth. *Ib.* Vol. V. pp. 62, 255.

[511] *Dom. S. P.* Chas. I., Vol. 330, No. 90.

[512] See Appendix VII.

[513] *D. S. P.* Chas. I., Vol. 293, No. 129.

[514] *Ib.* Vol. 190, No. 56.

[515] Dalton's *Country Justice*, 4th edition, 1630, p. 93. See Chapter VIII.

[516] Among such bequests were:—

Bristol, Edw. Cox, 1622. *Reports of the Char. Com.* VI. pp. 532-533.

" Andrew Barker, 1658. *Ib.* p. 467.

Oxford, Thomas' Charity, 1639. *Ib.* p. 381.

Exeter, Sir John Acland, 1609. *Reports of Char. Com.* p. 155.

Maidenhead, Rixman's Charity, 1628. *Ib.* XXXII. Pt. 1, p. 77.

At Reading besides Laud's gift there were John Johnson's Charity, 1614, and Marten's Charity, 1635. *Ib.* p. 43. Both these were in existence in 1652, but have been lost for many years.

Wokingham, Laud's Gift and Planner's Charity, 1605. *Ib.* p. 213.

Hereford, Wood's Charity, 7 James I. *Ib.* Pt. 2, p. 29.

West Wickham, Lady Slaney, 1607, £3 a year. *Rep.* VI. p. 271.

[517] *Records of the Borough of Reading*, Vol. III. pp. 512, 513. In 1640 £100 was paid for half the year and ten boys were appointed to be bound apprentices with such masters as the Mayor and aldermen had arranged, £10 being paid apiece for them.

[518] *Reports of Char. Com.* XXXII. Part 1, 221.

[519] In the Records of the Borough of Reading between 1630 and 1640 we have an instance of complaint by a pauper apprentice. We are told that "At this daye complaynt was made by the officers of Shinfeld that heretofore they gave v li in money and bound John Chaplen, borne in their parishe, apprentice to William Applebye of Readinge, weaver, for 15 yeares by indenture, of whiche terme 9 yeares are expired, and that the said apprentice for lacke of meate and drinke and apparell hath often-tymes run awaye, and is nowe brought agayne by the officers of Shinfeld desiringe a reformation or restitution of the v li.

"William Appleby saith he hath victualls as he himself and family daily have, and further saith that the said apprentice is soe ill-conditioned that he will still run awaye and hath noe hope of good service of him.

"All thinges heard, examyned and understood the said William Appleby was enjoyned to take his apprentice and to sett him to worke agayne and to use him well in all thinges.

"And the apprentice willed, when he is misused or ill treated to complayne to Mr Mayour, and he will provide further for him, as shalbe fitt and expedient in that behaulf." *Records of the Borough of Reading*, Vol. III., p. 233.

The poor boys of Reading appear to have been regularly placed as apprentices, sometimes by charitable funds and sometimes by the overseers.

[520] *D. S. P.*, Chas. I., Vol. 190. 10. See Appendix XII.

[521] *Norwich Court Books*. 18th October, 1630.

[522] *D. S. P.*, Chas. I., Vol. 388, No. 7, XXXVIII. 2.

[523] *Ib.* Vol. 189. 79.

[524] British Museum Add. MSS. No. 12496, f. 222. In another document containing instructions by justices to overseers the establishment of knitting schools is advocated. See above, p. 181.

[525] Reports of the four Royal Hospitals, 1632, 1641. King's *Pamphlets*, 669 f. 4.

[526] Probate of John Carr's will was granted in 1586. An Act of Parliament confirming the foundation was passed 39 Eliz. The school was established on the site of Gaunt's Hospital, and the citizens of Bristol provided some of the necessary money. *Char. Com. Rep.* VI. p. 463 seq.

[527] *Char. Com. Rep.* VI. p. 490.

[528] 14 Eliz. c. 5; 39 Eliz. c. 3.

[529] 43 Eliz. c. 2.

[530] *Orders of the Norfolk Quarter Sessions*, 1650.

[531] *Quarter Sessions from Queen Elizabeth to Queen Anne*, p. 91. A. H. A. Hamilton.

[532] *Char. Com. Rep.*, VI. p. 529.

Richard Holworthy also in 1640 left £20 for the poor in the Bristol Newgate.

At Oxford, Wardell in 1625 and Myles Windsor both left the profits of a small sum for the poor in Bocardo. *Rep.* VI., p. 403, 404.

At Launceston by Connock's charity in 1611 a rent of 52s. a year was set apart for the poor felons in the county gaol. *Rep.* 32. 1, p. 406.

Bequests in London for this purpose were very frequent. *Rep.* VI. p. 302. Sir T. Bennett in 1616 left £24 a year for redeeming twelve or more poor debtors.

[533] *Dom. State Papers*, Chas. I., Vol. 191, 42.

[534] *Rep. Char. Com.*, XXXII. Pt. 1, p. 100.

Other legacies left at New Windsor for this purpose were as follows:—

Mathias Jenis £20 "towards a stock for the setting of poor people of Windsor on work or to purchase some parcel of land for their relief."

B. Chert gave a similar sum for the same purposes. *Rep.* XXXII. 1, p. 98.

- [535] Other charities of the same kind were those of
Lawrence Atwill, Exeter, 1588, £600. *Rep.* VI. p. 136.
George White, Bristol, 10 Chas. I., £100. *Rep.* VI. p. 530.
Aldworth, Bristol, 1634, £1000 towards the setting of poor
people on work. *Char. Com. Rep.* VIII. p. 58.
Atwell's gift. A lost charity of Wolverhampton. *Rep.* V. 593.
Croydon. Henry Smith gave £1000 in 1624, subject to certain
trusts, which was partly to be used for this purpose. *Bibliotheca
Topographica*, II. p. 79.
Hereford. Francis Pember, 1632, left money which in 1635 was
assigned by his executors to be used for setting poor children to
work. *Report*, XXII. ii. p. 39.
- [536] *Dom. S. P.*, Chas. I., Vol. 189, 65, and Vol. 194, 19.
- [537] *Dom. S. P.*, Chas. I., Vol. 189, 8. X. A detailed assessment
for the raising of a stock and relief of the poor was made in
Norwich in 1644. See Appendix.
- [538] *Ib.* Chas. I., Vol. 188, 101; Vol. 186, 74; Vol. 194, 17. IV.
- [539] In Dec. 1630 a certain "Nathaniell Crotch was appointed
to sett the poore on worke in the Newhall," and certain aldermen
were appointed to overlook the work done. *Court Books,
Norwich*, 23 Dec. 1630.
- [540] *Court Books, Norwich*, 3rd Nov. 1625, f. 72. Other plans
were even then contemplated at Norwich, and on Nov. 16th
people were appointed in every ward to "sett the poore on
worke."
- [541] *Hist. Mun. Com. Report*, XI. App. III. p. 247; *D. S. P.*,
Chas. I., Vol. 195, 46.
- [542] *Cal. of State Papers*, May 10th, 1620.
- [543] *D. S. P.*, Chas. I., Vol. 192, 70 and 71.
- [544] *Ib.* Vol. 192, 14 II.
- [545] *Extracts from the Earliest Book of Accounts of Sheffield*.
Entries from 1628 onwards. By J. D. Leader.
- [546] *D. S. P.*, Chas. I., Vol. 192, 65.
- [547] *Ib.* 195, 7.
- [548] *Cooper's Annals of Cambridge*, Vol. III., pp. 204 seqq. and
569, 570.
- [549] *D. S. P.*, Chas. I., Vol. 315, No. 99.

[550] The Barnstaple workhouse was in existence soon afterwards. 1607. "Paid for erecting and placing the stoope in the house of Correction, 18d." 1633-1640, "Paid to John Locke who is appointed to the charge of the Workhouse for two journeys here, 10s. 10d." *North Devon Herald*, Aug. 19th, 1880, and Aug. 12th, 1880.

[551] *Selections from the Municipal Archives of Liverpool*, Picton, June 24th, 1598. "It was agreed by all the assembly that a house termed a 'House of Correction' shoulde be had and taken for the poore people aforesaid," and it was further arranged that Mr More should let his house at Poole for that purpose at a reasonable rent.

For Nottingham, see *Nottingham Records*, Vol. IV., p. 225. In 1601 it was arranged that John Cooper should remain keeper of St John. He was to take up rogues and punish those committed to him, though at the same time he was to have an allowance for the poor infants and others which were sent to him.

Kendal, A.D. 1601. There is a list of collectors of benevolences for the House of Correction. *Hist. Man. Com. Rep.* X. App. IV., p. 299.

[552] May 19, 1615. "The company decide to raise 40 marks for furnishing St John's and for setting the poor there to work." *Nottingham Records*, Vol. IV., p. 331.

June 21, 1615. An agreement was made with John Kirby. He agrees to "diligently teach, instructe and bringe upp all such youthes, children and other persons as shalbe sent or committed into the saied Howse of Correccion in some honest and true labour soe longe as they shall remayne there vnder his chardge and government and shall fynde and allowe vnto them convenient meate, drynke, apparell and other necessities vnlesse they bee lame and impotent and nott able to worke." For Manchester and Preston see Earwaker, *Constables' Accounts*, Vol. I., pp. 39, 54 and 65.

[553] *D. S. P.*, Chas. I. Vol. 349, 72, Hayridge etc. Devon. *Ib.* Vol. 349, 12, Hartesmere, Suffolk. *Ib.* 192, 79, Blofield, Norfolk. *Ib.* Vol. 250, 42, Arundel, Hants. *Ib.* Vol. 426, 67, Bastable and Becontree, Essex, &c. The justices of Somerset write "It was presented to us that many persons lived out of service wth in certayne parishes whome wee sent to the Howse of Correccion at Shepton Mallet," *Ib.* Vol. 194, 20. At Chichester it is reported that "there is a house of Correccion neere the common prison in the said Cittie w^{ch} is parcell of the said provision and that such prisoners as are thether committed are employed to worke duringe the tyme of their restraynt. *Ib.* Vol. 190, 67.

[554] *Ib.* Vol. 188, 34.

[555] *Ib.* Vol. 189, 13. Eight years later this house at Buntingford was still in existence and reported to be doing much good in the country. *Ib.* Vol. 426, 73. July, 1639.

[556] *Cal. of State Papers*, May 15, 1623.

[557] *Remembrancia*, II. 254.

[558] W. A. Bewes, *Church Briefs*, p. 96, 1617, quoting the Records of St Alphage, London Wall.

[559] Court Books of Bridewell, Feb. 24th, 1619. Sixteen vagrants are entered as "sent to Virginia," and entries of the same kind follow at the next meetings.

1622. Vagrants are again "kept for Virginia."

April 1635. It is ordered "that if Mr George Whitmore and the Treasurer shall think fit to send any vagrants beyond seas, what reasonable they shall consent unto shall be allowed." At the same meeting some parishioners agreed to pay for a certain inhabitant of their parish to go beyond seas.

At the meetings held later in the month on April 15th and 29th several people are destined for Virginia and others for the Barbadoes.

Other entries occur in 1639.

The names of all these vagrants are given, and the descendants of several of them occupy good positions in America. An enterprising American has endeavoured to enlighten his countrymen on the subject, but the publication of names is now forbidden as the descendants did not care to be enlightened.

[560] A declaration of the Lord of the Caribee Islands touching servants who had served their time and could not get land. *King's Pamphlets*, British Museum, 669 f. 11, f. 106.

[561] See above, pp. 85, 147 seq., p. 153.

[562] Seyer's *Memoirs of Bristol*, Vol. II., p. 420. 1643.

[563] *Dom. State Papers*, Chas. I., Vol. 385, No. 43.

[564] *Records of Reading*, Vol. II., p. 153, Vol. III., p. 39.

[565] Norwich Court Books, 22nd Feb. 1630/1, f. 326, Vol. 16.

[566] *Dom. S. Papers*, Chas. I., Vol. 184, 65.

[567] Eastwicke. "The poore are set on worke by the inhabitants."

Hundred of Braughing, 4th April, 1631. "Noe stoeke to sett the poore on worke but they are sett on worke by the inhabitants to spinn towe at iiiid. the pound." *Dom. S. P.*, Charles I., Vol. 189, No. 80. See Appendix.

[568] *Haberdashers' Company Char. Com. Rep.* X. p. 230.
Mercers' Company Char. Com. Rep. VI., pp. 285, 291, 307.

Specimens.

David Appowell, 1508. £100 to be lent to two young men for seven years in consideration of four cart-loads of coal every year.

Alice Blundell, 1570. £100 to be lent to two young men who were to give 1s. 1d. every week to thirteen poor folk of the parish of St Lawrence Jewry.

Richard Fishborne, 1625. £1000 to be lent to five young men free of the Company £200 each for five years gratis with three good securities.

[569] *Legacies to charitable uses in Ipswich*, p. 74 seq.

Other Cash Charities of the same kind for the benefit of the inhabitants of Ipswich were as follows:—

1579. Mrs Rose Bloise £20 to four handicraftsmen for two or three years.

1583. Mr John Tye £25 to five or more persons who are inhabitants for not longer than three years without interest.

1595. Mr Thos. Goodwin £40 for four poor occupiers for two years without interest.

1608. Mrs Alice Bloise £40 to six young men, being freemen for three years.

1616. Mr Willm. Birden £20 to four poor occupiers for four years.

1616. Mr Willm. Acton £80 to four clothiers for four years.

Mr J. Acton added £20 to be lent in the same manner.

1621. Mr Rich. Martin left overplus of certain revenues to be lent to clothiers.

[570] *Char. Com. Report*, 32, Pt. 1, p. 43. Ironside's Charity.

Reading Records, Vol. III., p. 170. Richard Johnson.

Other charities of the kind existed in Reading. See Barbor's and Winche's *Charities Rep.*, 32. Pt. 1, p. 43.

[571] *Rep.* VI., p. 397 seq.

Among the lost charities of Oxford are the following:—

Jane Fulsey, 1603. £40 to be lent to four poor tradesmen for three years.

Robert Wilson, 1640. £20 to be lent in two, three or four equal portions for seven years. *Ib.* p. 404.

There are sixteen other lost charities of the kind either without date or of later date than 1640, and three or four other lending charities which are still wholly or partially in existence.

[572] See *Reports of the Charity Commissioners*.

Among these sums at Bristol were the following:—

Alderman Thorne's Gift £500 in 1532 to "succour young men that were minded to cloth making."

John Heydon, 1579. £100 for two young men trading over seas at interest of £3. 6s. 8d.

Alderman Whitson, 1627. £500, £250 to five young men for seven years at interest of ten shillings, £250 to twenty tradesmen for seven years, &c. *Report VIII.*, p. 597 seq.

Such bequests were also sometimes in the hands of parochial officials.

St Mary, Aldermay. John Kemp in 1569 gave £100 to the churchwardens that they might lend the same to ten poor occupiers without interest.

Anthony Sprott in 1607 gave £20 to the churchwardens and parishioners to be lent by them to a young occupier at 16s. a year. *Rep. VI.*, p. 201.

[573] *Dom. State Papers*, Chas. I., Vol. 349, No. 70.

[574] See *supra*, p. 214.

[575] 14 Chas. II., c. 12.

[576] Coke's *Institutes II.*, p. 729.

[577] Hamilton's *Quarter Sessions from Queen Eliz. to Queen Anne*, p. 16.

[578] Translation from the "Diary of the Duke of Stettin's Journey," pp. 12 and 13, *Trans. of Royal Hist. Soc.*

[579] The pamphlet is addressed to King James I. and the statute for branding rogues is called the "new statute": this probably refers to the 1 Jac. I. c. 7, 1603-4. No mention is made of the 7 Jac. I. c. 4, which commanded the establishment of Houses of Correction, and was passed in 1609-10. The pamphlet therefore was written in the reign of James I., probably soon after 1604 and before 1610.

[580] Stanleyes, *Remedy*, p. 8.

[581] Eden, *State of the Poor*, I. p. 155.

[582] "Among fortie beggers you shall not find one man of trade." Add. MSS., No. 12496, f. 238. A favourite question of the present Lord Chief Justice of England before he sentences a

prisoner is, "Has he ever been engaged in any regular work or had any definite employment?"

[583] Add. MSS., Brit. Mus., No. 12496, f. 238. This writer differs from most of the time in expressing disapproval of Bridewells. He is an advocate for prevention rather than cure, for apprenticing the child rather than for correcting the vagrant.

[584] Add. MSS., No. 12504, 14th Jan., 17 Jac. I.

[585] *Dom. State Papers*, James I., Vol. 143, 24.

[586] *Ib.*, Vol. 142, 14, I.

[587] *Ib.*, Vol. 142, 14, II.

"Wee have by our indevours taken order that the aged and ympotent poore and maymed soldiers be sufficientlie relieved; Those of able and sturdie bodies are provided of work." Babergh and Cosford, Suffolk; also in Williton, Freemanors and Carhampton, Somerset: the report is dated Mar. 20th. *Cal. of State Papers*, under May 8th, 1623.

[588] Add. MSS., Brit. Mus., 12496, f. 251. "Justices of Peace, Magistrates, Officers and Ministers are now of late in most parts of this our Kingdome growne secure in their said negligence, and the said politique and necessarie Lawes and Statutes laid aside or little regarded as Lawes of small use and consequence."

[589] *Dom. State Papers*, Chas. I., Vol. 188, 85. See Appendix XII.

[590] *Ib.*, 250, 11, I. The justices had met several times in accordance with directions from the judges at the last assizes: they had bound apprentice twenty poor children.

[591] *Dom. State Papers*, Chas. I., Vol. 194, 18, II. and III.

[592] *Dom. State Papers*, Vol. 195, 21 and 31. June, 1631.

[593] *Ib.*, Vol. 194, 19. Wells, Somerset.

[594] See Appendix XII.

[595] *Dom. State Papers*, Chas. I., Vol. 188, 45.

[596] *Ib.*, Vol. 194, 17, V.

[597] *Dom. State Papers*, Chas. I., Vol. 388, 7. April 18th, 1638.

[598] *Ib.*, Vol. 385, 15. The want of a poor rate seems to be reported as an unusual fact, and at Rochdale at the same time the poor rates amounted to £340, a hundred and twenty impotent people were relieved, and a hundred poor families assisted.

[599] *Dom. State Papers*, Chas. I., Vol. 427, 4. Aug. 1st, 1639.

[600] *Ib.*, Vol. 192, 51. May 26, 1631.

[601] *Ib.*, Vol. 355, 63. See also Vol. 293, No. 23.

[602] From Whittlesford, Chilford and Radfield, Cambridgeshire, April 1631, Vol. 189, 75, the justices report there are twenty-five "townes," and state "That the impotent poore in every towne are releevd. That wee have put out in these three hundreds betweene six and seaven score apprentices. That the able poore are provyded for or sett to worke."

From the same three hundreds. July 1638. "We are certified by the ouerseers for the poore that the impotent poore are relieved and the other poore are provided of worke." *Do.* Vol. 395, 114.

From Freebridge Lynn, Freebridge Marshland, and Clackclose, Norfolk, the justices, in 1631, report that the impotent were relieved, and children were bound apprentice. Vol. 195, 47.

In July 1638, we hear from the same district, "And more particularly wee haue taken especiall care that the statute of the 43th yere of Quene Elizabeth shold be exactlie obserued in raysing of stocks of materialls for setting the poore of able bodyes to worke and raising competent somes of monye for the releife of the poore and impotent and putting forth poore children to be apprentices." Vol. 395, 32.

See also Edwinstree and Odsey, 189, 13, and 426, 73, etc.

[603] Vol. 289, 14.

[604] Vol. 272.

[605] Vol. 289.

[606] Vol. 289, No. 48.

[607] Vol. 289, No. 20. The hundreds of Whitleigh, Huntspill, Puriton, North Petherton, Cannington and Andersfield.

[608] For the Liberty of St Albans and the hundred of Cashio (excepting Rickmansworth, Watford and Sarratt), Vol. 188, 43.

[609] *Essex*, Vol. 188, 92. Poor in misery, because clothiers do not set them to work, but the justices "did cause" the "able men of parishes" to "raise stockes and meanes to sett their poore on worke."

Richmond, Vol. 189, 65. "We haue likewise given direcons for another assessem^t to be presently made and levyed for the raising of a summe in grosse for a stocke for the setting to worke suche as are able and binding and putting forth apprentices w^{ch} occasions haue hitherto beene supplied forth of the com(m)on stocke of the towne chamber wth the making and levying of w^{ch} assesment the overseers are now in hande."

Bedford, Vol. 189, 27, I.

Beverley, Vol. 189, 8, X. Stocks were raised for keeping the poor to work "(viz^t) in St Maryes parish six poundes, in St Martin's parish sewven poundes, and in St Nicholas parish six pounce, besides the stocks they form(er)ly had." The poor were employed in spinning hemp.

Agbrigg, Vol. 189, 55. The justices sat at Wakefield, yesterday, for this purpose. The letter is dated April 29, 1631.

[610] Vol. 188, 101. Mayor of Winchester, etc., reports to Sheriff of Hants, "First that wee haue raised and provided a stock of money and putt it into a clothiers hands to sett the poore people on worke that are able to worke, and now they doe not want worke."

[611] *State Papers*, Vol. 189. We have already referred to the cases of Whittlesford, etc. no. 75, Agbrigg no. 55, Braughing no. 80, Edwinstree and Odsey no. 73, Essex no. 92, Richmond no. 65, Bedford no. 27, and Beverley no. 8, X. Besides these, work was provided in Shepway (6), Doncaster (8, III.), Mansbridge, Buddlesgate and Soke, Hants. (11), Co. Nottingham (12), Bramber (16), Clackclose, etc. Norfolk (44), Borough of Buckingham (60), Alton, Hants. (66), the hundred of Hertford (79), and Badbury (83). All these places sent reports between April 21st, and 30th, 1631.

[612] Vol. 190, No. 66.

[613] Vol. 191, No. 45.

[614] Vol. 349, No. 86.

[615] The supposition that the town stock was used in Bassetlaw for employing the poor seems almost certain for the following reasons:

(1) In the earlier entries this is often directly stated to be the case. Thus we are told at Laneham that the "towne stocke" was used to buy hemp "to sett such poore on worke as wante."

(2) When a town stock is reported not to exist other methods of employing the poor are sometimes mentioned as a reason for the absence of such a stock, and thus it is implied that a town stock when it existed was used for this purpose. Thus for example at Grove they have "no towne stock in regard, their poore are otherwise sett on worke;" at Egmonton "Towne stock they haue none because they imploy their poore in other worke as they wante;" while at Laxton cum Morehouse there was no stock because those who wanted work were otherwise employed "by the towne."

(3) There is an earlier report from Bassetlaw sent in on July 29th, 1636. This report relates to fewer places, but in some

respects is fuller. In eleven cases where only the amount of the stock is noted in 1637, the fact that it was employed to provide work is directly stated in 1636. Thus for example the following entries occur:

Askham. "Five marks stocke to sett the poore on worke." (20 marks 1637.)

Kirton. "Tenn pounds in Towne stocke wherewth the poore are sett on worke and two new howses built for them."

Clarebrough (Clarborough). "They have iii^{li} vi^s viii^d towarde releueing the poore and setting the(m) on worke."

Misterton cu(m) Stockwth (Stockwith). "That their Towne stocke is Tenn pounds towards setting their poore on worke and releiveing them."

East Markham. "And that they haue 5^{li} in stocke to sett the poore on worke." (£7 in 1637.)

Bole. "5^{li} Towne stocke w^{ch} is employed to sett poore on worke."

Warsopp (Warsop). "They haue in Towne stocke to sett their poore on worke xi^{li} iiij^s." (£11 in 1637.)

Cuckney. "They have tenn pounds Towne stocke to sett their poore on worke." (£7 in 1637.)

Carberton (Carburton). "They haue in Stocke to maintain their poore in worke fifty shillings." (40s. in 1637.)

Mattersey. "They haue 5^{li} towne stocke to sett their poore on worke." (£10 in 1637.)

Eakring. "Tenn pounds in Towne stocke w^{ch} is putt out for vse of the poore. And the 7th of June the(y) (the overseers) certifie that they haue rayased xx^s stocke to sett poore on worke and giue weekly allowance to six poore people," besides 40^s. more for placing apprentices.

In these eleven cases therefore the town stock was certainly used for employing the poor. In four other instances, however, a general statement is made as to the use of the stock which perhaps indicates that the whole of the stock was not always employed entirely for one purpose. Thus for example at Eaton £2. 6s. 8d. was "in stocke for such poore as should neede." However in no case do these statements contradict the

supposition that the town stock in this district was partially used for finding employment for the poor, and the direct statement of the 1636 report in these eleven cases is strong evidence that in the remaining nine places the stock was used in the same fashion.

[616] See *supra*, p. 182.

[617] *D. S. P.*, James I., Vol. 140, 10. I.

[618] *D. S. P.*, Chas. I., Vol. 395, 106. In the same report it is stated that Oldham could not afford to raise a stock.

[619] *Ib.*, Vol. 293, 122 and 129. The quotation is from a report from Ryedale signed by Lord Fairfax; the other document, in which almost exactly the same words occur is from Buckrose in the East Riding.

[620] Although the fact that the poor were employed in Devon and Wilts is not recorded in any of the justices' reports which have been preserved, we hear from other sources that work was found for the poor in some places in those counties. Thus the following memorandum refers to an attempt to establish a workhouse in Plymouth; it is to be found among the municipal records in that town. "In the name of god the 28th of September an^O 1610 A note of provisio^{ns} delivred into y^e Castle for the pore to thende they maye be there placed & sett on work, w^{ch} is but abeginninge for a fewe & a tryall thereof the w^{ch} I praie god continewe and augment to his glorye & their comfort.

Imprimis 2 bedsteads

5 twines 2 paire of wollen cards" &c.

Two years later £20 was bequeathed by W. Lawrence "to the stocke to sett y^e poor to worke," and early in the reign of Charles I. a "workehowse for the setting of the poore on worke" has been lately built and the overseers paid the corporation £9. 12s. for the rent of the three tenements which formerly had existed on the site. R. N. Worth, *Plymouth Municipal Records*, pp. 156 and 257, and *Hist. of Plymouth*, p. 273.

In Marlborough also there was certainly a workhouse, for a petition was presented to the Privy Council in the name of the Mayor and burgesses concerning John Thorner, an Attorney-at-Law, who "was rated among others to pay 52/- towards the erecting of a workhouse and raising of a stock for the employment of the poore that are able and willing to worke to be paid at three general payments whereof one is already passed

at our Lady day last." Thorner had refused to pay his rate, "saying that it was against the law," and had encouraged others not to pay, so "that manie of the inhabitants there made refusall also to pay their proportion." The Privy Council referred the matters to the judges, and in the mean time the rate was to be paid. *Privy Council Register*, 13th May, 1631.

[621] *Dom. State Papers*, Vol. 191, 40. II.

[622] See above.

[623] *D. S. P.* Vol. 194, 17. III. 14th June.

[624] The orders of the corporation of Shrewsbury, "That a stock be raised for setting the poor on work and the Castle be repaired and imployed for that purpose." *Shropshire Archæological Journal*, XI. p. 169.

[625] *D. S. P.*, Vol. 194, 41. II. See below for Shaftesbury, Leominster, Gloucester, Banbury, Abergavenny, &c.

[626] *Dom. State Papers*, Vol. 188, 34.

[627] *Ib.*, Vol. 189, 79.

[628] *Ib.*, Vol. 189, 27.

[629] *Ib.*, Vol. 189, 60, and 187, 2.

[630] Vol. 192, 48. Hundreds of Whitley, North Petherton, Cannington, Andersfield, Huntspill and Puriton. See also Vol. 289, 57. Unnamed division of Somerset, "The poore are well set on worke as farre as we doe or have taken knowledge of by our best enquiryes."

[631] *Dom. State Papers*, Vol. 272, 61, July 25th, 1634. Pirehill, co. Stafford. "And we haue and doe take course to provide for and to sett on worke the poore of the several parishes within the said hundred."

Ib., Vol. 272, No. 65. Offlow. "We caused poore people to be sett on worke."

Ib., Vol. 272, No. 66. Totmonslow. We "further haue takein course to provide for and sett on worke the poore of the severall parishes."

[632] Limits of Worcester, *Ib.*, Vol. 349, 73, 9th Mar. 1636/7.

[633] The exceptions are Devon, Wilts, and Cornwall. See note above.

[634] This question is so much one of detail that it is perhaps worth while to refer to one justice's report from almost every western county, some from towns, and some from the country:

1. *Berks*. June 1631. Abingdon. *Ib.*, Vol. 195, 7. "We haue erected in our borough a workehouse to sett poore people to worke."
2. *Cheshire*. Edisbury, June 29th, 1631. Vol. 195, 21. The justices order "stockes of money and wares" to be raised, but find the people averse to find money for any such purpose.
3. *Derby*. Appletree. 185, 41. Feb. 1630/1. See below.
4. *Dorset*. Shaftesbury. 188, 67. April 1631. "Haue made provision and taken orders for settinge to worke of such idle persons and poore people as are of able bodies and strength to bee ymployed in trades and labor."
5. *Gloucester*. June 1631. Vol. 194, No. 11, I. Gloucester. "For those that are of abillitie to worke we haue provided them meanes to sett them on w(orke) soe they may lyve by their labor wthout beinge further chargable to others."
6. *Hants*. Kingclere. Nov. 1633. Vol. 250, 11, IV. "The justices" have taken order that such as are able to worke are employed in their several parishes."
7. *Hereford*. Leominster. June 1631. Vol. 194, 41, III. "Item the poore are provided for and such kept at work that are able to work."
8. *Monmouth*. Ragland. July 3rd, 1634. Vol. 271, 17. The justices since the commission have levied sums of money in every parish and township to buy "woole, flaxe and other necessities towards the setting of poore to woorke."
9. *Oxford*. J. Ps. for co. Oxford, Vol. 188, 96. April 19, 1630. Have not omitted to provide "stockes" to "sett able poore on worke."
10. *Shropshire*. Bishop's Castle. Vol. 223, 39. 3rd Oct. 1632. "Here is herin but one church wherin are churchwardens, ouerseers of the poore duely elected and nominated; and monthly now we meete and we take order for mayntenance of the poore by setting the able to work and relief of the impotent."
11. *Somerset*. Frome, Kilmerston, Wellow and the adjoining districts. Vol. 185, 40. Feb. 1630/1. The justices have seen to the relief of the poor and setting them to work.
12. *Warwick*. Knightlow. Vol. 199, 65. 13 Sept. 1631. "The Constables, Churchwardens and Ouerseers for the poore in the rest of the townes in theis two divisions doe certfie vs that all ys well ... the poore are sett on worke and releiued and wee heare noe complaints to the contrarie."

[635] *D. S. P.*, Vol. 427, 3. 1st Aug. 1639, Vol. 385, 43, and 349, 70.

[636] *Ib.*, Vol. 385, 27. March 5, 1637/8.

[637] *Herts.* Edwinstree and Odsey. *Ib.*, Vol. 426, 73. July 29, 1639. The justices "haue directed stocks of money to be raised where need is to sett the poore on worke." See also above for hundreds of Hertford and Braughing, St Albans borough, and liberty of St Albans.

Suffolk. Hartismere. Vol. 349, 12. March 1636/7. "Those who are able to worke and cannot provide worke for themselues are sett to worke."

Cosford. Vol. 395, 35. July, 1638. The justices have "bin careful for the setting of poore people work," etc.

Hundreds of Loes, Wilford, Thredling and Plomesgate. 13th July, 1638. Vol. 395, No. 55. See App. XII.

Also Hundreds of Carlford and Colneis. Vol. 395, 62. July, 1638, and Ipswich, Vol. 195, 45.

Norfolk. South Erpingham and Eynsford. July, 1638. Vol. 395, 90. The justices have "taken care ... for the employment of the able," &c.

Division not mentioned. July, 1634. "We haue caused stockes to be rayased in the severall parishes of our limitts to sett the poore beinge able of bodye to worke." Vol. 272, 60.

For Freebridge Lynn, Freebridge Marshland and Clackclose; South Greenhoe, Wayland, and Grimshoe; and also Lynn, see above.

Cambridge. Hundreds of Cheveley, Staploe, Staine and Flendish (formerly all in Cambs.), "Item wee find upon our inquiry that the seuerall towne Stockes within o^r diuision are orderly employed and accounted for and the poore of the seueral parishes sett one worke and employed therin according to the Lawe." Vol. 285, 99. March, 1635. Chesterton, Papworth and North Stowe. 216, 45. See App. XII. Radfield, Chilford and Whittlesford. Vol. 395, 114, and Cambridge borough. See above.

[638] 24th Oct. 1631. *Ib.*, Vol. 202, 20. Report for Clerkenwell, S^t Sepulchre, S^t Giles, Islington, Finchley, Friarne, etc. "There is alsoe in the house of Correccion a manufacture prepared and by a charitable stocke of a hundred pounds given by S^r John Fenner Knight nowe in readynes an Artizan, who hath Articled and agreed wth vs to take, instructe & bringe vp in the saide manufacture as apprentices twenty poore orphans boyes and Girles such as before wandred in the streetes and weare readie to perishe for wante of employment." "Many idle and loose persons haue byn lately employed and sent to serue under his ma^{tie} of Sweden and such others as are taken up in watches or Privie Searches wthin o^r division are continually settled in some course

of life or sent to the howse of Correcon." See also Appendix XII.

[639] Ruxley, Little, Lesnex, Axton, and the vill of Dartford and Wilmington. *D. S. P.*, Chas. I., Vol. 220, 14. July 4th, 1632.

[640] *Ib.*, Vol. 272, 40. July, 1634.

[641] *Ib.*, Vol. 349, 113. March, 1636/7.

[642]

<i>D. S. P.</i> , Vol. 315, 25. March, 1635. "Item.	cxxii ^{li}
Money disbursed to set the poore on woorke. }	iijs.
Itm. Moneys in stocke for the settinge of the	xxxxvii ^{li} .
poore to worke.	

[643] The following are instances in which work for the poor was provided in some district in every other eastern county:

Sussex. Rape of Bramber. *Ib.*, Vol. 189, 16. April, 1631. The justices "haue compelled some that misspent their tyme to fall to labor and haue provided worke for them and others that alleaged they wanted worke."

Bedford. See above.

Bucks. Boro' of Buckingham. Vol. 201, 13. 3rd Oct., 1631. "Our poore are kept to work and o^r stock is still going, wee have noe poore that begg." Oct. 3rd, 1631. See above also.

Essex. Vol. 188, 92. April, 1631. Great want of work; the justices "haue not only delt wth the able men of parishes to prouide and laie in corne for prouision of the poore at under-rates but did cause them to raise stockes and meanes to sett their poore on worke."

Hunts. Hundred of Hurstington. Vol. 329, 83. 1636. Signed by Sir Oliver Cromwell, H. Cromwell and Robert Audeley. The justices called before them the overseers of the poor and caused them "to render vs an accompt what stocks of money haue beene raysed for settinge the poore on worke and howe the poore haue beene releiued. Whoe haue made it appear before vs that the statute in this case hath beene duely obserued throughout the said hundred."

Leicester. West Goscote. Vol. 349, 35. March, 1636/7. The justices relieve and set to work poor people, punish rogues, and put all instructions of the Book of orders into execution, "w^{ch} course wee finde very beneficiall and much conducinge to the generall quiett and goode of the countrey and wee therefore wth more cheerefullnes addresse ourselues thereunto."

Lincolnshire. Horncastle Sessions. Vol. 349, 113. 14th March, 1636/7. The justices "haue taken speciall care ... that the abler sorte bee constantly sett on worke by the stocke of the parishe."

Rutland. Vol. 185, 55. Feb., 1630/1. The justices state that "order is taken (according to lawe) for reliefe and setting to worke of poore and impotent people."

[644] The Collectors responsible to Parliament for the gathering of the subsidies for the war were the overseers and petty constables in each parish.

[645] The Reports of the Four Royal Hospitals for 1641 and 1647. *King's Pamphlets*, Brit. Mus. 669, f. 4, No. 5, and f. 11, No. 5.

In 1641 there had been 1002 patients in St Bartholomew's, and 711 vagrants in Bridewell.

In 1647 there had been 901 in St Bartholomew's and 575 vagrants in Bridewell.

[646] Report of the Four Royal Hospitals for 1645. *King's Pamphlets*, British Museum, 669, f. 10, No. 26. Similar reasons are also alleged in the report of 1644. *Ib.*, No. 2.

[647] *Ib.*, 1649, 669, f. 14, No. 11.

[648] *King's Pamphlets*, 1653, 669, f. 16, No. 94.

[649] "An Order for putting in execution the laws against vagabonds made by the Lords in Parliament assembled." *King's Pamphlets*, 669, f. 9, No. 81, Mar. 5th, 1646/7. See also an Act of the Commons of England in Parliament assembled for the relief and employment of the poor and the punishing of vagrants, 1650.

[650] Order issued "By the Mayor," 1655. *King's Pamphlets*, 669, f. 20, No. 21. "Whereas by neglect of executing the good lawes and statutes against rogues, vagabonds and sturdy beggars, that vermine of the Commonwealth doth now swarme in and about this City and Liberties disturbing and annoying the inhabitants and passengers, by hanging upon Coaches, and clamorous begging at the doores of Churches and private Houses and in the streets and Common Wayes; beguiling the modest laborious and honest poore (the proper objects of charity) of much reliefe and alms etc." 23rd Jan., 1655/6.

[651] "By the Mayor." Lord Mayor's Proclamations, No. 18.

[652] *Votes of Parliament, Tuesday the seven and twentieth of April, 1652*, "For setting the Poor on work and for preventing of Common Begging." *King's Pamphlets*, 669, f. 16, No. 49.

[653] *Calendar of State Papers*, Dec. 22, 1657.

[654] *Ib.*, Sept. 9, 1653. The order is to the effect that the Council of State is to take care to suppress and prevent the like abuse in the future.

[655] Barnstaple Records, *North Devon Herald*, April 22, 1880.

[656] *Calendar of State Papers*, Aug. 12, 1658.

[657] *An Ordinance of the Lords and Commons assembled in Parliament for the constant reliefe and Imployment of the Poore and the Punishment of Vagrants and other disorderly persons in the City of London. 17 Dec. 1647.*

[658] Note to song "Poor Outcast Children's Song and Cry" published 1653. *King's Pamphlets*, 669, f. 16-95.

[659] Resolutions of Common Council, 6th March, 1656, and 1st April, 1657. Lord Mayor's Proclamation Book, Nos. 14 and 17. The first resolution sets forth the fact that the Corporation have not funds sufficient for employing the constables necessary for clearing the streets; a special rate was to be levied to assist them.

[660] *Britaine's Busse*, 1615. Eden, I., p. 148, and *Provision for the Poore*, 1649. *King's Pamphlets*, 669, f. 14.

[661] *Calendar of State Papers*, Sept. 2, 1652.

[662] Poor Outcast Children's Song and Cry. *King's Pamphlets*, 669, f. 16-93.

[663] *Hist. Man. Com. Rep.*, IX. App. p. 320. Part of the proceeds of Lichfield Cathedral seem actually to have been granted to the poor of Stafford, though the poor had not received any benefit from the grant because the money had remained in private hands. We are told that the House of Correction at Stafford was much defaced, though it had formerly been used as a place "to set the poor on work." *Cal. of State Papers*. Feb. 17, 1654. Here we can see the process of disorganisation. The place had been used for the unemployed, but fell into decay during the war; attempts were made to restore it under the Commonwealth, but so far they were not successful.

[664] A. Kingston, *Herts. during the Great Civil War*, p. 182.

[665] *Ib.*, pp. 54 and 55.

[666] *Ib.*, p. 187.

[667] Harleian Miscellany, viii. p. 582, quoted by Eden, p. 188.

[668] Eden, Vol. I., p. 216.

[669] See above.

[670] Eden, Vol. I., p. 225.

[671] Ashley, *Economic History*, Vol. II., p. 346 sqq.

[672] The statutes of 1425 (James I., c. 66) and of 1427 (James I., c. 103) are vagrant acts closely resembling those of England in the fourteenth and fifteenth centuries.

[673] James V., cap. 22. Nicholl's *History of the Scotch Poor Law*, p. 12.

[674] James V., cap. 74. Nicholl's *History of the Scotch Poor Law*, p. 16 seq.

[675] The child taken as an apprentice had to remain under the control of his master or mistress for a much longer time than in England—the boy until he was twenty-four and the girl until she was twenty-eight.

[676] James V., cap. 149. Nicholl's *History of the Scotch Poor Law*, p. 27.

[677] The Act of 1579 was not generally well executed. At the convention of Scottish boroughs held in Aberdeen July 1580, representatives of certain towns were deputed to ask his Majesty to take measures "for taking of ordour with euery parochyn to landwart for sustening of thair awin pure people and impotent personis according to the act maid in his Grace last Parliament quhilk hes bene as zit neglected, without the quhilk unpossibill it is to the burrowis to tak ordour thairanent, being oppressit with ane greit and infinit number of strang and extraordinar beggeris nocht born nor bred within the saidis burrowis." Marwick, *Convention of Scottish Boroughs*, I., p. 102. In some towns however measures were taken. In Glasgow as early as 1575 badges were provided for the town beggars, and the rest were banished. Marwick, *Extracts from the Records of the Borough of Glasgow*, I., p. 457. Occasionally also payments were made from the town chest to particular poor people both before and after 1597. Thus the following entries occur in the borough accounts:

Aug. 10, 1577. Item to Andro Duncane for his support to mend him of his hurt, xiijs. iiijd.

July 10, 1578. Item to Serjand Steill in almous to help to cure his leg, xls.

Oct. 9th, 1584. Item gewin to Barbara Ramsaye ane pure wowman with mony barnis in almous, xxs.

1612. Item gifin to ane young man quha was rubbit of his pak, xls.

In 1597 also before the Act of that year was passed a committee had been appointed in Glasgow "for reasoning anent the ordour and lawis concerning the puir folkis." *Ib.*, pp. 463, 467, 472, 477 and 187.

In Aberdeen in 1595 more organised relief was attempted. The whole town on Jan. 23rd, 1595 met together and the poor were divided into four classes, (1) "babis," (2) "decayit persones hous halderis," (3) "leamit and impotent persones, (4) "sic as war decrepit and auld" if bred and born in the town or resident there for seven years. The inhabitants then agreed some to receive "ane baib" and others to contribute money. They asked however that the magistrate should take "substantious ordour anent the expelling of extranear beggaris" and that their own poor should remain at home and be content with the aid allowed them, "and according to the said voting ilk man speking be himself as said is, the roll was instantlie sett down, and sic as everie man grantit be his awin mouth wreittin, and the babis delyuerit to sic as war content to receawe them." Extracts from the *Council Registers of Aberdeen*, II., p. 124. The authorities of both Glasgow and Aberdeen we shall see made other attempts to relieve their poor, but like the efforts of the English towns these attempts were seldom long successful.

[678] James V., cap. 272. Nicholl's *History of the Scotch Poor Law*, pp. 31, 32.

[679] In 1600 the kirk Session was to be assisted when necessary by one or two presbyters in the execution of the acts for the relief of the poor and punishment of vagabonds, and all presbyters were to "take diligent tryal of the obedience of the said sessions hereanent." *Ib.*, p. 34.

1617. Justices are appointed and are to execute laws against vagrants. *Ib.*, p. 37.

In 1661 justices of the peace were to administer the laws for the relief of the poor. *Ib.*, p. 58.

1672. Correction Houses to be established in thirty burghs. *Ib.*, p. 67.

Proclamation of 1692. The heritors, ministers and elders were to make the lists of the poor, and the charge for the maintenance was to be borne half by the heritors and half by the householders of the parish.

} This regulation was confirmed by the Act of 1698. *Ib.*, p. 79 and 84.

[680] *Ib.*, p. 61.

[681] *Register of the Scottish Privy Council*, Vol. XIII., p. XXIX.

[682] *Register of the Scottish Privy Council*, p. 836.

[683] *Ib.*, p. 818.

[684] e.g. Linlithgow, *Ib.*, p. 840. The justices of Perthshire however said every poor person was to have a peck of meal

weekly, and that the heritors were to pay for it "conforme to the stent roll to be sett down be the sessioun of the paroche kirk." *Ib.*, p. 820. See also pp. 826, 832, &c.

[685] *The Annals of Banff*, W. Cramond, II., pp. 23 and 25.

[686] *Ib.*, I., p. 65. The population of the parish of Banff was 3000 in 1775, and in 1797 the town numbered 700 less than the parish. The poor relieved in 1631 were possibly all town poor, but the figures of 1673 and 1691 refer to the whole parish.

[687] Extracts from the Kirk Sessions minutes, *Ib.*, Vol. II., pp. 49 and 61. April 14th, 1673, "Distributed poor's money: May 5, £12. 2s. 4d.; Aug. 5, £12. 0s. 4d.; Nov. 2, £13. 0s. 4d.; Feb. 2, £13. 12s. Ten are Seatown poor and seventeen are town poor." "Nov. 17th, 1691, Distributed to the poor £10. 16s. Number of poor: 8 town's poor, 4 Seatown poor, 6 landwart poor and 5 protemporarious."

[688] *Ib.*, I., pp. 74, 86.

[689] *Ib.*, pp. 168 and 213. 1698, May 21. "The magistrats and Counsell appoynt bages for such poor as is thought convenient to beg through the towne and ordain the drum to goe thorow the towne inhibiting to relive any poor except those who have badges."

[690] See note above.

[691] *Selections from Ecclesiastical Records of Aberdeen*, p. 83.

[692] *Extracts from the Records of the Burgh of Aberdeen*, I. p. 360.

[693] *Ib.*, p. 372. The distribution of relief was apparently still arranged by deacons appointed by the kirk sessions.

[694] *Ib.*, p. 112, Vol. II. *Scottish Burgh Records Society*.

[695] For Glasgow see note below; for Dumbarton see *Dumbarton Burgh Records*, p. 49. 18th Jan. 1636, "Forsameikill as the magistrattis, minister and elders of this burgh c^ovenit in this sessioun in the kirk of this burgh, on the 14 of this instant In respect the burgh is trublit be straingers and vnkuth beggars and the pure of this burgh damnifeit, Thairfor thay thocht it best that the magistrattis sould caus put the Acts of Parliament againe abill and sturdie beggars to executioun q^rby unkuth pure resort to thair own parochins and the pure of this burgh and paroche be helpit and bettir maintenit, and to this effect that the magistrattis sould caus set down ane stent roll vpoune the inhabitants and burgesses of this burgh for a monthlie c^otributioun to the poore, to keip them fra begging. [Stentmasters chosin]."

[696] Report forwarded by the Moderator of the General Assembly and printed in the 3rd Rep. of the Select Committee of the House of Commons on the Poor Laws.

[697] Nicholls, *Hist. of the Scotch Poor Law*, p. 78 seq.

[698] *Ib.*, p. 81.

[699] *Ib.*, p. 83.

[700] *Ib.*, p. 78.

[701] Selections from ecclesiastical records of Aberdeen. *Register of Synod*, p. 276.

[702] 20 May, 1699. "Considering the insupportable number of extraneous and vagrant beggars who daylie frequent this burgh" the elders and baillies are to meet "and take ane exact account of the poor belonging to the samen burgh and order badges for them soe as they may be knoune and distinguished from extraneous beggars." *Extracts from the Records of Stirling*, Vol. II., p. 90.

[703] Second Discourse concerning the affairs of Scotland quoted and compared with Hext's letter in Dunlop's *Law of Scotland relating to the Poor*, p. 1.

[704] See 3rd Report of Select Committee on the Poor Laws.

[705] In 1638 the Glasgow Town Council reports in favour of relieving the poor in their homes, and orders the inhabitants to be "stented" for their relief. In Jan. 1639 the rate was imposed and amounted to £600, or one-fifth of the ordinary taxation. In April the poor were to be "keipit in thair houssis for ane quarter to cum," and in October the arrangement was said to be successful, and was continued for a year. But in 1647 the town authorities say they are loath to take the course allowed by law, and ask the kirk session to "fallow furthe the way on ane voluntar monethlie contributione"; any deficiency in the sum necessary for the poor was however still to be contributed by the town. In 1649 means were formed of stimulating the voluntary contributors "Anent the inbringing of the poores mentinance it is inacted that the refuissars be quarterit vpon with sojouries." Still the funds raised were insufficient, and in 1653 a tax was again imposed only to be again discontinued a few years later. *Extracts from the Records of Glasgow*, R. Marwick, Vol. I., pp. 395, 396, 400, 406, and Vol. II., pp. 180, 182, 254, 369.

[706] Alexandre Monnier, *Histoire de l'assistance dans les temps anciens et modernes*, p. 307.

"Par chacune paroisse, seront establis boëtes et troncs qui par chacun jour de dimanche, seront recommandés par les curez et vicaires en leur prosnes et par les prédicateurs en leur sermons."

[707] Monnier, p. 308. Brittany was not thoroughly incorporated with the rest of France.

[708] *Ib.*, p. 313 seq.

[709] *Ib.*, pp. 314 and 317.

[710] C. Chamborant, *Du Paupérisme*, p. 92.

[711] *Ib.*, p. 95.

[712] S. R. Gardiner, *History of England*, VII., p. 160, ed. 1884.

[713] Fuller's *Worthies*, p. 179.

[714] S. R. Gardiner, *Hist. of England*, VII., p. 164.

[715] Vol. 426, 73.

[716] See above, p. 193.

[717] See above, p. 283.

[718] New houses in London had to be of a certain size and height, and in the country had to have land attached to them. During the same setting of this Court the Attorney-General informed against a certain Negroose and others for building cottages in London "contrary to the proclamation." One offender was fined £100, another £40, and another £20, while the houses were destroyed "for their base condition" and the timber was to be sold for the benefit of the poor. *Les Reportes del Cases in Camera Stellata*, 1593-1609. John Hawarde, edited by W. P. Baildon, F.S.A.

[719] *Ib.*, pp. 78, 79.

[720] Strype's *Annals*, No. 213. See p. 126.

[721] E.g. *Little Proc. Bk.*, James I., No. 27.

[722] *Dom. State Papers*, Chas. I., Vol. 293, No. 115, July, 1635.

[723] *Ib.*, Vol. 315, No. 25, March 1635/6.

[724] *Ib.*, Vol. 250, 11, II., Nov. 1633.

[725] *Ib.*, Vol. 426, 37 and 19, July, 1639.

[726] *Dom. State Papers*, Chas. I., Vol. 388, No. 7, April, 1638.

[727] Cherbury and Ford, Chas. I., Vol. 272, 53, 54, July, 1634. See above for a like report from Monslow, also where the effect of the enforcement of the Book of Orders was immediate.

[728] Vol. 185, 41, Feb. 1630/1. From Morleston and Litchurch, Derbyshire, also the justices say of vagrants "our country is cleerly deliuered of them." Vol. 194, No. 25, June, 1631.

[729] Vol. 216, No. 103, May 30th, 1632. From several divisions of Somerset also we have a report which shows that the country was becoming quiet, though the good order is often attributed to the watches for vagrants. "Watches and warde have beene and are continued whereby the number of vagabonds are much diminished and this country thereby well freed." Vol. 289, No. 20. Also from the wapentakes of Stancliff and Ewecross, co. York, we hear there are "verie fewe or none to bee founde wanderinge or rogeinge." Vol. 364, No. 49. Although in these cases the improvement is attributed to punishment rather than relief, it probably indicates that relief also was well administered since neither justices nor inhabitants could or would prevent vagabondage by punishment unless it were accompanied by efficient poor relief.

[730] Between 1600 and 1688 wages rise continuously in every decade. If we take the decennial averages of labour given by Prof. Rogers we find that between the accession of James I. and 1688 in most cases the greatest increase of wages was during the period from 1643 to 1652. But this increase may be largely owing to the disturbances of the Civil War, since from 1663 to 1672 the rate of increase is less than that of any preceding ten years of the century. With the exception of the decade of the Civil War the greatest rise in wages occurs during the ten years immediately preceding, from 1633 to 1642, that is during the time when the organisation established by the Book of Orders was established. Moreover the increase is the more remarkable when we compare the rates of wages with the price of corn. For from 1633-1642 the average price of wheat per quarter was 41s. 2d., while from 1643-1652 it was 48s. 11d., and during the next ten years 47s. 2½d. *Hist. of Agric. and Prices*, Vol. V., p. 276. The average price of wheat was therefore considerably lower during the decade before the War. The following are the decennial averages of the worst paid labour given by Prof. Rogers, *Hist. of Agric. and Prices*, Vol. V., p. 672:

	Tiler or Slater per week		Bricklayer and Man per week		Labourer to Artisan per week		Digging, Hedging, or Ditching per week		Women's ordinary work per week	
	s.	d.	s.	d.	s.	d.	s.	d.	s.	d.
1603-1612	6	0	10	9½	4	0	4	10½	2	6
1613-1622	6	2¾	10	2¾	4	0¼	4	10¾	1	11
1623-1632	6	8	11	0	4	4¼	4	9	2	1½
1633-1642	7	6	11	8¾	5	0	5	6½	3	0

1643-1652	9 5½	14 1¾	5 10½	5 9½	2 6
1653-1662	11 1	17 7	6 0	6 0	2 6
1663-1672	9 11¼	13 0	6 1¼	6 1¾	3 0

It will be seen that wages rose slowly before 1632, and then began to rise at a much more rapid rate, and that the wages of unskilled labour rose almost as much during the decade 1633 to 1642 as during the ten years in which the war was conducted.

[731] There were four clerks under the Town Clerk whose duties were defined in 1537. The youngest of these was to enter into the Journals acts of Common Council, degrees, proclamations and precepts and all other things necessary for the business of the City. Repertory ix. f. 251 b. quoted by Dr Sharpe, "Calendar of Letters from the Mayor and Corporation of the City of London 1350 to 1370." Intro. p. xxiv. seq.

[732] 14 Eliz. c. 5. See above, pp. 70, 97.

[733] The "Maioris Bocke for the Pore" and a second large book at Norwich entitled "The Booke for the Poore," have been already described. See note, p. 102.

[734] From "names" down to "weekelye" is written with a different ink from the rest of the entry and was apparently inserted at another time.

[735] A space is left in the manuscript.

[736] From "In" to "weekelye" is written in another ink.

[737] See above, pp. 89, 90.

[738] See above, p. 86.

[739] See above, p. 119.

[740] The portion printed in italics is written in Burleigh's own hand.

[741] "Instrucons" is deleted.

[742] Badgers, kidders and broggers were all names applied to dealers, especially to dealers in corn and other provisions. By the 5 and 6 Edw. VI. c. 14 badgers and kidders or kyddiers licensed by three justices were exempted from the penalties attached to forestallers and regrators; no one not so licensed might buy corn to sell again. In a statute of Elizabeth (5 Eliz. c. 12) they are again mentioned and the conditions of their license were made more stringent; no one was to be licensed unless he were a resident householder and the licensed dealer had to place

security with the Clerk of the Peace that he would not forestall or engross corn. The words "badger" and "kidder" continued to be used in the licenses granted to corndealers as late as the eighteenth century. The word "brogger" does not occur so frequently. Murray states that it is apparently an unexplained corruption of broker, and he quotes Stow's Survey (1754), II. V. XV. "They were called Broggers in a statute of Richard II.—none to be Brocars in any mystery unless chosen by the same mystery." See also 25 Hen. VIII. c. 1, where the word is applied to a seller of meat.

[743] See note, p. 69.

[744] The clause here omitted provides for the punishment of any person who should refuse to give information to the jurors. He was first to be "heavily rebuked"; if he still refused to tell the whole truth he was to be committed to prison; and if he remained obstinate he was to be brought before the Privy Council for further punishment and fine.

[745] I.e. collusion. The word is connected with old French *covenir*, modern *convenir*, to agree. It sometimes means agreement, but often, as here, has an unfavourable connotation.

[746] The clauses here omitted relate to the safe housing of the unsold corn after the market, and to the remedying of miscalculations as to the quantity of corn the farmer has to sell.

[747] Lord Burleigh has here underlined for omission the following words: "that the bread they bake of wheate only be all of one sort wthout takinge out of any of the flower for a fyner sort dueringe this tyme of dearth and."

[748] I.e. agree. See note above.

[749] The clause here omitted provides that, if there are not enough justices in any part the Sheriff and Justices of the peace shall appoint some "other grave, honest and substanciall persons" to carry out the orders.

[750] The rest of the manuscript contains a clause in Burleigh's hand which provides that justices of the peace shall act with other commissioners and prevent the transportation of grain and shall also be jointly responsible with the commissioners for the proper performance of this duty. The rest consists of rough jottings in Burleigh's hand concerning some additional matters such as "Tr(a)nsport of beans," "Recusants mo(n)y," &c.

[751] Thus in the account rendered July 21st, 1588, by one churchwarden several items of the kind occur, e.g.

Item to a poore blynde man the vth of February iij^d.

It. to a poore woman the xiiijth of February iij^d.

It. to the poore howse at Lamporte the xth day of
November iiij^d.

It. to a poore souldyour

Later the churchwardens apparently always made a payment of 5s. every half-year to the constables for lame soldiers and hospitals.

[753] See above, p. 295.

[755] See above, p. 145 seq.

[757] *Ib.*, p. 154.

[759] Lord Dorchester had been appointed one of the special commissioners for the poor in June 1630. See above, pp. 156, 164.

[\[761\]](#) See p. 172 seq.

[763] See above, p. 249.

[764] In the manuscript the names of the churchwardens &c. are written opposite the entries in a right-hand margin and the names of the places are written in a large hand in a left-hand margin.

[765] Of these places only Ware, Stortford, Sawbridgeworth, Braughing and Stansted Abbots are of any size; Eastwick has even now only 71 inhabitants, and neither Gilston, Westmill or Thundridge have a population exceeding 500. The population of Charles I.'s time for the whole of England and Wales is estimated to have been about one-sixth that of the present day. The largest place, Ware, has a stock when the reports begin, the second in size, Stortford, reports one at the second meeting, while the overseers of Braughing have arranged for the employment of the poor in another manner. Here therefore as elsewhere arrangements for finding work exist more in the larger places than in the smaller.

[766] The keeping of cows so that the poor could have their milk seems to have been one of the oldest methods of public poor relief; see Ashley, *Econ. Hist.*, II. p. 311.

[767] See above, pp. 156-7 note.

[768] Particulars of rents annually received are here set down; they together amount to £724. 2s. 2d.

[769] The arithmetic seems wrong here; it should be £525.

[770] The sum total seems to amount to £192. 14s.

[771] Particulars of the leases here follow, the rents of which amount to £483. 3s. 4d. After this there is an inventory of the furniture in every room of the hospital. The following are the particulars given for one of the rooms:

"At the	Eight boarded bedsteds.
working	One long table of Two planks.
roome at	One forme and a particon.
the	One old forme.
Matrons.	One old peice of timber lying before the chimney.
	Eight spinning wheeles.
	Three straw bedds and sixe bowlsters."

[772] See note to Appendix XII. A.

[773] See above, p. 264.

[774] See note to Appendix XII. A.

[775] The other five parishes are St Sepulchres, Stoke Newington, Clarkenwell, Islington and Friern Barnet. A note is also added that

"Hornsey and Finchley have levyed } nil."

[776] See above, pp. 138, note 2, and 177. These forfeitures were partially used for setting the poor to work in three of the parishes out of these six.

[777] The whole series of accounts are signed by the justices Thomas Fowler, William Hudson and John Herne.

[778] See above, p. 256 seq.

[779] The following twenty-two places are all small except Tuxford, which now possesses nearly a thousand inhabitants. All the others except five have less than three hundred inhabitants at the present day.

[780] Stokeham has now only thirty-five inhabitants, so this report does not necessarily denote negligence.

[781] See above, p. 264.

[782] See above, p. 269. These reports were apparently issued every year, and most of them between 1642 and 1649 are among the *King's pamphlets*.

[783] See above, p. 270.

Transcriber's Notes:

Obvious printer's errors corrected, including some minor corrections to the numbering of sidenotes in Chapter 13 to match the information given in the chapter heading.

Every effort has been made to replicate this text as faithfully as possible, including obsolete and variant spellings, non-standard punctuation, inconsistently italicized and hyphenated words, and other inconsistencies.

In three places in the original text, there are intentional gaps where it appears that a words was redacted. These are left as printed.

Some indexed items were out of sequence in the original text (Entries starting with “Thr” preceded those starting with “Tho”; these were left as printed.

There are many instances of dual dating, indicated in the transcribed text with a single forward slash (e.g. 1580/1). More information about this practice is available at https://en.wikipedia.org/wiki/Dual_dating.

P.[160](#): The anchor for footnote 3 was missing from this page in the scanned volume. Based on context, transcriber moved the anchor for footnote 2, and placed a new anchor for footnote 3.

*** END OF THE PROJECT GUTENBERG EBOOK THE EARLY
HISTORY OF ENGLISH POOR RELIEF ***

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